The Corporation of the Town of Ajax

GENERAL GOVERNMENT COMMITTEE

Monday, September 11, 2023
Open Meeting at 1:00 p.m.
Hybrid Meeting
Council Chambers, Town Hall
65 Harwood Avenue South

AGENDA

Alternative formats available upon request by contacting:
accessibility@ajax.ca or 905-619-2529 ext. 3347

Hybrid Meeting: This meeting occurs in person and will be live streamed for viewing at www.ajax.ca/live. Electronic participation is permitted pursuant to Council's Procedure By-law and may be arranged by e-mailing clerks@ajax.ca.

R. Tyler Morin, Chair
M. Crawford, Vice Chair

Open Meeting

1. Call To Order & Acknowledgement of Traditional Treaty Lands

2. Disclosure of Pecuniary Interest

3. Adoption of Minutes

3.1 **Regular Meeting – June 12, 2023** 3

3.2 **Closed Session Meeting – June 12, 2023** .....(circulated separately)
- *Any discussion will be held in the Closed Session*

4. Consent Agenda – *Considered to be routine, these items may be approved by one motion. Items may be separated and referred to the Discussion Agenda*

4.1 **AFES-2023-04: Updates to Emergency Response Automatic Aid Agreement with Pickering Fire Services**
A. Burridge, Fire Chief.....13

4.2 **AFES-2023-05: Contract Award – Supply & Delivery – Radio Equipment**
A. Burridge, Fire Chief / J. Warren, Administrative Coordinator 21

4.3 **FIN-2023-18: Tax Section Status Report**
D. Valentim, Director of Finance/Treasurer / S. Hewlett, Manager of Taxation 25

4.4 **FIN-2023-20: Insurance Renewal – July 1, 2023 to June 30, 2024**
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D. Valentim, Director of Finance/Treasurer / T. Barton, Supervisor of Accounting.....36

4.6 **FIN-2023-23: Development Charge Interest Policy Amendment**
D. Valentim, Director of Finance/Treasurer / H. Tokle, Financial Analyst.....84

4.7 **PDS-2023-29: Building By-law Update**
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4.8 **PDS-2023-30: Textile Diversion Program – Implementation Update**
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G. Romanowski, Director of Planning & Development Services / S. Ruddy, Manager of Development Engineering.....128

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C. Vida, Director of Recreation & Culture / A. McDermott, Facility Manager.....132

4.11 **LIS-2023-14: 2024 Meeting Schedule and Committee Chair and Vice-Chair Appointments**
N. Cooper, Director of Legislative & Information Services/Clerk / L. Donnelly, Council & Committee Meeting Administrator.....147

4.12 **LIS-2023-13: Procedure By-law Amendments**
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5. Discussion

5.1 **LIS-2023-12: Proposed Administrative Monetary Penalties**
N. Cooper, Director of Legislative & Information Services/Clerk / D. Hannan, Manager of By-law Services.....184

6. Presentations

6.1 **RC-2023-04: 2023-2033 Ajax Arts & Culture Plan**
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7. Closed Session

None

8. Adjournment

DRAFT MINUTES - Subject to Approval

Minutes of the General Government Committee Meeting Held in the Council Chambers, Ajax Town Hall and Electronically At 1:00 p.m. on June 12, 2023

Alternative formats available upon request by contacting:
accessibility@ajax.ca or 905-619-2529 ext. 3347

Present:	Chair – Councillor	L. Bower
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		N. Henry
	Mayor	S. Collier

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Chair Bower called the meeting to order at 1:02 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interests.

Motion to Suspend the Rules of Procedure

Moved by: S. Collier

That the Rules of Procedure be suspended in order to add an item to the agenda – "Canada Mortgage and Housing Corporation - Housing Accelerator Fund Application".

CARRIED
on 2/3rds

3. Adoption of Minutes

3.1 Regular Meeting

Moved by: R. Tyler Morin

That the Minutes of the regular meeting of the General Government Committee held on May 8, 2023 be adopted.

CARRIED

4. Consent Agenda

Members separated items 4.1, 4.3, 4.4, 4.5, 4.6, 4.7, 4.8, 4.9, 4.10 and 4.11 for discussion.

4.1 CAO-2023-12: Temporary Emergency Shelter (27 Station Street) Update

Committee Members asked questions regarding future shelter locations, intent of the original lease agreement, potential increases to the number of beds, residency of shelter residents, shelter statistics, lease terms, safety and security strategies, changes to the programming model, current facility amenities, scope of work for outdoor fencing, shelter availability among area municipalities, lease termination period, future homelessness strategies including Durham Region's role, facility access and use, and demographic data collection and reporting. Shane Baker, Chief Administrative Officer, Samantha Paterson, Government Relations and Strategic Initiatives Coordinator, and Christie McLardie, Manager of Public & Strategic Affairs, responded to questions from Committee Members.

Main Motion

Moved by: S. Collier

That the Temporary Emergency Shelter (27 Station Street) Update be received for information.

CARRIED

Amendment

Moved by: S. Collier

That the recommendation be amended by adding the following:

b) That staff be directed to report back to Council on the demographics on the clients of the shelter to date;

c) That Regional staff report back to Council on the specific changes the Region intends to make prior to implementation of any changes.

CARRIED

Recorded Vote

In Favour: Mayor Collier, Councillor Bower, Regional Councillor Crawford, Regional Councillor Lee, Councillor Tyler Morin

Opposed: Regional Councillor Dies

Main Motion as Amended

Moved by: S. Collier

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a) That the Temporary Emergency Shelter (27 Station Street) Update be received for information.

b) That staff be directed to report back to Council on the demographics on the clients of the shelter to date;

c) That Regional staff report back to Council on the specific changes the Region intends to make prior to implementation of any changes.

CARRIED

4.2 FIN-2023-13: 2023 Development Charge Background Study Update

Moved by: M. Crawford

That the report "2023 Development Charge Background Study Update" be received for information.

CARRIED

4.3 FIN-2023-14: Indexing of Municipal Development Charges – July 1, 2023

Committee members had no questions for staff.

Moved by: S. Collier

That the report on Indexing of Municipal Development Charges be received for information.

CARRIED

4.4 FIN-2023-15: 2024 Budget Timetable

Committee Members asked questions regarding rationale for the accelerated budget timeline, public engagement opportunities, timelines associated with the Region's budget, rationale for why the 2023 operating and capital budgets are proposed to be presented simultaneously, impacts to request for proposal (RFP) / tender processes, 2023 operating budget surplus and deficit projections, opportunities to accelerate surplus or deficit allocations, and potential impacts to the budget timetable if strong mayors powers are exercised. Dianne Valentim, Director of Finance/Treasurer and S. Baker, responded to questions from Committee Members.

Moved by: S. Lee

That the report on the 2024 Budget & Forecast Timetable be received for information.

CARRIED

4.5 FIN-2023-16: Annual Investment Report – January 1, 2022 to December 31, 2022

Committee Members asked questions regarding goals and objectives of the Town's Investment Policy, target investment percentages, opportunities for staff to report back on Durham Region municipalities ONE FUND investment portfolios, rationale for the inclusion

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of 'Preservation of Capital' in the Town's Investment Policy, and Municipal Act requirements. D. Valentim responded to questions from Committee Members.

Motion to Defer

Moved by: S. Collier

That Item 4.5 be deferred until the end of Section 4 – Consent Agenda, after item 4.12.

CARRIED

4.6 **OES-2023-13: Contract Award – Fire Station #2 Renovation**

Committee Members asked questions regarding rationale for the funding source, insufficient development charge reserve funds, rationale for not debenture financing the entire expense, Debt Management Policy review timelines, strategies to subsidize the development charge reserve, timelines associated with the Development Charges By-law review, and rationale for increased project costs. D. Valentim, Dave Meredith, Director of Operations & Environmental Services, and Lindsay Sinclair, Supervisor of Facility Capital Projects & Asset Management, responded to questions from Committee Members.

Moved by: S. Lee

1. That Council award the contract for Fire Station #2 Renovation, to Anacond Contracting Inc. in the amount of $3,316,617.80 (inclusive of all taxes).

2. That Council award the contract for Contract Administration Fire Station #2 Renovation, to Aecom Canada Limited in the amount of $238,260.50 (inclusive of all taxes).

3. That Council approve the following funding, to be allocated to Capital Account No. 23090202:

DC Funded Debenture	$1,900,000.00
Development Charges	$(1,202,564.86)
Development Reserve	$36,707.11
Building Maintenance Reserve	$507,391.36
Total	$1,241,533.61

4. That Council authorize staff to prepare a bylaw to authorize the Regional Municipality of Durham to issue a debenture in the estimated principal amount of $1,900,000 as partial financing for the renovations of the Fire Station #2 required to accommodate a new fire crew.

CARRIED

4.7 **OES-2023-14: Contract Award – Meadows North Neighbourhood Park Construction**

Committee Members asked questions regarding project costs, contractor performance, communication strategies, and project timelines. D. Meredith, Tan Nguyen, Landscape

Architect, and D. Valentim, responded to questions from Committee Members.

Moved by: J. Dies

1. That Council award the contract for the Meadows North Neighbourhood Park Construction project to Melfer Construction Inc. in the amount of $1,008,307.88 (inclusive of all taxes).

2. That Council approve the following funding to be allotted to Capital Account No. 1029711:

Development Charges Reserve Fund	$144,593.85
Development Reserve	$ 12,573.38
Total	$157,167.23

CARRIED

4.8 **OES-2023-18: Contract Award – Town Hall Parking Lot Improvements**

Committee Members asked questions regarding strategies to prevent through traffic from the Kings Crescent/Achilles Road connection, impacts to referring the motion, and if any accidents have been reported. D. Meredith responded to questions from Committee Members.

Motion to Refer

Moved by: S. Collier

That Item 4.8 be referred to the June 27, 2023 Special Council Meeting.

CARRIED

4.9 **OES-2023-19: Contract Award – Rossland Road Widening from Westney Road to Lake Ridge Road Detail Design**

Committee Members asked questions regarding detailed design namely if multi-use path infrastructure will service all active transportation users, rationale for the omission of cycling infrastructure along the Rossland Road corridor, process to amend the Environmental Assessment (EA), opportunities to include bike lanes in the EA, cycling infrastructure identified in the Transportation Master Plan for the Rossland Road corridor, strategies to accelerate project and construction timelines, and project scope. D. Meredith and Geoff Romanowski, Director of Planning & Development Services, responded to questions from Committee Members.

Moved by: S. Lee

That Council award the contract for detailed design of Rossland Road from Westney Road to Lake Ridge Road to R.V. Anderson Associates Limited in the amount of $1,638,296.60 (inclusive of all taxes).

CARRIED

4.10 **PDS-2023-24: Update to Traffic By-law 45-2020, Community Safety Zones**

Committee Members had no questions for staff.

Moved by: S. Lee

1) That Council approve the proposed amendment to the Traffic By-law 45-2020 to incorporate the changes to Schedule 22 of the By-law as identified in Attachment #2;

2) That a By-law to amend Traffic By-law 45-2020 be brought forward for consideration of Council;

3) That staff be directed to install necessary Community Safety Zone signage including new “Burst” signs in the newly established zones; and

4) That Report # PDS-2023-24 be forwarded to the Durham Region Police Service, Durham District School Board, Durham Catholic District School Board and Durham Student Transportation Service.

CARRIED

4.11 **PDS-2023-25: Update to Traffic By-law 45-2020, No Stopping**

Committee Members asked questions regarding strategies to improve pedestrian safety, methods to mitigate illegal on-street parking activities, existing and proposed restrictions for Coles Avenue, “Kiss and Ride” facilities, enforcement strategies, no stopping penalties, and opportunities to implement automated enforcement systems and educate staff on available technologies. Dhaval Pandya, Manager of Transportation Planning and G. Romanowski, responded to questions from Committee Members.

Moved by: N. Henry

1. That Council approve the proposed update to Traffic By-law 45-2020, as identified in Attachment 1, to incorporate the following changes to Schedule 1 of the By-law:

    - No Stopping (Anytime) on the east side of Church Street between Sherwood Road East and 150m north of the property line of Pickering High School;

    - No Stopping (Anytime) on the west side of Church Street between Sherwood Road West and 150m north of the property line of Pickering High School;

    - No Stopping (Anytime) on the east side of Coles Avenue between Coe Drive and north driveway of Applecroft Public School;

    - No Stopping (Anytime) on the east side of Coles Avenue between south driveway of Applecroft Public School and Cornwall Drive;

    - No Stopping (Anytime) on the north and south sides of Delaney Drive between East Driveway of Eagle Ridge Public School and Hibbins Avenue/Strickland Drive;

    - No Stopping (Anytime) on the east side of Thackery Drive between Williamson Drive East and Schofield Gate;

- No Stopping (Anytime) on the south side of Williamson Drive East between Salem Road North and east property line of 135 Williamson Drive East; and

- No Stopping (Anytime) on the north side of Williamson Drive East between Salem Road North and Sargeant Avenue.

2. That Council approve the proposed update to Traffic By-law 45-2020 to incorporate the following changes to Schedule 2 of the By-law:

    - No Stopping (September to June, Monday through Friday, 8:00am to 4:00pm) on the west side of Coles Avenue between Coe Drive and Cornwall Drive; and

    - No Stopping (September to June, Monday through Friday, 8:00am to 4:00pm) on the west side of Thackery Drive between Williamson Drive East and Schofield Gate.

3. That a By-law to amend Traffic By-law 45-2020 be brought forward for consideration of Council.

4. That Report # PDS-2023-25 be forwarded to the Durham Region Police Service, Durham District School Board, Durham Catholic District School Board and Durham Student Transportation Service.

CARRIED

4.12 **LIS-2023-09: Unbudgeted Technology Expenses – Council Chambers**

Moved by: M. Crawford

That the report titled “Unbudgeted Technology Expenses – Council Chambers” be received for information.

CARRIED

4.5 **FIN-2023-16: Annual Investment Report – January 1, 2022 to December 31, 2022**

Main Motion

Moved by: S. Collier

1. That the Annual Investment Report for the period January 1 to December 31, 2022 be received for information.

2. That Council approve the recommended changes to the Investment Policy.

CARRIED

Amendment

Moved by: S. Collier

That the recommendation be amended by striking the proposed amendments to Section 2.1 i) Preservation of Capital, of Corporation Policy #130 – Investments.

CARRIED

Main Motion as Amended

Moved by: S. Collier

1. That the Annual Investment Report for the period January 1 to December 31, 2022 be received for information.

2. That Council approve the recommended changes to the Investment Policy.

3. That the recommendation be amended by striking the proposed amendments to Section 2.1 i) Preservation of Capital, of Corporation Policy #130 – Investments.

CARRIED

Committee recessed at 3:10 p.m.

Committee resumed at 3:17 p.m.

5. Discussion

None

6. Presentations

6.1 PDS-2023-22: 2022 Development Application Approval Process Review

Peter Simcisko, Managing Partner, Watson & Associates Economists, Ltd., delivered a presentation regarding the development application approval process review. P. Simcisko discussed background, objectives, legislative context, activity-based costing methodology, fees review process, scope of services, annual capacity, costs, annual costs and revenues by section, and next steps.

Committee Members asked questions regarding cost recovery. P. Simcisko responded to questions from Committee Members.

Moved by: S. Lee

1. That Council approve the findings in the attached Development Application Fees Review Study; and

2. That staff be authorized to prepare and forward the amending user fee by-laws for the respective Sections to Council for consideration at a future meeting.

CARRIED

6.2 PDS-2023-23: More Ways to Get Around: E-Scooters and E-Bikes

Armi De Francia, Active Transportation Coordinator, reviewed the contents of the written report and recommendations contained therein. A. De Francia reviewed the Council motion regarding the use of electric kick scooters and defined e-scooters and e-bikes. A.

De Francia discussed requirements under the Ontario E-scooter Pilot Program, benefits, advantages and disadvantages of privately owned vs shared e-scooter and e-bikes, Provincial and Regional permissions for e-scooters and e-bikes, pilot program options, decision-making criteria, recommendations, framework for a shared program agreement, estimated costs, and next steps.

Committee Members asked questions regarding guidelines for privately owned e-scooters and e-bikes, enforcement strategies and staff resources, program management, strategies to increase visibility and mitigate risk, project timelines, user costs, public consultation and public education initiatives, sidewalk restrictions, and helmet requirements. A. De Francia, D. Pandya, and Derek Hannan, Manager of By-law Services, responded to questions from Committee Members.

Moved by: J. Dies

1. That the report entitled “More ways to get around: E-scooters and E-bikes” be received for information;

2. That the Electric Kick Scooter and Pedal Assist E-Bike By-law, as provided in Attachment 1 to this report, be endorsed and forwarded to the June 19, 2023 Council meeting;

3. That staff proceed with issuing a Request for Proposal (RFP) to implement a Shared E-scooter and E-bike Pilot Program and associated agreement(s) and that the delegated authority be granted to staff to execute these agreement(s);

4. That staff proceed with a partnership with Toronto Metropolitan University to monitor the implementation of the pilot project;

5. That staff proceed with partnerships with the Canadian National Institute for the Blind and other interested disability advocacy groups to implement a campaign encouraging safe behaviours among e-scooter and e-bike users that considers pedestrians with disabilities;

6. That Council approve a budget of $51,025.00 from the Capital Contingency Fund for the first year of the pilot program (education campaign, evaluation) with an estimate of $41,000.00 to be recovered through fees to the shared e-scooter and e-bike companies and $10,025.00 to be funded through Capital Contingency Reserve; and

7. That a copy of this report be circulated to the Region of Durham, Durham Regional Police Services, Durham Region Transit, and all local Municipalities in Durham Region.

CARRIED

6.3 **Canada Mortgage and Housing Corporation – Housing Accelerator Fund Application**

Kassandra Cruciano, Senior Advisor Grants & Partnerships, delivered a presentation regarding the Housing Accelerator Fund Application. K. Cruciano provided an overview of the program and reviewed background and context, proposed initiatives to accelerate housing development (over 4 years), estimated maximum funding projection, timelines, and staff recommendations.

Committee Members asked questions regarding projections identified within the Major Transit Station Area (MTSA), timelines associated with the application approval process, next steps namely the development process, funding schedule and requirements, funding allocations, and affordable housing unit projections. K. Cruciano and Sean McCullough, Supervisor, Policy Planning & Research, responded to questions from Committee Members.

Moved by: S. Lee

1. That staff apply to the Canada Mortgage and Housing Corporation's (CMHC) Housing Accelerator Fund;

2. That the Mayor and Clerk execute a Contribution Agreement with the CMHC to receive any funding available resulting from the Town's application to the Housing Accelerator Fund; and,

3. That staff advise Council, at the appropriate time, of the result of the Town's application to the Housing Accelerator Fund.

CARRIED

Closed Session (4:51 p.m.)

7. Authority to Hold a Closed Meeting and Related In-Camera Session

Moved by: N. Henry

That Council convene to a Closed Session pursuant to Section 239 (2) (b) of the Municipal Act, 2001, as amended, to discuss personal matters about an identifiable individual, including municipal or local board employees.

CARRIED

Open Meeting (4:54 p.m.)

7.1 **Statutory Committees & Boards Membership Appointments**

Moved by: N. Henry

That Council approve the appointment of Heather Azzarello and Rosanne Purnwasie to the Accessibility Advisory Committee, with Membership to be in effect until February 28, 2027, or until their successors are appointed.

CARRIED

8. Adjournment (4:55 p.m.)

Moved by: S. Lee

That the June 12, 2023 meeting of the General Government Committee be adjourned.

CARRIED

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Town of Ajax Report

Report To:	General Government Council (GGC)
Prepared By:	Aaron Burridge
Report #:	AFES-2023-04
Subject:	**Updates to Emergency Response Automatic Aid Agreement with Pickering Fire Services**
Ward(s):	All
Date of Meeting:	September 11, 2023
Reference:	N/A

Recommendation:

1. **That a By-law to authorize the execution of an updated Automatic Aid Agreement with the City of Pickering (ATT-1) be presented to Council for approval.**

Background:

The Fire Protection and Prevention Act, 1997, provides for the authority for a municipality to enter into an Automatic Aid Agreement with another municipality. An Automatic Aid Agreement means any agreement under which:

- a municipality agrees to ensure the provision of an initial response to fires, rescues and emergencies that may occur in a part of another municipality where a fire department in the municipality is capable of responding more quickly than any fire department situated in the other municipality; or

- a municipality agrees to ensure the provision of a supplemental response to fires, rescues and emergencies that may occur in a part of another municipality where a fire department situated in the municipality is capable of providing the quickest supplemental response to fires, rescues and emergencies occurring in the part of the other municipality. 1997, c. 4, s. 1 (4).

Discussion:

The existing Automatic Aid By-law with the City of Pickering was last updated in May 2000. Since that time, there has been massive growth and changes in each municipality. Since the fall of 2022, discussions have been ongoing between the Fire Chief of Ajax and the Fire Chief of Pickering to work to update the Automatic Aid response criteria for each municipality to account for these circumstances, along with changes in fire station locations. This includes the

recognition of the recent opening of Pickering new Fire Headquarters at 1700 Zents Drive in Pickering.

The updated Automatic Aid response criteria are attached as an Appendix to the proposed agreement (ATT-1). The Appendix details the Automatic Aid responses in relation to Highway 401, as well as areas in Pickering where Ajax Fire & Emergency Services is likely to be able to provide initial response in a quicker manner than Pickering Fire Services, and areas in Ajax where Pickering Fire Services is likely to be able to provide initial responses in a quicker manner than the Ajax Fire & Emergency Services.

Automatic Aid responses are meant to be reciprocal, and no fees are to be charged to each municipality for the provision of services.

For responses on Highway 401, the host municipality submits for cost recovery to the Ministry of Transportation at the rate amended annually by the Ministry of Transportation.

Initial analysis conducted by staff have confirmed that the number of initial responses which the Ajax Fire & Emergency Services will provide for Situation 4 in ATT-1 to Pickering Fire Services should closely match the number of responses that Pickering Fire Services provides in Situation 5 in the Appendix for the Ajax Fire & Emergency Services. This data will be reviewed annually by staff to confirm that the response numbers for Situations 4 and 5 are closely aligning. If they do not closely align, further discussions will be held between the parties to modify the response criteria to ensure that they more closely align.

Financial Implications

There are no financial implications associated with this report.

Communication Issues:

There are no communication issues associated with this report.

Relationship to the Strategic Plan:

Pillar 1: Connecting our Community - Providing excellence in customer service.
Pillar 1: Connecting our Community - Increase a sense of safety and security for the community.
Pillar 3: Modernizing our Community - Ensure an efficient and effective service delivery,

Conclusion:

It is recommended that the updated response criteria be adjusted as described in this report and the attached agreement. Pending Committee approval, the updated By-law to approve the execution of an Automatic Aid Agreement with the City of Pickering will be presented to Council for approval.

Attachments:

ATT-1 – Updated Automatic Aid Agreement with Pickering Fire Services

Prepared by:

Aaron Burridge, Fire Chief

Submitted by:

Aaron Burridge, Fire Chief

Approved by:

Shane Baker – Chief Administrative Officer

THIS AGREEMENT made in quadruplicate this 1st day of October 2023

BETWEEN:

THE CORPORATION OF THE TOWN OF AJAX

("AJAX")

~ and ~

THE CORPORATION OF THE CITY OF PICKERING

("PICKERING")

WHEREAS Paragraph s. 20(1) of the Municipal Act, 2001, S.O. 2001, c. 25 provides that a municipality may enter into an agreement with one or more municipalities or local bodies, as defined in section 19, or combination of both to jointly provide, for their joint benefit, any matter which any of them have the power to make within their own boundaries. 2001, c.25, s.20(1).

AND WHEREAS Subsection 1(4) of the Fire Protection and Prevention Act, 1997, S.O. 1997, c. 4 provides that for the purposes of that Act, an "Automatic Aid Agreement" means any agreement under which;

a) a municipality agrees to ensure the provision of an initial response to fires, rescues and emergencies that may occur in a part of another municipality where a fire department in the municipality is capable of responding more quickly than any fire department situated in the other municipality; or

b) a municipality agrees to ensure the provision of a supplemental response to fires, rescues and emergencies that may occur in a part of another municipality where a fire department situated in the municipality is capable of providing the quickest supplemental response to fires, rescues and emergencies occurring in the part of the other municipality.

AND WHEREAS Subsections 2(1)(b), 2(5), and 2(6) of the Fire Protection and Prevention Act, 1997, S.O. 1997, c. 4 specifies that:

Municipal responsibilities

(2)(1) Every municipality shall,

b) provide such other fire protection services as it determines may be necessary in accordance with its needs and circumstances.

Services outside municipality

(5) A municipality may, under such conditions as may be specified in the agreement, enter into an agreement to,

a) provide such fire protection services as may be specified in the agreement to lands or premises that are situated outside the territorial limits of the municipality; and
b) receive such fire protection services as may be specified in the agreement from a fire department situated outside the territorial limits of the municipality.

Automatic aid agreements

(6) A municipality may enter into an automatic aid agreement to provide or receive the initial or supplemental response to fires, rescues and emergencies.

AND WHEREAS, there are areas in each of Ajax and Pickering in which a fire department in the other municipality is capable of responding to the areas more quickly than any fire department situated within the municipality.

IN CONSIDERATION OF the mutual covenants, provisions and conditions contained herein, and forother good and valuable consideration, Ajax and Pickering covenant and agree as follows:

1. DEFINITIONS/INTERPRETATION

a. "Agreement" means this agreement including its recitals and any schedules, which form part of it, as amended from time to time.

b. "Automatic Aid Area" means any or all of the areas as described in Appendix A.

c. "Automatic Aid Response" means the delivery of Initial Response Services by a Participating Fire Service.

d. "Home Fire Chief' means the Fire Chief of the Home Municipality.

e. "Home Fire Service" means the fire service within the Home Municipality that, but for the provisions of this Agreement, would be responsible for providing Initial Response Services.

f. "Home Municipality" means the municipality whose fire service would be responsible for providing initial response services.

g. "Incident" means fire, emergencies or dangerous conditions that occurs in the AutomaticAid Areas as described in Appendix A.

h. "Initial Response Services" for the purpose of this Agreement means the provision of an initial response designed to address the adverse effects of an Incident.

i. "Ajax" means The Corporation of the Town of Ajax including its successors and assigns,and, where the context allows, its employees, servants, agents, officers and elected officials.

j. "Participating Fire Service" means the fire service within the participating municipalitywith responsibility for providing an Automatic Aid Response.

k. "Participating Municipality" means the municipality that provides an Automatic AidResponse.

l. "Pickering" means The Corporation of the City of Pickering including its successors and assigns, and, where the context allows, its employees, servants, agents, officers and elected officials

m. “Incident Command System” means an Incident Management System with a common organizational structure with responsibility of assigned resources to effectively accomplish stated objectives pertaining to an incident.

n. “AFES” means Ajax Fire and Emergency Services.

o. “PFS” means Pickering Fire Services

Gender, Plural: All words in this Agreement shall be deemed to include any number or gender, as the context requires.

Proper Law: This Agreement shall be interpreted according to the laws of the Province of Ontario.

Headings: Article, section, clause and/or paragraph headings are for reference purposes only and shall not in any way modify or limit the statements contained in the following text.

Legislation: Reference to federal or provincial statutes or regulations or municipal by-laws are deemed to refer to the relevant legislation as amended, including successor legislation.

2 TERM

2.01 Term - The term of the Agreement shall be indefinite and will be reviewed yearly by theparticipating Fire Chiefs.

2.02 Termination: This Agreement may be terminated by either party on sixty (60) days’ notice in writing to the other.

3 AUTOMATIC AID RESPONSE

3.01 Automatic Aid Response: Upon the occurrence of an Incident, an Automatic Aid Response shall be provided by the Participating Fire Service to the extent that the Participating Fire Service has equipment and staff available.

3.02 Response: Upon the occurrence of an Incident, the Home Fire Service shall respond.

3.03 Command: When a Home Fire Service and a Participating Fire Service respond to an Incident, the Incident Commander of the Home Fire Service shall assume responsibility as soon as practicable for the overall command of and coordination of operations in respect of the Incident.

3.04 Incident Command System: The first arriving officer, regardless of the location of the Incident and regardless of rank, shall assume Incident command and implement strategy and tactics appropriate to control the incident.

4 COST

4.01 No-cost Basis: There shall be no cost to the Home Municipality for the provision of an Automatic Aid Response.

5 RELEASE AND INDEMNITY

5.01 No Claims: Neither party shall have any claim or demand against the other for detriment, damage, accident or injury, of any nature whatsoever or howsoever caused to any person or property, including any buildings, structures, erections, equipment, material, supplies, motor or other vehicles, fixtures and articles, effects and things in any manner based upon, occasioned by or attributable to the execution of the Agreement or any action taken or things done or maintained by virtue of the Agreement, or the exercise in any manner of rights arising under the Agreement.

5.02 Indemnification: Each party covenants and agrees that it shall at all times indemnify and save harmless the other from and against all claims and demands, loss, costs, damages, actions, suits or other proceedings by whomsoever made, brought or prosecuted, in any manner based upon, occasioned by or attributable to the execution of the Agreement or any action taken or things done or maintained by virtue of the Agreement, or the exercise in any manner of rights arising under the Agreement, except claims for damage resulting from the negligence of any officer, servant or agent of the other while acting within the scope of his or her duties or employment.

6 MISCELLANEOUS

6.01 Notice: Any notice to be given under this Agreement shall be sufficiently given via email to

Ajax Fire & Emergency Services – Fireadmin@ajax.ca

Pickering Fire Services – Fire@pickering.ca

Receipt of notice shall be deemed on the date of delivery.

6.02 Force Majeure/Time: Notwithstanding anything in this Agreement, neither party shall be in default with respect to the performance of any of the terms of this Agreement if any non-perfom1ance is due to any force majeure, strike, lock-out, labour dispute, civil commotion, war or similar event, invasion, the exercise of military power, act of God, government regulations or controls, inability to obtain any material or service, or any cause beyond the reasonable control of the party (unless such lack of control results from a deficiency in financial resources). Otherwise, time shall be of the essence of this Agreement and all the obligations contained herein.

6.03 Arbitration: All matters of differences arising between Ajax and Pickering in any matter connected with or arising out of this Agreement shall be referred to a single arbitrator, if the parties agree upon the arbitrator's identity. Should the parties be able to agree upon the identity of an arbitrator, then the matter shall be referred to a single arbitrator, to be appointed by a Justice of the Superior Court of Justice. The arbitrator shall conduct the arbitration pursuant to the Arbitration Act, 1991, S.0. 1991 c. 17 and every award or determination shall be final and binding on the parties and their successors and assigns and shall not be subject to appeal. The arbitrator shall be allowed unfettered and unlimited discretion to determine in each and every case the solution which best balances the competing interests of the parties to the arbitration in accordance with this Agreement, and she or be shall not be bound by any legal precedent in such determination. The arbitrator shall not be bound by the provisions of the Arbitration Act, 1991, S.O. 1991 c. 17 in respect of her or his fees. The arbitrator shall be entitled to award all or part of her or his fees against any party in accordance with the principles which govern an award of costs against a non-successful party in a contested matter before the Superior Court of Justice. In the absence of such an award by the arbitrator, the arbitrator's costs shall be borne equally by both parties, without regard to their involvement in the arbitration.

6.04 No Assignment: Neither party shall make any assignment of this Agreement without obtaining the prior consent in writing of the other to such assignment.

6.05 Successors: The rights and liabilities of the parties shall ensure to the benefit of and be binding upon the parties and their respective successors and approved assigns.

6.06 Entire Agreement: This Agreement contains the entire agreement between the parties relating to Automatic Aid Response and it is agreed that there is no covenant, promise, agreement, condition precedent or subsequent, warranty or representation or understanding, whether oral or written, other as set forth in this Agreement and this Agreement fully replaces and supersedes any letter, letter of intent, or other contractual arrangement between the parties related to Automatic Aid Response in existence at the time of execution and delivery of this Agreement. This agreement is not part of the Durham Region Emergency Fire Services Plan [Mutual Aid].

6.07 Partial Invalidity: If any article, section, subsection, paragraph, clause or sub-clause or any of the words contained in this Agreement shall be held wholly or partially illegal, invalid or unenforceable by any court of competent jurisdiction, Ajax and Pickering agree that the remainder of this Agreement shall not be affected by the judicial holding but shall remain in full force and effect. The provisions of this Agreement shall have effect, notwithstanding any statute to the contrary.

6.08 Waivers: No supplement, amendment or waiver of or under this Agreement shall be binding unless executed in writing by the party to be bound thereby and no waiver by a party of any provision of this Agreement shall be deemed or shall constitute a waiver of any other provision or a continuing waiver unless otherwise expressly provided.

6.09 Severability: If any sentence, clause, or phrase of this Agreement is held to be invalid by a court of competent jurisdiction, the invalidity shall not affect the validity of any other section, sentence, clause, or phrase of this Agreement.

IN WITNESS WHEREOF the Parties hereto have herein to affixed their Corporate Seals duly attested to bythe hands of their authorized officers.

THE COPORATION OF THE TOWN OF AJAX

_____
Shaun Collier, Mayor

_____
Nicole Cooper, Town Clerk

THE CORPORATION OF THE CITY PICKERING

_____
Kevin Ashe, Mayor

_____
Susan Cassel, City Clerk

Appendix A

AUTOMATIC AID PROGRAM AREAS – TOWN OF AJAX AND CITY OF PICKERING

The areas identified in this appendix can be altered or increased as necessary with the approval of both Fire Chiefs and the Chief Administrative Officers for Pickering and Ajax.

The areas authorized to participate in the Automatic Aid Program are as follows:

(a) Ajax/Pickering Situation 1:

For responses on Highway 401 westbound between Westney Road and Brock Road, AFES will respond with a minimum of one unit. PFS will also respond with a minimum of one unit.

(b) Ajax/Pickering Situation 2:

For responses on Highway 401 westbound between Brock Road and Whites Road, AFES will respond with a minimum of one unit in the express lanes. PFS will respond with a minimum of one unit in the collector lanes. Should a PFS officer confirm that the emergency is located in the collector lanes and the assistance of AFES in not required, then the PFS officer shall cancel the AFES response.

(c) Ajax/Pickering Situation 3:

For responses on Highway 401 eastbound between Brock Road and Westney Road, PFS will respond with a minimum of one unit. AFES will also respond with a minimum of one unit.

(d) Ajax/Pickering Situation 4 - Initial Response:

For the area bounded by Westney Road to the west, Highway 407 to the north (but not including Highway 407), Lakeridge Road to the east and the Fifth Concession to the south, Ajax dispatch shall dispatch one AFES unit in addition to PFS apparatus. Upon arrival of PFS, and at an appropriate time, the Pickering Fire Officer shall release AFES.

(e) Ajax/Pickering Situation 5 – Initial Response:

For the following areas bounded by Sideline 16 to the west, the Fifth Concession to the north, Church Street to the east and Rossland Road to the south, Ajax dispatch shall dispatch one PFS unit in addition to the AFES apparatus. Upon arrival of AFES, and at an appropriate time, the Ajax Fire Officer shall release PFS.

Town of Ajax Report

Report To:	General Government Council (GGC)
Prepared By:	Joanne Warren
Report #:	AFES-2023-05
Subject:	**Contract Award – Supply & Delivery ~ Radio Equipment**
Ward(s):	All
Date of Meeting:	September 11, 2023
Reference:	2023 Capital Project 23003801.5820 Radio System Hardware Replacement T23032

Recommendation:

That Council award the contract for Radio Equipment, to Williams Communication Services in the amount of $517,908.95 (inclusive of all taxes).

Background:

This capital project would include the purchasing of eighty (80) portable radios, complete with two (2) batteries for each radio. These portable radios are utilized by the Ajax Fire & Emergency Services (AFES) Fire Suppression Division, Communications Division, Training Division and Senior Fire Managers. Portable radios may also be utilized during a large-scale emergency by personnel operating in the Town of Ajax's Emergency Operations Centre (EOC). In addition to the portable radios, three (3) vehicle repeater systems are required to be replaced. These repeater systems which are in AFES command vehicles are utilized in areas where it is difficult to obtain adequate radio signals.

Radio communications is one of the most critical tools used by the fire services to ensure safe, efficient, and effective fire operations at an emergency scene. The ability to communicate with other fire services and emergency responders at emergency scenes (interoperability) is critical so that information can be conveyed in a timely manner in both emergency and non-emergency situations. The current portable radios and vehicle repeaters were purchased in 2014 and are at the end of their service life. The current portable radio utilized by the AFES is the Harris XG-75. Harris has advised that they are no longer supporting this model radio because they have released newer model portable radios. In addition to this, Harris has discontinued selling compatible intrinsically safe batteries for the XG-75 portable radio. As such the AFES has had its stock of spare portable radios batteries greatly depleted due to batteries failing, and the remaining inventory of batteries is running into issues with maintaining a sufficient charge.

The vehicle repeater devices are utilized for areas where there are problems maintaining an effective radio signals. It is quite common in high-rise buildings, or underground locations such as the Ajax Water Treatment Facility to have trouble maintaining effective radio

communications. The utilization of the vehicle repeater system allows for more effective radio communications for these troublesome areas in the Town. This is a very important safety consideration and piece of equipment that is required.

Discussion:

Request for Tender (RFT) documents were posted to the Town's eBidding platform and 7 prospective bidders registered for the opportunity with bids being received from 2 of these, prior to the closing on August 10, 2023. Listed below is a summary of the bids received:

NAME OF BIDDER	TOTAL BID AMOUNT
Williams Communication Services	$517,908.95
1000480794 Ontario Ltd.	$1,201,190.00

Contract commencement is August 31, 2023, and completion is expected by December 31, 2023.

Financial Implications:

Capital Account No. 23003801.5820

2023 Approved Capital Budget	$1,200,000.00
Contract (net of HST rebate)	$466,393.05
Under Budget	$733,606.95

Following the approval of the Capital Budget, field testing of available portable radios was undertaken. Upon completion of the field testing, it was determined that the most suitable portable radio to meet the needs of Ajax Fire was the Harris XL-185P. This portable radio was substantially lower in price than the other portable radio model which was field tested. The lower priced vendor is supplying similar model portable radios, batteries, and servicing to other fire services in Durham Region. As such, and as can be seen above, they were able to offer a much more competitive bid, which resulted in project costs being substantially lower than was initially budgeted for.

Communication Issues:

N/A

Relationship to the Strategic Plan:

Pillar 1: Connecting our Community - Increase a sense of safety and security for the community.
Pillar 3: Modernizing our Community - Ensure an efficient and effective service delivery.

Conclusion:

It is the recommendation of staff that the contract for the supply and delivery of Radio Equipment to Williams Communications Services, in accordance with the Town's Purchasing By-law.

Attachments:

ATT-1: 2023 Radio System Hardware Replacement Detail Sheet

Prepared by:

Joanne Warren – Administrative Coordinator

Submitted by:

Aaron Burridge – Fire Chief

Approved by:

Shane Baker – Chief Administrative Officer

TOWN OF AJAX

2023 CAPITAL BUDGET / 2024-2032 LONG RANGE CAPITAL FORECAST

DETAIL SHEET

Department	Fire & Emergency Services	**Initially budgeted in**	2021
Section	Fire Suppression		
Project Name	**Radio System Hardware Upgrade**		
Submitted By	Fire Chief		
Start Year	2023		
Project Number	23003801		

PROJECT DESCRIPTION / JUSTIFICATION

Scope: This project is for the replacement of the current radio equipment (mobile & portable communication devices) purchased in 2014 that are at end of service life. This capital project would include the purchase of 80 portable radios, and 2 intrinsically safe batteries for each radio. These portable radios are utilized by all divisions of the Ajax Fire & Emergency Services (AFES). Portable radios may also be used during a large-scale emergency by personnel in the Town of Ajax's Emergency Operations Centre (EOC). Additionally, the 2 vehicle repeater systems are required to be replaced. These repeater systems are used in AFES command vehicles in areas where it is difficult to obtain adequate radio signals.

Rationale: Radio communications is one of the most critical tools used by fire services to ensure safe, efficient, and effective fire operations. The ability to communicate with other fire services and emergency responders at scenes (interoperability) is critical so that information can be conveyed in a timely manner. The current portable radio utilized by the AFES is no longer being supported as newer models have been released by the vendor. The vehicle repeater system included with the new models allows for more effective radio communications for troublesome areas in Town such as high-rise building or underground locations where it is difficult to maintain effective radio communication.

Reference: Replacement at the direction of the Regional Communication Steering Committee & the NextGen Radio System Agreement, Manufacture's Stated End of Life, Section 21 Guidance Note – 2-3 – Radio Communications, Occupational Health and Safety Act - clause 25(1)(b) for maintaining equipment in good condition.

Schedule: Project will commence in 2023 with hardware being purchased and installed. It is important to note that the Town's radio communication system is part of a shared communication system administered centrally by the Region of Durham. The final project timing and cost are subject to the direction of the Regional Communication Interoperability Steering Committee & the Regional Municipality of Durham's budget process.

EXPENDITURES / FUNDING

	2023	2024	2025	2026-2032	Total
Total Expenditures	**1,200,000**	**-**	**-**	**-**	**1,200,000**
Vehicle/Equipment Replacement Reserve	**1,200,000**	**-**	**-**	**-**	**1,200,000**
Total Funding	**1,200,000**	**-**	**-**	**-**	**1,200,000**

Town of Ajax Report

Report To: General Government Committee

Prepared By: Susan Hewlett, Manager of Taxation

Report #: FIN-2023-18

Subject: **Tax Section Status Report**

Ward(s): All

Date of Meeting: September 11, 2023

Reference: N/A

Recommendation:

That the Tax Section Status Report be received for information.

Background:

To keep Council informed about matters affecting the Tax Section, including tax collection issues, statistics and delegated authority reporting, the Tax Section Status report is presented to the General Government Committee annually.

Discussion:

2023 Taxes

The 2023 interim tax bills, which are based on 50% of the 2022 total taxes, were mailed in January. Final residential tax bills were mailed in May with instalment due dates of June 30, 2023 and September 29, 2023. Final commercial bills were mailed in June with July 28, 2023 and September 29, 2023 due dates.

2023 Taxes - Collection Statistics – as of July 31, 2023

Total Amount Billed for 2023	$ 284,265,923
Adjustments / Write-offs to date for 2023	($757,392)
Amount Collected to date	$ 189,177,374
Billed but not yet due	$75,514,373
% Collected	66.73%
% Uncollected	33.27%

The percentage of the current years' taxes collected continues to be on track compared to prior years.

Stormwater Management Fee

New for 2023 was the Stormwater Management (SWM) Fee which was charged on the final tax bills for all properties within Ajax. The Town implemented this critical and responsible fee to safeguard the valuable stormwater system (which consists of storm sewers, catch basins, bridges and culverts, watercourses and facilities), and the health and safety of the community. This management is particularly important to the Town as it protects the quality of its waterways like rivers and lakes from becoming polluted, prevents flooding that can cause property damage or harm to residents, and decreases unwanted erosion that affects our shoreline, trail networks and open spaces.

Residential properties were charged a flat fee of $48 each, and non-residential properties were charged $0.25/$m^2$ based on their impervious area. The stormwater fee is expected to generate approximately $2.7M in revenue in year one to support the Town's stormwater management program. A credit program was also implemented to allow eligible non-residential properties to apply for a credit of up to 50% of the SWM fee based on existing on-site stormwater controls. To date, 6 applications have been approved totaling approximately $38,250. While Tax staff fielded many SWM questions during regular tax billing/budget conversations with owners, a separate Stormwater phone line and email address were set up for owner enquiries.

2022 & Prior Tax Arrears – Collection Statistics

In 2022, formal collection methods resumed part way through the year. Staff reviewed hundreds of accounts and began actioning those with the oldest (pre-Covid) arrears where collections had been on hold for over two years. While the total number of accounts in arrears did not decrease, there was substantial improvement in the reduction of "early-Covid arrears" accounts. The collection tools used in 2022 continued to be successful in addressing the number of properties with multi-year arrears. The following chart illustrates the reduction in the number of properties whose arrears extended beyond one year. The Town generates revenue on property tax arrears at a rate of 1.25% per month or 15% annually. The penalties and interest budget for 2022 was $1,800,000; actual penalties collected was $2,535,649. This increase is a combination of paused collection processes and higher taxes billed.

Year End Comparison of Tax Accounts in Arrears

Year	# of Accounts Dec. 31, 2021	# of Accounts Dec. 31, 2022	# of Accounts Different
2016	3	3	0
2017	13	6	7
2018	86	10	76
2019	203	56	147
2020	556	237	319
2021	6,686	597	6,089
2022	n/a	6,959	
Total	**7,547**	**7,868**	

Properties Registered for Land Tax Sale

Staff make every effort to work with taxpayers to develop payment arrangements that are acceptable to both the taxpayer and the Town to clear any arrears in a timely fashion. Where a property is three years in arrears and all other collection efforts have been unsuccessful, the property is registered for Land Tax Sale (LTS). The LTS process occurs in various steps and, per the Municipal Act, takes just over 1 year to complete.

A total of 8 properties were in various stages of the tax sale process at the end of 2022. All but 1 of those properties have been paid in full and the tax sale cancelled.

As collections have progressed during 2023 and more arrears accounts are being reviewed, there has been a substantial increase in the number of properties eligible for Land Tax Sale (LTS) registration. Owners were provided an opportunity to make payment arrangements with Tax Section staff, but where default occurred or there was no contact, the properties were registered for tax sale. As of July 31, 2023, an additional 86 properties have started the tax sale process. It should be noted that, while the figure may seem high compared to prior years, staff are working through files that are 2-3 years old and would have typically been addressed during our Covid holding period.

Pre-Authorized Payment Plans

The Town offers and promotes various pre-authorized payment (PAP) plans, which continue to be a very popular choice among taxpayers. Staff encourage property owners both on the phone and at the counter to enroll in one of these plans. In addition, a link to the PAP form is provided on our Ownership Change – Tax Information letter. This directs new owners to information on the PAP plans offered and usually results in an increase in enrollment. Applications are always available on the Town's website. The Town currently has more than 10,400 properties enrolled in its various pre-authorized plans.

Phone & Email Statistics

Enquiries to the Tax department continue to increase. In 2022, staff received over 13,700 phone calls and responded to more than 10,500 emails. Discussing taxes, especially tax arrears, can be very sensitive and at times distressing for property owners. Staff pride themselves on the compassion and control required to provide exceptional customer service, while still meeting the corporate service levels.

Tax Certificates Online (TCOL)

On October 27, 2022, the Tax Section introduced a new initiative allowing lawyers, mortgage companies, etc. to order tax certificates through a secure online portal. Requests are processed electronically, and the certificate is emailed to the client in just a few minutes. As of July 31, 2023, there have been 444 online tax certificates issued through TCOL; this represents approximately 85% of total certificate requests. Each one ordered electronically saves staff approximately 10 minutes of manual entry time, equating to significant time savings. Staff are working with the hosting company to increase the property search parameters, which will hopefully also increase uptake of the TCOL process.

Delegated Authority Reporting

By-law 75-2017 delegates to the Treasurer or Designate, the authority to process tax adjustments under *Municipal Act, 2001*, as amended. Included in the By-law is a requirement to report on adjustments to Council through the Tax Status Report.

Section 357 (1) of the Municipal Act provides for the adjustment, refund or cancellation of taxes for a number of reasons (ex. Property became exempt, fire, class change). The Section 357 tax adjustments, from January 1 to December 31, 2022, excluding penalty/interest, are apportioned back to the Region and school boards as detailed below:

Allocation of S.357 Tax Adjustments for 2022

Share	Total 2022
Town	$ 54,307.49
Region	95,405.89
School Boards	82,949.83
Total	$232,663.21

In addition to our Section 357 (1) appeals, the Tax Section processes various types of adjustments such as Assessment Review Board (ARB) decisions, charitable/heritage rebates etc. For 2022, the total Town portion of all tax adjustments (including S.357) was $302,747.52. The Town budgets $425,000 to address any in-year tax adjustments.

Update on Property Assessment Values

Every four years, the Municipal Property Assessment Corporation (MPAC) is supposed to send a Property Assessment Notice to all Ontario property owners. Due to Covid-19, the province put all reassessment on hold; and more recently just announced that they would be reviewing MPAC's processes, so most properties will continue to remain at their 2016 CVA values for 2024. The only difference in assessment will be for properties that have a "change event" occur, for example: fire, addition, renovation, new build, etc.

Financial Implications:

N/A

Communication Issues:

N/A

Relationship to the Strategic Plan:

N/A

Conclusion:

Tax Section staff continue to work collaboratively with Town residents to ensure positive collection results as we move out of the Covid-19 pandemic, in addition to actively working to protect our assessment base to mitigate tax adjustments.

Attachments:

N/A

Prepared by:

Susan Hewlett – Manager of Taxation

Submitted by:

Dianne Valentim – Director of Finance

Approved by:

Shane Baker – Chief Administrative Officer

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Karen McGibbon, Insurance & Risk Management Coordinator
Report #:	FIN-2023-20
Subject:	Insurance Renewal – July 1, 2023 to June 30, 2024
Ward(s):	All
Date of Meeting:	September 11, 2023
Reference:	N/A

Recommendation:

1. **That the report on the Insurance Renewal – July 1, 2023 to June 30, 2024 be received for information;**

2. **That the 2023 dividend of $120,567 be transferred to the insurance reserve.**

Background:

Ajax is a member of the Durham Municipal Insurance Pool (DMIP) along with the Town of Whitby, Townships of Brock, Scugog and Uxbridge, Municipality of Clarington, City of Oshawa and the Region of Durham. DMIP provides an integrated insurance program combining the insurance and risk management requirements of the member municipalities into a single common pool. Ajax continues to benefit from being a member of DMIP by being protected from the significant rising costs of insurance premiums and deductibles.

DMIP's Board of Directors includes the members' Treasurers who have the authority to purchase insurance and set member contributions as outlined in the Subscribers Agreement for the Purchase of Insurance as authorized by each member's Council.

Discussion:

Insurance Policy Renewals for 2023/2024

Anticipating that this would be a challenging insurance renewal given the hard market conditions, DMIP members felt it would be prudent to explore another insurance company option this year. Therefore, members submitted applications for coverage to Intact Public Entities (IPE) and AON for quotations. In this hard market, insurers are being more selective to ensure their profits. They want to make certain they are being compensated for the exposures they are covering and this was made evident in the stringent underwriting of both companies for this renewal. Members were required to provide detailed applications for all coverages with an extensive amount of information required for each application.

DMIP received quotes from IPE and AON for liability, property and automobile policies. In comparing the two carriers, DMIP members agreed to move forward securing insurance with IPE. IPE's renewal costs and coverage were reasonable and DMIP members had concerns with some of the policy wordings provided by AON.

The Town has renewed policies with IPE for liability, including errors & omissions, property, automobile as well as public entity casualty, legal expense, equipment breakdown, recreation affiliates and volunteer accident for the period of July 1, 2023 to June 30, 2024.

Claims

The Town's deductible is $10,000 on a per claim basis. As a DMIP member, the Town's deductible has remained the same for the last 23 years. As far as claims handling, Ajax is responsible for paying claims up to the $10,000 deductible limit, DMIP pays all claims up to $500,000 and IPE pays claims above $500,000.

The public submits claims to the Town of Ajax when they believe that the Town has been negligent in its maintenance of Town facilities, roads, sidewalks, parks, trails, trees etc. which has caused them an injury or damage to their property. Residents will often call the Insurance & Risk Management Coordinator at Ajax to report and discuss the circumstances which caused their injury or damage to their property. They ask questions about the Town's claims process and sometimes require assistance completing the Town's claim form. The Insurance & Risk Management Coordinator walks them through the claims process and answers any questions they have while at the same time gathering information about the incident itself so that Town staff can be informed immediately about any potential hazard that needs to be addressed.

On March 1, 2022, the Town launched an online claim form on our website. This form allows claimants to submit their claim online. A copy of the claim goes directly to the Durham Municipal Insurance Pool with a copy to the Ajax Insurance & Risk Management Coordinator. The claimant receives confirmation that their claim has been submitted successfully and Town staff are notified of the claim shortly thereafter to begin the investigation process. The Claim's Examiners at DMIP investigate each claim. More serious claims are assigned to Insurance Adjusters hired by DMIP. The Insurance & Risk Management Coordinator and other Town staff assist with the investigation of claims by providing information to DMIP. In preparing the Town's defence the most important evidence are documents to show Town staff followed policies and procedures for inspections and maintenance and that the Town met the standard of care. Documents can include paper records, photos, video, maps, survey plans etc. Searching for and providing documents in a timely manner to DMIP can be a time-consuming task. However, this is a necessary step in every litigation process. Thorough record keeping and documentation is critical to a successful defence for every claim.

Claims take time to be reported and time to be settled. At the end of the last policy year June 30, 2023, the Town had 69 open claims with one claim dating back to 2011 (a trip and fall claim awaiting trial).

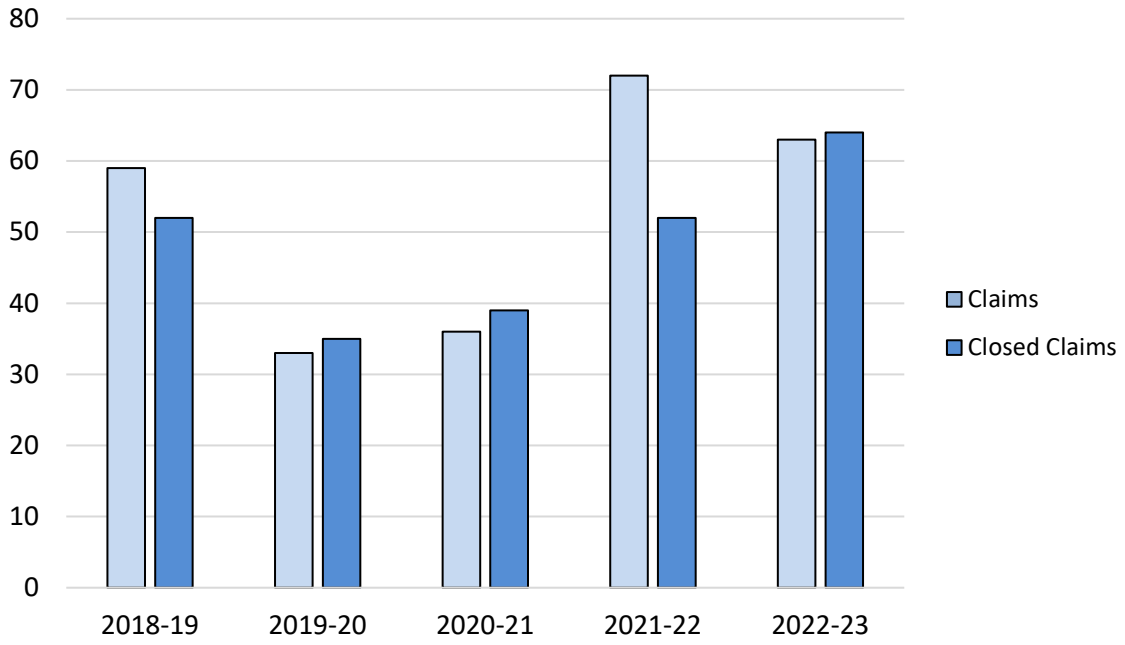
Table 1 – Total Number of Open Claims as of June 30, 2023

Auto Owned	Bicycle	Bldg. Inspection Errors & Omissions	Falls	Fire Dept Action/Inaction	MVA	Operations Action/Inaction	Prof. Error – Legal Expense	Property	Total
1	1	2	48	1	4	8	1	3	69

Falls account for the highest number of claims and include falls inside and outside Town premises as well as falls on roads, parking lots, trails and the majority which occur on sidewalks.

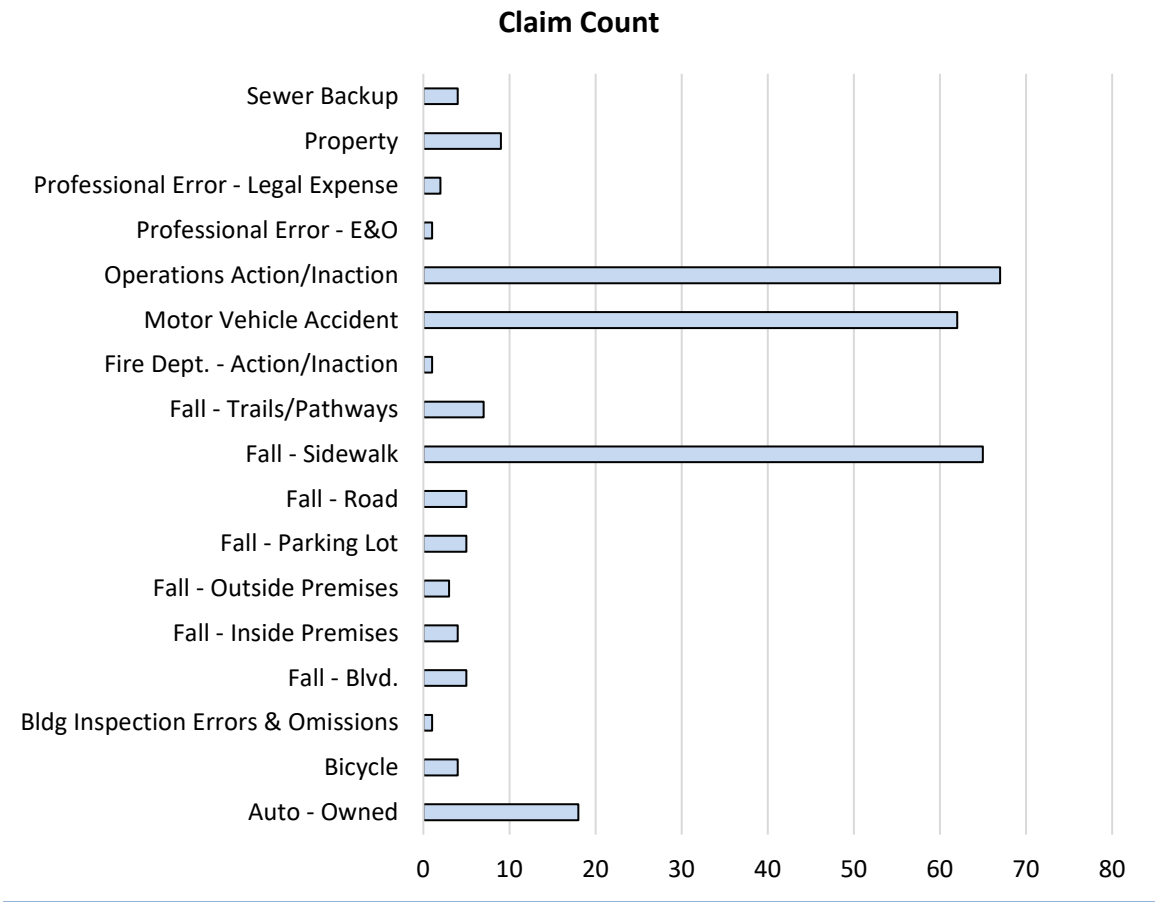
In 2023, 43 claims have been closed so far, some dating back to 2016. In some instances, it may take several years in litigation before a decision is reached and a claim is closed. Inflation is affecting building values, supply chains and the future cost of claims.

Figure 1 – Ajax Claims - Past 5 Policy Years (July 1 – June 30)



As seen in Figure 1, Covid greatly the reduced number of claims received in policy years 2020 - 2021. The windstorm of May 2022 increased the number of claims in 2022.

Figure 2 – Ajax Claim Types - Past 5 Policy Years (July 1 – June 30)



*Categories as identified by DMIP

As seen in Figure 2, Falls account for the highest number of claims Ajax has received over the past 5 years, particularly falls on sidewalks. This is followed by Operations Action/Inaction which includes such claims as potholes, road debris and third-party property damage from fallen Town trees. The claims received over this period do not represent the claims paid. Each claim must be investigated to determine the Town's liability. Of the claim count identified in Figure 2 – over 56% of the claims submitted were denied.

Risk Management Practices

Town staff utilize risk management best practices to identify, mitigate and transfer potential risks to the Town.

1. The Town, in consultation with DMIP, reviews contracts and agreements to ensure these documents include indemnity clauses and appropriate insurance coverage to transfer risk to the appropriate individual or organization.

2. The Town requires contractors, vendors, and service providers to provide certificates of insurance when working on Town property or providing services on behalf of the Town. Insurance certificates are used to transfer risk from the Town of Ajax to the appropriate party.

3. The Town has a Facility User Group insurance program through BFL which provides affordable insurance coverage for groups renting our facilities, which protects both the renter and the Town.

4. The Town has policies and procedures in place to inspect and maintain infrastructure including roads and sidewalks in accordance with the Municipal Act, Minimum Maintenance Standards Reg. 239/02. This regulation dictates an inspection schedule and a minimum response time to fix a deficiency once it has been identified.

5. Town staff attend risk management educational seminars hosted by our Insurer, Intact Public Entities and DMIP. The following seminars were held in 2022-2023:

   a) Cyber Security – How Hackers Hack
   b) Special Events and User Groups
   c) Minimum Maintenance Standards
   d) Climate Emergencies

Financial Implications:

The Town's annual insurance costs are made up of the following:

1. **Premiums** – includes insurance coverage for liability, property and automobile.
2. **Administrative Expenses** – dedicated Region insurance staff, risk management programs, annual audit costs and actuarial fees.
3. **Claims Funding** – fund contribution for pooled claim coverage (based on actuarial recommendations).
4. **Investment Income** – income earned from accumulated claim funding.

	2022-23	**2023-24**
Premiums	672,531	651,111
Administrative Expenses	105,779	103,834
Claims Funding	864,854	1,016,059
Investment Income	(229,760)	(316,000)
Total	**1,413,404**	**1,455,004**

For the July 1, 2023 to June 30, 2024 renewal period, the total cost for the DMIP pooled coverage which includes premiums, administrative costs, claims funding and projected investment income has resulted in an increase of 2.9 percent, well below the rate of inflation. This low rate is directly related to the claims management experienced through DMIP. The annual pooled premium for 2023-24 is $1,455,004 compared to $ 1,413,404 last year.

The Town also budgets approximately $175,000 for claims within our $10,000 deductible limit. Funds for insurance coverage are included in each department's operating budget.

The Town will receive a surplus payment this year from DMIP. The dividend income is paid out to all the founding members. Ajax's portion is $120,567. These funds will be deposited into the Insurance Reserve to be used for projects which will help to mitigate risks to the Town. In 2023, these funds are allocated for security upgrades including video surveillance systems.

Communication Issues:
N/A

Relationship to the Strategic Plan:
N/A

Conclusion:

As insurance companies continue to experience hard market conditions, it means more stringent underwriting terms, fewer coverage options and higher premiums for municipalities. Fortunately, due to Ajax's membership of the Durham Municipal Insurance Pool, the Town has been able to take advantage of price stability afforded by being part of an eight-member pool. The Pool offers protection against the increasing costs of insurance and has allowed the Town to keep our premium expenses stable and our deductible low.

Attachments:
N/A

Prepared by:

Karen McGibbon – Insurance & Risk Management Coordinator

Submitted by:

Dianne Valentim, CPA, CGA – Director of Finance/Treasurer

Approved by:

Shane Baker – Chief Administrative Officer

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Terri Barton, CPA, CGA, Supervisor of Accounting
Report #:	FIN-2023-22
Subject:	**2024 User Fees and Charges**
Ward(s):	All
Date of Meeting:	September 11, 2023
Reference:	Policy No. 129 - Annual Review of User Fees and Charges

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Recommendations:

1. **That the recommended fees schedule (ATT-1) be approved, effective January 1, 2024; and**

2. **That the appropriate General Fees By-law be presented to Council for approval.**

Background:

Under the *Municipal Act,* 2001 and the *Planning Act*, 1990, the fees and charges of a municipality are to be set by by-law. The Town's *Annual Review of User Fees and Charges* Policy requires each department to review all user fees and charges on an annual basis.

Discussion:

The *Annual Review of User Fees and Charges* Policy provides a consolidated, consistent and transparent framework for all departments to follow when setting user fees and charges for the Town of Ajax. Council approved the policy in June of 2020, which provides that all fees shall be reviewed annually and generally adjusted according to a Municipal Price Index (MPI) each year. This report presents the fee schedules for 2024 and indicates where MPI has been automatically applied.

The MPI is a calculation of inflation using a 'basket of goods' used by the municipality, which differs significantly from those used by consumers generally. Calculation of the traditional Consumer Price Index (CPI) includes items such as food, clothing, housing, insurance and entertainment, whereas the MPI includes costs related to goods and services for developing and maintaining municipal infrastructure, public safety, and regulatory and legislative requirements (i.e. labour, utilities, asphalt, salt, fuel, insurance, etc.). The consistent application of the MPI on an annual basis is important to ensure that the Town's fees keep pace with the rising costs of delivering municipal services. The MPI applicable to the 2024 user fees has been calculated by Finance at 3.15%. The previous year it was calculated at 4.3%. All fees are rounded up to the nearest 10 cents in accordance with the approved policy, and as a result some fees that are increased by MPI may appear to increase by a marginal amount above 3.15% due to rounding.

When reviewing annual user fees and charges, the policy also encourages departments to take into consideration the following additional factors, where deemed necessary or useful:

- The cost of delivering the service, program or product, and any changes thereto, and whether a full or partial cost recovery is appropriate in the circumstance;

- Market-based comparisons among similar municipalities, including Oshawa, Pickering, Whitby, Clarington, Milton, Oakville and Richmond Hill, which may include the identification of user fees charged by other municipalities that are not being charged by the Town;

- Changes to provincial legislation that may impact any fees and/or charges;

- Existing Council policies on specific fees and/or charges; and

- Departmental strategy used in setting fees and/or charges (both in general and in relation to specific individual fees and/or charges).

This departmental research informs any recommended changes to fees beyond or instead of the 'default' MPI adjustments. Explanatory notes for non-MPI fee changes and new fees are included within the chart. Of the 850+ fees presented for 2024 approval, 60% are proposed to be increased by the MPI rate,19% are legislative or have no change, 17% are updated based on other methods and 4% are new.

Not included in this report are proposed new fees in By-Law Services arising from a proposed Administrative Monetary Penalty (AMP) program that is being recommended in another report from LIS, as well as Building fees which are completed under a separate by-law.

In accordance with the *Annual Review of User Fees and Charges* Policy, all fees for 2024 are presented for approval in one consolidated schedule, representing input from all departments within the organization.

Financial Implications:

Fee adjustments proposed for 2024 are expected to generate an additional $458,000 in revenue from changes and $52,000 from new fees; if approved, expected revenue increases will be reflected in the proposed 2024 Operating Budget.

Communication Issues:

The Town of Ajax User Fees and Charges By-laws will be posted on the Town of Ajax website. Additional communication strategies may be used by departments for certain fee changes where deemed warranted by staff.

Relationship to the Strategic Plan:

This report and its recommendations align with the following focus areas of the Strategic Plan: "Investing in our community", "Undertaking key corporate reviews and strategies", "Leading in our community", and "Strengthening corporate governance and innovation".

Conclusion:

The recommendation to apply the MPI supports Council's stated desire to identify more sustainable sources of non-tax revenue to relieve pressure from the tax base. This process

provides consistency and transparency regarding annual user fees and charges. Based on completion of the annual review of current fees, it is recommended that fees be adjusted as described within the schedule of fees included as ATT-1 in this report. Pending Committee approval, a By-law to approve the 2024 Fees and Charges will be presented to Council at a future next meeting.

Attachments:

ATT-1: 2024 User Fees and Charges Schedule

Prepared by:

Terri Barton – CPA, CGA Supervisor of Accounting

Submitted by:

Dianne Valentim – CPA, CGA Director of Finance/Treasurer

Approved by:

Shane Baker – Chief Administrative Officer

2024 By-law Services User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Animal Licensing: Spayed/Neutered & Micro-chipped*	$21.40	MPI Adjustment	$22.10	3.27%	
Animal Licensing: Spayed/Neutered*	$26.80	MPI Adjustment	$27.70	3.36%	
Animal Licensing: Intact & Micro-chipped*	$42.70	MPI Adjustment	$44.10	3.28%	
Animal Licensing: Intact*	$48.00	MPI Adjustment	$49.60	3.33%	
Animal Licensing: Replacement Tag Fee*	$3.00	No Change	$3.00	0.00%	
Dog Impound Daily Care Fee (per day rate)*	$26.80	MPI Adjustment	$27.70	3.36%	
Appeal of Animal Services Committee Decision to G.G.C.	$533.00	MPI Adjustment	$549.80	3.15%	
Failure to Attend a Property Standards/Animal Services Appeal Meeting	$213.20	MPI Adjustment	$220.00	3.19%	
Kennel Licence*	$133.30	MPI Adjustment	$137.50	3.15%	
Kennel Licence Replacement Licence*	$10.00	No Change	$10.00	0.00%	
Lottery Licence (% of prize value)	3.00%	No Change	3.00%	0.00%	Statutory fee
Pet Shop Licence*	$133.30	MPI Adjustment	$137.50	3.15%	
Pet Shop - Replacement Licence*	$10.00	No Change	$10.00	0.00%	
Outdoor Patio Licence*	$26.80	MPI Adjustment	$27.70	3.36%	
Outdoor Patio - Replacement Licence*	$10.00	No Change	$10.00	0.00%	
Patio Licence Agreement (Town-owned Lands)*	$533.00	MPI Adjustment	$549.80	3.15%	
Ice Cream Cart Licence/year - first cart*	$133.30	MPI Adjustment	$137.50	3.15%	
Refreshment Vehicle Licence/year*	$266.50	MPI Adjustment	$274.90	3.15%	
Refreshment Vehicle Licence/year - Each Additional*	$159.90	MPI Adjustment	$165.00	3.19%	
Refreshment Vehicle - Operator Licence*	$26.80	MPI Adjustment	$27.70	3.36%	
Refreshment Vehicle - Replacement Licence*	$10.00	No Change	$10.00	0.00%	
Lodging House - Licence*	$159.90	MPI Adjustment	$165.00	3.19%	
Lodging House - Replacement Licence*	$10.00	No Change	$10.00	0.00%	
Fireworks Portable Sales Unit*	$213.20	MPI Adjustment	$220.00	3.19%	
Fireworks Display Permit (High Hazard)*	$213.20	MPI Adjustment	$220.00	3.19%	
Adult Entertainment Owner's Licence*	$3,197.90	MPI Adjustment	$3,298.70	3.15%	

HST will be added to all fees marked with an asterisk (*)

2024 By-law Services User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Adult Entertainment Operator's Licence*	$1,066.00	MPI Adjustment	$1,099.60	3.15%	
Adult Entertainment Attendant's Licence*	$266.50	MPI Adjustment	$274.90	3.15%	
Body Rub Parlour Licence*	$1,066.00	MPI Adjustment	$1,099.60	3.15%	
Body Rub Operator's Licence*	$213.20	MPI Adjustment	$220.00	3.19%	
Body Rub Attendant's Licence*	$106.60	MPI Adjustment	$110.00	3.19%	
Entertainment Owner's Licence*	$106.60	MPI Adjustment	$110.00	3.19%	
Entertainment Operator's Licence*	$26.80	MPI Adjustment	$27.70	3.36%	
Entertainment Establishment - Replacement Licence*	$10.00	No Change	$10.00	0.00%	
Pool Permit*	$159.90	MPI Adjustment	$165.00	3.19%	
Portable Sign Permit*	$106.60	MPI Adjustment	$110.00	3.19%	
Event Parade Permit*	$26.80	MPI Adjustment	$27.70	3.36%	
Group Home Annual Licence*	$80.00	MPI Adjustment	$82.60	3.25%	
Carnival Circus Festival Licence (daily rate; amount not to exceed $400)*	$106.60	MPI Adjustment	$110.00	3.19%	
Hawkers and Peddlers Annual Licence - various* locations	$213.20	MPI Adjustment	$220.00	3.19%	
Hawkers and Peddlers Annual Licence - single location (daily rate per day of operation, per location to a maximum of $2,000)*	$53.30	MPI Adjustment	$55.00	3.19%	
Subsequent Inspection Fees for Non-Compliant* Properties	$106.60	MPI Adjustment	$110.00	3.19%	
Sidewalk Clearing - up to 23 metres*	$159.90	MPI Adjustment	$165.00	3.19%	
Sidewalk Clearing - rate per additional metre beyond 23 metres*	$7.60	MPI Adjustment	$7.90	3.95%	
Subsequent Occasional Use Parking Permits (per licence plate, in excess of 5 plates per year / for a maximum of 12 paid permits per year)*	$12.00	Legislation	$12.00	0.00%	
Waterfront Paid Parking Permit - full day*	$20.00	Legislation	$20.00	0.00%	
Waterfront Paid Parking Permit - up to 3 hours*	$10.00	Legislation	$10.00	0.00%	
Taxicab Owner's or Licence - Renewal (Including Accessile)	$200.00	Legislation	$200.00	0.00%	
Taxicab Owner's Licence - New (Including Accessible)*	$250.00	Legislation	$250.00	0.00%	
Taxicab Driver's Licence - Renewal*	$50.00	Legislation	$50.00	0.00%	
Taxicab Driver's Licence - New*	$4.15/month	Legislation	$4.15/month	0.00%	

HST will be added to all fees marked with an asterisk (*)

2024 By-law Services User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Transportation Network Licence 1-25 drivers*	$3,000.00	Legislation	$3,000.00	0.00%	
Transportation Network Licence 26-99 drivers*	$15,000.00	Legislation	$15,000.00	0.00%	
Transportation Network Licence 100 or more drivers*	$30,000.00	Legislation	$30,000.00	0.00%	
Per trip licensing surcharge - Transportation Network Co.	$0.10 per transportation service	No Change	$0.10 per transportation service	0.00%	
Accessible Service Supplement – Transportation Network Co.	$0.06 per transportation service	No Change	$0.06 per transportation service	0.00%	
Replacement Taxicab Tariff Card*	$10.00	Legislation	$10.00	0.00%	
Replacement Taxicab Licence Plate*	$15.00	Legislation	$15.00	0.00%	
Replacement Taxicab Driver's Licence*	$10.00	Legislation	$10.00	0.00%	
Taxicab Inspection*	$15.00	Legislation	$15.00	0.00%	
Taxicab Tariff of Rates and Fares	Schedule A	No Change	Schedule A	N/A	

HST will be added to all fees marked with an asterisk (*)

2024 Corporate User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Non-Negotiable Cheque	$48.00	MPI Adjustment	$49.60	3.33%	
Non-FOI Photocopy (per page)*	$0.50	No Change	$0.50	0.00%	Mirrors statutory FOI fee
Non-FOI - Large Format Print Job - B&W	$10.00	No Change	$10.00	0.00%	Mirrors statutory FOI fee
Non-FOI - Large Format Print Job - Colour	$15.00	No Change	$15.00	0.00%	Mirrors statutory FOI fee
Non-FOI/Archival Search (hourly rate, 1hr. minimum)	$30.00	No Change	$30.00	0.00%	Mirrors statutory FOI fee
Non-FOI - Records Preparation (for each 15 minutes)	$7.50	No Change	$7.50	0.00%	Mirrors statutory FOI fee
Non-FOI - Computer programming (for each 15 minutes) Where a program is required to retrieve information from a machine readable database	$15.00	No Change	$15.00	0.00%	Mirrors statutory FOI fee
Non-FOI - where records are requested in a digital format: CD, DVD, USB drive, or other transferable storage media (each)	$10.00	No Change	$10.00	0.00%	Mirrors statutory FOI fee
Non-FOI - Scanning documents into electronic format (per hour)	$30.00	No Change	$30.00	0.00%	Mirrors statutory FOI fee
FOI - Application Fee	$5.00	No Change	$5.00	0.00%	Statutory fee
FOI - Search Time (for each 15 minutes)	$7.50	No Change	$7.50	0.00%	Statutory fee
FOI - Records Preparation (for each 15 minutes)	$7.50	No Change	$7.50	0.00%	Statutory fee
FOI - Computer Programming (for each 15 minutes)	$15.00	No Change	$15.00	0.00%	Statutory fee
FOI - Copy Fees (per page)	$0.20	No Change	$0.20	0.00%	Statutory fee
FOI - Copy Fees - Drawings (per page)	$6.00	No Change	$6.00	0.00%	Statutory fee
FOI - where records are requested in a digital format: CD, DVD, USB drive, or other transferable storage media (each)	$10.00	No Change	$10.00	0.00%	Statutory fee
FOI - Scanning documents into electronic format (per hour)	$30.00	No Change	$30.00	0.00%	Statutory fee

HST will be added to all fees marked with an asterisk (*)

2024 Finance User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Tax certificates	$80.00	MPI Adjustment	$82.60	3.25%	
Request for Transfer of Funds	$48.00	MPI Adjustment	$49.60	3.33%	
Statement fo Account, Tax Receipts, Re-print of Tax Bill, PAP Letter, Adjustment, Apportionment Notification, Confirmation Letters, etc.	$21.40	MPI Adjustment	$22.10	3.27%	
Refund of incorrect electronic and manual payments	$48.00	MPI Adjustment	$49.60	3.33%	
Change of Ownership Fee	$42.70	MPI Adjustment	$44.10	3.28%	
New Tax Account Set-up Fee	$53.30	MPI Adjustment	$55.00	3.19%	
Post-Dated Cheques - Removal or Date Change	$32.10	MPI Adjustment	$33.20	3.43%	
Mortgage Company Information (per roll)	$15.00	MPI Adjustment	$15.50	3.33%	
Addition of Region Water/Sewer Lien, Development Charges, POA Arrears	$42.70	MPI Adjustment	$44.10	3.28%	
Title Search Request	$133.30	MPI Adjustment	$137.50	3.15%	
Tax sale tender package	$25-$50	No Change	$25-$50	0.00%	
Tax Sale Registration - Actual costs	Actual Costs	No Change	Actual Costs	0.00%	
Tax Sale Registration Administration fee when advertised	$100.00	MPI Adjustment	$103.20	3.20%	

HST will be added to all fees marked with an asterisk (*)

2024 Fire and Emergency Services User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
INFORMATIONAL DOCUMENTS					
101. Copy of Emergency Response Report - within past 2 years	$101.30	MPI Adjustment	$104.50	3.16%	
102. Copy of Emergency Response Report - over 2 years – Archival	$159.90	MPI Adjustment	$165.00	3.19%	
103. File Search for buildings 4 units or less - Additional units - $10.00 per unit	$101.30	MPI Adjustment	$104.50	3.16%	
104. Fire Regulation Compliance Letter*	$101.30	MPI Adjustment	$104.50	3.16%	
INSPECTIONS					
201. Boarding / Lodging / Rooming House - upon request*	$208.60	MPI Adjustment	$215.20	3.16%	
202. Educational Institutions - upon request*	$208.60	MPI Adjustment	$215.20	3.16%	
203. Foster Care - upon request*	$208.60	MPI Adjustment	$215.20	3.16%	
204. Group Home - upon request*	$208.60	MPI Adjustment	$215.20	3.16%	
205. Institutional - upon request*	$208.60	MPI Adjustment	$215.20	3.16%	
206. Licensed Day Care - upon request*	$208.60	MPI Adjustment	$215.20	3.16%	
207. Private Home Day Care - upon request*	$208.60	MPI Adjustment	$215.20	3.16%	
208. Liquor Licensing - upon request - includes occupant load calculations*	$208.60	MPI Adjustment	$215.20	3.16%	
209. Liquor Licensing for outdoor patios - includes full inspection*	$208.60	MPI Adjustment	$215.20	3.16%	
210A. Non-Residential Inspection - 1000m^2 or less - upon request*	$208.60	MPI Adjustment	$215.20	3.16%	
210B. Non-Residential Inspection - each additional 1000m_2 or each additional floor*	$26.80	MPI Adjustment	$27.70	3.36%	
211. Non-Residential Inspection - multiple unit occupancy - per tenant (strip mall)*	$207.90	Departmental Strategy	$215.20	3.51%	Updated to be in line with other items in this category.
212A. Residential Inspection - upon request - (includes apartment complex / hotel / motel)*	$207.90	Departmental Strategy	$215.20	3.51%	Updated to be in line with other items in this category.
212B. Residential Inspection - each additional storey - above or below grade*	$26.80	MPI Adjustment	$27.70	3.36%	
213. Two Unit Residential Inspection -Retrofit - upon request or complaint*	$207.90	Departmental Strategy	$215.20	3.51%	Updated to be in line with other items in this category.
214. Wood Burning Appliance - upon request	$0.00	No Change	$0.00	0.00%	
215. Fire Safety Plan Development (per hour)	$80.00	MPI Adjustment	$82.60	3.25%	
216A. Propane Plan Review (Existing 5000 USWG or less)	$294.30	MPI Adjustment	$303.60	3.16%	
216B. Propane Plan Review (New or modified 5000 USWG or less)	$589.60	MPI Adjustment	$608.20	3.15%	
216C. Propane Plan Review (Existing greater than 5000 USWG)	$2,651.10	MPI Adjustment	$2,734.70	3.15%	
216D. Propane Plan Review (New/modified greater than 5000 USWG)	$2,946.40	MPI Adjustment	$3,039.30	3.15%	
216E. Propane Plan Review (If necessary to retain 3rd party engineering or other firm)	Actual Costs	No Change	Actual Costs	0.00%	

HST will be added to all fees marked with an asterisk (*)

2024 Fire and Emergency Services User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
PERMITS					
301. Open Air Burning Permit	$85.40	MPI Adjustment	$88.10	3.16%	
302. Fire Extinguisher Training Permit for residents, employers/employees within the municipal limits. AFES facilitates (per 20 participants) - Additional persons $10.00 per person*.	$200.00	No Change	$200.00	0.00%	
303. Open Air Burning - farm waste	$0.00	No Change	$0.00	0.00%	
EMERGENCY SERVICES					
401A. Standby Requests - MTO Rates - per vehicle for the first hour or part thereof*	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
401B. Standby Requests - MTO Rates - per vehicle for each additional one-half hour*	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
402A. Motor Vehicle Collisions on Hwy 401 - (cost recovery through MTO) - per vehicle for the first hour or part thereof and for consumables used i.e. All-purpose absorbent material, firefighting foam, medical supplies etc. **(plus actual costs)**	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
402B. Motor Vehicle Collisions on Hwy 401 - (cost recovery through MTO) - per vehicle for each additional one-half hour and for consumables used i.e. All-purpose absorbent material, firefighting foam, medical supplies etc. **(plus actual costs)**	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
402C. Motor Vehicle Collisions on municipal roads, non-resident and fault known per vehicle for the first hour or part thereof and for consumables used i.e. All-purpose absorbent material, firefighting foam, medical supplies etc. **(plus actual costs)**	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
402D. Motor Vehicle Collisions on municipal roads non-resident and fault known per vehicle for each additional one-half hour and for consumables used i.e. All-purpose absorbent material, firefighting foam, medical supplies etc. **(plus actual costs)**	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
403A. Response to Hazardous Material Incident - per vehicle for first hour or part thereof plus any additional clean-up costs or consumables used i.e. All-purpose absorbent material, firefighting foam, medical supplies etc.*	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
403B. Response to Hazardous Material Incident - per vehicle for each additional one-half hour or thereof plus any additional clean-up costs or consumables used i.e. All-purpose absorbent material, firefighting foam, medical supplies etc.*	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
404A. Response to Dangerous Goods Incident - per vehicle for first hour or part thereof plus any additional clean-up costs or consumables used i.e. All-purpose absorbent material, firefighting foam, medical supplies etc.*	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.

HST will be added to all fees marked with an asterisk (*)

2024 Fire and Emergency Services User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
404B. Response to Dangerous Goods Incident - per vehicle for each additional one-half hour or thereof plus any additional clean-up costs or consumables used i.e. All-purpose absorbent material, firefighting foam, medical supplies etc.*	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
405A. Additional Expenses - to retain a private contractor, rent special equipment, secure or preserve property or evidence, or in order to eliminate an emergency or risk of an emergency situation and consumables used i.e. All-purpose absorbent material, firefighting foam, medical supplies etc.*	Actual Costs	No Change	Actual Costs	0.00%	
405B. Attending Natural Gas Incident - per vehicle for first hour or part thereof*	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
406. Attending Natural Gas Incident - per vehicle for each additional one-half hour or thereof*	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
407A. Attending a Non-Emergency Elevator Incident - per vehicle for first hour or part thereof*	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
408 or 405B. Cleaning, Decontamination or Replacement of Equipment – as a result of service delivery where equipment i.e. personal protective equipment, vehicles, hoses or other non-consumable materials are contaminated or damaged.	Actual Costs	No Change	Actual Costs	0.00%	
PREVENTABLE FIRES AND ALARM SERVICES					
501A. Response to Unapproved Open Air Burning - following one warning - per vehicle for first hour or part thereof*	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
501B. Response to Unapproved Open Air Burning - per vehicle for each additional one- half hour or thereof*	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
502. Response to fires on or beside rail lines caused by railway company*	Actual Costs	No Change	Actual Costs	0.00%	
503A. Response to Malicious and Nuisance Alarms - following a second response during a twelve month period - per vehicle for the first hour or part thereof*	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
503B. Response to Malicious and Nuisance Alarms - per vehicle for each additional one- half hour or thereof*	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
504A. Response to false alarm as a result of work being performed on a fire alarm system or emergency system following one false alarm during a twelve month period - per vehicle for the first hour or part thereof*	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.
504B. Response to false alarm as a result of work being performed on a fire alarm system or emergency system following one false alarm during a twelve month period - per vehicle for each additional one-half hour or thereof*	Maximum chargeable rate as set by MTO	Legislation	Maximum chargeable rate as set by MTO	N/A	Maximum chargeable rate as set by MTO and are subject to change where approved by MTO. MPI does not apply.

HST will be added to all fees marked with an asterisk (*)

2024 Fire and Emergency Services User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
TRAINING TOWER RENTALS					
601A. Live Burn – 8 hours – Weekday – (Includes staffing costs for two AFES staff)* Rental includes use of Firefighter survival maze, roof ventilation prop, forcible entry prop. NOTE* wood for props to be supplied by customer	$2,650.00	No Change	$2,650.00	0.00%	No change to tower rental fees as the facilities have been utilitized substantially less. This is due to increased competition with other departments having training centres as well as the schools have begun constructing their own training grounds and props.
601B. Live Burn – 8 hours – Weekends – (Includes staffing costs for two AFES staff)* Rental includes use of Firefighter survival maze, roof ventilation prop, forcible entry prop. NOTE* wood for props to be supplied by customer	$3,000.00	No Change	$3,000.00	0.00%	No change to tower rental fees as the facilities have been utilitized substantially less. This is due to increased competition with other departments having training centres as well as the schools have begun constructing their own training grounds and props.
603A. Artificial Smoke Only Training (no live burning) -8 hours – Weekday – (Smoke only and Staffing Costs for One AFES Staff) Rental includes use of Firefighter survival maze, roof ventilation prop, forcible entry prop. NOTE* wood for props to be supplied by customer	$1,500.00	No Change	$1,500.00	0.00%	No change to tower rental fees as the facilities have been utilitized substantially less. This is due to increased competition with other departments having training centres as well as the schools have begun constructing their own training grounds and props.
603B. Artificial Smoke Only Training (no live burning) 8 hours – Weekend – (Smoke only and Staffing Costs for One AFES Staff) Rental includes use of Firefighter survival maze, roof ventilation prop, forcible entry prop. NOTE* wood for props to be supplied by customer	$1,700.00	No Change	$1,700.00	0.00%	No change to tower rental fees as the facilities have been utilitized substantially less. This is due to increased competition with other departments having training centres as well as the schools have begun constructing their own training grounds and props.
EQUIPMENT AND PROP RENTAL FEES					
704. Auto Extrication, Vehicle Supply	Market Rate	No Change	Market Rate	0.00%	No change to tower rental fees as the facilities have been utilitized substantially less. This is due to increased competition with other departments having training centres as well as the schools have begun constructing their own training grounds and props.
705. Self-Contained Breathing Apparatus (SCBA) Air Fills per cylinder – (AFES has the capability of filling SCOTT 4500 PSI cylinders)*	$12.00	No Change	$12.00	0.00%	No change to tower rental fees as the facilities have been utilitized substantially less. This is due to increased competition with other departments having training centres as well as the schools have begun constructing their own training grounds and props.
706. Fire truck and Related Equipment rental per day*	$575.00	No Change	$575.00	0.00%	No change to tower rental fees as the facilities have been utilitized substantially less. This is due to increased competition with other departments having training centres as well as the schools have begun constructing their own training grounds and props.
707. Training Grounds (Tower no smoke or fire) Rental includes use of Firefighter survival maze, roof ventilation prop, forcible entry prop. NOTE* wood for props to be supplied by customer.	$1,000.00	No Change	$1,000.00	0.00%	No change to tower rental fees as the facilities have been utilitized substantially less. This is due to increased competition with other departments having training centres as well as the schools have begun constructing their own training grounds and props.

HST will be added to all fees marked with an asterisk (*)

2024 Fire and Emergency Services User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
708. Use of the fire extinguisher prop with a training tower rental for colleges, fire departments and other non-fire service organizations. Half day rental (0800h to 1200h or 1300h to 1700h) operated by AFES trained staff.	$300.00	No Change	$300.00	0.00%	No change to tower rental fees as the facilities have been utilitized substantially less. This is due to increased competition with other departments having training centres as well as the schools have begun constructing their own training grounds and props.
709. Use of the fire extinguisher prop with a training tower rental for colleges, fire departments and other non-fire service organizations. Full day rental (0800h to 1600h) operated by AFES trained staff.	$600.00	No Change	$600.00	0.00%	No change to tower rental fees as the facilities have been utilitized substantially less. This is due to increased competition with other departments having training centres as well as the schools have begun constructing their own training grounds and props.
710. Off site fire extinguisher prop rental by fire departments for a full day and operated by a trained staff of the renting department (transportation of equipment is the responsibility of the renting Fire Department).	$400.00	No Change	$400.00	0.00%	No change to tower rental fees as the facilities have been utilitized substantially less. This is due to increased competition with other departments having training centres as well as the schools have begun constructing their own training grounds and props.
711. Off site fire extinguisher prop rental by fire departments for a full week and operated by trained staff of the renting department(transportation of equipment is the responsibility of the renting Fire Department).	$1,000.00	No Change	$1,000.00	0.00%	No change to tower rental fees as the facilities have been utilitized substantially less. This is due to increased competition with other departments having training centres as well as the schools have begun constructing their own training grounds and props.

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2024 Legislative and Information Services User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Burial Permit	$25.00	No Change	$25.00	0.00%	To stay competitive with neighbouring municipalities
Marriage Licence	$144.00	MPI Adjustment	$148.60	3.19%	
Commissioner of Oath - residents (up to 5 documents)	$26.80	No Change	$26.80	0.00%	Ajax already on the higher end of our direct neighbours
Commissioner of Oath - non-residents (up to 5 documents)	$32.10	No Change	$32.10	0.00%	
Civil Marriage Solemnization Service*	$319.80	Market-based comparison	$350.00	9.44%	Comparable to Pickering and Whitby Fee
Civil Marriage Ceremony Cancellation Fee	$53.30	MPI Adjustment	$55.00	3.19%	
Civil Marriage Solemnization Rescheduling Fee	$53.30	MPI Adjustment	$55.00	3.19%	
Application for Crossing of Parklands	$53.30	MPI Adjustment	$55.00	3.19%	
Liquor Licence - Building Letter	$120.50	MPI Adjustment	$124.30	3.15%	
Liquor Licence - Fire Letter	$106.60	MPI Adjustment	$110.00	3.19%	

HST will be added to all fees marked with an asterisk (*)

2024 Operations and Environmental Services User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
BASEBALL DIAMONDS					
Baseball Diamonds - Premium - Youth*	$32.70	MPI Adjustment	$33.80	3.36%	
Baseball Diamonds - Premium - Adult*	$51.70	MPI Adjustment	$53.40	3.29%	
Baseball Diamonds - Premium - Commercial*	$103.30	MPI Adjustment	$106.60	3.19%	
Baseball Diamonds - Type 1 - Youth*	$29.80	MPI Adjustment	$30.80	3.36%	
Baseball Diamonds - Type 1 - Adult*	$47.00	MPI Adjustment	$48.50	3.19%	
Baseball Diamonds - Type 1 - Non-resident (adult)*	$54.10	MPI Adjustment	$55.90	3.33%	
Baseball Diamonds - Type 1 - non-resident (youth)*	$34.30	MPI Adjustment	$35.40	3.21%	
Baseball Diamonds - Type 1 Fri. 4pm - Sun. 4pm - Tournament (resident) per field*	$426.40	MPI Adjustment	$439.90	3.17%	
Baseball Diamonds - Type 1 Fri. 4pm - Sun. 4pm - Tournament (non-resident) per field*	$639.60	MPI Adjustment	$659.80	3.16%	
Baseball Diamonds - Type 2 - Youth*	$16.30	MPI Adjustment	$16.90	3.68%	
Baseball Diamonds - Type 2 - Adult*	$25.90	MPI Adjustment	$26.80	3.47%	
Baseball Diamonds - Type 2 - Non-resident (adult)*	$29.90	MPI Adjustment	$30.90	3.34%	
Baseball Diamonds - Type 2 - Non-resident (youth)*	$18.60	MPI Adjustment	$19.20	3.23%	
Baseball Diamonds - Premium Fri. 4pm - Sun. 4pm - Tournament (resident) per field*	$799.50	MPI Adjustment	$824.70	3.15%	
Baseball Diamonds - Premium Fri. 4pm - Sun. 4pm - Tournament (non-resident) per field*	$1,066.00	MPI Adjustment	$1,099.60	3.15%	
Baseball Diamonds - Tournament (Fri. 4pm - Sun. 4pm) Premier (resident) per field*	$799.50	MPI Adjustment	$824.70	3.15%	
Baseball Diamonds - Tournament (Fri. 4pm - Sun. 4pm) Type 1 (resident) per field*	$426.40	MPI Adjustment	$439.90	3.17%	
Baseball Diamonds - Tournament (Fri. 4pm - Sun. 4pm) Premier (non-resident) per field*	$1,066.00	MPI Adjustment	$1,099.60	3.15%	
Baseball Diamonds - Tournament (Fri. 4pm - Sun. 4pm) Type 1 (non-resident) per field*	$639.60	MPI Adjustment	$659.80	3.16%	
Baseball Diamonds - Sports Camp (Mon. - Fri., 8am - 4pm) - Type 1 - per field*	$586.30	MPI Adjustment	$604.80	3.16%	
Baseball Diamonds - Sports Camp (Mon. - Fri., 8am - 4pm) - Type 2 - per field*	$319.80	MPI Adjustment	$329.90	3.16%	
Baseball Diamonds - Adminsitration Fees - Permit Changes/Transfers*	$10.80	MPI Adjustment	$11.20	3.70%	
Baseball Diamonds - Adminsitration Fees - Permit Processing Fee*	$26.80	MPI Adjustment	$27.70	3.36%	
Baseball Diamongs - Administration Fees - Cancellation Fee*	$42.70	MPI Adjustment	$44.10	3.28%	

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2024 Operations and Environmental Services User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
SOCCER PITCHES					
Soccer Pitches - Type 1 - Youth*	$25.90	MPI Adjustment	$26.80	3.47%	
Soccer Pitches - Type 1 - Adult*	$40.40	MPI Adjustment	$41.70	3.22%	
Soccer Pitches - Type 1 - Non-resident (adult)*	$46.50	MPI Adjustment	$48.00	3.23%	
Soccer Pitches - Type 1 - Non-resident (youth)*	$29.90	MPI Adjustment	$30.90	3.34%	
Soccer Pitches - Type 2 - Youth*	$13.00	MPI Adjustment	$13.50	3.85%	
Soccer Pitches - Type 2 - Adult*	$21.40	MPI Adjustment	$22.10	3.27%	
Soccer Pitches - Type 2 - Non-resident (adult)*	$24.70	MPI Adjustment	$25.50	3.24%	
Soccer Pitches - Type 2 - Non-resident (youth)*	$15.10	MPI Adjustment	$15.60	3.31%	
Soccer Pitches - Tournament (Fri. 4pm - Sun. 4pm) - Artificial Turf (resident) per field*	$1,279.20	MPI Adjustment	$1,319.50	3.15%	
Soccer Pitches - Tournament (Fri. 4pm - Sun. 4pm) - Type 1 (resident) per field*	$506.40	MPI Adjustment	$522.40	3.16%	
Soccer Pitches - Tournament (Fri. 4pm - Sun. 4pm) - Type 2 (resident) per field*	$213.20	MPI Adjustment	$220.00	3.19%	
Soccer Pitches - Tournament (Fri. 4pm - Sun. 4pm) - Artificial Turf (non-resident) per field*	$1,279.20	MPI Adjustment	$1,319.50	3.15%	
Soccer Pitches - Tournament (Fri. 4pm - Sun. 4pm) - Type 1 (non-resident) per field*	$799.50	MPI Adjustment	$824.70	3.15%	
Soccer Pitches - Tournament (Fri. 4pm - Sun. 4pm) - Type 2 (non-resident) per field*	$426.40	MPI Adjustment	$439.90	3.17%	
Soccer Pitches - Non-Prime (Fri. 5pm - Sun. 4pm) Type 1 (Youth)*	$13.00	MPI Adjustment	$13.50	3.85%	
Soccer Pitches - Non-Prime (Fri. 5pm - Sun. 4pm) Type 2 (Youth)*	$6.60	MPI Adjustment	$6.90	4.55%	
Soccer Pitches - Non-Prime (Fri. 5pm - Sun. 4pm) Type 1 (Adult)*	$20.30	MPI Adjustment	$21.00	3.45%	
Soccer Pitches - Non-Prime (Fri. 5pm - Sun. 4pm) Type 2 (Adult)*	$10.80	MPI Adjustment	$11.20	3.70%	
Soccer Pitches - Sports Camp (Mon. - Fri., 8am - 4pm) - Type 1, per field*	$479.70	MPI Adjustment	$494.90	3.17%	
Soccer Pitches - Sports Camp (Mon. - Fri., 8am - 4pm) - Type 2, per field*	$213.20	MPI Adjustment	$220.00	3.19%	
Soccer Pitches - Administration Fees - Permit Changes/Transfers*	$10.80	MPI Adjustment	$11.20	3.70%	
Soccer Pitches - Administration Fees - Permit Processing Fee*	$26.80	MPI Adjustment	$27.70	3.36%	
Soccer Pitches - Administration Fees - Cancellation Fee*	$42.70	MPI Adjustment	$44.10	3.28%	

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2024 Operations and Environmental Services User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
ARTIFICIAL TURF FIELDS					
Artificial Turf Fields - Youth*	$90.70	MPI Adjustment	$93.60	3.20%	
Artificial Turf Fields - Adult*	$128.00	MPI Adjustment	$132.10	3.20%	
Artificial Turf Fields - Commercial*	$159.90	MPI Adjustment	$165.00	3.19%	
Artificial Turf Fields - Non-Prime (Mar 1 - Apr 30, and Oct 1 - Dec 15)*	$69.40	MPI Adjustment	$71.60	3.17%	
Artificial Turf Administration Fees - Permit Changes/Transfers*	$10.80	MPI Adjustment	$11.20	3.70%	
Artificial Turf Administration Fees - Permit Processing Fee*	$26.80	MPI Adjustment	$27.70	3.36%	
Artificial Turf Administration Fees - Cancellation Fee*	$42.70	MPI Adjustment	$44.10	3.28%	
CRICKET PITCH					
Cricket Pitch - Youth (resident)*	$32.70	MPI Adjustment	$33.80	3.36%	
Cricket Pitch - Adult (resident)*	$51.70	MPI Adjustment	$53.40	3.29%	
Cricket Pitch - Non-resident*	$103.30	MPI Adjustment	$106.60	3.19%	
OTHER FEES					
Culvert Installation - standard installation (7 metres)*	$1,646.90	MPI Adjustment	$1,698.80	3.15%	
Picnic Tables - Resident (8 tables)*	$109.90	MPI Adjustment	$113.40	3.18%	
Picnic Tables - Non-Resident (8 tables)*	$219.70	MPI Adjustment	$226.70	3.19%	
Special Events Permit - plus any other direct costs (i.e. staff time, portable toilets, hand washing stations, tents, security, etc.)*	$219.70	Market-based comparison	$400.00	82.07%	Increased to align with municipal comparators
Road Occupancies	$192.00	MPI Adjustment	$198.10	3.18%	
Tent/Canopy Rental - Resident (10 x 10 Canopy)*	$55.00	MPI Adjustment	$56.80	3.27%	
Tent/Canopy Rental - Non-Resident (10 x 10 Canopy)*	$109.90	MPI Adjustment	$113.40	3.18%	
Portable Washroom - Resident rate for each washroom*	$274.60	MPI Adjustment	$283.30	3.17%	
Portable Washroom - Non-Resident rate for each washroom*	$329.40	MPI Adjustment	$339.80	3.16%	
Tree Dedication*	$329.40	MPI Adjustment	$339.80	3.16%	
Bench Dedication*	$3,197.90	MPI Adjustment	$3,298.70	3.15%	
Film Permits - per day (set-up/tear-down/filming)*	$1,098.00	MPI Adjustment	$1,132.60	3.15%	
Special Event Photography Permit (1.5 hrs)	$112.10	MPI Adjustment	$115.70	3.21%	Fee moved over from Recreation to Operations
EV Charging Station - per hour, first hour*	$1.20	MPI Adjustment	$1.30	8.33%	
EV Charging Station - per hour, after first hour*	$2.20	MPI Adjustment	$2.30	4.55%	
Municipal Consents - per application, per street up to 300 metres	$439.30	MPI Adjustment	$453.20	3.16%	
Municipal Consents - additional fee, per metre, per street beyond 300 metres	$0.70	MPI Adjustment	$0.80	14.29%	

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2024 Operations and Environmental Services User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
GREENWOOD CONSERVATION AREA					
Greenwood Conservation Area (9am - 6pm, May 15 - September 30 inclusive) - Education Student Rate (per person)*	$1.20	MPI Adjustment	$1.30	8.33%	
Greenwood Conservation Area (9am - 6pm, May 15 - September 30 inclusive) Resident Group Rate (0-99 people) with one picnic shelter*	$247.10	MPI Adjustment	$254.90	3.16%	
Greenwood Conservation Area (9am - 6pm, May 15 - September 30 inclusive) Non-Resident Group Rate (0-99 people) with one picnic shelter*	$384.40	MPI Adjustment	$396.60	3.17%	
Greenwood Conservation Area (9am - 6pm, May 15 - September 30 inclusive) Resident Group Rate (0-99 people) with 8 picnic tables*	$131.90	MPI Adjustment	$136.10	3.18%	
Greenwood Conservation Area (9am - 6pm, May 15 - September 30 inclusive) Non-Resident Group Rate (0-99 people) with 8 picnic tables*	$219.70	MPI Adjustment	$226.70	3.19%	
PAULYNN PARK					
Paulynn Park (9am - 6pm, May 15 - September 30 inclusive) - Education Student Rate (per person)*	$1.20	MPI Adjustment	$1.30	8.33%	
Paulynn Park (9am - 6pm, May 15 - September 30 inclusive) - Resident Group Fees (0-30 people) with one Picnic Shelter*	$137.40	MPI Adjustment	$141.80	3.20%	
Paulynn Park (9am - 6pm, May 15 - September 30 inclusive) - Non-Resident Group Fees (0-30 people) with one Picnic Shelter*	$219.70	MPI Adjustment	$226.70	3.19%	
WATERFRONT					
Waterfront (9am - 6pm, May 15 - September 30 inclusive) - Resident Group Fees (0-30 people) with Lion's Point Picnic Shelter*	$137.40	MPI Adjustment	$141.80	3.20%	
Waterfront (9am - 6pm, May 15 - September 30 inclusive) - Non-Resident Group Fees (0-30 people) with Lion's Point Picnic Shelterfront*	$219.70	MPI Adjustment	$226.70	3.19%	
Waterfront (9am - 6pm, May 15 - September 30 inclusive) - Resident Group Fees (0-30 people) without picnic shelter (with 4 picnic tables)*	$66.00	MPI Adjustment	$68.10	3.18%	
Waterfront (9am - 6pm, May 15 - September 30 inclusive) - Non-Resident Group Fees (0-30 people) without picnic shelter (with one picnic shelter)*	$109.90	MPI Adjustment	$113.40	3.18%	
Waterfront (9am - 6pm, May 15 - September 30 inclusive) - Education Student Rate (per person)*	$1.20	MPI Adjustment	$1.30	8.33%	
Note: Waterfront - groups 100+ people require Special Event Permit and directed to such rate*					
WATERFRONT TRAIL PERMIT					
Waterfront Trail Permit - all groups over 300, regardless of status (responsible for any additional direct costs i.e. portable toilets, handwashing stations, additional tents, security, etc.)*	$219.70	MPI Adjustment	$226.70	3.19%	
Senior Snow Removal Program - includes service to municipal sidewalk, pathway to a door, complete driveway as well as windrow service*	$175.80	MPI Adjustment	$181.40	3.19%	
Senior Snow Removal Program - includes service municipal sidewalk and windrow service*	$33.00	MPI Adjustment	$34.10	3.33%	
TENNIS COURTS					
Tennis Court - Resident*	$8.50	MPI Adjustment	$8.80	3.53%	
Tennis Court - Non-resident*	$9.77	MPI Adjustment	$10.10	3.38%	

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2024 Planning and Development User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
ENGINEERING:					
Engineering Review Inspection and Administration of Subdivision Agreements, Development Agreements, Lot Grading Agreements and Infill Lots - Value of securities for work <$500,000	6.10%	No Change	6.10%	0.00%	No increase is required for percentage-based fees because the value of works increases annually with Construction Costs.
Engineering Review Inspection and Administration of Subdivision Agreements, Development Agreements, Lot Grading Agreements and Infill Lots - Value of securities for work $500,000 - $1 million	5.00%	No Change	5.00%	0.00%	No increase is required for percentage-based fees because the value of works increases annually with Construction Costs.
Engineering Review Inspection and Administration of Subdivision Agreements, Development Agreements, Lot Grading Agreements and Infill Lots - Value of securities for work >$1 million	4.40%	No Change	4.40%	0.00%	No increase is required for percentage-based fees because the value of works increases annually with Construction Costs.
Engineering Review Inspection and Administration of Subdivision Agreements, Development Agreements, Lot Grading Agreements and Infill Lots - Fee per lot, where value of work or securities are less than $13,000	$1,061.00	MPI Adjustment	$1,094.50	3.16%	
Minimum fee for Infill lots	$1,061.00	MPI Adjustment	$1,094.50	3.16%	
Landscape Architectural and Environmental Services Review and Inspection for Subdivision Agreements, Development Agreements and Site Plan Applications - Percentage of the value of securities for landscape work	2.10%	No Change	2.10%	0.00%	No increase is required for percentage-based fees because the value of works increases annually with Construction Costs.
Landscape Architectural and Environmental Services Review and Inspection for Subdivision Agreements, Development Agreements and Site Plan Applications - Minimum fee (per lot) where the value of works or securities is less than $13,000	$330.00	MPI Adjustment	$340.40	3.15%	
Engineering Review Inspection and Administration of Site Plan Agreements - Value of securities for work <$500,000	6.30%	No Change	6.30%	0.00%	No increase is required for percentage-based fees because the value of works increases annually with Construction Costs.
Engineering Review Inspection and Administration of Site Plan Agreements - Value of securities for work >$500,000	5.60%	No Change	5.60%	0.00%	No increase is required for percentage-based fees because the value of works increases annually with Construction Costs.
Engineering Review Inspection and Administration of Site Plan Agreements - Minimum fee where the value of work or securities are less than $13,000	$984.00	MPI Adjustment	$1,015.00	3.15%	
Peer Reviews	Actual Costs	No Change	Actual Costs	N/A	No Change required because actual costs are charged.
Engineering Review and Inspection for Street Lights in Subdivisions	Actual Costs of Third Party Review	No Change	Actual Costs of Third Party Review	N/A	No Change required because actual costs are charged.

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2024 Planning and Development User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Pre-Servicing Agreement - per application	$1,930.00	MPI Adjustment	$1,990.80	3.15%	
Benchmarks - per lot	$15.50	MPI Adjustment	$16.00	3.23%	
Digital Drawing Management Fee - Value of Works <$100,000	$319.80	MPI Adjustment	$329.90	3.16%	
Digital Drawing Management Fee - Value of Works $100,000 - $500,000	$533.00	MPI Adjustment	$549.80	3.15%	
Digital Drawing Management Fee - Value of Works >$500,000	$1,066.00	MPI Adjustment	$1,099.60	3.15%	
Stormwater Maintenance Fee - per hectare	$2,558.30	MPI Adjustment	$2,638.90	3.15%	
Design Criteria* - CD Only	$26.80	MPI Adjustment	$27.70	3.36%	
Design Criteria* - Book and CD	$85.40	MPI Adjustment	$88.10	3.16%	
Site Inspections for Development Sites - fee for first, third, and any subsequent inspection	$229.30	MPI Adjustment	$236.60	3.18%	
Review of Development Applications (After 3rd submission) - plus hourly rate for review of any submissions greater than the 3rd submission and for any subsequent submission	$229.30	MPI Adjustment	$236.60	3.18%	
Continuous Linear Infrastructure-Environmental Compliance Approval (CLI-ECA) review and approval	$500.00	New Fee/Charge	$500.00	0.00%	New fee required for updating the Town-wide ECA for linear stormwater infrastructure. Requirement is from MECP.
Sediment and Erosion Permit Fee - major initial permit fee	$1,962.00	MPI Adjustment	$2,023.90	3.15%	
Sediment and Erosion Permit Fee - major per hectare	$879.00	MPI Adjustment	$906.70	3.15%	
Sediment and Erosion Permit Fee - renewal of permit	$981.00	MPI Adjustment	$1,012.00	3.16%	
Sediment and Erosion Permit Fee - minor initial permit fee	$1,903.00	MPI Adjustment	$1,963.00	3.15%	
Traffic Data and Turning Movement Counts - Traffic Data	$233.00	MPI Adjustment	$240.40	3.18%	
Traffic Data and Turning Movement Counts - Turning Movement Counts	$233.00	MPI Adjustment	$240.40	3.18%	
Hourly Rates - Engineer/Coordinator (per hour)	$115.20	MPI Adjustment	$118.90	3.21%	
Hourly Rates - Engineering Technologist (per hour)	$99.20	MPI Adjustment	$102.40	3.23%	
Hourly Rates - Landscape Architect (per hour)	$112.10	MPI Adjustment	$115.70	3.21%	
Hourly Rates - Engineering Associate (per hour)	$64.10	MPI Adjustment	$66.20	3.28%	

HST will be added to all fees marked with an asterisk (*)

2024 Planning and Development User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
BOULEVARD MODIFICATIONS					
Curb Cut – Standard Curb $125.00 Application Review Fee $200.00 + HST Curb Cut Fee (up to 4.0 metres) Additional Fee: $32.00 per metre for each metre beyond the first 4.0 metres (rounded up to the nearest metre) will be charged	$325.00	No Change	$325.00	0.00%	No change required because cost is based on already tendered cost to cut curbs.
Curb Restoration – Standard Curb $125.00 Application Review Fee $100.00 Inspection Fee Additional Fee: A per linear metre fee (plus HST) will be charged based on actual cost (minimum charge is 1.0 metre)	$225.00	No Change	$225.00	0.00%	No change required because cost is based on already tendered cost to cut curbs.
Curb Cut/Restoration – Monolithic Curb/Sidewalk $125.00 Application Review Fee $100.00 Inspection Fee Additional Fee: A per square metre fee (plus HST) for curb/sidewalk requiring cutting/restoration will be charged based on actual cost (minimum charge is 1.0 square metre)	$225.00	No Change	$225.00	0.00%	No change required because cost is based on already tendered cost to cut curbs.
ECONOMIC DEVELOPMENT:					
Film Permit Fee* (security deposits will be requested when deemed necessary)	$500.00	MPI Adjustment	$515.80	3.16%	
Film Permit Fee - student	$0.00	No Change	$0.00	0.00%	
Licence Agreement Fee* (applicable for requests for Licenses, Easements, Encroachments) - additional fees/compensation may apply as determined on a case-by-case basis	$1,700.00	MPI Adjustment	$1,753.60	3.15%	
Permission to Enter Agreement Fee	$250.00	MPI Adjustment	$257.90	3.16%	
STORMWATER					
Residential Annual Stormwater Fee	$48.00	MPI Adjustment	$49.60	3.33%	
Non-Residential Annual Stormwater Fee **per 192m^2 impervious area** *(may be subject to credits under stormwater fee credit program)*	$48.00	MPI Adjustment	$49.60	3.33%	

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2024 Planning and Development User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
SUSTAINABILITY					
Sustainability review and Inspection of development application. Total Gross Floor Area 0-750 m^2.	$250.00	New Fee/Charge	$250.00	0.00%	New fee associated with review and inspection of development sites by Sustainability staff
Sustainability review and Inspection of development application. Total Gross Floor Area 750-2,500 m^2.	$2,304.00	New Fee/Charge	$2,304.00	0.00%	New fee associated with review and inspection of development sites by Sustainability staff
Sustainability review and Inspection of development application. Total Gross Floor Area 2,500-25,000 m^2.	$3,916.80	New Fee/Charge	$3,916.80	0.00%	New fee associated with review and inspection of development sites by Sustainability staff
Sustainability review and Inspection of development application. Total Gross Floor Area 25,000-100,000 m^2.	$5,760.00	New Fee/Charge	$5,760.00	0.00%	New fee associated with review and inspection of development sites by Sustainability staff
Sustainability review and Inspection of development application. Total Gross Floor Area 100,000-150,000 m^2.	$7,372.80	New Fee/Charge	$7,372.80	0.00%	New fee associated with review and inspection of development sites by Sustainability staff
Sustainability review and Inspection of development application. Total Gross Floor Area >150,000 m^2.	$9,446.80	New Fee/Charge	$9,446.80	0.00%	New fee associated with review and inspection of development sites by Sustainability staff

If there are unusual engineering and/or construction circumstances, poor quality drawing submission, poor construction techniques and/or inadequate inspection by the consultants; upon notification, the applicant will be charged the applicable hourly rates and fee in addition to the initial percentage fee. This Schedule is for routine (typical) transactions, based on three design submissions per application. Additional hourly fees may be charged at the discretion of the Director of Planning and Development Services or Director of Operations and Environmental Services, as applicable.

HST will be added to all fees marked with an asterisk (*)

2024 Planning Act User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
OFFICIAL PLAN AMENDMENT (OPA)					
Local Official Plan Amendment: Simple - Application Processing	$36,772.00	MPI Adjustment	$37,930.40	3.15%	
Local Official Plan Amendment: Simple - Town-led Open House (Only if requested by applicant)	$2,374.00	MPI Adjustment	$2,448.80	3.15%	
Local Official Plan Amendment: Complex - Application Processing	$96,674.00	MPI Adjustment	$99,719.30	3.15%	
Local Official Plan Amendment: Complex - Town-led Open House (Only if requested by applicant)	$2,374.00	MPI Adjustment	$2,448.80	3.15%	
Regional Official Plan Amendment: Review Fee	$18,390.00	MPI Adjustment	$18,969.30	3.15%	
ZONING BY-LAW AMENDMENT (ZBA) AND ZONING COMPLIANCE REVIEW					
Zoning By-law Amendment: Simple - Application Processing	$30,478.00	MPI Adjustment	$31,438.10	3.15%	
Zoning By-law Amendment: Simple - Town-led Open House (Only if requested by Applicant)	$2,374.00	MPI Adjustment	$2,448.80	3.15%	
Zoning By-law Amendment: Complex - Application Processing	$32,495.00	MPI Adjustment	$33,518.60	3.15%	
Zoning By-law Amendment: Complex - Town-led Open House (Only if requested by Applicant)	$2,374.00	MPI Adjustment	$2,448.80	3.15%	
Removal of a Holding (H) Provision	$8,942.00	MPI Adjustment	$9,223.70	3.15%	
Temporary Use By-law	$30,478.00	MPI Adjustment	$31,438.10	3.15%	
Temporary Use By-law Extension	$5,468.00	MPI Adjustment	$5,640.30	3.15%	
Zoning Compliance Review - Site Plan: Minor, Site Plan Amendments: Minor A,B, and C	$912.00	MPI Adjustment	$940.80	3.16%	
Zoning Compliance Review - Zoning By-law Amendments: Simple and Complex, Site Plan: Major, Site Plan Amendments: Major and Minor D	$1,824.00	MPI Adjustment	$1,881.50	3.15%	
JOINT OFFICIAL PLAN AMENDMENT AND ZONING BY-LAW AMENDMENT					
Joint Official Plan Amendment & Zoning By-law Amendment: Simple - Application Processing	$55,082.00	MPI Adjustment	$56,817.10	3.15%	
Joint Official Plan Amendment & Zoning By-law Amendment: Simple - Town-led Open House (Only if requested by Applicant)	$2,374.00	MPI Adjustment	$2,448.80	3.15%	
Joint Official Plan Amendment & Zoning By-law Amendment: Complex - Application Processing	$103,657.00	MPI Adjustment	$106,922.20	3.15%	
Joint Official Plan Amendment & Zoning By-law Amendment: Complex - Town-led Open House (Only if requested by Applicant)	$2,374.00	MPI Adjustment	$2,448.80	3.15%	
NOTE: If an "Optional Application Review: Comprehensive" is completed for any Zoning By-law Amendment application or joint Official Plan Amendment and Zoning By-law Amendment application, 75% of the Optional Application Review Fee shall be deducted from the requisite Zoning By-law Amendment application fee or joint Official Plan Amendment and Zoning By-law Amendment application fee to a maximum of 25% of the requisite application fee.					*NOTE: Complex Applications (OPA and/or ZBA) refers to: The introduction of a new use that has not been contemplated by the Town's Official Plan and/or Zoning By-law, and/or is tied to an application for a Regional Official Plan Amendment, and/or is an application(s) deemed to propose a significant change to the Town's Official Plan, subject to the Town's discretion. The determination of a Complex Application will be discussed with the applicant through the Town's Pre-consultation Process.*

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2024 Planning Act User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
DRAFT PLAN OF SUBDIVISION AND DRAFT PLAN OF CONDOMINIUM					
Draft Plan of Subdivision: Residential - Base Fee (plus applicable Fee Per Unit)	$27,408.00	MPI Adjustment	$28,271.40	3.15%	
Draft Plan of Subdivision: Residential - Fee Per Unit (1-200)	$643.00	MPI Adjustment	$663.30	3.16%	
Draft Plan of Subdivision: Residential - Fee Per Unit (201+)	$321.70	MPI Adjustment	$331.90	3.17%	
Draft Plan of Subdivision: Non-residential	$69,936.00	MPI Adjustment	$72,139.00	3.15%	
Draft Plan of Subdivision: Development Block (associated with a condominium / or required for a site plan)	$27,589.00	MPI Adjustment	$28,458.10	3.15%	
Revisions to a Draft Plan of Subdivision or Draft Plan of Condominium (i.e. not draft approved, but requiring full recirculation)	$4,096.00	MPI Adjustment	$4,225.10	3.15%	
Revisions to a Draft Approved Plan of Subdivision or Condominium (i.e. red-line revision): Major (where substantial changes are proposed and recirculation is required) - Base Fee (plus applicable Fee Per Unit)	$21,059.00	MPI Adjustment	$21,722.40	3.15%	
Revisions to a Draft Approved Plan of Subdivision or Condominium (i.e. red-line revision): Major - Fee Per Unit (1-200)	$494.00	MPI Adjustment	$509.60	3.16%	
Revisions to a Draft Approved Plan of Subdivision or Condominium (i.e. red-line revision): Major - Fee Per Unit (201+)	$247.20	MPI Adjustment	$255.00	3.16%	
Revisions to a Draft Approved Plan of Subdivision or Condominium (i.e. red-line revision): Minor (change to condition and/or minor plan change)	$5,664.00	MPI Adjustment	$5,842.50	3.15%	
Request to Extend Draft Approval	$4,733.00	MPI Adjustment	$4,882.10	3.15%	
Final Approval, Subdivision Clearance Fee	$3,800.00	MPI Adjustment	$3,919.70	3.15%	
Draft Plan of Condominium - Application Processing	$19,606.00	MPI Adjustment	$20,223.60	3.15%	
Final Approval, Condominium Clearance Fee	$3,000.00	MPI Adjustment	$3,094.50	3.15%	
Lift Part-Lot Control - Base Fee (Base Fee + Fee Per Unit Total Maximum = $5,563)	$4,874.00	MPI Adjustment	$5,027.60	3.15%	
Lift Part-Lot Control - Fee Per Unit (Base Fee + Fee Per Unit Total Maximum = $5,563)	$34.50	MPI Adjustment	$35.60	3.19%	
Extension of Part Lot Control Exemption	$2,441.10	MPI Adjustment	$2,518.00	3.15%	

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2024 Planning Act User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
SITE PLAN					
Site Plan: Major - Base Fee (plus Fee Per Unit and/or Non-residential GFA)	$4,675.00	MPI Adjustment	$4,822.30	3.15%	
Site Plan: Major - Residential Fee Per Unit (1-25)	$441.00	MPI Adjustment	$454.90	3.15%	
Site Plan: Major - Residential Fee Per Unit (26-100)	$342.00	MPI Adjustment	$352.80	3.16%	
Site Plan: Major - Residential per unit (101-200 units)	$167.00	MPI Adjustment	$172.30	3.17%	
Site Plan: Major - Residential Fee Per Unit (201+)	$89.00	MPI Adjustment	$91.90	3.26%	
Site Plan: Major - Non-residential per 100m^2 of GFA	$48.00	MPI Adjustment	$49.60	3.33%	
Site Plan: Major - Clearing of Conditions	$16,306.00	MPI Adjustment	$16,819.70	3.15%	
Site Plan: Minor (Conversion of residential to non-residential / Model Home/ Sales Trailer) - Application Processing	$10,122.00	MPI Adjustment	$10,440.90	3.15%	
Site Plan: Minor (Conversion of residential to non-residential/ Model Home/ Sales Trailer) - Clearing of Conditions	$6,875.00	MPI Adjustment	$7,091.60	3.15%	
SITE PLAN AMENDMENT					
Site Plan Amendment: Major (Where an additional building is proposed or an expansion to the building is greater than 50% of the total gross floor area of the existing building or greater than 5,000 m^2, whichever is less) - Application Processing	Site Plan Application Fee applies	No Change	Site Plan Application Fee applies		
Site Plan Amendment: Major - Clearing of Conditions	$16,306.00	MPI Adjustment	$16,819.70	3.15%	
Site Plan Amendment: Minor A (Minor site works including, but not limited to, culvert modifications and fencing) - Application Processing	$750.00	MPI Adjustment	$773.70	3.16%	
Site Plan Amendment: Minor B (Portable classroom additions) - Application Processing	$1,500.00	MPI Adjustment	$1,547.30	3.15%	
Site Plan Amendment: Minor C (Minor building additions as determined by the Town, patios, accessory buildings / structures, outdoor play areas, and/or parking lot modifications) - Application Processing	$2,600.00	MPI Adjustment	$2,681.90	3.15%	
Site Plan Amendment: Minor D (Where the expansion to an existing building is less than 50% of the total gross floor area of the existing building or less than 5,000 m^2 (whichever is less), or an expansion to a parking area) - Application Processing	$10,907.00	MPI Adjustment	$11,250.60	3.15%	
Site Plan Amendment: Minor D - Clearing of Conditions	$6,875.00	MPI Adjustment	$7,091.60	3.15%	
Site Plan Amendment: Minor (all others) - Clearing of Conditions, where applicable	$2,400.00	MPI Adjustment	$2,475.60	3.15%	
Telecommunication Facility	$19,338.00	MPI Adjustment	$19,947.20	3.15%	
Note: If an "Optional Application Review: Comprehensive" is completed as part of any Site Plan or Site Plan Amendment Application, 75% of the Optional Application Review Fee shall be deducted from the requisite Site Plan or Site Plan Amendment Fee to a maximum of 25% of the requisite application fee.					

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2024 Planning Act User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
AGREEMENTS					
Preparation of a Subdivision, Condominium, Site Plan, Development Agreements, or Amending Agreements (The Applicant is required to reimburse the Town for its legal costs associated with the preparation and registration of an agreement)*	Acutal Costs	No Change	Actual Costs	0.00%	
MINOR VARIANCE AND LAND DIVISION					
Minor Variance: Accessory buildings, structures and platforms, driveway widenings, below grade entrances	$800.00	MPI Adjustment	$825.20	3.15%	
Minor Variance: Residential Minor (single or semi-detached dwellings, duplex, triplex, townhouse dwellings, or detached accessory dwelling unit) - Single Variance	$1,550.00	MPI Adjustment	$1,598.90	3.15%	
Minor Variance: Residential Minor (single or semi-detached dwellings, duplex, triplex, townhouse dwellings, or detached accessory dwelling unit) - Multiple Variances	$1,938.00	MPI Adjustment	$1,999.10	3.15%	
Minor Variance: Residential/Mixed-Use Major (condominium, apartment, or mixed-use buildings) - Single Variance	$3,294.00	MPI Adjustment	$3,397.80	3.15%	
Minor Variance: Residential/Mixed Use Major (condominium, apartment, or mixed-use buildings) - Multiple Variances (2-5 variance requests)	$3,875.00	MPI Adjustment	$3,997.10	3.15%	
Minor Variance: Residential/Mixed Use Major (condominium, apartment, or mixed-use buildings) - Multiple Variances (each additional variance request beyond 5)	$581.00	MPI Adjustment	$599.40	3.17%	
Minor Variance: Non-Residential - Single Variance	$3,875.00	MPI Adjustment	$3,997.10	3.15%	
Minor Variance: Non-Residential - Multiple Variances (2-5 variance requests)	$4,400.00	MPI Adjustment	$4,538.60	3.15%	
Minor Variance: Non-Residential - Multiple Variances (each additional variance request beyond 5)	$581.00	MPI Adjustment	$599.40	3.17%	
Minor Variance: Enlargement, expansion, or conversion of a legal non-conforming use/ uses defined in general terms	$4,400.00	MPI Adjustment	$4,538.60	3.15%	
Minor Variance: Tabling Fee - (Collected if the applicant requests that the application be tabled, or if the applicant has not met the legislated requirements, or if the applicant is not present at the meeting and the Committee decides to table the application)	$346.50	MPI Adjustment	$357.50	3.17%	
Minor Variance: Special Hearing - (Plus applicable application fee)	$8,865.00	MPI Adjustment	$9,144.30	3.15%	
Minor Variance: Post-development variance	Double the applicable application fee	No Change	Double the applicable application fee	0.00%	
Land Division Administration Fee - Processing Fee	$3,285.00	MPI Adjustment	$3,388.50	3.15%	
Land Division Administration Fee - Development Agreement (where applicable)	$2,778.00	MPI Adjustment	$2,865.60	3.15%	
Note: Applicants are encouraged to Pre-consult with Staff, prior to application submission. Exception: if a minor variance is requested as a result of going through a site plan approval process.					*Note: 50% Discount from the requisite fee when applying for a minor variance application associated with the installation of an accessibility device, ramp or driveway widening for the purposes of providing barrier free access to single/semi-detached/link or townhouse dwelling units.*

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2024 Planning Act User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
PRE-CONSULTATION AND OPTIONAL REVIEW					
Pre-consultation: Minor Variance and Land Division Applications (Optional)	$650.00	MPI Adjustment	$670.50	3.15%	
Pre-Consultation: Phase 1 Preliminary Consultation (Site Plan: Minor, Site Plan Amendments: Minor C and D)	$650.00	MPI Adjustment	$670.50	3.15%	
Pre-consultation: Phase 1 Preliminary Consultation (All other applications excluding Site Plan Amendments: Minor A and B, and Telecommunication Facility)	$3,296.00	MPI Adjustment	$3,399.90	3.15%	
Pre-consultation: Phase 2 Final Consultation (Site Plan: Minor, Site Plan Amendments: Minor A, B, and C, and Telecommunication Facility)	$650.00	MPI Adjustment	$670.50	3.15%	
Pre-consultation: Phase 2 Final Consultation (Draft Plan of Subdivision, Draft Plan of Condominium and Site Plan Amendment: Minor D)	$5,000.00	MPI Adjustment	$5,157.50	3.15%	
Pre-consultation: Phase 2 Final Consultation (All other applications)	$12,246.00	MPI Adjustment	$12,631.80	3.15%	
Optional Application Review: Minor	$3,296.00	MPI Adjustment	$3,399.90	3.15%	
Optional Application Review: Comprehensive	$12,246.00	MPI Adjustment	$12,631.80	3.15%	
Technical Peer Review (Applicant to reimburse the Town of the full cost of completing the review)	Actual Costs	No Change	Actual Costs	N/A	
Note: For an Optional Application Review: Minor, the Town will review up to 2 technical reports/studies, and/or up to 5 individual drawings, provide comments and/or redlines, and host one meeting between the Town and applicant.					*Note: For an Optional Application Review: Comprehensive, the Town will review all major reports/studies and drawings required for an application, provide comments and/or redlines, and host one meeting between the Town and applicant.*
OTHER					
Property Information Request - Zoning Information	$327.00	MPI Adjustment	$337.40	3.18%	
Property Information Request - Building Information	$150.00	MPI Adjustment	$154.80	3.20%	
Property Information Request - By-law Information	$150.00	MPI Adjustment	$154.80	3.20%	
Property Information Request - Ontario Heritage Act	$150.00	MPI Adjustment	$154.80	3.20%	
Property Information Request - Legal Inquiries	$244.00	MPI Adjustment	$251.70	3.16%	
Property Information Request - Release of Agreements	$503.00	MPI Adjustment	$518.90	3.16%	
Sign By-law Amendment	$2,766.20	MPI Adjustment	$2,853.40	3.15%	
Sign By-law Variance	$1,066.00	MPI Adjustment	$1,099.60	3.15%	
Tree Cutting Permit	$1,410.00	MPI Adjustment	$1,454.50	3.16%	
Tree Cutting Permit - Appeal to Town of Ajax General Government Committee	$4,215.00	MPI Adjustment	$4,347.80	3.15%	

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2024 Planning Act User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Additional Public Meeting - Where more than one public open house, or Community Affairs and Planning Committee meeting is required (per additional open house or meeting)	$1,130.00	MPI Adjustment	$1,165.60	3.15%	
Public Notification: Applicant Organized Public Meeting (Town to mail a notice prepared by an applicant)	$200 plus applicable mailing and printing costs	No Change	$200 plus applicable mailing and printing costs		
Advertising (Where it is not possible for a notice to be placed in the Ajax News-Advertiser's Community Page, the applicant shall pay the Town's advertising costs in respect of the matter.)*	Actual Costs	No Change	Actual Costs	0.00%	
Street Addressing - Base Fee (plus Fee Per Municipal Address)	$342.00	MPI Adjustment	$352.80	3.16%	
Street Addressing - Fee Per Municipal Address	$19.00	MPI Adjustment	$19.60	3.16%	
Street Naming Request	$664.00	MPI Adjustment	$685.00	3.16%	
Peer Reviews and Architectural Control Review(The applicant shall be responsible for the Town's full costs of undertaking the peer review.)*	Actual Costs	No Change	Actual Costs	0.00%	
Ontario Land Tribunal (OLT) Appeals - Committee of Adjustment	$400.00	Legislation	$400.00	0.00%	Fee was confirmed June 2023 via the DAAP Review
Ontario Land Tribunal (OLT) Appeals - All other Appeals	$1,100.00	Legislation	$1,100.00	0.00%	Fee was confirmed June 2023 via the DAAP Review
Note: Ontario Land Tribunal (OLT) Appeals - Where the Town becomes involved in an appeal to the OLT, and where the Town is in support of the application, the applicant shall pay Town staff costs in terms of time and expenses for preparation for and attendance at hearings, mediation or arbitration.					
Commissioning Planning Applications (for up to 5 signatures)	$26.80	MPI Adjustment	$27.70	3.36%	
Digital Application Submission Administration Fee - Compliance Letter		New Fee/Charge	$25.00		New fee added as a result of development of the Digital Plan Submission Portal (apps that will be accepted in Phase 1 of the Portal launch) - non-refundable fee for admin review of application material
Digital Application Submission Administration Fee - Pre-consultaiton: Phase 1		New Fee/Charge	$30.00		New fee added as a result of development of the Digital Plan Submission Portal (apps that will be accepted in Phase 1 of the Portal launch) - non-refundable fee for admin review of application material
Digital Application Submission Administration Fee - Pre-consultaiton: Phase 2		New Fee/Charge	$75.00		New fee added as a result of development of the Digital Plan Submission Portal (apps that will be accepted in Phase 1 of the Portal launch) - non-refundable fee for admin review of application material
Digital Application Submission Administration Fee - Zoning Compliance Review		New Fee/Charge	$25.00		New fee added as a result of development of the Digital Plan Submission Portal (apps that will be accepted in Phase 1 of the Portal launch) - non-refundable fee for admin review of application material
Digital Application Submission Administration Fee - Site Plan: Minor		New Fee/Charge	$25.00		New fee added as a result of development of the Digital Plan Submission Portal (apps that will be accepted in Phase 1 of the Portal launch) - non-refundable fee for admin review of application material

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2024 Planning Act User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Digital Application Submission Administration Fee - Site Plan: Major		New Fee/Charge	$100.00		New fee added as a result of development of the Digital Plan Submission Portal (apps that will be accepted in Phase 1 of the Portal launch) - non-refundable fee for admin review of application material
Digital Application Submission Administration Fee - Site Plan Amendment: Major		New Fee/Charge	$100.00		New fee added as a result of development of the Digital Plan Submission Portal (apps that will be accepted in Phase 1 of the Portal launch) - non-refundable fee for admin review of application material
Digital Application Submission Administration Fee - Site Plan Amendment: Minor A, B and C		New Fee/Charge	$25.00		New fee added as a result of development of the Digital Plan Submission Portal (apps that will be accepted in Phase 1 of the Portal launch) - non-refundable fee for admin review of application material
Digital Application Submission Administration Fee - Site Plan Amendment: Minor D		New Fee/Charge	$75.00		New fee added as a result of development of the Digital Plan Submission Portal (apps that will be accepted in Phase 1 of the Portal launch) - non-refundable fee for admin review of application material
APPLICATION REFUND, RECIRCULATION AND REACTIVATION					
Refund: Where any application is withdrawn after a file has been opened, but before it has been circulated	90%	No Change	90%	0.00%	
Refund: Where a Zoning By-Law Amendment or Combined Official Plan and Zoning By-law Amendment applications are withdrawn within 45 days from date of submission of a complete application	50%	No Change	50%	0.00%	
Refund: Where a Site Plan or a Site Plan Amendment are withdrawn within 30 days of submission of a complete application	50%	No Change	50%	0.00%	
Refund: Where a standalone Official Plan Amendment or a Subdivision application is withdrawn after 1st submission comments have been provided to the applicant, but before a 2nd submission has been submitted	50%	No Change	50%	0.00%	
Refund: Where a Minor Variance application is withdrawn after a file has been circulated, but before it has been considered at a public meeting	50%	No Change	50%	0.00%	
Refund: Where an application is withdrawn any time after the 2nd submission has been submitted	0%	No Change	0%	0.00%	
Refund: Where a Minor Variance application is withdrawn after the public meeting	0%	No Change	0%	0.00%	
Recirculation - Required on the 4th submission and any subsequent submission of an application requiring circulation to internal departments and/or external agencies	$1,066.00	MPI Adjustment	$1,099.60	3.15%	
Refunds will also be issued in accordance with the *Planning Act*					
Note: For an Official Plan Amendment, Zoning By-law Amendment, Draft Plan of Subdivision, Draft Plan of Condominium, Site Plan and/or Site Plan Amendment application that has been deemed to be dormant, refunds shall be in accordance with the Dormant File Policy.					

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2024 Planning Act User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
BOULEVARD ENCROACHMENTS					
Complex Boulevard Encroachment Application Fee (Proposed modifications)	$312.90	MPI Adjustment	$322.80	3.16%	
Complex Boulevard Encroachment Application Fee (Prior modifications)	$625.80	MPI Adjustment	$645.60	3.16%	
Complex Boulevard Encroachment Agreement Fee (Collected only if a Complex Boulevard Encroachment Application is approved) *	$1,000.00	No Change	$1,000.00	0.00%	
OTHER FEES					
Municipal Council Support for Roof-top Solar Photovoltaic Projects	$511.70	MPI Adjustment	$527.90	3.17%	
Temporary Patio Permit	$0.00	MPI Adjustment	$0.00	0.00%	
Heritage Permit	$0.00	No Change	$0.00	0.00%	
Hourly Rates - for any work done outside of an application	$106.60	MPI Adjustment	$110.00	3.19%	
Printing - Plan of Roads	$13.40	MPI Adjustment	$13.90	3.73%	
Printing - Subdivision Summary (11x17) w/Chart	$10.80	MPI Adjustment	$11.20	3.70%	
Printing - Official Plan Schedules (24x36) – per schedule	$16.10	MPI Adjustment	$16.70	3.73%	
Printing - Official Plan Schedules (11x17) – per schedule	$10.80	MPI Adjustment	$11.20	3.70%	

HST will be added to all fees marked with an asterisk (*)

2024 Recreation - Admin. User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Brochure Advertising Rates					
Commercial - Business Card*	$276.00	MPI Adjustment	$284.70	3.15%	
Commercial - Quarter Page*	$408.80	MPI Adjustment	$421.70	3.16%	
Commercial - Half Page*	$674.60	MPI Adjustment	$695.90	3.16%	
Commercial - Full Page*	$1,083.40	MPI Adjustment	$1,117.60	3.16%	
Commercial - Half Page - inside glossy full colour (front or back cover or centre)*	$960.70	MPI Adjustment	$991.00	3.15%	
Commercial - Inside cover (full page)*	$1,952.10	MPI Adjustment	$2,013.60	3.15%	
Commercial - Back cover (full colour glossy)*	$1,992.90	MPI Adjustment	$2,055.70	3.15%	
Community Groups - Incorporated 2 yrs. or less (Business Card = one annually - max 1 ad)*	$0.00	MPI Adjustment	$0.00	0.00%	
Community Groups - Incorporated 3-5 yrs. (Business Card & Quarter page size ads only = one annually max 3 business card sized ads or 1 quarter page sized ad) - Business Card*	$51.10	MPI Adjustment	$52.80	3.33%	
Community Groups - Incorporated 3-5 yrs. (Business Card & Quarter page size ads only = one annually max 3 business card sized ads or 1 quarter page sized ad) - Quarter Page*	$117.60	MPI Adjustment	$121.40	3.23%	
Community Groups - Business Card*	$102.20	MPI Adjustment	$105.50	0.00%	
Community Groups - Quarter Page*	$235.10	MPI Adjustment	$242.60	0.00%	
Community Groups - Half Page	$459.90	MPI Adjustment	$474.40	0.00%	
Community Groups - Half Page - inside glossy full colour (front or back cover)	$500.80	MPI Adjustment	$516.60	0.00%	
Community Groups - Full Page	$797.20	MPI Adjustment	$822.40	0.00%	

HST will be added to all fees marked with an asterisk (*)

2024 Recreation - Facilities User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Recreational Skating					
Public Skating - Single Admission - Youth*	$2.08	Market-based comparison	$2.88	38.46%	
Public Skating - Single Admission - Senior*	$2.08	Market-based comparison	$2.88	38.46%	
Public Skating - Single Admission - Adult*	$3.76	Market-based comparison	$4.42	17.55%	
Public Skating - Single Admission - Preschool (3 & under)	$0.00	No Change	$0.00	0.00%	
Public Skating - Group Admission (min 1 adult and 4 children, or max 2 adults and 3 children)*	$10.71	Market-based comparison	$13.50	26.05%	
Public Skating - 10 Pass - Youth*	$17.08	Market-based comparison	$25.92	51.76%	
Public Skating - 10 Pass - Senior*	$17.08	Market-based comparison	$25.92	51.76%	
Public Skating - 10 Pass - Adult*	$32.08	Market-based comparison	$39.78	24.00%	
Shinny / Sledge Hockey - Youth/Senior*	$3.27	Market-based comparison	$4.74	44.95%	
Shinny / Sledge Hockey - Adult*	$5.84	Market-based comparison	$6.73	15.24%	
Shinny / Sledge Hockey - 5 Pass Youth/Senior*		New Fee/Charge	$21.33		Added options to existing program
Shinny / Sledge Hockey - 5 Pass Adult*		New Fee/Charge	$30.29		Added options to existing program
Figure Skating - Ticket Ice*	$9.71	MPI Adjustment	$9.71	0.00%	
Recreational Swimming					
Public Swimming - ACC/MCC/ARC/Outdoor Pool - Single Admission - Youth*	$2.08	Market-based comparison	$2.88	38.46%	
Public Swimming - ACC/MCC/ARC/Outdoor Pool - Single Admission - Senior*	$2.08	Market-based comparison	$2.88	0.00%	
Public Swimming - ACC/MCC/ARC/Outdoor Pool - Single Admission - Adult*	$3.76	Market-based comparison	$4.42	17.55%	
Public Swimming - ACC/MCC/ARC/Outdoor Pool - Single Admission - Preschool (3 & under)	$0.00	Market-based comparison		0.00%	
Public Swimming - ACC/MCC/ARC/Outdoor Pool - Group Admission (min 1 adult and 4 children, or max 2 adults and 3 children)*	$10.71	Market-based comparison	$13.50	26.05%	
Public Swimming - ACC/MCC/ARC/Outdoor Pool - 10 Pass - Youth*	$17.08	Market-based comparison	$25.92	51.76%	
Public Swimming - ACC/MCC/ARC/Outdoor Pool - 10 Pass - Senior*	$17.08	Market-based comparison	$25.92	51.76%	
Public Swimming - ACC/MCC/ARC/Outdoor Pool - 10 Pass - Adult*	$32.08	Market-based comparison	$39.78	24.00%	
Arenas					
Ice Rental Fee: Winter Season Fees (September 2024 - March 2025 - dates finalized at 2024 Spring Ice Users Meeting)					
Winter Prime-Time (Community Groups) - Standard Pad*	$193.00	MPI Adjustment	$199.10	3.16%	
Winter Prime-Time (Community Groups) - International Pad*	$203.70	MPI Adjustment	$210.20	3.19%	
Winter Prime-Time (General Public & Commercial Organizations, Tournaments) - Standard Pad*	$248.50	MPI Adjustment	$256.40	3.18%	
Winter Prime-Time (General Public & Commercial Organizations, Tournaments) - International Pad*	$259.10	MPI Adjustment	$267.30	3.16%	
Winter Prime-Time Promotional Rate - Standard/International	$150.00	No Change	$150.00	0.00%	

HST will be added to all fees marked with an asterisk (*)

2024 Recreation - Facilities User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Winter Non-Prime-Time (Community Groups) - Standard Pad*	$120.50	MPI Adjustment	$124.30	3.15%	
Winter Non-Prime-Time (Community Groups) - International Pad*	$131.30	MPI Adjustment	$135.50	3.20%	
Winter Non-Prime-Time (General Public & Commercial Organizations, Tournaments) - Standard Pad*	$170.70	MPI Adjustment	$176.10	3.16%	
Winter Non-Prime-Time (General Public & Commercial Organizations, Tournaments) - International Pad*	$181.30	MPI Adjustment	$187.10	3.20%	
Ice Rental Fee: Summer Season (March 2024 - September 2024 - dates finalized at 2024 Spring Ice Users Meeting)					
Summer Prime-Time (Community Groups)*	$216.50	MPI Adjustment	$223.40	3.19%	
Summer Prime-Time (General Public & Commercial Organizations, Tournaments)*	$250.60	MPI Adjustment	$258.50	3.15%	
Summer Prime-Time Promotional Rate	$175.00	No Change	$175.00	0.00%	
Summer Non-Prime-Time (Community Groups)*	$122.70	MPI Adjustment	$126.60	3.18%	
Summer Non-Prime-Time (General Public & Commercial Organizations, Tournaments)*	$170.70	MPI Adjustment	$176.10	3.16%	
Floor Rental Fee: Summer Session (March 2024 - September 2024 - dates finalized at 2024 Spring Ice Users Meeting)					
Youth - Hourly*	$88.60	MPI Adjustment	$91.40	3.16%	
Adult - Hourly*	$98.20	MPI Adjustment	$101.30	3.16%	
Promotional Rate - Hourly	$75.00	No Change	$75.00	0.00%	
Ice/Floor Set-up/Take-down (per hour)*	$90.70	MPI Adjustment	$93.60	3.20%	
COMMUNITY HALLS / COMMUNITY ROOMS / PAVILIONS					
ACC - HMS Community Hall - Full Hall (1 hr.) - can only be added to an existing 4-hour booking in multiples of 1 to a max of 3*	$114.20	Actual Cost	$131.33	15.00%	Increased operational support costs realized (i.e. maintenance, staffing, staff wage increases, cleaning, janitorial supplies, viewings etc.)
ACC - HMS Community Hall - Full Hall (4 hrs.)*	$455.20	Actual Cost	$523.48	15.00%	See reason above
ACC - HMS Community Hall - Full Hall (Daily)*	$911.50	Actual Cost	$1,048.23	15.00%	See reason above
ACC - HMS Community Hall - Half Hall (1 hr.) - can only be added to an existing 4-hour booking in multiples of 1 to a max of 3*	$75.80	Actual Cost	$87.17	15.00%	See reason above
ACC - HMS Community Hall - Half Hall (4 hrs.)*	$301.80	Actual Cost	$347.07	15.00%	See reason above
ACC - HMS Community Hall - Half Hall (Daily)*	$603.40	Actual Cost	$693.91	15.00%	See reason above
ACC - Commodores Room - Full Hall (1 hr.) - can only be added to an existing 4-hour booking in multiples of 1 to a max of 3*	$49.20	Actual Cost	$56.58	15.00%	See reason above
ACC - Commodores Room - Full Hall (4 hrs.)*	$198.30	Actual Cost	$228.05	15.00%	See reason above
ACC - Commodores Room - Full Hall (Daily)*	$396.60	Actual Cost	$456.09	15.00%	See reason above
ACC - Captain's Room - Full Hall (1 hr.) - can only be added to an existing 4-hour booking in multiples of 1 to a max of 3*	$28.80	Actual Cost	$33.12	15.00%	See reason above
ACC - Captain's Room - Full Hall (4 hrs.)*	$115.20	Actual Cost	$132.48	15.00%	See reason above
ACC - Captain's Room - Full Hall (Daily)*	$231.40	Actual Cost	$266.11	15.00%	See reason above

HST will be added to all fees marked with an asterisk (*)

2024 Recreation - Facilities User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
ACC - Duffins Room/Carruthers Room - (1 hr.) - can only be added to an existing 4-hour booking in multiples of 1 to a max of 3*	$19.20	Actual Cost	$22.08	15.00%	See reason above
ACC - Duffins Room/Carruthers Room - (4 hrs.)*	$75.80	Actual Cost	$87.17	15.00%	See reason above
ACC - Duffins Room/Carruthers Room - (Daily)*	$152.50	Actual Cost	$175.38	15.00%	See reason above
ACC - Admirals Room - (1 hr.) - can only be added to an existing 4-hour booking in multiples of 1 to a max of 3*	$28.80	Actual Cost	$33.12	15.00%	See reason above
ACC - Admirals Room - (4 hrs.)*	$115.20	Actual Cost	$132.48	15.00%	See reason above
ACC - Admirals Room - (Daily)*	$231.40	Actual Cost	$266.11	15.00%	See reason above
Audley Recreation Centre (ARC) - Community Hall (Room A + Room B + Room C) (500 Capacity) - Full Hall (1 hr.) - can only be added to an existing 4-hour booking in multiples of 1 to a max of 3*	$212.80	Actual Cost	$244.72	15.00%	See reason above
Audley Recreation Centre (ARC) - Community Hall (Room A + Room B + Room C) (500 Capacity) - Full Hall (4 hrs.)*	$852.20	Actual Cost	$980.03	15.00%	See reason above
Audley Recreation Centre (ARC) - Community Hall (Room A + Room B + Room C) (500 Capacity) - Full Hall (Daily)*	$1,704.20	Actual Cost	$1,959.83	15.00%	See reason above
Audley Recreation Centre (ARC) – Kitchen Rental Fee (only available to rent with Full Hall and Room A and not available to rent on its' own – fee also includes projected staff time, maintenance and janitorial costs)*	$411.40	Actual Cost	$473.11	15.00%	See reason above
Audley Recreation Centre (ARC) - Community Hall (Room A) (200 Capacity) (1 hr.) - can only be added to an existing 4-hour booking in multiples of 1 to a max of 3 - kitchen can be rented with Room A*	$96.50	Actual Cost	$110.98	15.00%	See reason above
Audley Recreation Centre (ARC) - Community Hall (Room A (200 Capacity) (4 hrs.) - kitchen can be rented with Room A*	$382.10	Actual Cost	$439.42	15.00%	See reason above
Audley Recreation Centre (ARC) - Community Hall (Room A) (200 Capacity) (Daily) - kitchen can be rented with Room A*	$764.00	Actual Cost	$878.60	15.00%	See reason above
Audley Recreation Centre (ARC) - Community Hall (Room B, Room C) (150 Capacity each) (1 hr.) - can only be added to an existing 4-hour booking in multiples of 1 to a max of 3 - kitchen cannot be rented with Room B or Room C*	$80.00	Actual Cost	$92.00	15.00%	See reason above
Audley Recreation Centre (ARC) - Community Hall (Room B, Room C (150 Capacity each) (4 hrs.) - kitchen cannot be rented with Room B or Room C*	$321.00	Actual Cost	$369.15	15.00%	See reason above
Audley Recreation Centre (ARC) - Community Hall (Room B, Room C) (150 Capacity each) (Daily) - kitchen cannot be rented with Room B or Room C*	$646.50	Actual Cost	$743.48	15.00%	See reason above
MCC - Community Hall - Full Hall (1 hr.) - can only be added to an existing 4-hour booking in multiples of 1 to a max of 3*	$75.80	Actual Cost	$87.17	15.00%	See reason above
MCC - Community Hall - Full Hall (4 hrs.)*	$301.80	Actual Cost	$347.07	15.00%	See reason above
MCC - Community Hall - Full Hall (Daily)*	$603.40	Actual Cost	$693.91	15.00%	See reason above
MCC - Community Hall - Half Hall (1 hr.) - can only be added to an existing 4-hour booking in multiples of 1 to a max of 3*	$40.60	Actual Cost	$46.69	15.00%	See reason above
MCC - Community Hall - Half Hall (4 hrs.)*	$162.10	Actual Cost	$186.42	15.00%	See reason above
MCC - Community Hall - Half Hall (Daily)*	$324.10	Actual Cost	$372.72	15.00%	See reason above
MCC Community Room 3, ARC - Community Room - (1 hr.) - can only be added to an existing 4-hour booking in multiples of 1 to a max of 3*	$40.60	Actual Cost	$46.69	15.00%	See reason above

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2024 Recreation - Facilities User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
MCC Community Room 3, ARC - Community Room - (4 hrs.)*	$162.10	Actual Cost	$186.42	15.00%	See reason above
MCC Community Room 3, ARC - Community Room - (Daily)*	$324.10	Actual Cost	$372.72	15.00%	See reason above
MCC Community Room 2, ARC - Studio - (1 hr.) - can only be added to an existing 4-hour booking in multiples of 1 to a max of 3*	$28.80	Actual Cost	$33.12	15.00%	See reason above
MCC Community Room 2, ARC - Studio - (4 hrs.)*	$115.20	Actual Cost	$132.48	15.00%	See reason above
MCC Community Room 2, ARC - Studio - (Daily)*	$231.40	Actual Cost	$266.11	15.00%	See reason above
Carruthers Marsh Pavilion, Greenwood Discovery Pavilion - (1 hr.) - minimum 6 hour rental*	$44.80	Actual Cost	$51.52	15.00%	Increased operational support costs realized (i.e. maintenance, staffing, staff wage increases, cleaning, janitorial supplies, viewings etc.) Streamlined booking option simplifying the internal and potential online booking processes.
Rotary Park Pavilion- (1 hr.) - minimum 6 hour rental*	$31.80	Actual Cost	$36.57	15.00%	See reason above
Quaker Meeting House, Hartrick House - (1 hr.) - minimum 6 hour rental*	$74.70	Actual Cost	$85.91	15.00%	See reason above
Village Community Centre - Community Groups only *	$47.00	MPI Adjustment	$48.50	3.19%	
Meeting Rooms - Duffins and Carruthers Room - Exclusive 1 hr. Fee. (Mon-Fri – 8am-4pm) (General Public & Community Group – Not Commercial Organizations)	$32.10	Actual Cost	$36.92	15.00%	Increased operational support costs realized (i.e. maintenance, staffing, staff wage increases, cleaning, janitorial supplies, viewings etc.)
ACC Duffins Room/Carruthers Room - (1 hr.) - per hour fee to be used for online rentals - testing functionality in 2024 - booking criteria TBD (i.e. minimum # of hrs. required, specific event types only, weekday daytime, summer etc.)*	$22.08	New Fee/Charge	$22.08	0.00%	Added options to existing program
ACC Admirals Room/Captains Room, MCC Community Room 2, ARC Studio - (1 hr.) - per hour fee to be used for online rentals - testing functionality in 2024 - booking criteria TBD (i.e. minimum # of hrs. required, specific event types only, weekday daytime, summer etc.) *	$33.12	New Fee/Charge	$33.12	0.00%	Added options to existing program
MCC Community Room 3, ARC Community Room - (1 hr.) - per hour fee to be used for online rentals - testing functionality in 2024 - booking criteria TBD (i.e. minimum # of hrs. required, specific event types only, weekday daytime, summer etc.) *	$46.69	New Fee/Charge	$46.69	0.00%	Added options to existing program
ACC Commodores Room - (1 hr.) - per hour fee to be used for online rentals - testing functionality in 2024 - booking criteria TBD (i.e. minimum # of hrs. required, specific event types only, weekday daytime, summer etc.)*	$56.58	New Fee/Charge	$56.58	0.00%	Added options to existing program
Non Resident Permit Fee: Applied to ACC HMS, ACC Commodores Room, MCC Community Hall, MCC Community Room 3, ARC Community Room, Hartrick House, Quaker Meeting House, Carruthers Marsh Pavilion, Greenwood Discovery Pavilion and St. Francis Centre*	$21.40	MPI Adjustment	$22.10	3.27%	
Non Resident Permit Fee: Applied to ACC Admirals Room, Captains Room, Carruthers Room, Duffins Rooms, MCC Community room 2, ARC – Studio and Rotary Park Pavilion*	$10.80	MPI Adjustment	$11.20	3.70%	
Non Resident Permit Fee: ARC Community Hall – Full Hall*	$106.60	MPI Adjustment	$110.00	3.19%	
Non Resident Permit Fee: ARC Community Hall – Room A, Room B, Room C*	$53.30	MPI Adjustment	$55.00	3.19%	

HST will be added to all fees marked with an asterisk (*)

2024 Recreation - Facilities User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Birthday Parties with Facility Rental (4 hrs.) - (MCC CR1, MCC CR2, ARC Studio, ACC Admirals, Duffins, Captains and Carruthers) - Applies to Pool, Ice, Floor or Gym Facility & Room Party Rentals*	$85.40	MPI Adjustment	$88.10	3.16%	
Birthday Parties with Facility Rental* (4 hrs.) - (MCC CH-Half, MCC CR3, ARC CR) - Applies to Pool, Ice, Floor or Gym Facility & Room Party Rentals	$114.20	MPI Adjustment	$117.80	3.15%	
Birthday Parties with Facility Rental* (4 hrs.) - (MCC CH - Full, ACC Commodores Room) - Applies to Pool, Ice, Floor or Gym Facility & Room Party Rentals	$166.40	MPI Adjustment	$171.70	3.19%	
Lobby Table Rental Fee - (3 hrs)	$30.00	No Change	$30.00	0.00%	
Pool Rentals					
Prime – Commercial Organizations* (per hour)	$80.00	MPI Adjustment	$82.60	3.25%	
Prime – General Public, Community Groups* (per hour)	$67.20	MPI Adjustment	$69.40	3.27%	
Non-Prime – Commercial Organizations* (per hour)	$68.40	MPI Adjustment	$70.60	3.22%	
Non-Prime – General Public, Community Groups* (per hour)	$57.60	MPI Adjustment	$59.50	3.30%	
Birthday Party - Pool - Extra Fee - MCC Slide (2 Guards) - per hour	$42.00	Other	$45.04	7.24%	Tied to wage increase.
Birthday Party - Pool - Extra Fee - MCC Whirlpool (1 Guard) - per hour	$21.00	Other	$22.52	7.24%	Tied to wage increase.
Pool Rental - both Large & Small pool at MCC or ARC Pool (per hour)*	$135.40	MPI Adjustment	$139.70	3.18%	
Head Guard - 1 hr. (per hour)	$28.42	Other	$29.46	3.66%	Wage increase.
Guard - 1 hr. (per hour)	$21.00	Other	$22.52	7.24%	Wage increase.
Gymnasiums					
MCC, ARC, Lakeside, Westney Heights, Lincoln Alexander - Full Gym - Youth (per hour) *	$41.70	MPI Adjustment	$43.10	3.36%	
MCC, ARC, Lakeside, Westney Heights, Lincoln Alexander - Full Gym - Adult (per hour) *	$54.50	MPI Adjustment	$56.30	3.30%	
St. Francis Centre					
Community Groups / Not-for-Profit Organizations - 4 hrs. – Mon. – Thur.*	$175.00	MPI Adjustment	$180.60	3.20%	
Community Groups / Not-for-Profit Organizations - 4 hrs. – Fri. – Sun.*	$260.20	MPI Adjustment	$268.40	3.15%	
Community Groups / Not-for-Profit Organizations - 8 hrs. – Mon. – Thur.*	$354.50	MPI Adjustment	$365.70	3.16%	
Community Groups / Not-for-Profit Organizations - 8 hrs. – Fri. – Sun.*	$516.00	MPI Adjustment	$532.30	3.16%	
Community Groups / Not-for-Profit Organizations - Additional Hourly Fee Mon. – Sun.*	$57.60	MPI Adjustment	$59.50	3.30%	
Seasonal Fees for Regular Users - Community Groups / Not-for-Profit Organizations - Effective September 1 of the current year to June 30 of the following year (Must be a minimum of one 4 hour weekday rental/week for the entire season to receive this fee. If a weekend time is requested, it must accompany a regular weekday rental as well in order to receive this fee. Excludes prime times - Fridays, Saturdays, and Sundays after 12 p.m.) – fee for 4 hrs.*	$70.50	MPI Adjustment	$72.80	3.26%	
General Public & Businesses / Commercial - 4 hrs. – Mon. – Thur.*	$349.80	MPI Adjustment	$360.90	3.17%	

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2024 Recreation - Facilities User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
General Public & Businesses / Commercial - 4 hrs. – Fri. – Sun.*	$520.30	MPI Adjustment	$536.70	3.15%	
General Public & Businesses / Commercial - 8 hrs. – Mon. – Thur.*	$690.80	MPI Adjustment	$712.60	3.16%	
General Public & Businesses / Commercial - 8 hrs. – Fri. – Sun.*	$1,031.90	MPI Adjustment	$1,064.50	3.16%	
General Public & Businesses / Commercial - Additional Hourly Fee Mon. – Sun.*	$105.60	MPI Adjustment	$109.00	3.22%	
Sound & Light Technician Hourly Fee*	$30.00	MPI Adjustment	$31.00	3.33%	
Piano Rental – per occurrence (includes $33.80 rental and $140 tuning fee)*	$173.80	No Change	$173.80	0.00%	Piano rental charge is currently on the high end of piano rental fees from other theatres.
Other Fees					
Program & Membership transfer/cancellation/medical hold*	$10.80	MPI Adjustment	$11.20	3.70%	
Memberhip Cancellation Fee (term option only)*		New Fee/Charge	$21.40		New fee for monthly membership option
Facility Booking permit processing fee - School Board*	$25.00	Other	$25.00	0.00%	
Facility Booking permit modification/transfer fee*	$10.80	Other	$20.00	85.19%	Increase to offset staff time to transfer/amend rental permits.
Facility Booking cancellation fee*	$42.70	Other	$60.00	40.52%	Increase fee to offset staff time to cancel rental permits and to implement a greater penalty hoping to deter cancellation requests and to reduce the number of permit cancellations in general.
Facility Booking cancellation fee - contract permits (fee used when individual booked dates within a contract are cancelled - fee charged per booked date cancelled) *	$10.00	Other	$20.00	100.00%	Increase fee to offset staff time to amend rental permits and to implement a greater penalty hoping to deter cancellation requests and to reduce the number of permit cancellations in general.
Facility /Room Rental Damage Cost Recovery - Costs billed back to a permit holder due to facility/equipment damage and/or extra cleaning costs due to excessive clean-up from use of confetti, glue, tape and any other non-permitted items.	Fee will vary	Actual Cost	Fee will vary	N/A	
Facility Booking TV/DVD rental fee*	$32.10	MPI Adjustment	$33.20	3.43%	
Facility Booking portable stage rental fee* (excludes ARC CH)	$53.30	MPI Adjustment	$55.00	3.19%	
Facility Booking microphone rental fee*	$10.80	MPI Adjustment	$11.20	3.70%	
Facility Booking flip chart rental fee*	$5.50	MPI Adjustment	$5.70	3.64%	

All fee increases are effective January 1, 2024 with the exception of Arena Ice/Floor which is effected seasonally.

RENTAL OF PERMANENT SPACE

Specific spaces in Town recreation facilities are permanently rented to user groups through rental agreements. Examples are dressing rooms, APMHA office, Ajax Skating Club storage and Aquatic Club storage. These users are charged $4.09/sq. ft. to offset the cost of utilities.

HST will be added to all fees marked with an asterisk (*)

2024 Recreation - Partnerships User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Vendor Fees:					
First Time Events and Events with expected attendance of 2000 people or less					
Single item food and beverage*	$106.60	No Change	$106.60	0.00%	Tracking higher than surrounding municipallities (Pickering, Whitby & Oshawa). Some municipalities have lowered their vendor fees after COVID and most have not increased their vendors year over year.
Multi-item food and beverage*	$106.60	No Change	$106.60	0.00%	See reason above
Non-food and beverage*	$106.60	No Change	$106.60	0.00%	See reason above
Handicraft vendor*	$53.30	No Change	$53.30	0.00%	See reason above
Special Occasion Permit (SOP) Fee	$150.00	No Change	$150.00	0.00%	At cost based on AGCO set fees
Established Events with an expected attendance of 2000 - 4000					
Single item food and beverage*	$159.90	No Change	$159.90	0.00%	Tracking higher than surrounding municipallities (Pickering, Whitby & Oshawa). Some municipalities have lowered their vendor fees after COVID and most have not increased their vendors year over year.
Multi-item food and beverage*	$213.20	No Change	$213.20	0.00%	See reason above
Non-food and beverage*	$213.20	No Change	$213.20	0.00%	See reason above
Handicraft vendor*	$80.00	No Change	$80.00	0.00%	See reason above
Special Occasion Permit (SOP) Fee	$150.00	No Change	$150.00	0.00%	At cost based on AGCO set fees
Established Events with an expected attendance of more than 4000					
Single item food and beverage*	$234.60	No Change	$234.60	0.00%	Tracking higher than surrounding municipallities (Pickering, Whitby & Oshawa). Some municipalities have lowered their vendor fees after COVID and most have not increased their vendors year over year.
Multi-item food and beverage*	$319.80	No Change	$319.80	0.00%	See reason above
Non-food and beverage*	$319.80	No Change	$319.80	0.00%	See reason above
Handicraft vendor*	$80.00	No Change	$80.00	0.00%	See reason above
Special Occasion Permit (SOP) Fee	$150.00	No Change	$150.00	0.00%	At cost based on AGCO set fees
Ajax Canada Day Celebrations – 10 hour event					
Single item food and beverage*	$469.10	No Change	$469.10	0.00%	Tracking higher than surrounding municipallities (Pickering, Whitby & Oshawa). Some municipalities have lowered their vendor fees after COVID and most have not increased their vendors year over year.
Multi-item food and beverage*	$639.60	No Change	$639.60	0.00%	See reason above
Non-food and beverage*	$639.60	No Change	$639.60	0.00%	See reason above

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2024 Recreation - Partnerships User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Handicraft vendor*	$106.60	No Change	$106.60	0.00%	See reason above
Alcohol Vendor* (includes 2 locations)	$1,279.20	No Change	$1,279.20	0.00%	See reason above
Ajax Santa Claus Parade Floats					
Early Bird – Commercial/Business*	$80.00	No Change	$80.00	0.00%	Tracking higher than surrounding municipallities (Pickering, Whitby & Oshawa). Some municipalities have lowered their vendor fees after COVID and most have not increased their vendors year over year.
Early Bird – Not for Profit/Place of Worship/Community Groups*	$0.00	No Change	$0.00		
Commercial/Business*	$106.60	No Change	$106.60	0.00%	See reason above
Not for Profit/Place of Worship/Community Groups*	$26.80	No Change	$26.80	0.00%	See reason above
Sponsored Skate / Sponsored Swim - For more information, sponsor benefits, and recognition, please see the Festivals and Events Sponsorship Levels as part of the Town of Ajax Corporate Sponsorship Policy.	$1,000.00	No Change	$1,000.00	0.00%	Sponsorship fees are typically round numbers and don't increase by small percentages year over year.

HST will be added to all fees marked with an asterisk (*)

2024 Recreation - RPAL User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Group Fitness					
Youth and Family Programs (per class) Programs are generally 1 hour unless otherwise stated. The rate per class will be applied to the number of classes determined by Recreation & Culture. The total fee will be rounded up or down to the nearest dollar.					
Family Program - additional participant*	$5.50	MPI Adjustment	$5.70	3.64%	
Family Zumba®, Family Yoga	$9.40	MPI Adjustment	$9.70	3.19%	
Fitness Kickboxing for Kids (45 mins. Fee includes hand wraps)	$9.10	MPI Adjustment	$9.40	3.30%	
Kids & Youth Yoga (45 mins.)	$9.10	MPI Adjustment	$9.40	3.30%	
Teen Fitness, Raquets & Fitness Camps (3 hrs. x 5 days)*	$27.80	MPI Adjustment	$28.70	3.24%	
Teen Weight Training (TWT) with 3 month FHC membership (2 hrs. x 2 days)*	$17.20	MPI Adjustment	$17.80	3.49%	
Teen Fitness Club (2 hrs. x 5 days)*	$17.20	MPI Adjustment	$17.80	3.49%	
Kids Fit Blast	$9.10	MPI Adjustment	$9.40	3.30%	
Dance Fitness for Teens/Special Needs (45 mins.)	$8.40	MPI Adjustment	$8.70	3.57%	
Team Sport Conditioning	$5.80	MPI Adjustment	$6.00	3.45%	
Parent and Baby Programs (per class)					
Parent ‘n Babe Yoga*, Parent 'n Tot Yoga*	$9.60	MPI Adjustment	$10.00	4.17%	
Parent ‘n Babe Fitness*, Aquafit*, StrollerFit*	$9.40	MPI Adjustment	$9.70	3.19%	
Adult Programs (per class)					
Cycle Fit Classes*, TRX®*, Therapeutic Aquatic Conditioning* (45 mins.)	$8.90	MPI Adjustment	$9.20	3.37%	
Fitness Conditioning*, Outdoor Bootcamp*, Arthritis Fitness*, Stay Strong & Keep Fit* (1hr)	$8.90	MPI Adjustment	$9.20	3.37%	
Group Personal Training (4-6 people 2x/wk. x 12 wks.) - Fee is per person.*	$13.40	MPI Adjustment	$13.90	3.73%	
Pilates*	$10.30	MPI Adjustment	$10.70	3.88%	
Pilates Reformer Training*	$40.60	MPI Adjustment	$41.90	3.20%	
Tai Chi (1.25 hrs.)*	$10.10	MPI Adjustment	$10.50	3.96%	
Yoga (1 hr.)*	$10.80	MPI Adjustment	$11.20	3.70%	
Yoga (1.25 hr.)*	$12.50	MPI Adjustment	$12.90	3.20%	
Yoga (1.5 hr.)*	$15.10	MPI Adjustment	$15.60	3.31%	
Squash Learn to Play (40 mins.)*	$22.50	MPI Adjustment	$23.30	3.56%	
Zumba®*	$10.10	MPI Adjustment	$10.50	3.96%	
NIA Dance Fitness*	$9.60	MPI Adjustment	$10.00	4.17%	
Nordic Pole Walking*	$9.60	MPI Adjustment	$10.00	4.17%	
CAN-BIKE Youth/Adult (Previously in RP)*	$8.10	MPI Adjustment	$8.40	3.70%	

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2024 Recreation - RPAL User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
55+ (per class)					
Total Body Balance* (1hr)	$4.80	Departmental Strategy	$5.70	18.75%	Increase rate to $5.70 + HST, in line with Yoga fee (class incorporates Yoga/Pilates elements and instructor is paid Yoga rate)
Nordic Pole Walking*, Older Adult Fitness*, Tai Chi* (1 hr.)	$4.80	MPI Adjustment	$5.00	4.17%	
Yoga (1.5 hr.)*	$7.60	MPI Adjustment	$7.90	3.95%	
Yoga Programs (1 hr.)*	$5.50	MPI Adjustment	$5.70	3.64%	
Chair Yoga with Meditation* (1.25 hrs.)	$6.30	MPI Adjustment	$6.50	3.17%	
Cycle Fit* (45 mins.)	$4.80	MPI Adjustment	$5.00	4.17%	
Group Personal Training (55+) (4-6 people 2x/wk. x 12 wks.) - Fee is per person.*	$6.70	MPI Adjustment	$7.00	4.48%	
Pickleball Conditioning*	$3.60	MPI Adjustment	$3.80	5.56%	
Pickleball Functional Stretch*	$2.02	MPI Adjustment	$2.10	3.96%	
Fitness Services					
Fitness Appraisal (2 hrs.)*	$71.50	MPI Adjustment	$73.80	3.22%	
Fitness Appraisal + Personal Training session (3 hrs.)*	$91.70	MPI Adjustment	$94.60	3.16%	
Fitness Appraisal + 2 Personal Training sessions*	$125.80	Departmental Strategy	$133.20	5.88%	Adjusted to 35% discount pacakge for combined Fitness Assessment & Personal Training - 4hr value)
Non-Member Fitness Appraisal*	$82.20	MPI Adjustment	$84.80	3.16%	
Personal Training (1 session)*	$51.30	MPI Adjustment	$53.00	3.31%	
Personal Training (5 sessions)*	$244.20	Other	$252.40	3.36%	Adjusted to align with 5% discount on package
Personal Training (10 sessions)*	$476.60	Other	$493.00	3.44%	Adjusted to align with 7.5% discount on package
Personal Training (20 sessions)*	$930.70	Other	$963.60	3.53%	Adjusted to align with 10% discount on package
Personal Training (30 sessions)*	$1,350.60	Other	$1,394.70	3.27%	Adjusted to align with 14% discount on package
Personal Training (2 people) (1 session)*	$81.10	Other	$84.00	3.58%	Adjusted to align with 6% discount on package
BOGO Personal Training Promotion Week - (1 full-price, 2nd 50% off)*	$76.80	Other	$79.50	3.52%	Adjusted to 50% discount on package
Personal Training (3 people) (1 session)*	$107.80	Other	$110.00	2.04%	Adjusted to align with 45% discount on package
Teen/Student Personal Training (1 session)*	$42.70	Other	$44.20	3.51%	Adjusted tol align with 20% discount off adult fee
Teen/Student Personal Training (5 sessions)*	$202.60	Other	$210.50	3.90%	Adjusted to align with 5% discount on package
Teen/Student Personal Training (10 sessions)*	$396.60	Other	$411.20	3.68%	Adjusted to align with 7.5% discount on package
Teen/Student Personal Training (2 people) (1 session)*	$68.40	Other	$70.20	2.63%	Adjusted to align with 26% discount on package
Teen/Student Personal Training (3 people) (1 session)*	$89.60	Other	$91.40	2.01%	Adjusted to align with 45% discount on package
Non-Member Personal Training (1 session)*	$69.40	MPI Adjustment	$71.60	3.17%	
Non-Member Personal Training (5 sessions)*	$330.10	Other	$341.00	3.30%	Adjusted to align with 5% discount on package
Squash Lesson (1 session)*	$37.40	MPI Adjustment	$38.60	3.21%	
Squash Lesson Semi-Private (2 people) (1 session)*	$59.80	Other	$61.20	2.34%	Adjusted to align with 26% discount on package

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2024 Recreation - RPAL User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Squash Lesson (5 sessions)*	$172.80	Other	$183.80	6.37%	Adjusted to align with 5% discount on package
Pilates Personal Training (1 session)*	$64.10	MPI Adjustment	$66.20	3.28%	
Pilates Personal Training (5 sessions)*	$303.90	Other	$315.20	3.72%	Adjusted to align with 5% discount on package
Pilates Personal Training Semi-Private (2 people) (1 session)*	$102.50	Other	$105.00	2.44%	Adjusted to align with 5% discount on package
Pilates Personal Training Semi-Private (2 people) (5 sessions)*	$460.60	Other	$500.00	8.55%	Adjusted to align with 5% discount on package
Access Card - Replacement*	$9.60	MPI Adjustment	$10.00	4.17%	
Membership Card Replacement Fee*	$5.00	MPI Adjustment	$5.20	4.00%	
Swim Test Pass Card	$5.00	MPI Adjustment	$5.20	4.00%	
Pay-Go Universal Pass Adult*	$11.40	MPI Adjustment	$11.80	3.51%	
Pay-Go Universal Pass Senior/Student*	$5.70	Other	$5.90	3.51%	Fee is marketed at 50% off Adult fee
Universal 10 Pass Adult*	$102.20	MPI Adjustment	$105.50	3.23%	
Universal 10 Pass Senior/Student*	$51.10	MPI Adjustment	$52.80	3.33%	
ARC Performance Pass*	$26.10	Departmental Strategy	$29.99	14.90%	Increase to align with greater assoicated value of service, off-set swim 10 pass option. No market based comparison available.
Memberships					
Fitness Centre - Adult - Annual*	$469.10	MPI Adjustment	$483.90	3.15%	
Fitness Centre - Adult - 6 month*	$269.80	MPI Adjustment	$278.30	3.15%	
Fitness Centre - Adult - 3 month*	$178.30	MPI Adjustment	$184.00	3.20%	
Fitness Centre - Adult - one month		New Fee/Charge	$40.30		
Fitness Centre - Spousal/Partner - same household (18yrs+, non-student) 10% discount - annual membership (new members only)*	$422.30	Other	$439.90	4.17%	Current rate @11% discount, corrected to 10%
Fitness Centre - Senior/Teen/Student- Annual*	$234.60	MPI Adjustment	$242.00	3.15%	
Fitness Centre - Senior/Teen/Student - 6 month*	$134.90	MPI Adjustment	$139.20	3.19%	
Fitness Centre - Senior/Teen/Student - 3 month*	$89.20	Other	$92.00	3.14%	Adjusted to 50% off adult rate
Fitness Centre - Senior/Teen/Student - one month*		New Fee/Charge	$20.20		
Group Fitness - Adult - Annual*	$412.80	MPI Adjustment	$425.90	3.17%	
Group Fitness - Adult - 6 month*	$237.90	MPI Adjustment	$245.40	3.15%	
Group Fitness - Adult - 3 month*	$156.90	MPI Adjustment	$161.90	3.19%	
Group Fitness - Adult - one month		New Fee/Charge	$35.50		
Group Fitness - Senior/Teen/Student - Annual*	$206.50	Other	$213.00	3.15%	Adjusted to 50% off adult rate
Group Fitness - Senior/Teen/Student - 6 month*	$119.00	Other	$122.70	3.11%	Adjusted to 50% off adult rate
Group Fitness - Senior/Teen/Student - 3 month*	$78.60	Other	$81.00	3.05%	Adjusted to 50% off adult rate

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2024 Recreation - RPAL User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Group Fitness - Senior/Teen/Student - one month*		New Fee/Charge	$17.80		
Squash - Adult - Annual*	$404.60	MPI Adjustment	$417.40	3.16%	
Squash - Adult - 6 month*	$233.90	MPI Adjustment	$241.30	3.16%	
Squash - Adult - 3 month*	$149.70	MPI Adjustment	$154.50	3.21%	
Squash - Adult - one month*		New Fee/Charge	$34.80		
Squash - Spousal/Partner - same household (18yrs+, non-student) 10% discount - annual membership (new members only)*	$367.80	MPI Adjustment	$379.40	3.15%	
Squash - Senior/Teen/Student - Annual*	$202.40	Other	$208.70	3.11%	Adjusted to 50% off adult rate
Squash - Senior/Teen/Student - 6 month*	$117.10	Other	$120.70	3.07%	Adjusted to 50% off adult rate
Squash - Senior/Teen/Student - 3 month*	$75.70	Other	$77.30	2.11%	Adjusted to 50% off adult rate
Squash - Senior/Teen/Student - one month*		New Fee/Charge	$17.40		
Combo (FHC, Group Fitness & Squash) - Adult - Annual*	$533.00	MPI Adjustment	$549.80	3.15%	
Combo (FHC, Group Fitness & Squash) - Adult - 6 month*	$309.10	MPI Adjustment	$318.90	3.17%	
Combo (FHC, Group Fitness & Squash) - Adult - 3 month*	$200.40	MPI Adjustment	$206.80	3.19%	
Combo (FHC, Group Fitness & Squash) - Adult - one month*		New Fee/Charge	$45.80		
Combo - Spousal/Partner - same household (18yrs+, non-student) 10% discount - annual membership (new members only)*	$484.50	MPI Adjustment	$499.80	3.16%	
Combo - Senior/Teen/Student - Annual*	$266.50	MPI Adjustment	$274.90	3.15%	
Combo - Senior/Teen/Student - 6 month*	$154.60	MPI Adjustment	$159.50	3.17%	
Combo- Senior/Teen/Student - 3 month*	$100.30	Other	$103.40	3.09%	Adjusted to 50% off adult rate
Combo - Senior/Teen/Student - one month*		New Fee/Charge	$22.90		
Free Summer Combo Membership - 13-17yrs, Jul 2 to Aug 31.		New Fee/Charge		0.00%	Compared to GoodLife & Planet Fitness promotional options
Swim/Skate - Adult - Annual*	$261.90	MPI Adjustment	$270.20	3.17%	
Swim/Skate - Adult - 6 month*	$153.30	MPI Adjustment	$158.20	3.20%	
Swim/Skate - Adult - 3 month*	$99.90	MPI Adjustment	$103.10	3.20%	
Swim/Skate - Adult - one month*		New Fee/Charge	$22.50		
Swim/Skate - Senior/Teen/Student - Annual*	$131.10	Other	$135.10	3.05%	Adjusted to 50% off adult rate
Swim/Skate - Senior/Teen/Student - 6 month*	$76.70	Other	$79.10	3.13%	Adjusted to 50% off adult rate
Swim/Skate - Senior/Teen/Student - 3 month*	$50.00	Other	$50.00	0.00%	Adjusted to 50% off adult rate
Swim/Skate - Senior/Teen/Student - one month*		New Fee/Charge	$11.30		
Family Swim & Skate - (up to 5 people, max 2 adults) - Annual	$363.70	MPI Adjustment	$375.20	3.16%	
Additional Child - to the Family Swim & Skate Annual Membership*	$37.40	MPI Adjustment	$38.60	3.21%	
Family Active - Combo Annual Membership (Up to 4 people - 12 and under get swim & skate membership)*	$1,202.50	MPI Adjustment	$1,240.40	3.15%	
Additional Child - to the Family Active Annual Membership*	$37.40	MPI Adjustment	$38.60	3.21%	

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2024 Recreation - RPAL User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Corporate/Group Memberships 20% discount on minimum 10 employees					
Fitness Centre – Adult - Annual*	$375.30	Other	$403.30	7.46%	Current rate @25% discount, corrected to 20%
Squash – Adult - Annual*	$323.70	Other	$347.80	7.45%	Current rate @25% discount, corrected to 20%
Group Fitness – Adult - Annual*	$330.20	Other	$354.90	7.48%	Current rate @25% discount, corrected to 20%
Combo (FHC, Group Fitness & Squash) – Adult - Annual*	$426.40	Other	$458.20	7.46%	Current rate @25% discount, corrected to 20%
Swim – Adult - Annual*	$209.60	Other	$225.20	7.44%	Current rate @25% discount, corrected to 20%
Preschool Programs are generally 1 hour unless otherwise stated. The rate per class will be applied to the number of classes determined by Recreation & Culture. The total fee will be rounded up or down to the nearest dollar. (per class)					
All sessions - 30 minute class	$6.90	MPI Adjustment	$7.20	4.35%	
All sessions - 45 minute class	$7.90	MPI Adjustment	$8.20	3.80%	
All sessions - 1 hour class	$8.40	MPI Adjustment	$8.70	3.57%	
All sessions - 1.25 hour class	$9.00	MPI Adjustment	$9.30	3.33%	
All sessions - 1.5 hour class	$9.50	MPI Adjustment	$9.80	3.16%	
All sessions - 2 hour class	$10.70	MPI Adjustment	$11.10	3.74%	
Kinderstart 2.25 hrs. x 2 days per week	$12.30	MPI Adjustment	$12.70	3.25%	
Pre-school workshop/takeaway	$16.70	MPI Adjustment	$17.30	3.59%	
Summer/March Break Fun For Preschoolers – 6 hrs. – 2 hrs./day x 3 days per week	$13.40	MPI Adjustment	$13.90	3.73%	
Friday Fun Club – 2 hrs. per week	$5.75	No Change	$5.75	0.00%	Keep pricing for affordable access
Ready Set School Program, Play, Climb, Learn – 2 hrs. x 2 days per week	$12.10	MPI Adjustment	$12.50	3.31%	
Family Fun Time – 1.5 hrs. Fee per child	$7.40	MPI Adjustment	$7.70	4.05%	
Cooking Monsters – 1.25 hrs.	$10.20	Actual Cost	$10.83	6.18%	Cost of food has increased
CHILDREN / YOUTH / TEEN					
Youth Dance – 1.25 hrs.	$9.20	MPI Adjustment	$9.50	3.26%	
ARC Cooking Classes – 1.5 hrs.	$21.40	MPI Adjustment	$22.10	3.27%	
Drop-in Sports – 10 pass card (cost of 9 single visits – times range from 1-3 hrs. in duration)*	$23.85	No Change	$23.85	0.00%	Keep pricing for affordable access
Drop-in Sports – POS (cost per visit – times range from 1-3 hrs. in duration)*	$2.65	No Change	$2.65	0.00%	Keep pricing for affordable access
Computer Programming (Kids Great Minds) – Children and Youth – 45 min. ($17.75/class - 8 classes)*	$135.00	Other	$142	5.19%	Contract Service Provider sets the fee.
Computer Programming (Kids Great Minds) – Children and Youth – 1 hr. ($22.50/class - 8 classes)*	$180.00	Other	$192.00	6.67%	Contract Service Provider sets the fee.
Computer Programming (Kids Great Minds) – Children and Youth – 1.5 hr. ($35.75/class-8 classes)*	$286.00	Other	$299.00	4.55%	Contract Service Provider sets the fee.

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2024 Recreation - RPAL User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Computer Programming (Kids Great Minds) – Workshop 3 hrs.*	$59.00	Other	$64.00	8.47%	Contract Service Provider sets the fee.
Recreational Therapy Classes (MusiCare Therapy) $25/class for 8 classes*	$200.00	Other	$200.00	0.00%	Contract Service Provider sets the fee.
Preschool Dance – 45 mins.	$8.10	MPI Adjustment	$8.40	3.70%	
Preschool & Children Dance – 1 hr.	$8.80	MPI Adjustment	$9.10	3.41%	
African-Caribbean Drum & Dance (Afiwi Groove School) – 45 mins.*	$9.70	Other	$15.00	54.64%	Contract Service Provider sets the fee.
African-Caribbean Drum & Dance (Afiwi Groove School) – 1 hr.*	$12.90	Other	$17.00	31.78%	Contract Service Provider sets the fee.
Children Art Specialty Skilled Art (i.e. Acrylic/Oil Painting)	$9.50	MPI Adjustment	$9.80	3.16%	
Children & Youth Art – 1.5 hrs.	$8.50	MPI Adjustment	$8.80	3.53%	
Children's Mini Art – 1 hr.	$8.00	MPI Adjustment	$8.30	3.75%	
Children Art Workshop – 2 hrs.	$34.20	MPI Adjustment	$35.30	3.22%	
Mad Science – 1 hr. ($22.38/class - 8 weeks)*	$179.00	Other	$186.00	3.91%	Contract Service Provider sets the fee.
Adventures @ Greenwood – 1.5 hrs.	$10.10	MPI Adjustment	$10.50	3.96%	
Cooking Duos – 1.5 hrs.	$23.00	MPI Adjustment	$23.80	3.48%	
Ajax Improv Crew (Child & Youth)	$7.50	MPI Adjustment	$7.80	4.00%	
Theatre (GLEE: The Next Generation, Drama, etc.) – 2 hrs.	$13.30	No Change	$13.30	0.00%	Glee is priced much higher than the intrdctory theatre program which is negativily impacting registration. Would like to freeze the fee for 2024 and monitor particiaption.
Theatre (Drama Club/Troupe) – 1.5 hrs.	$10.80	MPI Adjustment	$11.20	3.70%	
Guitar Lessons – (Children & Adults*)	$10.30	MPI Adjustment	$10.70	3.88%	
Leadership – 1.75 hrs.	$9.60	MPI Adjustment	$10.00	4.17%	
Karate Kidz	$6.40	MPI Adjustment	$6.70	4.69%	
Karate Traditional (Children) - 1.5 hrs.	$8.00	MPI Adjustment	$8.30	3.75%	
Karate Traditional (Youth & Adult*) - 2 hrs.	$9.90	MPI Adjustment	$10.30	4.04%	
Karate Black Belt	$7.20	MPI Adjustment	$7.50	4.17%	
Preschool Sports (Sportball)*	$19.80	Other	$20.00	1.01%	Contract Service Provider sets the fee.
Fencing – (Children & Adults*) Ajax Fencing Club - 1.25 hrs	$19.38	Other	$20.60	6.30%	Contract Service Provider sets the fee.
Children Multi Sport Programs 1.25 hrs.(We got Game, Girl Sport)	$6.80	MPI Adjustment	$7.10	4.41%	
Basketball - 1.5 hrs.	$7.00	MPI Adjustment	$7.30	4.29%	
Basketball - 2 hrs.	$9.20	MPI Adjustment	$9.50	3.26%	
Parent and Child Sports – 1 hr.	$7.20	MPI Adjustment	$7.50	4.17%	
Specialty Skill Based Sport (Indoor Tennis, Flag Football) - 1 hr.	$10.90	MPI Adjustment	$11.30	3.67%	
Introductory Skill Based Sport (Cricket Kids, Soccer, Hockey, Dodgeball, Girls Sport, Youth Volleyball, Skateboard) - 1.25 hrs. Children & Youth	$7.20	MPI Adjustment	$7.50	4.17%	
Cricket (Youth/Adult*) – 1.5 hrs.	$7.90	MPI Adjustment	$8.20	3.80%	

HST will be added to all fees marked with an asterisk (*)

2024 Recreation - RPAL User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Friday Night Fun Centres - POS	$3.75	No Change	$3.75	0.00%	Keep pricing for affordable access
Friday Night Pre-Teen Program*	$9.40	MPI Adjustment	$9.70	3.19%	
First Aid Course – Standard First Aid CPR C 16 hrs.*	$8.30	MPI Adjustment	$8.60	3.61%	
Principles of Healthy Child Development (High Five) – 4hrs*	$85.00	Other	$86.00	1.18%	PRO sets the fee
Children / Youth / Teen Home Alone Safety Programs (SOS 4 Kids) – 5 Day Program*	$86.00	Other	$97.00	12.79%	Contract Service Provider sets the fee.
CAMPS Run 5 days unless otherwise stated (per day)					
School Break Drop In Program – 2 hrs.	$3.75	No Change	$3.75	0.00%	Keep pricing for affordable access
March Break Camp (Sports, Arts and Kindercamp full day)	$40.40	MPI Adjustment	$41.70	3.22%	
One Day Options (March Break & Summer Camp) (9am-4pm – B&A services available at additional cost)	$45.00	MPI Adjustment	$46.50	3.33%	
Winterrific Fun Days – One Day Options (8am-5pm)	$49.10	MPI Adjustment	$50.70	3.26%	
Counsellor in Training – Level I & Level II (including High Five PHCD & SFA/CPR – 2 or 3 weeks) - Summer Only. Leadership Camp (March Break & Summer)	$32.00	MPI Adjustment	$33.10	3.44%	
Youth Art Expression Camp (March Break & Summer)	$40.50	MPI Adjustment	$41.80	3.21%	
Youth Sport Experience Camp, Skateboarding Camp	$40.90	MPI Adjustment	$42.20	3.18%	
Youth on the Move, Day Trippers Camp (March Break & Summer)	$58.50	MPI Adjustment	$60.40	3.25%	
Mad Science Camp – 4 days ($60/day)*	$240.00	Other	$253.00	5.42%	Contract Service Provider sets the fee.
Mad Science Camp – 5 days ($58.60/day)*	$293.00	Other	$307.00	4.78%	Contract Service Provider sets the fee.
Mad Science 1/2 Day Camp - Online - 4 days*	$143.00	No Change	$143.00	0.00%	Contract Service Provider sets the fee.
Mad Science 1/2 Day Camp - Online - 5 days*	$177.00	No Change	$177.00	0.00%	Contract Service Provider sets the fee.
Mad Science - 8 Week Online Class*	$175.00	No Change	$175.00	0.00%	Contract Service Provider sets the fee.
African-Caribbean Performing Arts Camp (Afiwi Groove School)*	$243.00	Other	$263.00	8.23%	Contract Service Provider sets the fee.
Performing Arts Camp – Dance, Glee, Yoga, Circus	$42.50	MPI Adjustment	$43.90	3.29%	
Paulynn Park Camps – Cardinals/Hawks	$40.40	MPI Adjustment	$41.70	3.22%	
Playgrounds	$0.00	No Change	$0.00	0.00%	
Rotary Park Camps – Lake to Land Exploration	$41.50	MPI Adjustment	$42.90	3.37%	
Rotary Park Camps – Mini Treasure Hunters	$40.40	MPI Adjustment	$41.70	3.22%	
Sports, Dodgeball, Elevate GirlSport Camp – Children	$40.40	MPI Adjustment	$41.70	3.22%	
Sportball Camp – 4 days ($30/day)*	$120.00	Other	$125.00	4.17%	Contract Service Provider sets the fee.
Sportball Camp – 5 days ($29.80/day)*	$149.10	Other	$155.00	3.96%	Contract Service Provider sets the fee.
Summer Blowout Camp	$40.40	MPI Adjustment	$41.70	3.22%	
Kindercamp – ½ day	$21.40	MPI Adjustment	$22.10	3.27%	
Kindercamp – full day	$40.40	MPI Adjustment	$41.70	3.22%	
Mini ½ Day Camp – 2 days	$35.60	MPI Adjustment	$36.80	3.37%	

HST will be added to all fees marked with an asterisk (*)

2024 Recreation - RPAL User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
Technology Camp (Kids Great Minds) – 1 day (8 hrs.)*	$95.00	Other	$99.00	4.21%	Contract Service Provider sets the fee.
Technology Camp (Kids Great Minds) – 4 days ($77.75/day)*	$311.00	Other	$322.00	3.54%	Contract Service Provider sets the fee.
Technology Camp (Kids Great Minds) – 5 days ($77.40/day)*	$387.00	Other	$399.00	3.10%	Contract Service Provider sets the fee.
Film Camp in a Box - 1 day workshop *		New Fee/Charge	$93.00	0.00%	Contract Service Provider sets the fee.
Film Camp in a Box - 4 day *		New Fee/Charge	$286.00	0.00%	Contract Service Provider sets the fee.
Film Camp in a Box - 5 day ($64.20/day) *	$321.00	Other	$357.00	11.21%	Contract Service Provider sets the fee.
Creative Kids (ARC Camp)	$41.70	MPI Adjustment	$43.10	3.36%	
Greenwood Camps – Robins	$44.80	MPI Adjustment	$46.30	3.35%	
Greenwood Camps – Saplings	$40.40	MPI Adjustment	$41.70	3.22%	
Before/After Hours Care	$8.40	MPI Adjustment	$8.70	3.57%	
Busing -1 wk.*	$5.90	MPI Adjustment	$6.10	3.39%	
Late pick up fee – camps – per 15 mins.	$20.00	Departmental Strategy	$20.00	0.00%	Flat rate fee applied - no market place comparison available.
ADULTS (per class)					
Dance (Line, Latin, Ballroom, Retro, Hip Hop) – 1.5 hrs.*	$8.70	MPI Adjustment	$9.00	3.45%	
Specialized Dance (Dance Fusion, Bellydance, Bollywood) – 1 hr.*	$8.50	MPI Adjustment	$8.80	3.53%	
Adult Art (Oil painting, Watercolour painting, drawing & photography)*	$9.90	MPI Adjustment	$10.30	4.04%	
Cooking*	$25.80	MPI Adjustment	$26.70	3.49%	
Adult Workshops/Takeaway*	$33.10	MPI Adjustment	$34.20	3.32%	
Drop-in Sports Adult – POS* - various durations	$3.76	Market-based comparison	$4.00	6.38%	
Drop-in-Sports 10 pass* (cost of 9 single visits – times range from 1-3 hrs. in duration)	$33.84	Departmental Strategy	$36.00	6.38%	To match the above Drop-In increase (10 visits for the price of 9).
Drop-in Sports Senior* - POS (cost per visit – times range from 1-3 hrs. in duration)	$2.20	Departmental Strategy	$2.65	20.45%	Seniors fee to match the Children and Youth Drop-In fee rate.
NEW Drop-in Sports 10 pass Senior* (cost of 9 single visits – times range from 1-3 hrs. in duration)		New Fee/Charge	$23.85	0.00%	To match the above Drop-In increase (10 visits for the price of 9).
Adult Sports (Volleyball/Badminton) - 2 hrs.*	$7.80	MPI Adjustment	$8.10	3.85%	
55+ (per class)					
Dance - 1.5 hrs.*	$4.40	MPI Adjustment	$4.60	4.55%	
Art - 2 hrs.*	$5.10	MPI Adjustment	$5.30	3.92%	
Cooking – 6 weeks*	$16.10	MPI Adjustment	$16.70	3.73%	
Sports*	$4.00	MPI Adjustment	$4.20	5.00%	
Language – 1.5 hours*	$5.50	MPI Adjustment	$5.70	3.64%	
Journal Writing – 8 weeks, 2 hrs.*	$11.50	MPI Adjustment	$11.90	3.48%	
Art Workshops – 3 hrs.*	$23.70	MPI Adjustment	$24.50	3.38%	
Seniors Day Trips* – trip fees vary based on location, season and tour company used. Ajax adds 10% to per person cost.	Add 10% to Cost	No Change	Add 10% to Cost	0.00%	

HST will be added to all fees marked with an asterisk (*)

2024 Recreation - RPAL User Fees and Charges

Fee/Charge	Current Rate	Change Rationale	2024 Rate (before tax)	% Change (base rate)	Notes/Explanation of Non-MPI Changes
AQUATICS					
Pre-school and Swim 1-4 (Spring/Fall 10 weeks - 30 mins.	$10.50	MPI Adjustment	$10.90	3.81%	
Swim 5 -6 (Spring/Fall 10 weeks - 45 mins.)	$11.60	MPI Adjustment	$12.00	3.45%	
Swim Patrol & Bronze Star (Spring/Fall 10 weeks - 1hr) *	$11.60	MPI Adjustment	$12.00	3.45%	
Adults Swim Lessons/Teen Lessons/Ladies Only*	$11.70	MPI Adjustment	$12.10	3.42%	
Adults – private 30 mins.*	$32.20	MPI Adjustment	$33.30	3.42%	
Bronze Medallion & Emergency First Aid/CPR B (2 hrs. Exam fee of $25 included)*	$21.40	Departmental Strategy	$23.00	7.48%	Signifcant increase in exam fee and resource material applied through the lifesaving society (approx $14.50 increase per participant). Fee needs to be increased to offset the expenses..
Bronze Medallion & Emergency First Aid/CPR B* (2hrs. Exam fee of $17.35 included) **One time discount repeat fee**	$10.70	Other	$11.50	7.48%	50% Discounted repeat fee. If a particpant falis any aspect of the course they are required to repeat the entire program
Bronze Cross (2 hrs. Exam fee of $25 included)*	$20.40	Departmental Strategy	$22.00	7.84%	Signifcant increase in exam fee and resource material applied through the lifesaving society (approx $6 increase per participant). Fee needs to be increased to offset the expenses..
Bronze Cross* (2hrs. Exam fee of $22 included) **One time course repeat fee**	$10.20	Other	$11.00	7.84%	50% Discounted repeat fee. If a participant fails any aspect of the course they are required to repeat the entire program.
Swim & Lifesaving Instructor (40hrs) *	$40.00	Departmental Strategy	$42.70	$0.07	Signifcant increase in exam fee and resource material applied through the lifesaving society (approx $38 increase per participant). Fee needs to be increased to offset the expenses..
Swim & Lifesaving Instructor (40hrs) **One time course repeat fee***	$20.00	Other	$21.40	$0.07	50% Discounted repeat fee. If a participant fails any aspect of the course they are required to repeat the entire program
NLS (National Lifeguard Service Award) (40 hrs. over 10 classes)*	$32.80	MPI Adjustment	$33.90	3.35%	
NLS (National Lifeguard Service Award) (40 hrs. over 10 classes)* **One time course repeat fee**	$16.40	Other	$17.00	3.66%	50% Discounted repeat fee. If a participant fails any aspect of the course they are required to repeat the entire program
Standard First Aid, CPR C & NLS Prep Course*	$15.40	Departmental Strategy	$16.60	7.79%	Signifcant increase in exam fee and resource material applied through the lifesaving society (approx $7 increase per participant). Fee needs to be increased to offset the expenses..
Private Lessons – 30 mins.*	$32.20	MPI Adjustment	$33.30	3.42%	
Low Ratio & Adapted Lessons – 30 mins.*	$19.70	MPI Adjustment	$20.40	3.55%	
Swim to Survive (per participant)	Varies	Departmental Strategy	Varies	0.00%	Fee is based on amount of participants enrolled.

HST will be added to all fees marked with an asterisk (*)

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Heidi Tokle Financial Analyst (Development)
Report #:	FIN-2023-03
Subject:	**Development Charge Interest Policy Amendment**
Ward(s):	All
Date of Meeting:	September 11, 2023
Reference:	November 28, 2023 - Bill 23: More Homes Built Faster – Status Update December 12, 2022 Council Report - Bill 23: More Homes Built Faster Act, 2022 Town of Ajax Comments

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Recommendation:

1. **That the updated Development Charge Interest Policy 148 (ATT-1) be approved.**

Background:

As previously reported in the December 12, 2022 Council Report "Bill 23: More Homes Built Faster Act, 2022 Town of Ajax Comments", Bill 23 introduced a number of changes to the Development Charges Act, 1997 (DCA), including mandatory discounting for rental residential buildings, a rate phase-in for new Development Charge (DC) bylaws, new exemptions for 'affordable' and 'attainable' housing resulting in the removal of non-profit housing DC instalment requirements and introduction of a maximum DC Interest rate to be applied under the rate freeze and deferral provisions.

The recent changes made to the DCA requires revisions to the Town's current DC Interest Policy to maintain transparency and ensure the Town remains compliant with applicable legislation.

Discussion:

The primary reason the policy needs to be amended is to reflect the maximum legislated interest rates the Town can apply to DC deferrals and rate freezes. In addition, the modification of the way interest is calculated is also necessary to better reflect market rates and prepare for the automation of DC calculations to be implemented after the AMANDA upgrade is deployed. Other administrative changes are also being made to clarify definitions and ensure compliance with recent changes in legislation.

The current Town of Ajax DC Interest Policy calculates DC interest to the date of payment using the interest rate that was in effect at the site plan application or zoning amendment application date. Interest is currently applied at the same rate compounded annually for the entire period that it is earned, from application date up to the first day of the month that the DCs are paid in full. For example, an application received in October 2021 would currently be compounding interest at 2.5% annually until the earliest date the building permit is issued. The DC interest collected is contributed to the respective DC reserve funds that are used to fund eligible growth-related projects.

Changes to the existing policy are required to align collections with market conditions while also providing predictability and fairness to the development community. In a high interest environment, the DC interest collected under the current policy does not allow the Town to maintain purchasing power for growth related projects. Not keeping up with market interest rates could burden future developers with higher DC rates when these are updated through future DC background studies.

In a decreasing interest environment, where the maximum allowable interest rate is lower at the date of DC collection than it was at the site plan/amendment application date, the rate under the current policy would not be permitted to be used for the calculation. Aligning the calculation methodology to a more variable rate would maintain compliance.

Under the DCA, amended by Bill 23, Ajax can charge interest on DCs where applicable at a rate up to the maximum Average Prime Rate used by Canada's main banks + 1% and this can be modified four times per year. Staff are proposing to maintain changing rates on January 1 and July 1 for the time being, but will consider updating its rate on a quarterly basis once DC calculations are automated. Staff are however recommending to start charging interest on frozen DC rates and deferred payments using the variable rates in effect over the respective time period and compounding interest monthly. The proposed changes to the DC Interest Rate Policy will allow the Town of Ajax to contribute market-based rates of DC interest to its DC reserve funds as allowed under the DCA.

The change to monthly compounding of interest also provides the ability to create calculation tables that can be more easily programmed into the AMANDA system to enable the automation of DC quotations which will reduce administrative time in the Building Services section and Finance department. To accomplish the automation, it is important that the DC interest policy and the method used to calculate DC interest be updated.

Other updates to the proposed policy include removing the 20-year deferral period for non-profit rentals, updating/adding definitions for Base Rate of Interest, Average Prime Rate and Eligible Developments and removing the definition for Non-Profit Housing because these developments are exempt from DCs since the passing of Bill 23.

This policy is proposed to come into effect on October 1, 2023. Once effective, the new policy will apply to all site plan or zoning applications received on or after January 1, 2020 not having yet reached building permit stage. Exceptions will be made for cases where a set interest rate was expressly agreed to in an executed agreement. The Town currently has two applicable deferral agreements in place.

Financial Implications:

Updating the DC interest policy and changing the methodology used for DC interest calculations will align DC interest rates earned with market rates of interest and allow Ajax to remain in compliance with the DCA.

Table 1 shows the interest rate under the current policy in the first column and the maximum interest rate a municipality can charge under the DCA. It is to be noted that interest rates in effect from January 1, 2020 to June 30, 2022 approved in the first version of the policy will continue to be used for calculations going forward on site plan and zoning applications submitted during this period.

Table 1: Comparative interest rates charged for deferrals and DC rate freezes

Effective Date	Interest Rate: Bank of Canada Bank rate + 2% (Current Policy)	Maximum Interest Rates: Average Major Bank Prime rate + 1% (Proposed Policy)
2020-Jan-01	4.00%	None prescribed**
2020-Jul-01	2.50%	None prescribed**
2021-Jan-01	2.50%	None prescribed**
2021-Jul-01	2.50%	None prescribed**
2022-Jan-01	2.50%	None prescribed**
2022-Jul-01	~~**3.75%***~~	**3.70%**
2023-Jan-01	~~**6.50%***~~	**6.45%**
2023-Jul-01	~~**7.00%**~~	**7.70%**

*indicates interest rates under the current policy that are not permitted under the new legislation
** interest rates in effect from January 1, 2020 to June 30, 2022 will continue to be used for calculations for site plan and zoning applications submitted during this period.

It is important to note that the locked-in DC rates plus interest remain lower than the rates indexed by the non-residential construction price index that has ranged from an annual 3.1%, 17.3% and 12.5% in early 2021, 2022 and 2023 respectively. The Town's interest rate policy continues to support the legislated goal of providing predictability on total development charges to developers.

In order to illustrate the impact of the change in interest calculation methodology, an example is shown below for a Site Plan application that was received July 1, 2021 with a $100,000 DC payment at locked-in rates. Assuming a building permit is anticipated to be drawn on January 1, 2024, the calculation under the current policy would result in interest collection of $6,376 (using 2.5% since application approval dates) while the proposed policy would result in interest collection of $12,346 (using variable rates as allowed under the DCA) upon building permit issuance.

Example:

	Interest	Current Policy	Interest	Proposed Policy
Development Charge		$100,000.00		$100,000.00
Interest to Jan 1, 2022	2.5%	1,250.00	2.5%	1,047.19*
Interest to July 1, 2022	2.5%	1,250.00	2.5%	1,370.39
Interest to Jan 1, 2023	2.5%	1,281.25	3.7%	2,159.02
Interest to July 1, 2023	2.5%	1,281.25	6.45%	3,503.56
Interest to Jan 1, 2024	2.5%	1,313.28	7.7%	4,266.32
Total interest		6,375.78		$12,346.48
Total DC and interest payable Jan 1, 2024		**$106,375.78**		**$112,436.48**

*no interest charged until second month using the monthly compounding method

Communication Issues:

The interest rate will be published on the Town's website and updated within 5 business days of any interest rate changes.

Relationship to the Strategic Plan:

This report aligns with:

Growing our Community Priority 1: Embrace Dynamic and Sustainable Growth

Item 1.2 – Streamline processes and approvals for development.

Modernizing our Community Priority 5: Demonstrate sound Financial Management

Item 5.1 – Manage financial resources and assets to address growing needs.
Item 5.2 – Anticipate and respond to risks and opportunities.

Conclusion:

The proposed policy will align the Town of Ajax calculation of DC interest with the provisions defined under the DCA and bring the existing policy definitions in compliance with the DCA. These changes will provide a balance between ensuring sufficient funding is collected to ensure DC funded projects move forward as required while maintaining the legislated goal of providing some predictability on total charges to developers.

Attachments:

ATT-1: COR-148 Rev 2 – Development Charge Interest Policy
ATT-2: COR-148 Rev 1 – Development Charge Interest Policy (with track changes)

Prepared by:

Heidi Tokle – Financial Analyst (Development)

Submitted by:

Dianne Valentim – Director of Finance, Treasurer

Approved by:

Shane Baker, Chief Administrative Officer

CORPORATION OF THE TOWN OF AJAX

CORPORATE POLICIES AND PROCEDURES

SUBJECT: Development Charge Interest

COUNCIL ISSUED: 20/05/19	COUNCIL REVISED: Click here to enter a date.	AUTHORED BY: Heidi Tokle	REVISION #: 2	Page 1 of 5	POLICY #: 148

1. POLICY OBJECTIVE

1.1. The primary principle underlying this policy is that 'Growth should pay for Growth'. This policy aims to ensure that there is compensating interest income to fund the carrying costs associated with provisions of the Development Charges Act (DCA) that allow Development Charges (DCs) to be deferred for a period of 5 years as well as provisions that allow for DC rates to be locked or frozen early in the planning process (DC rate-freeze).

1.2. This Development Charge Interest Policy aims to ensure that the Town is able to effectively fund the cost of capital required to support the delivery of infrastructure and services for new populations and businesses as the community grows.

DCs are the main source of funding for growth-related infrastructure and any funding shortfall caused by the deferral and rate-freeze provisions of the DCA must be made up by taxpayers. The Town's goal is for growth to pay for growth as much as the DCA allows.

1.3. Subsection 26.1 (7) of the DCA permits a municipality to charge interest on the instalments required by subsection 26.1 (3) from the date the DC would have been payable in accordance with section 26 to the date the instalment is paid.

1.4. Subsection 26.2 (3) of the DCA permits a municipality to charge interest on development charges where 26.2 (1) clause (a) or (b) applies, from the date of application referred to in the applicable clause to the date the DC is paid in full.

1.5. Subsection 26.3 (2), rule 3 of the DCA permits a municipality to charge an annual interest rate that is one percentage point higher than the base rate of interest as defined in the DCA.

2. DEFINITIONS

2.1. **Development Charges Act (DCA)** means the Development Charges Act, 1997

2.2. **Early Payment Agreement** means an agreement with a person or business who is required to pay a DC under Subsection 26.1 of the DCA providing for all or any part of the DC to be paid before it would otherwise be payable.

2.3. **Base Rate of Interest** means, per DCA Subsection 26.3 (2) rule 2, that the base rate of interest shall be equal to the average prime rate in effect for October 15 of the previous year if the adjustment date is January 1 and April 15 of the same year if the adjustment date is July 1

2.4. **Average Prime Rate** on a particular date is the mean, rounded to the nearest hundredth of a percentage point, of the annual rates of interest announced by each of the Royal Bank of Canada, The Bank of Nova Scotia, the Canadian Imperial Bank of Commerce, the Bank of Montreal and The Toronto-Dominion Bank to be its prime or reference rate of interest in effect on that date for determining interest rates on Canadian dollar commercial loans by that bank in Canada

2.5. **Interest Rate** means

a) the Bank of Canada Bank Rate plus 2% as at December 31, beginning the following January 1, or June 30, beginning the following July 1, for the period between January 1, 2020 and June 30, 2022, where no maximum rate was prescribed by the DCA, and

b) effective July 1, 2022, as prescribed in Section 26.3 of the DCA, the average prime rate plus 1% as at October 15, beginning the following January 1, or April 15, beginning the following July 1

2.6. **Eligible Development** The following criterion will be used for the purposes of this policy to determine if an applicant is eligible for a deferral arrangement, unless these definitions conflict with any terms of the Town's DC By-law, in which case the Town's DC By-law shall prevail.

a) **Institutional Development**, as prescribed in O. Reg 454/19, means a development of a building or structure intended for the following uses:

- as a long-term care home within the meaning of subsection 2 (1) of the Long-Term Care Homes Act, 2007;
- as a retirement home within the meaning of subsection 2 (1) of the Retirement Homes Act, 2010;
- by any of the following post-secondary institutions for the objects of the institution:
  - (i) a university or college in Ontario that receives direct, regular and ongoing operating funding from the Government of Ontario,
  - (ii) a college or university federated or affiliated with a university described in sub-clause (i), or
- an Indigenous Institute prescribed for the purposes of section 6 of the Indigenous Institutes Act, 2017;
- as a memorial home, clubhouse, or athletic grounds by an Ontario branch of the Royal Canadian Legion; or

- as a hospice to provide end-of-life care

b) **Rental Housing Development** per the DCA, means development of a building or structure with four or more residential units all of which are intended for use as rented residential premises.

2.7. **Occupancy** means the earliest of either (1) the date on which an Occupancy Permit or a Partial Occupancy Permit is issued by the Town of Ajax, or (2) the earliest date on which the use or intended use of a building, in part or in full, commences.

3. SCOPE

3.1. This policy applies to all development applications where a DC is eligible for a payment deferral on an installment basis or rate-freeze as permitted under the DCA.

3.2. For developments that are exempted from DCs under Bill 23, the deferral payment is not applicable.

3.3. No interest shall be calculated and applied to non-statutory DC exemptions funded by a non-DC source.

3.4. For all developments where DC interest is applicable, this policy will be used to determine the DC interest that will be charged, whether the application date is before or after the effective date of this policy. The only exception is for deferral agreements executed prior to the date revision #2 of this policy comes into effect, where an agreed upon interest rate has been expressly set.

4. PROCEDURE

DEVELOPMENT CHARGE DEFERRALS

4.1. Subsection 26.1 (1) of the DCA states that, despite section 26, a DC in respect of any part of a development that consists of a type of development set out in subsection (2) is payable in accordance with section 26.1. Subsection 26.1 (2) of the DCA identifies the following developments to be eligible for DC deferral (collectively referred to as Eligible Developments and defined for the purposes of this policy in section 2.6 above):

- **Rental housing** development that is not non-profit housing development (five years)
- **Institutional development** (including long-term care homes, retirement homes, universities and colleges, memorial homes, clubhouses or athletic grounds of the Royal Canadian Legion and hospices) (five years)

4.2. For Eligible Developments, Subsection 26.1 (3) of the DCA states that, the DC shall be paid in equal annual instalments beginning on the earlier of the date of the issuance of a permit under the Building Code Act, 1992 authorizing occupation of the building and the date the building is first occupied and continuing on the following five anniversaries of that date.

4.3. The Interest Rate shall be calculated on the outstanding balance from the date of building permit issuance. Interest is calculated for each month it is earned, using the Interest Rate set by this policy at the time the interest is earned, and compounded monthly until the first day of the month in which the DCs owing are paid in full.

4.4. Interest will be prorated to the date of payment for any Early Payment Agreements.

4.5. Early Payment Agreements will be offered if the owner of a development prefers to pay the full Town DC owing at Occupancy, or any other agreed upon date, in accordance with Section 27 of the DCA.

4.6. Where there is a change in use of a development during the DC deferral period such that the property or properties no longer meet the definition of an Eligible Development, all outstanding Development Charge amounts, including any interest payable up to the date of the change in use, become payable immediately. If the full DC amount plus DC interest has not been paid within 30 days of the change of use, the account will be deemed to be in default for the full DC and applicable DC interest.

4.7. Where the party to a deferral arrangement fails to make instalment payments in accordance with the payment schedule prescribed in section 4.2, the unpaid instalment plus DC interest will be considered to be in default.

4.8. If DCs or any outstanding part of DCs are not paid as required in section 4.6 or 4.7 and have defaulted, the amount that is in default shall be added to the tax roll and collected in the same manner as taxes, in accordance with section 32 of the DCA. Once defaulted DC amounts and interest have been moved to the tax roll, interest shall be calculated by reference to the Town's tax arrears interest rate in effect at the date of default. Tax arrears interest will be applied monthly to the DC balance owing beginning on the first day of the month following the date of default.

DEVELOPMENT CHARGE RATE FREEZE

4.9. Subsection 26.2 (1) of the DCA provides that DCs are the amount determined under the by-law on:

a) the day an application for an approval of development in a site plan control area under subsection 41 (4) of the Planning Act was made in respect of development that is the subject of the DC,

b) if clause (a) above does not apply, the day an application for an amendment to a By-law passed under section 34 of the Planning Act was made in respect of the development that is the subject of the DC;

c) if neither clause (a) nor clause (b) applies,

i) in the case of a DC in respect of a development to which section 26.1 applies, the day the DC would be payable in accordance with section 26 if section 26.1 did not apply, or

ii) in the case of a DC in respect of a development to which section 26.1 does not apply, the day the DC is payable in accordance with section 26.

4.10 The DCA requires that the DC balance owing is due at building permit issuance for development applications eligible for rate freeze, as set out in section 4.9.

4.11 The interest charged will be calculated for each month it is earned, using the Interest Rate set by this policy at the time the interest is earned, and compounded monthly from the first day of the month following the day an application is received under section 4.9 (a) and (b) of this policy to the first day of the month in which the building permit is issued.

4.12 Once a DC quotation is provided for an application where frozen DC rates apply, the rates in the quotation are valid until the last day of the calendar month when the quotation was issued. If the DC is not paid in the same month for which the quotation was provided, another month of interest will be charged, continuing every month until the DC is paid and the building permit is issued.

4.13 If the permit is not issued the month the DC is paid, the developer will be required to provide a top-up payment for interest accrued up to and including the month of permit issuance.

4.14 Interest on frozen DC rates will continue to be applied for two years after the approval date of those applications listed in section 4.9 of this policy, at which point the DCs paid will revert back to the rate in effect at the date of building permit issuance.

PUBLICATION

4.15 The current Interest Rate shall be posted on the Town's website and the website shall be updated within 5 business days of each adjustment (i.e. July 1 and January 1).

POLICY ADMINISTRATION

4.16 The Treasurer is delegated the authority to make administrative changes to this policy as may be required from time to time due to legislative or other changes, if in the opinion of the Treasurer, the amendments do not change the objective of the policy.

CORPORATION OF THE TOWN OF AJAX

CORPORATE POLICIES AND PROCEDURES

SUBJECT: **Development Charge Interest**

COUNCIL ISSUED: 20/05/19	COUNCIL REVISED: Click here to enter a date.	AUTHORED BY: Heidi Tokle	REVISION #: 2	Page 1 of 5	POLICY #: 148

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1. POLICY OBJECTIVE

1.1. The primary principle underlying this policy is that 'Growth should pay for Growth'. This policy aims to ensure that there is compensating interest income to fund the carrying costs associated with provisions of the Development Charges Act (DCA) that allow Development Charges (DCs) to be deferred for a period of 5 years as well as provisions that allow for DC rates to be locked or frozen early in the planning process (DC rate-freeze).

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1.2. This Development Charge Interest Policy aims to ensure that the Town is able to effectively fund the cost of capital required to support the delivery of infrastructure and services for new populations and businesses as the community grows.

DCs are the main source of funding for growth-related infrastructure and any funding shortfall caused by the deferral and rate-freeze provisions of the DCA must be made up by taxpayers. The Town's goal is for growth to pay for growth as much as the DCA allows.

1.3. Subsection 26.1 (7) of the DCA permits a municipality to charge interest on the instalments required by subsection 26.1 (3) from the date the DC would have been payable in accordance with section 26 to the date the instalment is paid.

1.4. Subsection 26.2 (3) of the DCA permits a municipality to charge interest on development charges where 26.2 (1) clause (a) or (b) applies, from the date of application referred to in the applicable clause to the date the DC is paid in full.

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1.5. Subsection 26.3 (2), rule 3 of the DCA permits a municipality to charge an annual interest rate that is one percentage point higher than the base rate of interest as defined in the DCA.

2. DEFINITIONS

2.1. **Development Charges Act (DCA)** means the Development Charges Act, 1997

2.2. **Early Payment Agreement** means an agreement with a person or business who is required to pay a DC under Subsection 26.1 of the DCA providing for all or any part of the DC to be paid before it would otherwise be payable.

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2.3. **Base Rate of Interest** means, per DCA Subsection 26.3 (2) rule 2, that the base rate of interest shall be equal to the average prime rate in effect for October 15 of the previous year if the adjustment date is January 1 and April 15 of the same year if the adjustment date is July 1

2.4. **Average Prime Rate** on a particular date is the mean, rounded to the nearest hundredth of a percentage point, of the annual rates of interest announced by each of the Royal Bank of Canada, The Bank of Nova Scotia, the Canadian Imperial Bank of Commerce, the Bank of Montreal and The Toronto-Dominion Bank to be its prime or reference rate of interest in effect on that date for determining interest rates on Canadian dollar commercial loans by that bank in Canada

2.5. **Interest Rate** means

a) the Bank of Canada Bank Rate plus 2% as at December 31, beginning the following January 1, or June 30, beginning the following July 1, for the period between January 1, 2020 and June 30, 2022, where no maximum rate was prescribed by the DCA, and

b) effective July 1, 2022, as prescribed in Section 26.3 of the DCA, the average prime rate plus 1% as at October 15, beginning the following January 1, or April 15, beginning the following July 1

2.6. **Eligible Development** The following criterion will be used for the purposes of this policy to determine if an applicant is eligible for a deferral arrangement, unless these definitions conflict with any terms of the Town's DC By-law, in which case the Town's DC By-law shall prevail.

Deleted: **Developments** are not defined in the DCA.

a) **Institutional Development**, as prescribed in O. Reg 454/19, means a development of a building or structure intended for the following uses:

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- as a long-term care home within the meaning of subsection 2 (1) of the Long-Term Care Homes Act, 2007;
- as a retirement home within the meaning of subsection 2 (1) of the Retirement Homes Act, 2010;
- by any of the following post-secondary institutions for the objects of the institution:
  - (i) a university or college in Ontario that receives direct, regular and ongoing operating funding from the Government of Ontario,
  - (ii) a college or university federated or affiliated with a university described in sub-clause (i), or
- an Indigenous Institute prescribed for the purposes of section 6 of the Indigenous Institutes Act, 2017;
- as a memorial home, clubhouse, or athletic grounds by an Ontario branch of the Royal Canadian Legion; or

- as a hospice to provide end-of-life care

b) **Rental Housing Development** per the DCA, means development of a building or structure with four or more residential units all of which are intended for use as rented residential premises.

2.7. **Occupancy** means the earliest of either (1) the date on which an Occupancy Permit or a Partial Occupancy Permit is issued by the Town of Ajax, or (2) the earliest date on which the use or intended use of a building, in part or in full, commences.

3. SCOPE

3.1. This policy applies to all development applications where a DC is eligible for a payment deferral on an installment basis or rate-freeze as permitted under the DCA.

3.2. For developments that are exempted from DCs under Bill 23, the deferral payment is not applicable.

3.3. No interest shall be calculated and applied to non-statutory DC exemptions funded by a non-DC source.

3.4. For all developments where DC interest is applicable, this policy will be used to determine the DC interest that will be charged, whether the application date is before or after the effective date of this policy. The only exception is for deferral agreements executed prior to the date revision #2 of this policy comes into effect, where an agreed upon interest rate has been expressly set.

4. PROCEDURE

DEVELOPMENT CHARGE DEFERRALS

4.1. Subsection 26.1 (1) of the DCA states that, despite section 26, a DC in respect of any part of a development that consists of a type of development set out in subsection (2) is payable in accordance with section 26.1. Subsection 26.1 (2) of the DCA identifies the following developments to be eligible for DC deferral (collectively referred to as Eligible Developments and defined for the purposes of this policy in section 2.6 above):

- **Rental housing** development that is not non-profit housing development (five years)
- **Institutional development** (including long-term care homes, retirement homes, universities and colleges, memorial homes, clubhouses or athletic grounds of the Royal Canadian Legion and hospices) (five years)

4.2. For Eligible Developments, Subsection 26.1 (3) of the DCA states that, the DC shall be paid in equal annual instalments beginning on the earlier of the date of the issuance of a permit under the Building Code Act, 1992 authorizing occupation of the building and the date the building is first occupied, and continuing on the following five anniversaries of that date.

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a corporation without share capital to which the Corporations Act applies, that is in good standing under that Act and whose primary object is to provide housing; ¶
a corporation without share capital to which the Canada Not-for-profit Corporations Act applies, that is in good standing under that Act and whose primary object is to provide housing; or ¶
a non-profit housing co-operative that is in good standing under the Cooperative Corporations Act. ¶
¶
Rental Housing will have the meaning prescribed in O. Reg 454/19 being, a building

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Deleted: <#>**Interest Rate** means the Bank of Canada Bank Rate plus 2% as at the December 31st or June 30th immediately prior to:
¶
the date the development charges would have been payable under the DCA for installment payments under Section 26.1 of the DCA, or
¶
the date an application for an approval of development was made under subsection 41(4) of the Planning Act for development charge freezing under section 26.2 of the DCA.
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4.3. The Interest Rate shall be calculated on the outstanding balance from the date of building permit issuance. Interest is calculated for each month it is earned, using the Interest Rate set by this policy at the time the interest is earned, and compounded monthly until the first day of the month in which the DCs owing are paid in full.

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the following 20 anniversaries of that date, in the case of a DC in respect of non-profit housing development.¶

4.4. Interest will be prorated to the date of payment for any Early Payment Agreements.

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4.5. Early Payment Agreements will be offered if the owner of a development prefers to pay the full Town DC owing at Occupancy, or any other agreed upon date, in accordance with Section 27 of the DCA.

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4.6. Where there is a change in use of a development during the DC deferral period such that the property or properties no longer meet the definition of an Eligible Development, all outstanding Development Charge amounts, including any interest payable up to the date of the change in use, become payable immediately. If the full DC amount plus DC interest has not been paid within 30 days of the change of use, the account will be deemed to be in default for the full DC and applicable DC interest.

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4.7. Where the party to a deferral arrangement fails to make instalment payments in accordance with the payment schedule prescribed in section 4.2, the unpaid instalment plus DC interest will be considered to be in default.

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4.8. If DCs or any outstanding part of DCs are not paid as required in section 4.6 or 4.7 and have defaulted, the amount that is in default shall be added to the tax roll and collected in the same manner as taxes, in accordance with section 32 of the DCA. Once defaulted DC amounts and interest have been moved to the tax roll, interest shall be calculated by reference to the Town's tax arrears interest rate in effect at the date of default. Tax arrears interest will be applied monthly to the DC balance owing beginning on the first day of the month following the date of default.

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DEVELOPMENT CHARGE RATE FREEZE

4.9. Subsection 26.2 (1) of the DCA provides that DCs are the amount determined under the by-law on:

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a) the day an application for an approval of development in a site plan control area under subsection 41 (4) of the Planning Act was made in respect of development that is the subject of the DC,

b) if clause (a) above does not apply, the day an application for an amendment to a By-law passed under section 34 of the Planning Act was made in respect of the development that is the subject of the DC;

c) if neither clause (a) nor clause (b) applies,

i) in the case of a DC in respect of a development to which section 26.1 applies, the day the DC would be payable in accordance with section 26 if section 26.1 did not apply, or

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ii) in the case of a DC in respect of a development to which section 26.1 does not apply, the day the DC is payable in accordance with section 26.

4.10 The DCA requires that the DC balance owing is due at building permit issuance for development applications eligible for rate freeze, as set out in section 4.9.

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4.11 The interest charged will be calculated for each month it is earned, using the Interest Rate set by this policy at the time the interest is earned, and compounded monthly from the first day of the month following the day an application is received under section 4.9 (a) and (b) of this policy to the first day of the month in which the building permit is issued.

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4.12 Once a DC quotation is provided for an application where frozen DC rates apply, the rates in the quotation are valid until the last day of the calendar month when the quotation was issued. If the DC is not paid in the same month for which the quotation was provided, another month of interest will be charged, continuing every month until the DC is paid and the building permit is issued.

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4.13 If the permit is not issued the month the DC is paid, the developer will be required to provide a top-up payment for interest accrued up to and including the month of permit issuance.

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4.14 Interest on frozen DC rates will continue to be applied for two years after the approval date of those applications listed in section 4.9 of this policy, at which point the DCs paid will revert back to the rate in effect at the date of building permit issuance.

PUBLICATION

4.15 The current Interest Rate shall be posted on the Town's website and the website shall be updated within 5 business days of each adjustment (i.e. July 1 and January 1).

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POLICY ADMINISTRATION

4.16 The Treasurer is delegated the authority to make administrative changes to this policy as may be required from time to time due to legislative or other changes, if in the opinion of the Treasurer, the amendments do not change the objective of the policy.

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Steven McReelis, Manager, Building Approvals & Chief Building Official
Report #:	PDS-2023-29
Subject:	**Building By-law Update**
Ward(s):	All
Date of Meeting:	September 11, 2023
Reference:	PDS-2023-22 – 2022 Development Application Approval Process Review

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Recommendations:

1. **That the attached revised Building By-law, being a by-law respecting the establishment of a fee schedule and other building matters, be endorsed, and**

2. **That staff be authorized to prepare and forward the implementing Building By-law to Council for consideration at the September 18, 2023, meeting.**

1. Background:

Staff were before the General Government Committee on June 12, 2023, to present the 2022 Development Application Approval Process Review report prepared by Watson and Associates Economist Ltd. The proposed increase to building permit fees contained within the report was endorsed by Council.

Section 7 of the Building Code Act, 1992, authorizes municipalities to pass by-laws respecting construction, demolition and change of use permits, inspections, and other related matters. The Building By-law received its last major update in 2018. In the interest of recognizing the changes in the building industry and remaining consistent and near parity with our neighbouring municipalities a review and update of the Building By-law is both desirable and necessary.

2. Discussion:

Building By-law 39-2021 has been revised in an effort to improve clarity and make it easier to read. In order to accomplish this, definitions were added, existing sections were reorganized, and two new sections were added for incomplete applications and revocation of permits. A complete list of the revisions can be found in ATT-1.

3. Financial Implications:

The proposed Building By-law and associated fee schedule will result in a reduction in annual revenues of $780,000 over the forecast period. The recommended fees for the Building Approval Section will bring its total annual costs into alignment with annual revenues. The fee recommendations impact, specifically to the 2023 Operating Budget, will realize a decrease in

revenue of $302,570. This amount, however, has already been offset by unbudgeted revenue received in 2023. It is also important to note that the Building Approval Section operations are funded almost entirely from building permit application revenue and not the tax base.

4. Communication Issues:

The proposed fee schedule was presented to stakeholders at a meeting held on February 9, 2023, where attendees had the opportunity to make representations with respect to the proposed fee changes. In attendance at the public meeting were representatives and members from Building Industry and Land Development Association (BILD) and Durham Region Home Builders Association (DRHBA). No comments or concerns were raised, and no other representations were received.

A public meeting was held on August 17, 2023 to present the proposed changes to the fee schedule. No one attended, and no other representations were received.

5. Relationship to the Strategic Plan:

This report aligns with the following section of the 2022-2026 Strategic Plan - Action26:

Pillar 3: Modernizing our Community
Priority: Demonstrate sound financial management.

6. Conclusion:

The proposed revision to the Building By-law will result in a clearer and more precise by-law concerning the administration of the building permit and inspection provisions in Ajax. The associated fee schedule implements the findings in the 2022 Development Application Approval Process Review report prepared by Watson and Associates Economist Ltd. and endorsed by Council on June 12, 2023.

Attachments:

ATT-1: Proposed Revisions to Current Building By-law (39-2021)

ATT-2: Revised Building By-law

Prepared by:

Steven McReelis – Manager, Building Approvals & Chief Building Official

Submitted by:

Geoff Romanowski – Director, Planning & Development Services

Approved by:

Shane Baker – Chief Administrative Officer

The following is a list of the proposed changes to the current Building By-law (39-2021):

Part 1 – SHORT TITLE

- No revisions

Part 2 – DEFINITIONS

- Some current definitions were updated to improve clarity and to reflect changes to legislation.
- *Applicant* definition was updated to address shift to electronic building permit submissions.
- The following definitions were added, *electronic submission*, *Municipal Price Index*, *partial occupancy permit*, *pre-application review*, and *revised submission*.
- Removed definition of Deputy Chief Building Official as it is not referenced in the by-law.

Part 3 – CODE OF CONDUCT

- No revisions

Part 4 – CLASSES OF PERMITS

- New Part

Part 5 – REQUIREMENTS FOR PERMIT APPLICATIONS

- Formerly Part 4 of By-law 39-2021, all sections carried over and renumbered.
- 5.1.1. updated to include alternative solution applications.
- 5.1.1.4. added to address shift to electronic building permit submissions.
- 5.1.6. added to address shift to electronic building permit submissions.
- 5.2.2. and 5.2.3. split from 4.2.2. of By-law 39-2021
- 5.5.1. reference to complete plan review added.
- 5.5.2. inclusion of amendment 71-2021 to By-law 39-2021
- 5.9. Abandoned *Electronic Submissions* and *Permit* Applications (formerly Part 8 of By-law 39-2021), updated and criteria for electronic building permit submissions added.
- 5.10. Incomplete *Permit* Applications (formerly Part 7 of By-law 39-2021), carried over as is and renumbered.

Part 6 – REQUIREMENTS FOR PLANS AND SPECIFICATIONS

- Formerly Part 5 of By-law 39-2021, all sections carried over and renumbered.
- 6.2 added to specify requirements for site documents.

Part 7 – AUTHORIZATION OF ALTERNATIVE SOLUTIONS

- Formerly Part 6 of By-law 39-2021, carried over as is and renumbered.

Part 8 – FEES AND REFUNDS

- Formerly Part 12 of By-law 39-2021.
- 8.1.4. addresses refunds (formerly Section 12.4 of By-law 39-2021), calculation of refunds has been relocated Part 4 of Schedule “A”
- Subsection 8.1.5. added as recommended by 2022 DAAP review

- 8.3. Additional Inspection Fee, new section as requested by staff and recommended through the core services review.
- 8.4. Partial Occupancy Fee, new section added to recoup the associated costs incurred by the Town to perform these additional inspections.
- 8.5. Permit Surcharge (formerly Section 12.4 of By-law 39-2021)
- 8.6. Order on Title, new section added to recoup the associated legal costs incurred by the Town to perform this enforcement function.
- Fee calculation instruction moved into Schedule “A”

Part 9 – REVISIONS TO PERMITS

- No revisions

Part 10 - TRANSFER OF PERMITS

- No revisions

Part 11 - REVOCATION

- No revisions

Part 12 - NOTICES FOR INSPECTIONS

- Formerly Part 13 of By-law 39-2021, carried over as is and renumbered.
- 12.5.3. substantial completion of exterior cladding added.

Part 13 - REGISTERED CODE AGENCIES

- Formerly Part 14 of By-law 39-2021, carried over as is and renumbered.

Part 14 – SPATIAL SEPARTION AGREEMENTS

- New Part added to delegate power to enter into and execute spatial separation agreements to the Chief Building Official.

Part 15 – FENCING OF CONSTRUCTION AND DEMOLITION SITES

- 15.3.3. & 15.3.4. of By-law 39-2021 combined to require a minimum 1.8-metre-high fence under new 15.3.3.
- 15.3.6 removed to require fences to be constructed of materials that provide a measure of performance and safety satisfactory to the Chief Building Official.

Part 16 - OFFENCES AND PENALTIES

- No revisions

Part 17 – SEVERABILITY

- No revisions

Part 18 – MISCELLANEOUS

- No revisions

Part 19 – REPEAL AND TRANSITION

- Transition from By-law 39-2021

Part 20 – EFFECTIVE DATE

- Effective date revised to October 1st, 2023.

Schedule "A" – CLASSES OF PERMITS AND PERMIT FEES

- Part 1. ADMINISTRATIVE FEES – Added to Schedule A
  - 1.1 new non-refundable fee for the screening of electronic building permit applications
  - 1.2 – new fee
  - 1.3 – new fee requested by staff to address those building permits which remain open for many years.
  - 1.10 – removed
- Part 2. MINIMUM FEE
  - 2.2 – new minimum $300 fee for *moderate permit* applications
  - 2.3 – minimum fee for major permit applications increased to $500
- Part 3. CALCULATION OF PERMIT FEES
  - formerly Part 1 of Schedule "A" to By-law 39-2021
- Part 4. CALCULATION OF REFUNDS – Added to Schedule A
  - formerly Part 12.4 of By-law 39-2021
- Table 1 – FEES PAYABLE FOR APPLICATIONS AND *PERMIT*S
  - The table has been updated to reflect the new and revised fees.
- Table 2 - PERMIT TYPES AND PERMIT FEES
  - The table has been updated to reflect the revised fees.

Schedule "B" – DOCUMENTS & DRAWINGS REQUIRED FOR A COMPLETE APPLICATION

- No revisions

Schedule "C" – CODE OF CONDUCT FOR THE *CHIEF BUILDING OFFICIAL* AND INSPECTORS

- No revisions

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER ##-2023

A By-law Under the Building Code Act Respecting Construction, Demolition, Change of Use Permits and Inspections.

WHEREAS Section 7 of the Building Code Act, 1992, S.O. 1992, c.23, as amended, authorizes municipal council to pass by-laws respecting construction, demolition and change of use permits, inspections and other related matters;

AND WHEREAS the Council of the Corporation of the Town of Ajax desires to repeal By-law 39-2021 and to enact a new building by-law for the issuance of permits and related matters, including the establishment of a fee schedule;

NOW THEREFORE THE COUNCIL OF THE CORPORATION OF THE TOWN OF AJAX ENACTS AS FOLLOWS:

1. SHORT TITLE

1.1. This By-law may be cited as the “Building By-law”

2. DEFINITIONS

2.1. In this By-law:

“*Act*” means the *Building Code Act*, 1992, S.O. 1992, c.23, as amended;

“*applicant*” means the *owner* of a *building* or property on which the proposed construction or demolition is to take place, or the authorized agent of the *owner*, who applies for a *permit*, or any person or corporation empowered by statute to cause the construction or demolition of a *building* or *building*s and anyone acting under the authority of such person or corporation. For the purposes of this By-law the *applicant* is the registered user of the *electronic submission*;

“*building*” means a building as defined in Subsection 1(1) of the *Act*;

“*building code*” means the regulation made under Section 34 of the *Act*;

“business day” means any weekday other than a *holiday*;

“*Chief Building Official*” means the Chief Building Official appointed by by-law of the *Corporation* for the purpose of enforcement of the *Act*, the *building code* and this By-law;

“*complete application*” means an application that meets the requirements set out in Division C, Article 1.3.1.3. of the *building code* where the *Chief Building Official* is required to make a decision within a prescribed time period, and further that meets the requirements set out in, Part 5 and Schedule B of this By-law;

“*conditional permit*” means a *permit* issued under Subsection 8(3) of the *Act*;

“*construct*” means construct as defined in Subsection 1(1) of the *Act*;

“construction value” means a value representative of the total costs for all work, services and material associated with the construction for which a *permit* is applied;

“*Corporation*” means The Corporation of the Town of Ajax;

“*demolish*” means demolish as defined in Subsection 1(1) of the *Act*;

“electronic submission” means the filing of an application under the *Act* or this By-law, including all required forms, documents and drawings, submitted through an online application procedure approved by the C*hief Building Official*;

“holiday” means any day in which the Town hall offices of the *Corporation* is not open for the transaction of business with the public;

“major permit” includes *building permit* applications for work of a major technical nature, such as new *building*s of assembly, commercial, industrial, institutional and residential occupancies containing more than three dwelling units; including additions and alterations;

“*minor permit*” includes *building permit* applications for work of a minor technical nature, such as demolitions, plumbing, decks, accessory *building*s, etc.;

“moderate permit” includes *building permit* applications for work of a moderate technical nature, such as new residential low rise *building*s (i.e. detached and semi-detached dwelling units, townhouses), including additions, alterations, and accessory dwelling units;

“Municipal Price Index” is a measure of inflation, determined annually by the Treasurer, based on the costs to the *Corporation* related to goods and services for developing and maintaining municipal infrastructure, public safety, and regulatory and legislative requirements (i.e. labour, utilities, asphalt, salt, fuel, insurance, etc);

“*owner*” means, in respect of the property on which the construction is to take place, the registered owner of the land and, except for *conditional permits*, may include a lessee, mortgagee in possession and the person acting as the *owner*’s authorized agent;

“*partial occupancy permit”* means an occupancy *permit* for the partial occupancy of a building prior to its completion as set out in Division C, Subsection 1.3.3. of the *building code*;

“*partial permit*” means a *permit* issued by the *Chief Building Official* to *construct* part of a *building*;

“*permit*” means permission or authorization given in writing by the *Chief Building Official* to perform work, to change the use of a building or part thereof, or to occupy a building or part thereof, as regulated by the *Act* and *building code*;

“*permit holder*” means the *owner* to whom the *permit* was issued or where a *permit* has been transferred, the new *owner* to whom the *permit* has been transferred;

“*pre-application review*” means the review of forms, documents and drawings which precedes the acceptance of a *permit* application to determine if it qualifies for an *electronic submission* for a *permit*;

“*Registered Code Agency*” means a registered code agency as defined in Subsection 1(1) of the *Act*;

“*revised submission”* means additional information filed with the *Chief Building Official* which depicts one or more changes to the approved design of a *building* or part of a *building* for which a *permit* has already been issued and for which approval by the *Chief Building Official* is required;

“retrofit accessory apartment” means an accessory apartment existing prior to July 14, 1994, which has been inspected for compliance with Section 9.8 of the Ontario Fire Code, and a Notice of Violation issued indicating the remedial construction required;

"Site Inspection Clearance Certificate" means a certificate issued by an Ontario Licensed Exterminator that the entire exterior site for a Site Servicing *Permit* or the entire interior/exterior site for a Demolition *Permit* has been inspected and is free of any infestation of any rodents and other vermin that may cause negative impacts to the surrounding community.

2.2 Terms not defined in this By-law shall have the meaning ascribed to them in the *Act* or the *building code*.

3. CODE OF CONDUCT

3.1. The *Chief Building Official* and inspectors appointed under Section 3 of the *Act* shall be governed by the Code of Conduct as set out in Schedule "C" to this By-law, with respect to exercising powers and performing duties under the *Act*.

4. CLASSES OF *PERMITS*

4.1. Classes of *permit*s and the permit fees therefore, shall be set out in Schedule "A" to this By-law.

5. REQUIREMENTS FOR *PERMIT* APPLICATIONS

5.1. General Requirements

5.1.1. Every *permit* application, and application for an alternative solution must meet the requirements of this Section and Part 7 and shall:

5.1.1.1. be made by an *applicant;*

5.1.1.2. be made to the *Chief Building Official* on forms prescribed by the Province of Ontario or when no form is prescribed, on a form prescribed by the *Chief Building Official*;

5.1.1.3. be accompanied by the required fees calculated in accordance with Schedule "A", and

5.1.1.4. unless otherwise determined by the *Chief Building Official*, be in the form of an *electronic submission* filed by the *applicant*;

5.1.2. To be considered a *complete application*, every *permit* application shall be accompanied by the approval documents issued by the agencies responsible for the applicable laws listed in the *building code*, where those agencies issued approval documents and the law applies to the construction or demolition being proposed.

5.1.3. An application for a *permit* may be refused by the *Chief Building Official* where it is not a *complete application*.

5.1.4. The *Chief Building Official* may, as they deem appropriate, provide prescribed forms in an electronic format, and may allow for the *electronic submission* of completed *permit* application forms.

5.1.5. Notwithstanding Subsection 5.1.4, completed forms generated electronically shall be accepted subject to the endorsement by the *applicant*.

5.1.6. When filing an application, the *owner* and the *applicant* shall provide an electronic address(es) for the purpose of receiving communications from the *Chief Building Official* regarding the work or proposal associated with a *permit* application or issued *permit*. The *owner* or authorized agent of the *owner* shall inform the *Chief Building Official* immediately in writing when the electronic address(es) provided changes or becomes nonfunctional.

5.2. **Applications for *Permits* to *Construct***

Every application for a *permit* to *construct* a *building* shall:

5.2.1. identify and describe in detail the work to be done and the existing, proposed use, and occupancy of the *building*, or part thereof, for which the *building permit* application is made;

5.2.2. be accompanied by the plans, specifications, documents, forms, and other information prescribed in Part 6 and Schedule “B” of this By-law; and

5.2.3. be accompanied by acceptable proof of corporate identity and property ownership unless such proof is determined by the *Chief Building Official* to be unnecessary.

5.3. **Applications for *Permits* to *Demolish***

Every application for a *permit* to *demolish* a *building* shall:

5.3.1. identify and describe in detail the work to be done and the existing use and occupancy of the *building*, or part thereof, for which the application for a *permit* to *demolish* is made, and the proposed use and occupancy of that part of the *building*, if any, that will remain upon completion of the demolition;

5.3.2. be accompanied by the plans, specifications, documents, forms, and other information prescribed in Part 6 and Schedule “B” of this By-law; and,

5.3.3. be accompanied by proof satisfactory to the *Chief Building Official* that arrangements have been made with the proper authorities for the termination and capping of all the water, sewer, gas, electric, telephone or other utilities and services.

5.4. **Applications for *Permits* for a Stage of Construction (*Partial Permit*)**

In addition to the requirements of Section 5.2, every application for a *partial permit* shall:

5.4.1. require a *permit* application for the entire project; and,

5.4.2. be accompanied by plans, specifications, documents, forms, and other information covering that part of the work for which application for a *partial permit* is made, together with such information pertaining to the remainder of the work as may be required by the *Chief Building Official*.

5.4.3. The *Chief Building Official* may issue a *partial permit* when it is determined appropriate to expedite substantial construction before a *permit* for the entire *building* is available and where the relevant provisions of this By-law and the *Act* are met.

5.4.3.1. When determining whether to issue a *partial permit*, the *Chief Building Official* shall have regard for the likelihood of subsequent approvals being available in a timely fashion such that a project is not interrupted and exposed to potential damage from the elements while awaiting subsequent approvals.

5.4.4. The *Chief Building Official* shall not, by reason of the issuance of a *partial permit* pursuant to this By-law, be under any obligation to grant any additional *permits*.

5.5. **Applications for *Conditional Permits***

5.5.1. An application for a *conditional permit* cannot be filed until the plans review for the scope of work for which the *conditional permit* is being requested is complete. In addition to the requirements of Section 5.2, every application for a *conditional permit* shall be accompanied by,

5.5.1.1. a written statement from the *applicant* explaining the reasons why the *applicant* believes that unreasonable delays in construction would occur if a *conditional permit* is not granted;

5.5.1.2. a written acknowledgement from the *applicant* of the necessary approvals which must be obtained in respect of the proposed *building* in order for the *permit* to be issued and the time in which such approvals will be obtained, and

5.5.1.3. a written agreement, in the form provided by the *Chief Building Official*, executed by the *applicant*, the *owner* and/or such other necessary persons the *Chief Building Official* determines for the purposes set out in Clause 8(3)(c) of the *Act*.

5.5.2. Pursuant to Clause 8(3.1) of the *Act*, the *Chief Building Official* is delegated the power to enter into conditional building *permit* agreements and to execute the conditional building *permit* agreement referred to in Article 5.5.1.3. on behalf of the *Corporation.* The *Chief Building Official* may, at their discretion, issue a *conditional permit* where unreasonable delays are anticipated in obtaining all necessary approvals and where the relevant provisions of this By-law and the *Act* are met.

5.6. **Applications for *Permits* for Change of Use**

Every application for a *permit* for a change of use shall;

5.6.1. identify and describe in detail the existing and proposed use and occupancy of the *building*, or part thereof, for which the application for a *permit* is made; and

5.6.2. be accompanied by the plans, specifications, documents, forms, and other information prescribed in Part 6 and Schedule “B” of this By-law.

5.7. **Application for *Permits* for Site Servicing**

Every application for a *permit* for site servicing shall;

5.7.1. be accompanied by the plans, specifications, documents, forms, and other information prescribed in Part 6 and Schedule “B” of this By-law.

5.8. **Application for *Permits* for Signs**

Every application for a *permit* for signs shall;

5.8.1. be accompanied by the plans, specifications, documents, forms, and other information prescribed in Part 6 and Schedule “B” of this By-law.

5.9. **Abandoned *Electronic Submissions* and *Permit* Applications**

5.9.1. Where an *electronic submission* has not been completed within 20 *business day*s of creation, the *electronic submission* may be deemed by the *Chief Building Official* to have been abandoned.

5.9.2. Where an application for a *permit* was accepted and the estimated *permit* fees are unpaid for three months after the *applicant* was advised in writing of the estimated *permit* fees, that application may be deemed by the *Chief Building Official* to have been abandoned and written notice of the cancellation thereof shall be given to the *applicant.*

5.9.3. Where an application for a *permit* remains incomplete and inactive for six months after the *applicant* has been advised in writing of all the reasons for refusal, the application may be deemed by the *Chief Building Official* to have been abandoned and written notice of the cancellation thereof shall be given to the *applicant.*

5.10. **Incomplete *Permit* Applications**

5.10.1. An application shall be deemed not to be a complete according to the *building code* where any of the applicable requirements of Part 5 to this By-law have not been complied with.

5.10.2. Except as provided in Section 8.3., an application deemed to be incomplete shall not be accepted by the *Chief Building Official*.

5.10.3. The *Chief Building Official* may accept an incomplete application where the *applicant* acknowledges, in writing, that the application is incomplete and waives the time period prescribed in the *building code* within which a *permit* must be issued or refused.

5.10.4. Where an *applicant* declares that an application is complete in all respects, but the application is determined by the *Chief Building Official* to be incomplete or does not comply with the Act, the *building code*, this By-law or applicable law, an additional fee as prescribed in Schedule "A" may be applied to the re-examination of documents required to be submitted by the *applicant.*

6. REQUIREMENTS FOR PLANS AND SPECIFICATIONS

6.1. As part of the application for a *permit* and in addition to the requirements of Part 5 of this By-law, every *applicant* shall submit to the *Chief Building Official* the following:

6.1.1. Sufficient plans, specifications, documents, forms, and such other information as may be deemed necessary by the *Chief Building Official* to determine whether the proposed construction, demolition, or change of use conforms to the *Act*, the *building code*, and any other applicable law.

6.1.2. Where a site plan is required to satisfy Subsection 6.1.1, the site plan should reference a current plan of survey certified by a registered Ontario Land Surveyor and shall include:

6.1.2.1. lot size and dimensions of the property;

6.1.2.2. setbacks from existing and proposed *building*s to property boundaries and to each other;

6.1.2.3. existing and finished ground levels or grades;

6.1.2.4. existing rights of way, easements, and municipal services; and

6.1.2.5. a copy of a current plan of survey unless the *Chief Building Official* waives this requirement.

6.1.3. Plans, specifications, and other documents submitted by an *applicant* shall:

6.1.3.1. be fully coordinated among design disciplines and intended for construction, demolition or change of use;

6.1.3.2. be fully dimensioned and drawn to a suitable scale that clearly depicts the proposed construction, demolition or change of use;

6.1.3.3. be in the form of an *electronic submission*; and

6.1.3.4. contain information and text that is clear and legible.

6.2. Upon issuance of the building *permit*, the *owner* or authorized agent of the *owner* shall ensure that a hard copy of the *permit* card and approved *permit* plans are available on site at all times. Hard copies of the approved plans are required to be printed in colour, to the appropriate drawing scale, and be legible.

6.3. On the completion of the foundation for a detached, semi-detached, triplex, or townhouse dwelling, the *Chief Building Official* may require submission of a survey prepared by an Ontario Land Surveyor indicating the location of the *building* to all property lines, and elevations of the bottom and top of the foundation wall, including the garage cut, prior to a framing inspection being undertaken.

6.4. On completion of the construction of a *building*, the *Chief Building Official* may require the *applicant* to submit a set of as constructed plans, including a plan of survey showing the location of the *building*.

6.5. Plans and specifications submitted in accordance with this By-law or otherwise required by the *Act* become the property of the *Corporation* and will be disposed of or retained in accordance with relevant legislation or by-law.

7. AUTHORIZATION OF ALTERNATIVE SOLUTIONS

7.1. Where approval for an alternative solution under the *building code* is proposed in either the application for a *permit*, or in a material change to a plan, specification, document or other information on the basis of which a *permit* was issued, the *applicant* shall submit:

7.1.1. an application on a form prescribed by the *Chief Building Official*;

7.1.2. supporting documentation demonstrating that the proposed alternative solution will provide the level of performance required by the *building code*; and

7.1.3. payment of the required fee prescribed by Schedule “A”

7.2. The *Chief Building Official* or *Registered Code Agency* may accept or reject any proposed alternative solutions and/or may impose conditions or limitations on their use.

7.3. Alternative solutions which are accepted under this part shall be applicable only to the location as described in the application and are not transferable to any other building *permit*.

8. FEES AND REFUNDS

8.1. General

8.1.1. The *Chief Building Official* or their designate shall determine the required application fees in accordance with Schedule “A” to this By-law. All fees shall be paid in full at the time of acceptance of the *permit* application.

8.1.2. The *Chief Building Official* shall not issue a *permit* until the fees required by this By-law have been paid in full by the *applicant*.

8.1.3. Where the amount of a fee to be paid, as part of a *permit* application, is to be based upon the type of *building permit*, floor area and/or value of the proposed construction, the *Chief Building Official*, or their designate, shall determine the amount of the fee and that determination shall be final.

8.1.4. In the case of withdrawal or abandonment of an application, or refusal or revocation of a *permit*, and upon written request by the *applicant*, the *Chief Building Official* may refund any unearned fees which shall be calculated in accordance with Schedule “A” to this By-law.

8.1.5. Fees shall be increased each year effective on the first day of January of each year by the percentage equal to the *Municipal Price Index*. Flat rate fees shall be rounded to the nearest dollar amount, increments of half dollar and greater shall be rounded up. All other fees shall be rounded to the nearest cent.

8.2. Re-Examination Fee and Alternative Solution Fee

8.2.1. In addition to the fees paid at the time of *building permit* application, where an *applicant* makes a *revised submission* for a proposed *building* design after examination of a previous submission has already been undertaken, a re-examination fee may apply as set out in Schedule “A” to this By-law.

8.2.2. Where an *applicant* makes a *revised submission* for one or more changes to the as-constructed design of a *building* or part of a *building* for which a *permit* has already been issued, a re-examination fee may apply as set out in Schedule “A” to this By-law.

8.2.3. Where an *applicant* submits an alternative solution to a material, system or design, an examination fee shall apply as set out in Schedule “A” to this By-law.

8.3. **Additional Inspection Fee**

An additional inspection fee as set out in Schedule “A” to this By-law shall apply and shall be paid prior to each subsequent inspection being undertaken on any *building*, where,

8.3.1. Any of the prescribed notice requirements under the *building code* or the additional notices required under this By-law have not been complied with by a *permit holder*;

8.3.2. More than two inspections for the same stage of construction are required due to the construction being incomplete or not in compliance with the *building code*;

8.3.3. Where an inspector determines that work for which an inspection has been requested is not sufficiently complete to allow proper inspection, or drawings in accordance with Section 6.3 of this By-law have not been provided.

8.3.4. A *building* is occupied prior to the notice under Section 11 of the *Act* was given to the *Chief Building Official*.

8.4. **Partial Occupancy Fee**

Partial Occupancy of unfinished *building*s issued under Division C, Part 1, Subsection 1.3.3 of the *building code* will be charged a fee as set out in Schedule “A” to this By-law, and,

8.4.1. The *Chief Building Official* may impose conditions on a *partial occupancy permit*;

8.4.2. The *Chief Building Official* may revoke a *partial occupancy permit* if the *permit holder* fails to comply with the conditions imposed by the *Chief Building Official*;

8.4.3. The *Chief Building Official* may revoke a *partial occupancy permit* if the *owner* fails to comply with any *permit* relating to the *building*.

8.5. ***Permit* Surcharge**

8.5.1. A *permit* surcharge, in addition to the regular calculated fee, shall be charged in accordance with Schedule “A” to this By-law, to offset additional investigative and administrative costs, where any person has commenced construction, demolition or changes to the use of a *building* prior to having submitted an application for a *permit*, or before having received a *permit*, in addition to any other penalty under the *Act*, *building code*, or this By-law.

8.5.2. Payment of these fees does not relieve any person or corporation from complying with the *Act*, the *building code,* or any applicable law.

8.6. **Order on Title**

Where an Order issued under the *Act* is registered on the title to the property, an additional fee as set out in Schedule “A” to this By-law shall apply for the registration of the Order on title, and for the discharge of an Order from title.

9. REVISIONS TO *PERMITS*

9.1. After the issuance of a *permit* under the *Act*, the *applicant* shall give notice to the *Chief Building Official* in writing of any change to a plan, specification, document, or other information upon which a *permit* was issued, together with the details of such change. The change shall not be made without the prior written authorization of the *Chief Building Official*.

9.2. Application for authorization of any substantial change shall constitute a *revised submission*.

10. TRANSFER OF *PERMITS*

10.1. Upon change in ownership, *permit* applications and *permit*s must be transferred to the new *owner* (the “transferee”) with the approval of the *Chief Building Official*.

10.2. Every application for the transfer of a *permit* shall,

10.2.0. include a written statement from the current *permit holder* authorizing the transfer of the *permit* to the transferee;

10.2.1. include proof of ownership of the land by the transferee satisfactory to the *Chief Building Official*;

10.2.2. confirm that the work to be done, and the existing and proposed use and occupancy of the *building* or part thereof, for which the application for the transfer of the *permit* is made, is the same as that identified and described on the application of the *permit*;

10.2.3. state the name, address, and telephone number of the proposed transferee;

10.2.4. state the name, address, and telephone number of the proposed designer, architect and/or professional engineer, and their *building code* qualifications, where they are different from those identified in the application for the *permit*, and a written confirmation from those individuals, that they have been retained to undertake general review of the construction or demolition where required under the *building code*;

10.2.5. include, where the proposed transferee is a builder as defined in the Ontario New Home Warranties Plan Act, the proposed transferee’s registration number under that Act;

10.2.6. be accompanied by the appropriate fee in accordance with Schedule “A”; and,

10.2.7. be signed by the proposed transferee who shall certify as to the truth of the contents of the application.

10.3. Upon the issuance of transfer of a *permit* to the transferee, the transferee shall be deemed to be the *permit holder* and the original *permit holder* shall have no further rights or obligations under the *permit*, save and except for any obligations set out in any agreements entered into for the purposes of Clause 8.(3)(c) of the *Act*.

11. REVOCATION

11.1. Prior to revoking a *permit*, the *Chief Building Official* shall give written notice of intention to revoke the *permit* to the *permit holder* to the *permit holder*’s address shown on the application or to such other address as that individual has provided to the *Corporation* for that purpose.

11.2. Following the issuance of the notice described in Section 11.1, the *permit* may be revoked immediately or after a period prescribed by the *Chief Building Official*, and all submitted plans, specifications, documents and other information may be disposed of or, upon written request, returned to the *permit holder*.

11.3. The notice described in Section 11.1 shall be given either personally, by e-mail or by registered mail, and where notice is by registered mail, it shall be deemed to have been given on the fifth day after the day of mailing.

12. NOTICES FOR INSPECTIONS

12.1. Inspection notices required by the *building code* and this By-law shall be made using the *Corporation*’s online *permit* inspection request system or by telephone.

12.2. Inspection notices are required a minimum of two *business days* prior to the stages of construction specified therein and shall be given in accordance with the requirements of Subsection 1.3.5 of Division C of the *building code*.

12.3. The person to whom the *permit* has been issued shall notify the *Chief Building Official* or *Registered Code Agency* where one is appointed, of each stage of construction for which a notice is prescribed by the *building code*.

12.4. Notwithstanding Section 13 of this By-law, the person to whom the *permit* has been issued shall notify the *Chief Building Official* of the date of completion of the *building* or demolition work no more than two days after that date.

12.5. In addition to the notices prescribed in Article 1.3.5.1 of Division C of the *building code*, the person to whom a *permit* has been issued shall give the *Chief Building Official* notice of the readiness for inspection for the following stages of construction, where applicable:

12.5.0. commencement of construction of the *building*

12.5.1. commencement of construction of:

12.5.1.1. masonry fireplaces and masonry chimneys,

12.5.1.2. factory-built fireplaces and allied chimneys, or

12.5.1.3. stoves, ranges, space heaters and add-on furnaces using solid fuels and allied chimneys,

12.5.2. substantial completion of interior finishes, and

12.5.3. substantial completion of exterior cladding.

13. REGISTERED CODE AGENCIES

13.1. The *Chief Building Official* is authorized to enter into and sign contracts for service agreements with *Registered Code Agencies* and appoint them to perform specified functions from time to time in order to maintain the time periods prescribed in Article 1.3.1.3. of Division C of the *building code*.

13.2. A *Registered Code Agency* may be appointed to perform one or more of the specified functions described in Section 15.15 of the *Act*.

14. SPATIAL SEPARATION AGREEMENTS

14.1. The *Chief Building Official* is delegated the power to enter into spatial separation agreements, as set out in Division B, Sentences 9.10.15.2.(4) and (5), and Sentences 3.2.3.1.(8) and (9) of the *building code* with the *owner*s of the properties on which the limiting distance is measured, and execute such agreements on behalf of the *Corporation*.

14.2. An additional fee as set out in Schedule “A” to this By-law shall apply for the review and approval of spatial separation agreements, in addition to the associated legal costs to the *Corporation* for the preparation and registration of the agreement on the title of the properties.

15. FENCING OF CONSTRUCTION AND DEMOLITION SITES

15.1. Where, in the opinion of the *Chief Building Official*, a construction or demolition site presents a hazard to the public, the *Chief Building Official* may require the *permit holder* to erect such fencing to the standards and specifications that the *Chief Building Official* or inspector deems to be appropriate to the circumstances.

15.2. When determining the hazard presented by the construction or demolition site, the necessity for fences, and the height and characteristics of such fences, the *Chief Building Official* or inspector shall have regard for,

15.2.1. the proximity of the site to occupied dwellings;

15.2.2. the proximity of the site to lands accessible to the public, including but not limited to streets, parks, and commercial and institutional activities;

15.2.3. the hazards presented by the construction or demolition activities and materials;

15.2.4. the feasibility and effectiveness of site fencing; and

15.2.5. the duration of the hazard.

15.3. When the *Chief Building Official* is of the opinion that fencing is required, the *permit holder* shall, prior to the commencement of any construction or demolition, erect or cause to be erected fencing to the following standards:

15.3.1. be erected so as to fully enclose all areas of the site which presents a hazard;

15.3.2. create a continuous barrier and be sufficient to deter unauthorized entry;

15.3.3. have a height not less than 1.8 metres above the grade at any point, unless the *Chief Building Official* or inspector determines that a greater minimum height is necessary;

15.3.4. the fence shall be constructed of materials that provide a measure of performance and safety satisfactory to the *Chief Building Official*;

15.3.5. be maintained in a vertical plane and in good repair; and

15.3.6. be located entirely within the subject property lines unless otherwise authorized.

15.4. For the purposes of this Section, a construction or demolition site shall include the area of the proposed construction or demolition and any area where materials or equipment are stored or operated.

16. OFFENCES AND PENALTIES

16.1. Any person who contravenes any provision of this By-law is guilty of an offence and is liable upon conviction to a fine as provided for in the *Act*.

17. SEVERABILITY

17.1. Should any part, section, subsection, clause, or provision of this By-law be declared by a court of competent jurisdiction to be invalid, the same shall not affect the validity of this By-law as a whole or any part thereof, other than the part so declared to be invalid.

18. MISCELLANEOUS

18.1. All schedules shall be and form part of this By-law.

18.2. A reference to the singular or to the masculine shall be deemed to refer to the plural or feminine as the context may require.

19. REPEAL AND TRANSITION

19.1. By-law Number 39-2021 is hereby repealed upon the date that this By-law comes into force.

19.2. Notwithstanding Sections 19.1 and 20.1 of this By-law, for any *complete application* received prior to the effective date of this By-law, the provisions of By-law Number 39-2021 shall remain in force and effect for the purpose of that application.

19.3. Applications that are not *complete application*s as defined in this By-law, shall be subject to the within By-law irrespective of the date the initial application was made.

20. EFFECTIVE DATE

20.1. This By-law shall come into force on the 1st day of October 2023.

READ a first and second time this day of Month, 2023.

READ a third time and passed this day of Month, 2023.

_____
Mayor

_____
Clerk

SCHEDULE "A" TO BY-LAW NUMBER ##-2023

CLASSES OF *PERMITS*, FEES AND REFUNDS

October 1, 2023

1. ADMINISTRATIVE FEES

1.1. The fee for the *pre-application review* of applications shall be $40. This fee is non-refundable and a credit for this fee will be applied to the total building *permit* fee.

1.2. Once a *permit* application has been accepted, the non-refundable fee to transfer the application to a new *permit applicant* or *permit holder* or to change the project address is $40.

1.3. Where a *permit* is issued and remains incomplete 24 months after the date of *permit* issuance, a non-refundable *permit* maintenance fee equal to the minimum fee in accordance with Section 2 of this Schedule, will be charged yearly.

2. MINIMUM FEE

2.1. Except where a flat fee applies, the minimum *permit* fee for any *minor permit* application in Sections A, and B of Table 2 shall be $134.

2.2. Except where a flat fee applies, the minimum *permit* fee for any *moderate permit* application in Sections A, and B of Table 2 shall be $300.

2.3. Except where a flat fee applies, the minimum *permit* fee for any *major permit* application in Sections A, and B of Table 2 shall be $500.

3. CALCULATION OF *PERMIT* FEES

3.1. *Permit* fees shall be calculated on the basis of:

3.1.1. the flat rate where indicated in the Tables of this Schedule;

3.1.2. the product of the applicable fee multiplier in Column 3 of Table 2 of this Schedule and the related floor area or other measure specified in Column 2, or

3.1.3. where a fee is not listed in Table 2, the *permit* fee shall be calculated on the basis of 1.5% of the estimated *construction value*, or as determined by the *Chief Building Official* or their designate.

3.2. Except for classes of *permit*s subject to flat rates, fees shall be based on the appropriate measure of the floor area of the project.

3.3. For any *permit* application for a class of *permit* described under Section B of Table 2, floor area used for the calculation of fees shall be the lesser of:

3.3.1. the area contained within a single rectangle encompassing all of the proposed work, or

3.3.2. the actual area of the tenant space.

3.4. When calculating fees based on floor areas, floor area is measured to the outer face of exterior walls and to the centerline of party walls or demising walls, except when calculating interior partition work. When measuring floor areas for interior partitioning, corridors, lobbies, washrooms, lounges, and other similar facilities are to be included and classified according to the major occupancy classification for the floor area with which they are associated. Where these areas are constructed in a shell-only *building*, fees shall be calculated at the applicable partitioned rate in Table 2.

3.5. When measuring floor area, no deduction shall be allowed for floor openings required for facilities such as stairs, elevators, escalators, shafts and ducts. Interconnected floor spaces and atriums above their lowest level may be deducted from measured floor area.

3.6. Where incorporated with an application for a class of dwelling described in Item A4 of Table 2, no additional fee is required for decks less than 4.5m^2, fireplaces, unfinished basements, attached garages, heating or plumbing systems.

3.7. Where incorporated with an application for a class of *permit* described under Section A and B of Table 2, no additional fee shall be levied for mechanical, fire protection or green technology systems that form part of the work proposed under the application.

3.8. The occupancy classifications used in this By-law are based on the *building code* major occupancy classifications. For mixed occupancy classifications, the total payable fee shall be calculated by applying the fee multiplier for each occupancy prescribed in Table 2 to the floor area measured for each individual occupancy and taking the sum of the fees calculated for each occupancy.

3.9. As deemed necessary by the *Chief Building Official*, where an independent third party is engaged to provide review of a document or drawing submitted with a *permit* application, alternative solution proposal, perform an inspection, or *partial occupancy permit*, the *Corporation* may require that all or part of the associated costs be fully paid by the *applicant.*

3.10. Notwithstanding anything to the contrary in this By-law, construction or alteration of all *buildings* and structures on lands owned by the *Corporation*, and is funded, in part or in whole, by the *Corporation* shall not be subject to *permit* fees.

4. CALCULATION OF REFUNDS

4.1. Pursuant to Subsection 8.1.4 of this By-law, refunds shall be calculated as follows:

Refund = [total *permit* fees payable x % functions undertaken]

4.2. The *permit* fee refund payable shall be proportionate to the functions undertaken by the *Corporation* in accordance with the following:

4.2.1. 80% if administrative functions only have been performed;

4.2.2. 70% if administrative functions and internal department review (ie. zoning, site plan control, grading, etc.) have been performed;

4.2.3. 50% if administrative functions, internal department review (ie. zoning, site plan control, grading, etc.), and all or part of the *building code* review have been performed; and,

4.2.4. 40% if all administrative functions and reviews have been completed and the *building permit* has been issued or is available to be issued.

4.3. Notwithstanding the foregoing, no refund is available:

4.3.1. where a flat fee is charged;

4.3.2. where the amount calculated in accordance with Schedule “A” to this By-law is the minimum fee, or less than the minimum fee;

4.3.3. where a *permit* is revoked, except where a *permit* is issued in error, or the *applicant* requests revocation no more than twelve months after the *permit* is issued, or;

4.3.4. applications or *permit*s where construction or demolition has commenced.

4.4. Any refund shall be paid to the *permit holder*, unless that person directs the *Chief Building Official*, in writing, and prior to the release of the refund, that it be refunded to another person.

4.5. Pursuant to Part 13 of this By-law, 20% of the applicable *permit* fee paid shall be refunded where an application was made using a *Registered Code Agency* appointed under a service agreement with the *Chief Building Official*, those services are fully paid for by the *applicant* and have been completed in accordance with the *building code*, and the final certificate as defined by the *Act* has been submitted to the *Chief Building Official*.

Table 1 – Fees Payable for Applications and *Permit*s

Forming Part of Schedule "A"

October 1, 2023

Classes of *Permit*s and *Permit* Fees			
Item	Class of *Permit*	By-law Reference	Fee Payable
1.	*Building Permit*	5.2 Schedule A - Part 2.	See Schedule "A" - Table 2 Minimum fee payable: *Minor Permits* - $134 *Moderate Permits* - $300 *Major Permits* - $500
2.	Demolition *Permit*	5.3	$0.23 per square metre of floor area
3.	*Permit* for a Stage of Construction (Partial *Building Permit)*	5.4	An amount equal to 10% of the *building permit* fee for each phase of construction. Minimum fee in accordance with Item 1 of this table Maximum fee is $500 *Partial permit* fees are non-refundable.
4.	Conditional *Building Permit*	5.5	An amount equal to 10% of the *building permit* fee. Minimum fee in accordance with Item 1 of this table Maximum fee is $1000 *Conditional permit* fees are non-refundable.
5.	Change of Use *Permit* (No construction proposed)	5.6	$300 flat fee
6.	Site Servicing *Permit*	5.7	An amount equal to 1.60% of the estimated *construction value* of the servicing
7.	Signs *Permit* (regulated by the *building code*)	5.8	$250 per sign
8.	Occupancy *Permit* for an Unfinished *Building*	8.4	$500 flat fee
Administrative and other *Permit* Fees			
Item	Fee Type	By-law Reference	Fee Payable
9.	Resubmission of application previously found to be incomplete.	5.10	25% of *permit* fee
10.	Revision to application or *permit*	8.2	$150 per hour The minimum fee for the review shall be the minimum fee in accordance with Item 1 of this table
11.	Alternative Solution Examination Fee	8.2	$150 per hour (minimum 1 hour for houses, and 4 hours for other buildings). Alternative Solution fees are nonrefundable.
12.	Inspection Fee - Additional	8.3	$150 per inspection
13.	*Permit* Surcharge	8.5	The greater of: a) Surcharge of 25% of the *permit* fee when construction has begun and a *permit* application has been received; b) Surcharge of 50% of *permit* fee when construction has begun and no *permit* application has been received, or c) Minimum fee in accordance with Item 1 of this table
14.	Registration and/or Discharge of an Order on/from Title	8.6	$300 flat fee (each)
15.	Transfer of *Permit*	10	$134 flat fee
16.	Spatial Separation Agreements	14	$300 flat fee

Table 2 – *Permit* Types and *Permit* Fees

Forming Part of Schedule "A"

October 1, 2023

Item	Occupancy Classification and Work Description		Multiplier	Flat Fee
	Section A: CONSTRUCTION of new *buildings*, additions to existing *buildings*, including mezzanines			
A1	Group A - Assembly	Shell Only(1)	$8.22	
A2	Group A	Complete *Building* (partitioned, finished, mezzanine)	$16.47	
A3	Group B – Institutional	All Types	$14.95	
A4	Group C – Residential	Detached, Semi-Detached, Duplex, Triplex, Townhouse	$12.96	
A5		Multiple Unit *Building*s (<5 Storeys)	$10.38	
A6		Multiple Unit *Building*s (≥ 5 Storeys)	$7.80	
		Motel, Hotel	$12.96	
A7	Group D – Business and Personal Services	Shell Only(1)	$8.22	
A8		Complete *Building* (partitioned, finished, mezzanine)	$14.00	
A9	Group E – Mercantile	Shell Only(1)	$8.22	
A10		Complete *Building* (partitioned, finished, mezzanine)	$13.00	
A11	Group F – Industrial	Shell Only(1)	$5.66	
A12		Complete *Building* (partitioned, finished, mezzanine)	$7.52	
A13		Unserviced Storage *Building*	$4.40	
A14		Parking Garage	$3.50	
A15		Farm *Building*	$3.50	
A16	All Occupancies	Service Floors	$4.00	
	Section B: ALTERATION, REPAIR and OTHER STRUCTURES			
B1	Group A – Assembly		$8.00	
B2	Group B – Institutional		$6.30	
B3	Group C – Residential	Accessory Dwelling Unit	$8.81	
B4		*Retrofit Accessory Apartment*		$134
B5		All other Residential Occupancies	$6.52	
B6	Group D – Business and Personal Services		$7.10	
B7	Group E – Mercantile		$5.14	
B8	Group F – Industrial		$4.16	
B9		Accessory Utility *Building* (garden shed, gazebo)		$134
B10		Below Grade Entrance		$300
B11		Detached or Semi-detached Carport/Garage(2)		$200
B12		Deck/Platform/Porch (unenclosed)		$134
B13		Foundation/Unfinished Basement	$4.00	
B14		Permanent Tent/Air Supported Structure	$4.00	
B15		Retaining Wall (per metre of length or part thereof)	$11.00 $800 min.	
B16		Single, Detached Portable Classroom		$500
B17		Temporary *Building* or Tent(3)		$500
B18		Temporary Sales Structure		$500
	Section C: MISCELLANEOUS			
C1	Residential Service Connections	Service Connection (per lot)		$134
C2	Solar Panels	Serving Individual Dwellings		$134
C3		Serving all other *Buildings*		$434
C4		Balcony Guard Replacement/Repair (per metre of length)	$1.50	
C5		Electromagnetic Locking Device (each)		$200/ea. $800 max.
C6		Fireplace/Woodstove		$134
C7		Parking Structure Repair	$1.00	
	Column 1	2	3	4

Notes:

1. A shell *building* is defined as consisting of the foundation, structural framing system, exterior envelope, and roughed-in building services such as heating, ventilation, and air conditioning (HVAC) system, fire protection system, plumbing facilities, etc.
2. Applies to *building*s equal to or greater than 20m^2 in *building* area.
3. Except for temporary *buildings* on construction sites for office or sales purposes, fees for temporary *buildings*, including tents, apply to *buildings* erected for 30 days or less.

SCHEDULE "B" TO BY-LAW NUMBER ##-2023

DOCUMENTS & DRAWINGS REQUIRED FOR A *COMPLETE APPLICATION*

Row	Class of *Permit*	Documents and Drawings Required
1	**All *Permit*s**	**Documents** a. Building Permit Application Form* (not required for *electronic submission*s) b. Applicable Law Checklist* c. Permit Applicant Authorization Form*
2	***Permit* to *Construct* *Housing*** New *Building*s; Detached Houses; Semi-Detached Houses; Duplex/Triplex, Townhouses • New *Building*s • Additions • Alterations • Accessory *Building*s or Structures	**Documents** a. Approval documents required by an applicable law b. TARION 'Declaration of *Applicant* for *Building* Permit' c. Heat loss/heat gain/duct calculations (per dwelling unit) d. Residential Mechanical Ventilation Summary* **Drawings** a. Site Plan b. Site Grading Plan c. Architectural Drawings (including block floor plans for each floor, block roof plans and block elevations for townhouse blocks) d. Structural Drawings (including pre-engineered beam shop drawings) e. Roof truss / Pre-engineered floor system shop drawings (including block plans for townhouse blocks) f. HVAC Drawings (per dwelling unit) g. On-site Sewage System approval (where required)
3	***Permit* to *Construct*** • Additions/Alterations • Accessory *Building*s **Residential as in Row 1(a)**	**Documents** a. Approval documents required by an applicable law b. Heat loss/heat gain/duct calculations c. Residential Mechanical Ventilation Summary* **Drawings** a. Site Plan b. Site Grading Plan c. Architectural Drawings d. Structural Drawings (including pre-engineered beam shop drawings) e. Roof truss / Pre-engineered floor system shop drawings f. HVAC Drawings g. On-site Sewage System approval (where required)
2(a)	***Permit* to *Construct*** • New *Building*s • Additions **Non-residential *building*s** **Residential apartment *building*s** **Mixed use *building*s** **Other residential *building*s not described in Row 1(a)**	**Documents** a. Approval documents required by an applicable law b. Commitment to General Reviews by Architects and Engineers* c. Subsurface investigation report d. Heat loss/heat gain/duct calculations e. Energy Efficiency Certification Form* **Drawings** a. Site Plan b. Site Servicing / Site Grading Plan c. Architectural Drawings d. Structural Drawings e. HVAC Drawings f. Plumbing Drawings

		g. Electrical Drawings h. Fire Protection System Drawings i. On-site Sewage System approval (where required)
2(b)	***Permit* to *Construct*** • Alterations • Tenant Improvements **Non-residential *building*s and other residential *building*s not described in Row 1(a)**	**Documents** a. Approval documents required by an applicable law b. Commitment to General Reviews by Architects and Engineers* c. Heat loss/heat gain/duct calculations **Drawings** a. Site Plan b. Key Plan c. Architectural Drawings d. Structural Drawings e. HVAC Drawings f. Plumbing Drawings g. Electrical Drawings h. Fire Protection System Drawings i. On-site Sewage System approval (where required)
3	***Permit* to *Construct*** • Tents/Air Supported Structures • Mechanical Only *Permits* • Plumbing Only *Permits* • Designated Structures • Farm *Building*s • Green Energy Projects • Signs • Site Servicing • Other than rows 1, 2 and 4	**Documents** a. Approval documents required by an applicable law b. Documents from rows 1(a) to 2(b) or other documents which are applicable to the scope of work proposed and required by the *Chief Building Official* to determine compliance with the *building code* and other applicable law. c. *Site Inspection Clearance Certificate* (Site Servicing only) **Drawings** a. Drawings from rows 1(a) to 2(b) which are applicable to the scope of work proposed and required by the *Chief Building Official* to determine compliance with the *building code* and other applicable law.
4	***Permit* for Change of Use**	**Documents** a. Approval documents required by an applicable law b. Commitment to General Reviews by Architects and Engineers* **Drawings** a. Site Plan b. Key Plan c. Architectural Drawings d. HVAC Drawings
5	***Permit* to *Demolish***	**Documents** a. Approval documents required by an applicable law b. Commitment to General Reviews by Architects and Engineers* c. *Site Inspection Clearance Certificate* **Drawings** a. Site Plan b. Demolition Plan (where required)

Notes:

1. Documents marked with an asterisk (*) are available from the *Chief Building Official*.
2. The *Chief Building Official* may waive the requirement for any specified documents or drawings where the scope of work, applicable law or *building code* does not, in the opinion of the *Chief Building Official*, necessitate its submission.

SCHEDULE "C" TO BY-LAW NUMBER ##-2023

CODE OF CONDUCT FOR THE *CHIEF BUILDING OFFICIAL* AND INSPECTORS

1. PURPOSE OF THE CODE OF CONDUCT

1.1. To promote appropriate standards of behaviour and enforcement actions by the *Chief Building Official* and inspectors in the exercise of a power or the performance of a duty under the *Act* or the *building code*.

1.2. To prevent practices which may constitute an abuse of power, including unethical or illegal practices, by the *Chief Building Official* and inspectors in the exercise of a power or the performance of a duty under the *Act* or the *building code*.

1.3. To promote appropriate standards of honesty and integrity in the exercise of a power or the performance of a duty under the *Act* or the *building code* by the *Chief Building Official* and inspectors.

2. CODE OF CONDUCT

2.1. In exercising powers and performing duties under the *Act*, the *Chief Building Official* and inspectors, at all times, shall:

2.1.1. Promote the safety of *building*s with reference to public health, fire protection, structural sufficiency, conservation and environmental integrity, and barrier-free accessibility;

2.1.2. Apply the *Act* and the *building code*, and all applicable laws, regulations and standards in an impartial, consistent and fair manner, independent of the influence of interested parties or members of Council, and without regard to personal interests;

2.1.3. Maintain confidentiality in accordance with laws governing the freedom of information and the protection of privacy;

2.1.4. Obtain the counsel of persons with expertise where the *Chief Building Official* or inspector does not possess sufficient knowledge to make an informed judgment;

2.1.5. Act honestly, reasonably and professionally in the performance of their duties;

2.1.6. Act within the area of qualification obtained under the *Act* and maintain required legislated qualification;

2.1.7. Keep up to date on current *building* practices through continuous education; and

2.1.8. Comply with the provisions set out within the *Corporation* Employee Code of Conduct.

3. ENFORCEMENT GUIDELINES

3.1. The *Act* prescribes that the conduct of the *Chief Building Official* and the inspectors will be measured against this Code of Conduct. Any appointed *Chief Building Official* or inspector who fails to act in accordance with the provisions of this code may be subject to disciplinary action appropriate to the seriousness of the breach. All allegations concerning a breach of this code shall be made in writing.

3.2. In response to any allegation of a breach of this code, the *Chief Building Official*, in consultation with the Manager of HR Services shall direct an investigation and where appropriate, recommend disciplinary action against any inspector who fails to comply with this code. Where allegations of a breach of this code is against the *Chief Building Official*, the matter shall be brought to the attention of the Director of Planning and Development Services. Where allegations of a breach of this code is against a member of the Fire Service, the matter shall be brought to the attention of the Fire Chief.

3.3. Any *Chief Building Official*, Director of Planning and Development Services or Fire Chief who receives a written complaint alleging a breach of this code shall investigate the matter, and where appropriate shall commence disciplinary action in accordance

with the *Corporation* policies, procedures or applicable collective agreements. All communications received by a *Chief Building Official*, Director of Planning and Development Services or Fire Chief concerning a breach of this code shall be held in confidence. The *Chief Building Official*, Director of Planning and Development Services or Fire Chief shall advise the Office of the Chief Administrative Officer in writing about the particulars of the alleged breach, its investigation and the final disposition of the matter upon its conclusion.

4. PUBLIC NOTICE OF THE CODE OF CONDUCT

4.1. The *Act* states that the code must be brought to the attention of the public.

4.1.1. Building Approvals will advertise the Code of Conduct on an ongoing basis via the *Corporation* website and post in a conspicuous location.

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Cameron Richardson, Supervisor of Environmental Sustainability & Climate Change
Report #:	PDS-2023-30
Subject:	**Textile Diversion Program – Implementation Update**
Ward(s):	All
Date of Meeting:	September 11, 2023
Reference:	GGC – May 10, 2021 (Textile Diversion Program – PDS-2021-22)

Recommendation:

1. **That the report to General Government Committee, dated September 11, 2023, entitled "Textile Diversion Program – Implementation Update" be received for information.**

1. Background:

In March 2021, Council directed staff to investigate options to implement a textile diversion program in the Town of Ajax. Following this direction, staff undertook detailed background research and consultations with community organizations and several local and regional municipalities to identify key considerations and barriers to developing a textile diversion program. In May 2021, Council unanimously approved the Textile Diversion Program Implementation Plan and corresponding actions (Report # PDS-2021-22). The plan identified five distinct implementation phases, each of which has key milestones to monitor implementation and success.

2. Discussion:

2.1 Textile Diversion Program Implementation Highlights

The Town of Ajax continues to showcase leadership in the community to encourage positive behavioural change associated with textile diversion.

a) Textile Diversion Program Web Portal

In October 2021, to celebrate the 20th anniversary of Waste Reduction Week in Canada, the Town launched the Textile Diversion Program web portal to help residents live a zero-waste lifestyle. The portal provides information on what textile items can be donated, where to find donation drop-off locations, how to schedule at-home donation pick-ups, and how to sell or

purchase once-loved textiles. The web portal also provides educational and government resources on reducing waste and diverting textiles from landfill and will continue to be updated as required.

b) Reporting Illegal Collection Bins

In May 2023, the Textile Diversion Program web portal was updated to provide detailed information on how to identify and report illegal textile collection bins within the Town of Ajax. To complement this information, a dedicated issue selection for textile collection bins was added to both the Report an Issue website as well as the AppJax app.

c) Textile Collection Drives

To help raise awareness around textile waste, textile collection drives can be an important outreach tool to involve staff and residents in diversion efforts. In 2022, a staff textile collection drive helped divert 414 pounds of clothing and household textiles for re-use and recycling. The 2023 staff textile drive will take place in October 2023. In addition, a community-wide textile collection event, hosted in partnership with the Region of Durham, was part of the 2023 Ajax Green Living Days programming. Textile collection drives will continue to be held on an ongoing basis in partnership with charitable organizations and other partners.

2.2 Textile Diversion Program Implementation Progress

The following provides an update on the implementation progress and status of the action items identified in the Textile Diversion Program Implementation Plan.

Action Items	**Status**
Phase I: Spring 2021 - Fall 2021	
Endorse a Council Charter on Textile Waste Diversion, and subsequent public-facing communications campaign.	Complete
Develop content for a dedicated Textile Diversion page on the Town's Environmental Sustainability website and launch the dedicated page prior to Waste Reduction Week in October 2021.	Complete
Complete a public survey, similar to the one completed by City of Markham, to determine the baseline knowledge of textile diversion options within the community and to identify any existing barriers to increasing textile diversion rates.	Complete
Leverage the Town's Green Team to educate staff on proper textile diversion practices to increase diversion rates at their work locations and at home.	Complete and Ongoing
Phase II: Fall 2021 – Winter 2021	
Work collaboratively with By-Law Services to assess the existing Donation Bin standards within the Clean Community By-Law and update if required.	Complete

Work collaboratively with Operations and By-Law Services to investigate the feasibility of removing illegal bins when reported.	Complete
Educate Town staff and Town residents on how to identify illegal donation bins and report them for removal through the appropriate means (i.e. AppJax).	Complete
Phase III: Winter 2022 - Fall 2022	
Complete a scan of existing, publicly available textile donation bin locations within the Town of Ajax and promote their locations on the dedicated Textile Diversion webpage.	Complete
Complete a scan of existing, publicly available, household pick-up options and promote these options, including how to schedule them, on the dedicated Textile Diversion webpage.	Complete
Phase IV: Fall 2022 – Winter 2022	
Work collaboratively with By-Law Services, Facilities and Operations to investigate the feasibility of initiating a licensing program for charitable textile donation organizations to operate Town of Ajax-branded donation bins on Town property (similar to the City of Markham program).	Complete
Analysis of the impact of the Region of Durham's finalized Long-Term Waste Management Plan and identification of any required changes to the Textile Diversion Program.	Complete
Report to Council to provide an update on the progress of implementation of the Textile Diversion Program by Fall 2022 and adaptively manage the program as required.	Complete
Phase V: Ongoing	
Continuous improvement for internal waste diversion and ongoing compliance with internal policies and procedures related to waste management.	Ongoing
Participation in consultations related to the Town's textile program held by other levels of government, including the Region of Durham, the Province of Ontario, and the Government of Canada.	Ongoing
Encouragement of residents, businesses, stakeholders and community partners to increase their textile diversion through leadership and public communications.	Ongoing

2.3 Relationship to the Region's Long Term Waste Management Plan

The Region of Durham's *2022 to 2040 Long-Term Waste Management Plan* (LTWMP) recognizes that 7% of the garbage created by a single-family home is comprised of textiles that can ultimately be diverted from landfill. The LTWMP also identifies the goal of reducing textiles in garbage by up to 5% (as a percentage of garbage stream) by 2026. To achieve this target, the Region will focus on maximizing diversion of textiles by developing innovative ways to use waste as a resource in a circular economy, providing enhanced resident education and engagement opportunities, working collaboratively with local area municipalities, and advocating for the transition to Extended Producer Responsibility for certain textile items such as mattresses.

2.4 The 5Rs

Recently, the traditional 3Rs (Reduce, Reuse, Recycle) has been expanded to the 5Rs to communicate the steps needed to achieve a sustainable, zero-waste lifestyle. The 5Rs will be incorporated into all public education and communications related to any waste diversion program or campaign including educational websites, webinars, and events. The 5Rs include:

- Rethink – The first step to waste diversion is to rethink daily choices to eliminate unnecessary purchases, limit necessary purchases, and switch to more eco-friendly alternatives.
- Reduce – Limit the waste you produce.
- Reuse – Switch from using disposable or single-use items to items that are reusable or investigate opportunities to repurpose an item.
- Recycle – Following the first 3Rs, recycle items through proper methods.
- Recover – Utilize waste to recover any resources possible (i.e., Energy from Waste)

Engaging with residents to build an understanding of the 5Rs is one of the objectives identified within the Region of Durham's LTWMP.

3 Financial Implications:

There are no financial implications associated with the approval of this report.

4 Communication Issues:

The Textile Diversion Program, and other waste-related programs, will continue to require substantial communication to both internal and external stakeholders. The Town will leverage its Corporate Communications group and Environmental Sustainability and Climate Change team to help educate and engage staff on waste diversion and shared responsibilities. Externally, staff will focus on the promotion of the Town's leadership, sustainability undertakings, and successes to all relevant stakeholders including residents, community partners, local businesses, and other levels of government.

5 Relationship to the Strategic Plan:

This report aligns with the following sections of the 2022-2026 Strategic Plan – Action26:

Pillar: 3. Modernizing our Community
Priority: 1. Lead the green transition
1.1 Raise awareness of environmentally friendly practices and programs

6 Conclusion:

The Town of Ajax will continue to exemplify strong leadership and advocacy to fulfill our vision of becoming a sustainable community. Cross-collaboration between all departments, other municipalities, and government partners will be required to ensure that the Town of Ajax maximizes opportunities to increase waste diversion.

Attachments:

N/A

Prepared by:

Cameron Richardson – Supervisor of Environmental Sustainability & Climate Change – ext. 3229

Submitted by:

Geoff Romanowski, MCIP, RPP, CPT – Director, Planning and Development Services

Approved by:

Shane Baker – Chief Administrative Officer

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Stephen Ruddy, Manager of Development Engineering
Report #:	PD-2023-31
Subject:	**Porte Road Closure**
Ward(s):	3
Date of Meeting:	September 11, 2023
Reference:	March 2, 2020 CAP Report Official Plan Amendment OPA18-A3 Zoning By-law Amendment Z5-18 Draft Plan of Subdivision S-A-2018-02

Recommendation:

1. **That staff be authorized to proceed with the stop-up and closure of Porte Road.**

1. Background:

In September 2018, Bayley Salem Developments Limited (Fieldgate Homes), submitted an official plan amendment, zoning by-law amendment, draft plan of subdivision and site plan applications to permit the development of approximately 327 residential units on vacant lands at the northwest corner of Bayly Street East and Salem Road North municipally known as 459, 467, and 473 Porte Road and 202, 214, 230, 240 and 2950 Bayly Street East (see Figure 1: Subject Lands). These units will be realized through various built forms, being double-fronted street townhouses, back-to-back townhouses, stacked townhouses (all of which are to be 3-storeys in height) and a future 6-storey seniors residence. Other aspects of the development proposal include a future development block for a future motor vehicle gas bar and a park block.

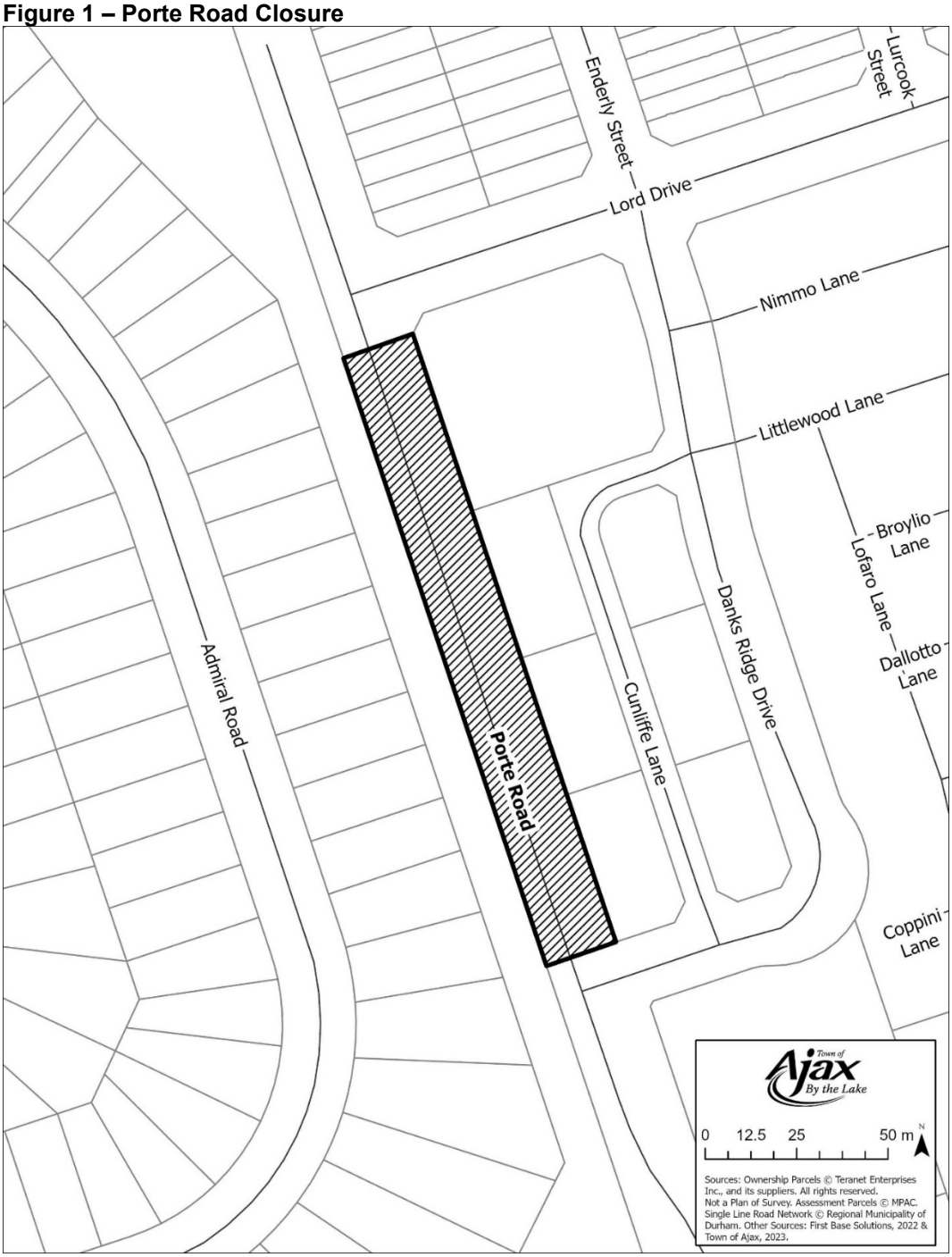
The development is currently well under construction and occupancy of some units has started.

2. Discussion:

A key design component of this development is the realignment of Porte Road. It was determined that Porte Road, south of Lord Drive, is no longer essential from a transportation service and road connectivity perspective. Through this development, Porte Road would be stopped-up and closed from Lord Drive to the intersection of Danks Ridge Drive and developed into a linear park.

Figure 1 highlights the section of Porte Road that is to be closed and ultimately turned into a linear park.

Figure 1 – Porte Road Closure



A Stop-up and closure By-law will be brought to Council at the September 18, 2023 Council meeting. The attached 40R plan shows the section of road to be closed in detail.

3. Financial Implications:

There are no Financial Implications associated with this report or the closure or Porte Road. There will be capital costs associated with the future construction of the linear park, which have been identified in the 2023 Capital Budget and 2024-2032 Long Range Capital Forecast.

4. Communication Issues:

Notice of the closure was posted on the Community Page of the News Advertiser 2 weeks ahead of the Council meeting and was run for 2 weeks in the paper. Notices have also been distributed through social media and the Town's webpage.

5. Relationship to the Strategic Plan:

N/A

6. Conclusion:

It is the recommendation of staff that Council approve the stop-up-and-close some of the noted section of Porte Road in accordance with the provisions of the Municipal Act.

Attachments:

ATT-1: 40R-32221

Prepared by:

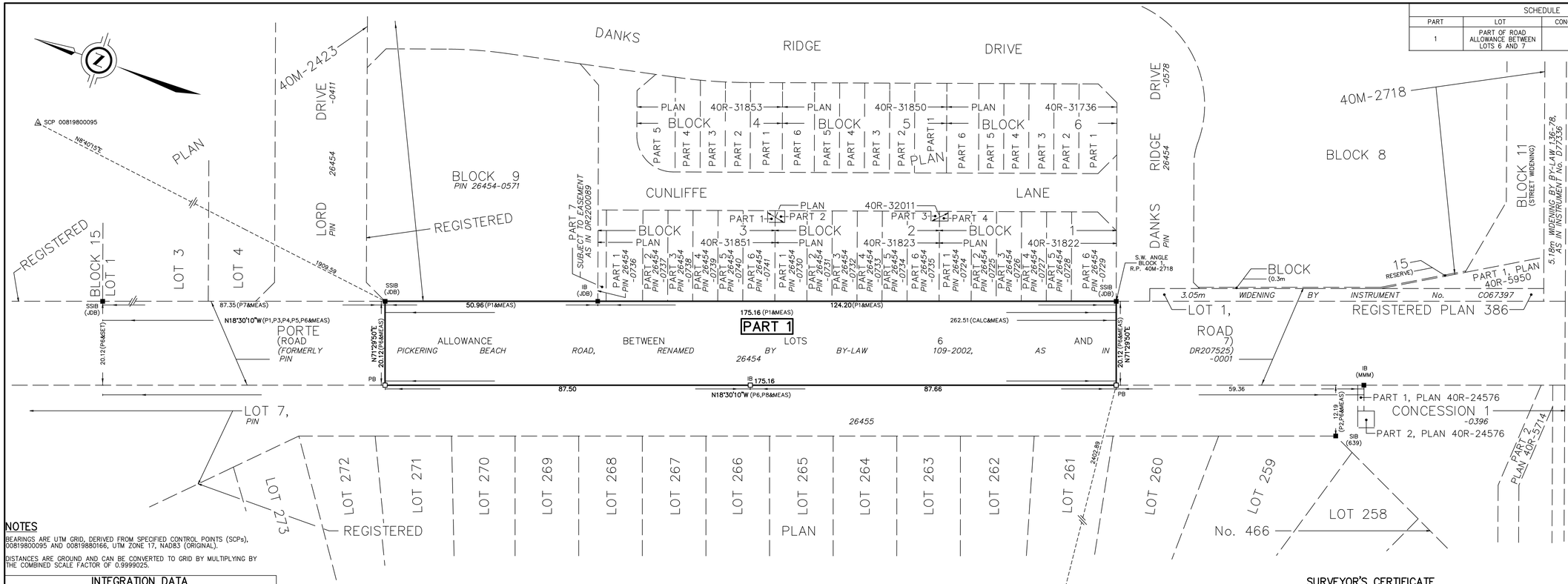
Stephen Ruddy, P. Eng. – Manager of Development Engineering

Submitted by:

Geoff Romanowski, MCIP, RRP, CPT – Director of Planning and Development Services

Approved by:

Shane Baker – Chief Administrative Officer



SCHEDULE			
PART	LOT	CONCESSION	PIN
1	PART OF ROAD ALLOWANCE BETWEEN LOTS 6 AND 7	1	PART OF PIN 26454-0001

PLAN 40R-32221

Received and deposited

June 7th, 2023

Tom Berube

Representative for the Land Registrar for the Land Titles Division of Durham (No.40)

PLAN OF SURVEY OF

PART OF THE ROAD ALLOWANCE BETWEEN LOTS 6 AND 7 CONCESSION 1

(GEOGRAPHIC TOWNSHIP OF PICKERING)

NOW IN THE

TOWN OF AJAX

REGIONAL MUNICIPALITY OF DURHAM

SCALE 1 : 500

10 0 10 20 30 metres

THE INTENDED PLOT SIZE OF THIS PLAN IS 915mm IN WIDTH BY 356mm IN HEIGHT WHEN PLOTTED AT A SCALE OF 1:500

J.D. BARNES LIMITED

METRIC DISTANCES AND/OR COORDINATES SHOWN ON THIS PLAN ARE IN METRES AND CAN BE CONVERTED TO FEET BY DIVIDING BY 0.3048.

LEGEND

■	DENOTES	SURVEY MONUMENT FOUND
□	DENOTES	SURVEY MONUMENT SET
SIB	DENOTES	STANDARD IRON BAR
SSIB	DENOTES	SHORT STANDARD IRON BAR
IB	DENOTES	IRON BAR
MEAS	DENOTES	MEASURED
JDB	DENOTES	J.D. BARNES LIMITED
MMM	DENOTES	MMM GEOMATICS ONTARIO LIMITED, O.L.S.
639	DENOTES	J.M. LEITCH, O.L.S.
P1	DENOTES	REGISTERED PLAN 40M-2718
P2	DENOTES	REGISTERED PLAN No. 466
P3	DENOTES	PLAN 40R-31822
P4	DENOTES	PLAN 40R-31823
P5	DENOTES	PLAN 40R-31851
P6	DENOTES	PLAN 40R-21565
P7	DENOTES	REGISTERED PLAN 40M-2423
P8	DENOTES	PLAN 40R-24576
CALC	DENOTES	CALCULATED FROM P1 AND P7

ALL SET PB MONUMENTS WERE USED DUE TO PROXIMITY OF UNDERGROUND UTILITIES IN ACCORDANCE WITH SECTION 11 (4) OF O.REG. 525/91.

NOTES

BEARINGS ARE UTM GRID, DERIVED FROM SPECIFIED CONTROL POINTS (SCPs), 00819800095 AND 00819880166, UTM ZONE 17, NAD83 (ORIGINAL).

DISTANCES ARE GROUND AND CAN BE CONVERTED TO GRID BY MULTIPLYING BY THE COMBINED SCALE FACTOR OF 0.9999025.

INTEGRATION DATA

SPECIFIED CONTROL POINTS (SCPs): UTM ZONE 17, NAD83 (ORIGINAL).

COORDINATES TO URBAN ACCURACY PER SECTION 14 (2) OF O.REG 216/10.

POINT ID	EASTING	NORTHING
SCP 00819800095	660 279.47	4 858 886.84
SCP 00819880166	657 632.53	4 856 642.36

COORDINATES CANNOT, IN THEMSELVES, BE USED TO RE-ESTABLISH CORNERS OR BOUNDARIES SHOWN ON THIS PLAN.

THE RESULTANT TIE BETWEEN SCP 00819800095 AND SCP 00819880166 IS 3470.79m N49°42'10"E

FOR BEARING COMPARISONS, THE FOLLOWING COUNTER-CLOCKWISE ROTATIONS WERE APPLIED TO CONVERT BEARINGS TO GRID:

COUNTER-CLOCKWISE ROTATION	PLAN
1°18'29"	P2
1°18'30"	P8

SURVEYOR'S CERTIFICATE

I CERTIFY THAT:

1. THIS SURVEY AND PLAN ARE CORRECT AND IN ACCORDANCE WITH THE SURVEYS ACT, THE SURVEYORS ACT AND THE LAND TITLES ACT AND THE REGULATIONS MADE UNDER THEM.
2. THE SURVEY WAS COMPLETED ON MAY 30, 2023.

JUNE 1, 2023
DATE

G.C. Laframboise
GABRIEL LAFRAMBOISE
ONTARIO LAND SURVEYOR

THIS PLAN OF SURVEY RELATES TO AOLS PLAN SUBMISSION FORM NUMBER V-51570

J.D.BARNES LIMITED
SURVEYING MAPPING GIS
LAND INFORMATION SPECIALISTS
110 SCOTIA COURT, UNIT 38, WHITBY, ON L1N 8Y7
T: (905) 723-1212 F: (905) 723-4234 www.jdbarnes.com

DRAWN BY:	CHECKED BY:	REFERENCE NO.:
B.C.	G.C.L.	17-25-428-10
PLOTTED: 6/6/2023		DATED: 06/01/2023

FILE: G:\17-25-428\10\17-25-428-10.dgn

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Adam McDermott, Facility Manager
Report #:	RC_2023_02
Subject:	**Lease Agreement – YMCA of Greater Toronto**
Ward(s):	All
Date of Meeting:	September 11, 2023
Reference:	2018 GGC Report – Lease Agreement - YMCA of Greater Toronto

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Recommendation:

That the Mayor and Clerk be authorized to renew the Lease Agreement for rental space at the Ajax Community Centre with the YMCA of Greater Toronto, in an estimated rental amount of $199,385.94 inclusive of all taxes, for a term of 39 months, commencing on October 1, 2023, and ending on December 31, 2026.

That staff be authorized to renew the lease agreement for an additional term of sixty (60) months on substantially the same terms subject to minor renegotiations, pending a satisfactory performance review at the conclusion of the 2023-2026 term.

Background:

The YMCA of Greater Toronto (YMCA) has been operating EarlyON Centres (previously called Ontario Early Years Centres) for the past twenty years in the Town of Ajax. The YMCA began leasing space with the Town in 2008 resulting in expanded programming opportunities. This includes permanent office and programming space at the Ajax Community Centre (ACC) and gymnasium space at the McLean Community Centre (MCC). The goal of this partnership agreement is to ensure families are provided with an identifiable location within Ajax to access the many vital family and parenting programs and services offered through the YMCA.

The EarlyON program is a space for children aged 0 to 6 and their parents/caregivers to take part in programs and activities together. Parents/caregivers are able to access information about their children's development, as well as services/resources to support that development. Programs and services offered by EarlyON include:

- Learn to read programs
- Preparation for parenting information
- Parenting skills resources
- Links to other community resources and programs

All programs are offered at no cost to families and are typically drop-in based activities, with some requiring pre-registration. EarlyON programs are designed to be inclusive, accessible and are well utilized in communities across Ontario. This approach is consistent with the Town's Affordable Access to Recreation model, along with the Region of Durham's Advancing Affordable Access to Recreation in Durham Region partnership strategy. The agreement helps to facilitate and leverage key partnerships to support and advance both child and family programming to ensure a variety of quality program offerings available to Ajax residents.

The YMCA also utilizes space to facilitate the Durham Supervised Access Program which is a steppingstone towards renewing relationships in a neutral, child-focused setting by providing supervised access and supervised exchanges through the creation of safe and neutral space.

Family and Community Action Programs (FCAP), delivered both virtually and in-person, are also facilitated through the YMCA. FCAP promotes and supports the healthy development of children in Durham from birth to age 6 who face challenges that put their health at risk. These programs and services are provided at no cost, with many offered in partnership with other community support organizations. FCAP is funded by the Public Health Agency of Canada. Some of the programs available include nutritional support, community kitchens, pre/post-natal programs, parent-child play-based learning programs, reading programs, and child health and development activities. Outreach, individual support, and connections to other community resources including specialized programs for mothers dealing with interpersonal violence and newcomer support, are also offered.

Discussion:

The spaces currently occupied by the YMCA are continuing to serve the needs of the EarlyON program requirements. This includes spaces where programs have expanded since the onset of this partnership, including space at the Audley Recreation Centre. A continued partnership with the YMCA will allow for better access to services for children and families in Ajax and allow for a broader range of programming availability for Ajax residents. The partnership also provides consistent utilization of Town spaces helping to ensure efficient facility usage.

EarlyON partners with a variety of community agencies in order to meet the needs of the community, including:

- Region of Durham Health Department
- Region of Durham Infant and Child Development
- Infant Hearing Program
- Grandview Kids
- CAREA Community Health Centre
- Ajax Public Libraries
- Durham District School Board
- Durham Catholic District School Board
- Welcome Centre Ajax

With the YMCA central location being situated at the ACC, it is strategically located within an identified Priority Neighbourhood, as per the Region of Durham's Health Neighbourhoods reporting. This data indicates higher potential health risks for those residing in this area, and therefore a greater need for access to health and developmental programs and support services.

Financial Implications:

Revenues for lease payments for this agreement are included in the Recreation & Culture operating budget.

Communication Issues:

Communication opportunities are available through various Town channels including the Town's website and social media platforms, which will provide information for families on connecting with the services facilitated through the YMCA.

Conclusion:

The Town of Ajax strives to ensure opportunities for affordable and accessible recreation programs, particularly for children and youth, are available within our community The renewed Lease Agreement with the YMCA will allow us to continue to provide essential services lead by a recognized and valued community organization. By renewing this Lease Agreement, Council continues to support the provision of free and much needed early child development and parenting programs for Ajax families.

Attachments:

ATT-1: YMCA Lease Agreement (2023 - 2026)

Prepared by:

Adam McDermott – Facility Manager

Submitted by:

Chris Vida – Director, Recreation & Culture

Approved by:

Shane Baker – Chief Administrative Officer

LICENCE AGREEMENT

This Agreement is effective as of the 1st day of October, 2023 ("Effective Date")

BETWEEN:

The Corporation of the Town of Ajax ("Licensor")

-and-

YMCA of Greater Toronto ("Licensee")

A corporation incorporated under the laws of the Province of Ontario

WHEREAS

A) The Licensee EarlyON Child and Family Centres are safe and inclusive environments that provide free family programming funded by the Ontario Ministry of Education, where children ages 0–6 can participate with their parent/caregiver in play-based programs and activities promoting healthy child development. This is a no cost early child development and parenting program service.

   The Licensee also provides the Durham Supervised Access Program which is a steppingstone towards renewing relationships in a neutral, child-focused setting by providing supervised access and supervised exchanges that create a welcoming, safe, neutral place for all, a temporary place for parent/child access plans to occur and a visit or exchange where child-focus is maintained at all times.

   Family and Community Action Programs (FCAP) are also a provided service by the Licensee, which are delivered virtually and in person, adapting their activities to meet the needs of the families they serve. FCAP promotes the healthy development of young children from birth to age 6 who reside in Durham Region, and who face challenges that put their health at risk. All programs and services are completely free, and many are offered in partnership with other community organizations. FCAP is funded by the Public Health Agency of Canada. Some of the programs available include nutritional support and community kitchens, pre/post-natal programs, parent-child play-based learning programs which include school readiness programs, child health, and development activities. Outreach and individual support, specialized programs such as support for mothers dealing with interpersonal violence and newcomers support, as well as information and links to other community services are also included.

   The aforementioned programs shall hereinafter be referred to as "the Program."

B) The Licensee wishes to operate the Program within the Ajax Community Centre ("the ACC"). In particular, the Licensee shall have exclusive use of the Little Friends Room (the east room adjacent to the public washrooms behind the snack bar on the lower floor of the ACC) and permanent office space currently referred to as Meeting Room 3 (the

east room next to the Youth Room on the upper floor of the ACC), identified on Schedule A. In addition, the Licensee requires shared usage of the kitchen and washroom facilities adjoining the Little Friends Room and the space currently referred to as the Child Supervision Room (Camp Office) (NTD: Town to identify on Schedule A).

C) The Licensor is prepared to allow the Licensee to use the aforementioned described space at the ACC for the purpose of providing and operating the Program. This space shall hereafter be referred to as the "Licensed Premises," and/is shown and identified on the floor plan attached hereto as Schedule "A".

D) The parties acknowledge the Program is the sole responsibility of the Licensee.

THEREFORE, in consideration of the premises and the mutual covenants and agreements herein, the parties agree as follows:

- The Licensor grants to the Licensee a licence to use the licensed premises to operate an EarlyON Child and Family Centre hereafter referred to as the Program.

- The Licensor and the Licensee acknowledge and agree that the provision and operation of the program is solely the responsibility of the Licensee.

- The Licence hereby granted shall be for a term of thirty-nine months commencing on October 1, 2023, and ending on December 31, 2026 ("the Term"). The Term may be extended (the "First Extension Term") for a further five years by the Licensor on the request of the Licensee, such request to terms and provisions to be agreed upon by the Licensor and the Licensee and failing such agreement there shall be no right of extension.

- The Licensee hereby accepts the Licensed Premises in the conditions as of the date hereof and shall not call upon the Licensor to do or pay for any work or supply any equipment to make the Licenced Premises more suitable for the permitted use by the Licensee hereunder, unless an agreement for such modifications are reached through a separate letter of understanding.

  The Licensee shall pay the Licensor an annual fee (the "Fee") plus the applicable Harmonized Sales Tax (HST) as per the payment schedule outlined in "Schedule B" attached hereto.

- The Licensee covenants with the Licensor:

  1) to pay the Fee;

  2) to use the Licensed Premises only for the purpose of the provision and operation of the Program and for no other purpose;

3) to maintain all program equipment in good repair at its own expense and to repair on written notice from the Licensor, acting reasonably;

INSURANCE and INDEMNIFICATION:

Insurance:

- The Licensee shall provide and maintain Commercial General Liability (CGL) Insurance in the minimum amount of $5,000,000.00 (five million dollars) per occurrence, naming the Licensor as an additional insured, to protect it and the Licensor from any claims for damages, personal injury including death, and from claims for property damage, caused by the operation of the Licensee, its servants, agents or employees related to or arising out of the provision of programs or services or other matters with respect to its use of the Licensed Premises during the full Term of this Agreement and any subsequent Extension Term thereof. The Licensee shall provide a certificate evidencing same, prior to execution of this Agreement, annually no later than October 15 the following year, and as required otherwise. Without limiting the generality of the foregoing, such public liability insurance shall contain provisions for cross-liability, severability of interests, and no alterations without the consent of the Licensor. The Licensee shall provide the Licensor with at least 15 days' notice if the policy is going to be terminated due to the non-payment of the premium and 30 days written notice if the policy is going to be terminated for any other reason. The Licensee shall notify the Licensor of any alterations to the policy forthwith if and when any changes are made.

Indemnification:

- The Licensee shall at all times defend, indemnify and save harmless the Licensor from and against any and all claims, demands, losses, costs, charges, expenses, damages, actions and other proceedings made, brought against, suffered by or imposed on the Licensor or its property in respect of any failure by the Licensee to fulfil any of its obligations under this Agreement or in respect of any loss, damage or injury (including injury resulting in death) to any person or property (including, without restricting the generality of the foregoing, employees, contractors, agents and property of the Licensor) directly or indirectly arising out of, resulting from the Licensees negligent use of the Licensed Premises, or any negligent operation in connection therewith or any fixtures or chattels thereon. The safeguarding and security of the equipment of the Licensee shall be the sole responsibility of the Licensee.

- The Licensor shall not be liable, directly or indirectly, for any personal injuries that may be suffered or sustained by any person who may be on the Licensed Premises or for any loss of or damage or injury to property belonging to the Licensee or any

other person unless such injury, loss or damage is due to the Licensor's negligence or default or the negligence or default of those for whom the Licensor is in law responsible.

- The Licensee shall fully defend, indemnify, and save harmless the Licensor from and against all construction liens and related costs and other claims in connection with all work performed by or for the Licensee on the Licensed Premises, and shall promptly remove all registered claims from title.

Customer Service

- The Licensee should consider their services to be beneficial to the general public patronizing Town Facilities and spaces. As the public will associate the standard of service and customer satisfaction with the Recreation & Culture Department of the Licensor, it is of the utmost importance that this standard of service and customer satisfaction be of the highest quality. The Licensee will match other Town facilities by maintaining a high degree of cleanliness.

Hours of Operation

- The Licensee will be required to operate their services within the Ajax Community Centre business hours as outlined below:

Monday - Friday	6:00 a.m. – 10:30 p.m.
Saturday – Sunday	7:00 a.m. – 10:30 p.m.

- The Licensee shall ensure the business hours of operation are posted and visible to the general public upon entering the facility.

- The Licensor will supply a List of facility closures annually.

General Terms and Conditions

1) The Licensor shall pay all gas, water, hydro, and electric charges related to the Licenced Premises. The Licensee shall be required to maintain an independent phone listing. Further, the Licensee shall publish and pay all telephone, internet and costs related to its operation.

2) Subject to the Licensor performing its obligations in section 3) below, the Licensee shall at all times and at its own expense, keep and maintain the Licenced Premises, in a sanitary and attractive manner, in a standard acceptable by the Town of Ajax, the

Recreation & Culture Department and also by the standards maintained by Provincial Legislation pertaining to the Day Nurseries Act.

3) The Licensor shall provide the following supplies/ services:

   I. Toilet paper
   II. Paper towels
   III. Nightly cleaning of shared usage space
   IV. General repairs and replacements to the inside of the Little Friends Room, of which all such requests should first be made to the Facility Manager of the building.
   V. General housekeeping to the office space, such as floor care, empty and remove garbage, and dust/wipe desktops and filing cabinets twice per week.
   VI. General housekeeping to the program space – such as vacuuming, sweeping/mopping, emptying and removing garbage, and dusting/wiping tables and chairs daily.

4) The Licensee shall be responsible for all cleaning and disinfection of program specific equipment.

5) The Licensee shall provide a good standard of service to the public patronizing the Licenced Premises.

6) The Licensee will, at the expiration or other sooner determination of the Term, or within two weeks thereafter, remove from the Licenced Premises, all equipment, furnishings, and other personal property belonging to the Licensee.

7) If at any time monies owing and payable by the Licensee under this Agreement are in arrears and unpaid, or in the case of the breach or non-performance by the Licensee of any of the covenants and agreements herein contained on the part of the Licensee, this Agreement may at the option of the Licensor be terminated forthwith subject to the Licensee having 30 days to cure any default, breach, or non-performance of its obligations after having been provided with written notice of the default, breach, or non-performance.

8) The Licensee shall not make any major alterations or structural changes to vary the Licenced Premises without having first obtained the consent, in writing, of the Town of Ajax. Any and all such alterations shall be made at the sole cost and expense of the Licensee.

9) Any changes to signage already in place must be first approved, in writing, by the Facility Manager.

10) The Licensee shall, at its own expense, provide a Criminal Reference and Vulnerable Sector Check for any and all employees who will be employed within the Licenced

Premises. The Licensee will be solely responsible for the legal governance (supervision, financial costs, conduct, standards of practice, and liability) of its staff and volunteers. The Licensee agrees to provide only trained, qualified, appropriate, and sufficient staff to provide, operate and support the program.

11) The Licensee shall pay, or cause to be paid, any assessment, premium, or compensation required to be paid by or pursuant to the Workplace Safety and Insurance Act and shall provide a WSIB clearance certificate to the Licensor on the signing of this agreement and every year thereafter on the anniversary date of this agreement until the term of this agreement has expired.

12) The Licensee may remove its equipment from the Licenced Premises, provided all damage thereby occasioned shall forthwith be repaired by the Licensee at its own expense.

13) The parking of vehicles is subject to the general parking regulations of the Facility.

14) The Licensee shall ensure that its staff, agents, and contractors conduct themselves in a professional and courteous manner. All persons providing the services of the Licensee must be neat and reasonably dressed for the purposes of carrying out the permitted use and identifiable as such. The Licensor reserves the right to discuss any concerns related to the permitted use with the Licensee. Any labour disputes are the responsibility of the Licensee and are not to be managed while on the Licensor's property.

15) The Licensor will not accept responsibility for lost revenues and incurred expenses due to changes or building closures for whatever reasons, including labour stoppages. The Licensee will not be required to pay rent or perform any term, covenant or act required hereunder for any period during which the building is required to be closed down.

16) The Licensee employees, agents and contractors must comply with all established Town of Ajax rules and applicable code(s) of conduct including those specifically referenced in section 3 of "Additional General Terms and Conditions."

17) All renovations and constructions become part of the Licenced Premises and the property of the Licensor. Renovations and constructions are not to be dismantled or destroyed at the termination of this Agreement or upon default.

18) All alterations, renovations and new construction must be approved by the Licensor and all alterations, renovations and new construction must be completed under the authority of a building permit issued by the Licensor.

19) The Licensor reserves the right to enter and view the state of maintenance and repair of the Licenced Premises as well as to gain access to the water meter.

20) The Licensee agrees to not assign this Agreement unless the Licensor consents to same, acting reasonably.

21) The Licensee shall at all times observe and comply with an endeavor to ensure strict observance of, and compliance with, all statutory requirements, legislation, regulations, rules and/or by-laws of every municipal, provincial, federal or other authority which in any manner affect or relate to early child development and parenting programs.

Termination of Contract

1) In addition to section 7 of the General Terms and Conditions, if the Licensee defaults in performing any of its obligations under this Agreement, the Licensor shall give written notice to the Licensee of such default giving the Licensee 15 days to remedy such default, failing which the Licensor may then immediately terminate this agreement and the Licensee shall then forthwith remove its equipment, if any, from the premises and shall restore the Licenced Premises to the condition in which they were at the commencement of this agreement.

2) This agreement may be terminated by the Licensee or Licensor at any time upon not less than 90 days notice without restricting the generality of the foregoing this agreement may be terminated by the Licensor with not less than 180 days notice in the event that the “ACC” is to be remodelled or renovated as part of the Licensors Recreation Master Plan such that certain areas within the ACC need to be taken offline and out of service for a period of time (the “Renovation”). The Licensee expressly acknowledges that it has been made aware of this possibility. If the Licensor in its sole discretion decides that it is able to re-locate the licensee to another location within the ACC during any period time that a re-modelling or renovations are scheduled to be completed it will do so if the parties hereto are able to agree on the terms relating to any such re-location. It is understood that the Licensor is under no obligation to re-locate the Licensee.

3) All payments owing will become due immediately upon the date of termination.

Additional General Terms and Conditions

1. This Agreement does not create a fiduciary relationship between the parties hereto. The Licensee agrees that it is not an agent of the Licensor and has no authority to bind the Licensor. Nothing herein shall be construed so as to constitute the parties as partners, joint ventures or agents of the other.

2. This Agreement shall enure to the benefit of and be binding upon the parties and their respective successors and permitted assigns.

3. That all employees, agent, and volunteers associated with the Licensee understand and comply with all established Town of Ajax applicable policies, rules and codes of conduct, as amended by the Licensor from time to time, and understand the Licensor's commitment to providing an environment free of discrimination, harassment and violence, which promotes and fosters an engaged, healthy and inclusive community committed to and valuing equity and diversity and where all individuals are treated with respect, dignity and can contribute fully, and have equal opportunities. The following policies are the applicable policies covered by this section and these policies have been made available to the Licensee: **(NTD: Town to provide electronic copies of policies)**

    A) Diversity Policy (018)
    B) Respectful Workplace; Discrimination and Harassment Policy and Prevention Program (074)
    C) Public Conduct Policy (143)
    D) Workplace Violence and Prevention Program (043)
    E) Public Code of Conduct (100)

   The Town may amend the Corporate Policies and Procedures from time to time and shall deliver copies of such amendments to the Licensee.

4. The term of this Agreement commences once signed and expires December 31, 2026. This Agreement may be renewed for an additional term of five-years upon written agreement by the parties.

5. Any "notices" to be provided pursuant to this Agreement shall, unless otherwise agreed, be sent by registered mail, or by delivery or courier service, and shall be addressed and delivered to the Ajax Community Centre, attn: Facility Manager, at 65 Harwood Avenue South, Ajax, Ontario, L1S 2H9 or in the case of the Licensee to Ontario Early Years Centres - Ajax, 75 Centennial Road, Ajax, Ontario, L1S 4S4 or at such other address as the Licensee or Licensor may in writing designate. In either case, such notice shall be deemed to have been received on the date of its delivery or in the case of mailing, five (5) business days after the date of mailing. In addition, Notices sent by registered mail or by delivery/courier services shall also be sent by email to the following email address: todd.pierce@YMCAGTA.ORG.

   In the case of YMCA to:

   Todd Pierce
   VP Real Estate & New Asset Development
   YMCA of Greater Toronto
   90 Eglinton Ave. E, Unit 300
   Toronto, ON, MP4 2Y3

In the case of the Licensor to:

Chris Vida
Director - Recreation & Culture
Town of Ajax
65 Harwood Avenue South
Ajax, ON L1S 2H9
Chris.vida@ajax.ca
Telephone: (905) 619-2529 x 7504

6. Each party is an entity independent of the other and neither party has the authority to bind the other to any third person or otherwise to act in any way as the representative of the other, unless otherwise expressly agreed to in writing by the other. The parties shall not have, and they shall not hold themselves out as having, any right, power or authority to create any contract or obligation, either express or implied, on behalf of, in the name of or binding upon the other.

7. This Agreement constitutes the entire agreement between the parties. No other statements, representations, warranties, undertakings or agreements made or purportedly made by or on behalf of either party or any of their directors, officers, agents, employees or other legal representatives, shall be binding upon them unless agreed to in writing by the parties.

8. This agreement may be amended if the parties agree to the amendment in writing.

9. This Agreement may be executed in counterparts, each of which shall be deemed to be an original and both of which together shall constitute one and the same instrument.

10. This Agreement shall be interpreted in accordance with the laws of the province of Ontario.

IN WITNESS WHEREOF the parties have caused the Agreement to be executed by their duty authorized officers as of the date first written above.

_____ _____

(I have authority to bind the corporation)

Date

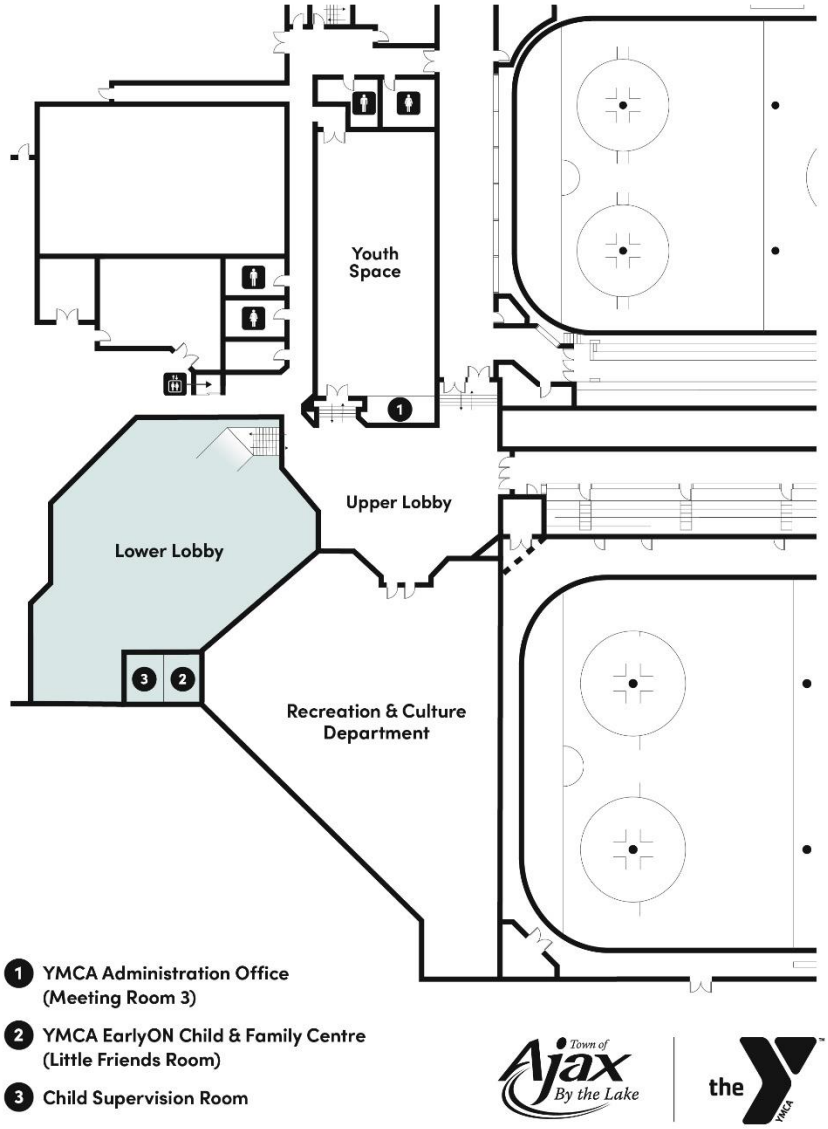
_____ _____

Chris Vida Date

Director - Recreation & Culture

Schedule "A"

Floor Plan



Schedule "B"

Annual Payment Schedule

2023
$12,847.05 + $1,670.12 = $14,517.17 divided into three equal monthly payments, each totalling $4,839.05

2024
$52,929.84 + $6,880.88 = $59,810.72 divided into twelve equal monthly payments, each totalling $4,984.23

2025
$54,517.68 + $7,087.30 = $61,604.98 divided into twelve equal monthly payments, each totalling $5,133.75

2026
$56,153.16 + $7,299.91 = $63,453.07 divided into twelve equal monthly payments, each totalling $5,287.76

Annual Fee increases calculated above are based on a 3% increase each year. Where the Municipal Price Index (MPI) is lower than 3% in any given year, the Licensor may lower the annual increase to an amount equivalent to the MPI. The Licensor shall communicate this reduction to the Licensee by November 1 of the preceding year.

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Lesley Donnelly, Council & Committee Meeting Administrator
Report #:	LIS-2023-14
Subject:	**2024 Meeting Schedule and Committee Chair and Vice-Chair Appointments**
Ward(s):	All
Date of Meeting:	September 11, 2023
Reference:	Procedure By-law

Recommendation:

That the 2024 Meeting Schedule and Committee Chair and Vice-Chair appointments included as ATT-1 to this report be approved.

Background:

Each year, Legislative Services prepares a draft schedule of Council and Committee meetings for the coming year. A consistent and predictable schedule of meetings serves as a cornerstone of transparency and good governance, ensuring that the public knows generally when Council will meet to address matters of public business. The meeting schedule follows general scheduling principles outlined in Council's Procedure By-law, and may be subject to in-year changes such as cancellations, postponements, change to start times, and special meetings as required.

The proposed 2024 Meeting Schedule (ATT-1) outlines dates and starting times for all regular meetings of Council, the Community Affairs and Planning Committee (CAP), and the General Government Committee (GGC).

Discussion:

Under the Procedure By-law, the general rules for annual schedule of meetings are as follows:

- Community Affairs and Planning Committee occurs on the 1st Monday of the month;
- General Government Committee occurs on the 2nd Monday of the month;
- Council occurs on the 3rd Monday of the month;
- Scheduled recesses occur during March Break, over the summer from July to August, and over the December holiday season; and
- Where scheduled meeting dates fall on a holiday, meetings are held the following business day.

The majority of proposed meetings follow this schedule, notable variations are as follows:

- The January meeting cycle has been pushed back by a week to avoid holding a CAP meeting on the first day back from the holiday break;
- The January GGC meeting and Council meeting have both been pushed back by one week to allow for the 2024 Operating and Capital Budget & Long Range Capital Forecast (LRCF) meeting scheduled for January 15, 2024;
- The June GGC meeting and Council meeting have both been pushed back by one week to allow Clerk's staff to attend The Association of Municipal Managers, Clerks and Treasurers of Ontario (AMCTO) conference scheduled for June 9 – 12, 2024; and
- The November GGC meeting has been pushed back by one day to avoid holding the GGC meeting on Remembrance Day (November 11, 2024).

The Procedure By-law authorizes electronic meetings and hybrid (in person and/or remote) participation as an option for Members, staff, and the public. The meeting schedule also reflects the rotation of Chairs, with both local and regional councillors chairing CAP & GGC interchangeably.

Financial Implications:

N/A

Communication Issues:

Dates and start times of regular meetings of Council, the Community Affairs and Planning Committee, and the General Government Committee are noted on the Town's website under the Council and Committee meeting calendar (see www.ajax.ca/meetings) and published in the Weekly Community Page of the Ajax News Advertiser.

Relationship to the Strategic Plan:

N/A

Conclusion:

Approval of the 2024 Meeting Schedule will allow Council members and staff an early opportunity to enter meetings in their calendars as well as allowing staff to proceed with necessary preparations such as room bookings for 2024, and forecasting and planning staff reports.

Attachments:

ATT-1: Proposed 2024 Meeting Calendar (official) and Chair/Vice-Chair Appointments

ATT-2: Proposed 2024 Meeting Calendar (at a glance)

Prepared by:

Lesley Donnelly – Council & Committee Meeting Administrator

Submitted by:

Nicole Cooper – Director of Legislative & Information Services/Clerk

Approved by:

Shane Baker – Chief Administrative Officer

TOWN OF AJAX
2024 MEETING SCHEDULE

All regular meetings are held at Town Hall, 65 Harwood Avenue South, Ajax, ON, unless otherwise indicated. Meetings may be held online at the discretion of the municipality.

Date	Time	Meeting	Location	Chair / Vice Chair
Monday, January 8	7:00 p.m.	Community Affairs & Planning	Council Chambers	Local Ward 1 / Regional Ward 1
Monday, January 15	9:00 a.m.	Capital Budget & LRCF	Council Chambers	Mayor Collier
	Following Capital Budget & LRCF	Operating Budget	Council Chambers	Mayor Collier
Monday, January 22	1:00 p.m.	General Government Committee	Council Chambers	Regional Ward 1 / Local Ward 1
Monday, January 29	7:00 p.m.	Council	Council Chambers	Mayor
Monday, February 5	7:00 p.m.	Community Affairs & Planning	Council Chambers	Local Ward 2 / Regional Ward 2
Monday, February 12	1:00 p.m.	General Government Committee	Council Chambers	Regional Ward 2 / Local Ward 2
Tuesday, February 20	7:00 p.m.	Council	Council Chambers	Mayor
Monday, March 4	7:00 p.m.	Community Affairs & Planning	Council Chambers	Local Ward 3 / Regional Ward 3
Monday, March 18	1:00 p.m.	General Government Committee	Council Chambers	Regional Ward 3 / Local Ward 3
Monday, March 25	7:00 p.m.	Council	Council Chambers	Mayor
Tuesday, April 2	7:00 p.m.	Community Affairs & Planning	Council Chambers	Regional Ward 1 / Local Ward 1
Monday, April 8	1:00 p.m.	General Government Committee	Council Chambers	Local Ward 1 / Regional Ward 1
Monday, April 15	7:00 p.m.	Council	Council Chambers	Mayor
Monday, May 6	7:00 p.m.	Community Affairs & Planning	Council Chambers	Regional Ward 2 / Local Ward 2
Monday, May 13	1:00 p.m.	General Government Committee	Council Chambers	Local Ward 2 / Regional Ward 2
Tuesday, May 21	7:00 p.m.	Council	Council Chambers	Mayor
Monday, June 3	7:00 p.m.	Community Affairs & Planning	Council Chambers	Regional Ward 3 / Local Ward 3
Monday, June 17	1:00 p.m.	General Government Committee	Council Chambers	Local Ward 3 / Regional Ward 3
Monday, June 24	7:00 p.m.	Council	Council Chambers	Mayor
No Meetings July and August – Summer Recess				
Tuesday, September 3	7:00 p.m.	Community Affairs & Planning	Council Chambers	Local Ward 1 / Regional Ward 1
Monday, September 9	1:00 p.m.	General Government Committee	Council Chambers	Regional Ward 1 / Local Ward 1
Monday, September 16	7:00 p.m.	Council	Council Chambers	Mayor
Monday, October 7	7:00 p.m.	Community Affairs & Planning	Council Chambers	Local Ward 2 / Regional Ward 2
Tuesday, October 15	1:00 p.m.	General Government Committee	Council Chambers	Regional Ward 2 / Local Ward 2
Monday, October 21	7:00 p.m.	Council	Council Chambers	Mayor
Monday, November 4	7:00 p.m.	Community Affairs & Planning	Council Chambers	Local Ward 3 / Regional Ward 3
Tuesday, November 12	1:00 p.m.	General Government Committee	Council Chambers	Regional Ward 3 / Local Ward 3
Monday, November 18	7:00 p.m.	Council	Council Chambers	Mayor
Monday, December 2	7:00 p.m.	Community Affairs & Planning	Council Chambers	Regional Ward 1 / Local Ward 1
Monday, December 9	1:00 p.m.	General Government Committee	Council Chambers	Local Ward 1 / Regional Ward 1
	Following GGC	Council	Council Chambers	Mayor

Town of Ajax 2024 Calendar

Town of Ajax By the Lake

~ January 2024 ~

Sun	Mon	Tue	Wed	Thu	Fri	Sat
	1 NEW YEAR'S DAY	2	3	4	5	6
7	8 CAP	9	10	11	12	13
14	15 OPERATING & CAPITAL	16	17	18	19	20
21	22 GGC	23	24	25	26	27
28	29 COUNCIL	30	31			

~ February 2024 ~

Sun	Mon	Tue	Wed	Thu	Fri	Sat
				1	2	3
4	5 CAP	6	7	8	9	10
11	12 GGC	13	14	15	16	17
18	19 FAMILY DAY	20 COUNCIL	21	22	23	24
25	26	27	28	29		

~ March 2024 ~

Sun	Mon	Tue	Wed	Thu	Fri	Sat
					1	2
3	4 CAP	5	6	7	8	9
10	11	12 MARCH BREAK	13	14	15	16
17	18 GGC	19	20	21	22	23
24	25 COUNCIL	26	27	28	29 GOOD FRIDAY	30
31						

~ April 2024 ~

Sun	Mon	Tue	Wed	Thu	Fri	Sat
	1 EASTER MONDAY	2 CAP	3	4	5	6
7	8 GGC	9	10	11	12	13
14	15 COUNCIL	16	17	18	19	20
21	22	23	24	25	26	27
28	29	30				

~ May 2024 ~

Sun	Mon	Tue	Wed	Thu	Fri	Sat
			1	2	3	4
5	6 CAP	7	8	9	10	11
12	13 GGC	14	15	16	17	18
19	20 VICTORIA DAY	21 COUNCIL	22	23	24	25
26	27	28	29	30	31	

~ June 2024 ~

Sun	Mon	Tue	Wed	Thu	Fri	Sat
						1
2	3 CAP	4	5	6	7	8
9	10	11	12	13	14	15
16	17 GGC	18	19	20	21	22
23	24 COUNCIL	25	26	27	28	29
30						

~ July 2024 ~

Sun	Mon	Tue	Wed	Thu	Fri	Sat
	1 CANADA DAY	2	3	4	5	6
7	8	9	10	11	12	13
14	15	16	17	18	19	20
21	22	23	24	25	26	27
28	29	30	31			

~ August 2024 ~

Sun	Mon	Tue	Wed	Thu	Fri	Sat
				1	2	3
4	5 CIVIC HOLIDAY	6	7	8	9	10
11	12	13	14	15	16	17
18	19	20	21	22	23	24
25	26	27	28	29	30	31

~ September 2024 ~

Sun	Mon	Tue	Wed	Thu	Fri	Sat
1	2 LABOUR DAY	3 CAP	4	5	6	7
8	9 GGC	10	11	12	13	14
15	16 COUNCIL	17	18	18	20	21
22	23	24	25	26	27	28
29	30					

~ October 2025 ~

Sun	Mon	Tue	Wed	Thu	Fri	Sat
		1	2	3	4	5
6	7 CAP	8	9	10	11	12
13	14 THANKS GIVING	15 GGC	16	17	18	19
20	21 COUNCIL	22	23	24	25	26
27	28	29	30	31		

~ November 2024 ~

Sun	Mon	Tue	Wed	Thu	Fri	Sat
					1	2
3	4 CAP	5	6	7	8	9
10	11 REMEMBRANCE DAY	12 GGC	13	14	15	16
# 17	18 COUNCIL	19	20	21	22	23
24 151	25	26	27	28	29	30

~ December 2024 ~

Sun	Mon	Tue	Wed	Thu	Fri	Sat
1	2 CAP	3	4	5	6	7
8	9 GGC COUNCIL	10	11	12	13	14
15	16	17	18	19	20	21
22	23	24 LIEU CHRISTMAS EVE / NEW YEAR'S EVE	25 CHRISTMAS DAY	26 BOXING DAY	27	28
29	30	31 NEW YEAR"S EVE				

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Jason McWilliam, Manager of Legislative Services/Deputy Clerk
Report #:	LIS-2023-13
Subject:	**Procedure By-law Amendments**
Ward(s):	N/A
Date of Meeting:	September 11, 2023
Reference:	Municipal Act, 2001, S.O. 2001, c. 25

Recommendation:

1. That the revised Procedure By-law, included as ATT-1 to this report, be forwarded to a future Council meeting for approval; and
2. That the proposed Deputy Mayor By-law, included as ATT-2 to this report, be forwarded to a future Council meeting for approval.

Background:

The Town's Procedure By-law governs how business is conducted during meetings of Council and Standing Committees of Council. Occasionally, amendments to the Procedure By-law are required to ensure compliance with changing provincial legislation and reflect updates to the practices of the Town.

This report recommends approval of a revised Procedure By-law that incorporates updates required in response to recent experience utilizing the updated meeting technology installed in the Council Chambers and changes required due to the extension of Strong Mayor powers to the Town of Ajax, as announced by the Minister of Municipal Affairs and Housing on June 16, 2023, in addition to a number of other desired amendments.

Further, this report recommends a By-law to to establish the duties of the Deputy Mayor for the Town of Ajax. This arises from a resolution passed by Ajax Council in May 2023, which directed that the Clerk take the necessary steps to ensure that the Deputy Mayor role in Ajax is properly defined within the relevant Town by-laws and/or policies, and report back to Council for related approvals as necessary.

Discussion:

A number of changes are proposed to Council's Procedural By-law. Key changes are highlighted below for the benefit of Council.

Proposed Changes Resulting from Meeting Technology and Other General Amendments

1. Vacating of Chair

Historically, when moving or seconding a motion, the Town's Procedure By-law required the Chair of the meeting to vacate the Chair, prior to moving or seconding a motion. With the implementation of new technology which assigns specific user rights to the Chair of a meeting, and to improve the efficiency of meetings and keep them logistically simple, staff recommend the deletion of this requirement.

2. Delegation Registration Deadlines

In response to feedback from members of the public and Council, changes are proposed to the Procedure By-law which will enable delegation registrations following the publication of the Council agenda. Historically, the deadline to register as a delegation closed 10 days prior to the meeting where an individual or group wished to appear as a delegation, limiting public input on items appearing on an agenda. To enable greater participation in the decision-making process, delegation requests will be permitted after publication of an agenda, provided that the request is received by the Clerk on or before noon on the Friday prior to the meeting where the matter will be considered by Council, and the delegation addresses a matter appearing on the agenda. Delegations addressing items which do not appear on an agenda will continue to be subject to the existing 10-day notice period.

3. Remote Participant Registration

Many of the key features in the new meeting platform are configured on a per participant basis (such as name and title which is displayed to individuals in the Council Chamber and viewing remotely on YouTube, or specific user entitlements including management and voting rights) and require individualized links to operate correctly. The presence of these features limits the Town's ability to accommodate in-the-moment registrations, which are most relevant to statutory public meetings held during meetings of the Community Affairs and Planning Committee, or Council. Accordingly, registration deadlines (12:00 p.m. on the day of the meeting for meetings scheduled to start at 7:00 p.m. or later, or 24 hours prior to the scheduled start for all other meetings) have been established to ensure consistency and shared expectations for all stakeholders, while continuing to facilitate remote participation in Council and Committee proceedings.

4. Use of Voting Technology by Council

The new meeting technology includes camera tracking features that may prevent individuals watching Council and Committee proceedings from determining how members of Council vote on matters of importance to them, whether members are physically present in the Chamber, or participating remotely. To address this limitation and maintain the transparency of Council proceedings, amendments to the Procedure By-law will require all votes to be conducted using voting technology, with a fall back to show of hands where the technology is inoperable, or in the event Council meets in a location where such technology is unavailable.

5. Failure of Remote Participation or Broadcasting

From time to time there may be instances where remote participation or broadcasting of Council proceedings fails due to technological or other factors beyond the control of the Town. Recognizing this possibility, the Procedure By-law will be amended to clearly note that failure of remote participation or broadcasting does not impact the validity of the decisions taken by Council, provided that quorum amongst members is not lost.

6. By-laws Imposed by Ontario Land Tribunal and Others

Occasionally, powers exercised by the Ontario Land Tribunal, the Minster of Municipal Affairs and Housing, or another body having jurisdiction, may result in an order or other document that is deemed to be a by-law adopted by Council. Recognizing these circumstances, amendments will require these by-laws to be numbered and added to a Council agenda as an 'information item' to support Council's commitment to transparency and for recordkeeping purposes.

A small number of additional housekeeping edits have been made to improve clarity and readability.

Proposed Changes Resulting from Strong Mayor Powers

1. Introduction of Motions without Notice

Section 284.10 of the Municipal Act now permits the Mayor to introduce, without notice, motions which could, in the opinion of the Mayor, advance a provincial priority. At present, provincial priorities include:

- Building 1.5 million new residential units before December 31, 2031; and,
- Constructing and maintaining infrastructure to support housing, including,
    - Transit,
    - Roads,
    - Utilities, and
    - Servicing.

Recognizing this statutory right, the Procedure By-law is proposed to be amended to permit the introduction of motions by the Mayor without notice.

2. Adoption of By-laws by One-Third Vote

Section 284.11.1 of the Municipal Act now permits the Mayor to seek approval of by-laws, which in the opinion of the Mayor may advance a provincial priority, by a vote of one-third of Council in the affirmative. In an important departure from Council's current Procedure By-law and parliamentary procedure, the threshold required to approve a by-law under this section constitutes one-third of the *whole of Council*, not merely one-third of the total number of members of Council in attendance at a meeting where a by-law may be considered. To support transparency, where by-laws are proposed to be adopted pursuant to this section of the Municipal Act, agendas will clearly identify the voting requirement that will apply.

3. Application of Veto Powers to By-laws

Section 284.11 of the Municipal Act now provides the Mayor with the power to veto all, or a part, of any by-law that, in the opinion of the Mayor, may interfere with a provincial priority. This power is subject to certain procedural and timing requirements, including a requirement to exercise the veto power within 14 days of Council adopting a by-law, providing the Clerk with written reasons for the veto and empowering Council to override the veto with a vote of two-thirds of Council within 21 days of the veto.

Given the timeframe afforded to the head of council to exercise these new powers, there are significant implications for coming into force provisions of municipal by-laws. To expedite the effective date of by-laws not subject to a veto, staff will, in collaboration with the Mayor, develop and implement procedures to minimize potential risks introduced by these new powers.

Financial Implications:

There are no financial implications associated with the recommendations contained in this report.

Communication Issues:

Upon approval by Council, information made available to the public on the Town's website and in communications regularly shared by Legislative Services will be updated to ensure the public can continue to participate in Council proceedings as permitted by the Procedure By-law. The revised Procedure By-law will also be posted to the Town's website.

Relationship to the Strategic Plan:

N/A

Conclusion:

The proposed changes to Council's Procedure By-law incorporate changes that will facilitate the continued transparency of Council proceedings while responding to changes in the legislative landscape governing municipalities. Further, the proposed Deputy Mayor By-law fulfills Council's direction to better clarify this role and its duties.

Attachments:

ATT-1: Revised Procedure By-law

ATT-2: Proposed Deputy Mayor By-law

Prepared by:

Jason McWilliam – Manager of Legislative Services/Deputy Clerk

Submitted by:

Nicole Cooper – Director of Legislative and Information Services

Approved by:

Shane Baker – Chief Administrative Officer

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER XX-2023

Being a by-law to govern the proceedings of Council and Standing Committees of Council

WHEREAS Section 238 (2) of the Municipal Act, 2001 as amended requires Council to pass a procedure by-law governing the calling, place and proceedings of meetings;

NOW THEREFORE the Council of the Corporation of the Town of Ajax hereby enacts as follows:

1. That “Appendix A” to this By-law be approved as the rules and procedures governing the proceedings of Council & Standing Committees.

2. That, for the purposes of compliance with Section 270 of the Municipal Act, 2001, the Town of Ajax Public Notice Policy (P138) within the Town’s Quality Management System shall constitute the Town’s policy for the circumstances in which the municipality shall provide notice to the public and, if notice is to be provided, the form, manner and times notice shall be given.

3. The short title of this By-Law is the "Procedural By-Law," "Procedure By-law" or the "Rules of Procedure".

4. That By-law #34-2022 is hereby repealed.

5. That this By-law shall come into force and take effect immediately upon final passing.

READ a first and second time this Eighteenth day of September 2023.

READ a third time and passed this Eighteenth day of September 2023.

_____
Mayor

_____
D-Clerk

Appendix 'A' – Rules & Procedures Governing Council & Standing Committee Meetings

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1. Definitions

In this Procedure By-law,

1.1. “The Act” means the Municipal Act, 2001 S.O. 2001 c.25 as amended;

1.2. “Advisory Committee” means an ongoing Committee implemented by Council by way of by-law and comprised of residents, experts, Councillors and/or Staff;

1.3. “Alternate Member” means a Member appointed by Council to temporarily serve on the Upper Tier Council as set out in Section 5.18 of this by-law;

1.4. “Chief Administrative Officer” or “CAO” means the Chief Administrative Officer of the Town of Ajax, or their designate;

1.5. “Clerk” means the Clerk of the Town of Ajax, or their designate;

1.6. “Committee” means any subcommittee of Council or similar entity; typically refers to General Government Committee or Community Affairs and Planning Committee;

1.7. “Committee Report” means a report of all actions taken by a Committee with respect to a particular agenda;

1.8. “Council” means the Council of the Town of Ajax;

1.9. “Chair” means the Chair of a Committee or Council who presides over a meeting;

1.10. “Closed Session” means a meeting, or portion thereof, closed to the public, and has the same meaning as “in-camera”;

1.11. “Community Affairs and Planning Committee” or “CAP” means a Standing Committee of Council comprised of all members of Council;

1.12. “Confirming by-law” means a by-law passed for the purpose of giving general effect to a previous decision or proceeding of Council;

1.13. “Consent Agenda” means the portion of an agenda that may be approved by a single motion, without debate;

1.14. “Day” includes any day in a calendar year, including weekends and holidays;

1.15. “Department Head” means a Town employee who is the head of a department of the Town;

1.16. “Deputy Mayor” means the member appointed to act from time to time in place and stead of the Mayor;

1.17. “Friendly Amendment” means the motion under debate is amended with the consent of the mover and seconder, and without the requirement for an amending motion to be made;

1.18. “General Government Committee” or “GGC” means a Standing Committee of Council comprised of all members of Council;

1.19. “In-Camera” means a meeting, or portion thereof, closed to the public, and has the same meaning as “closed session”;

1.20. “Integrity Commissioner” means the individual appointed by the municipality who reports to Council and who is responsible for performing in an independent manner the functions assigned by the municipality with respect to the Codes of Conduct, the *Municipal Conflict of Interest Act,* and the application of any procedures, rules and policies of the municipality and local boards governing the ethical behaviour of members of council and of local boards;

1.21. “Main Motion” means any motion which brings business before Council and/or Committee. Main motions yield to all secondary motions;

1.22. “Majority” means more than half, or;
If 7 members present: 4
If 6 members present: 4
If 5 members present: 3
If 4 members present: 3

1.23. “Mayor” means the head of Council, as defined in the *Municipal Act*;

1.24. “Majority vote” means an affirmative vote by the majority of members present and voting at a Meeting;

1.25. “Member” means a member of Council or a Standing Committee;

1.26. “Meeting” means any regular, special, or other meeting of Council or a Standing Committee where a quorum of members is present and members discuss or otherwise deal with any matter in a way that materially advances the business or decision-making of the Council or Standing Committee;

1.27. **"One Third Vote” means a vote conducted in accordance with Section 284.11.1 of the Act requiring a total of 3 votes cast in favour.**

1.28. “Pecuniary Interest” has the same meaning as the term has in the *Municipal Conflict of Interest Act*, R.S.O. 1990 c. M. 50 (the “MCIA”), as amended or replaced from time to time;

1.29. “Petition” means a formal written request that appeals to Council with respect to a particular issue as set out in Sections 5.52 to 5.55 of this by-law;

1.30. “Point of Order” means drawing attention to a question or an infraction of this Procedure By-law;

1.31. “Provincial Priority” means the priorities prescribed by Ontario Regulation 580/22 for the purposes of Sections 284.10, 284.11 and 284.11.1 of the Act.

1.32. “Quorum” means the number of Members required for the legal conduct of the business of Council or a Committee;

1.33. “Recorded Vote” means the taking of a written record of the name and the vote of each member who votes on a question;

1.34. “Rules of Procedure” means the rules and regulations governing the calling, place, proceedings of a Meeting as provided for in this by-law. The Rules of Procedure may also be referred to as the “Procedural By-law”;

1.35. “Secondary Motion” means any privileged, incidental, or subsidiary motion concerning the manner or time of consideration of any matter before Council/Committee as opposed to the substance thereof;

1.36. “Standing Committee” means any subcommittee of Council or similar entity; typically refers to General Government Committee or Community Affairs and Planning Committee;

1.37. “Substantive Reports” means a report, either verbal or written, whereby Staff are required to gather data/information and perform an analysis of such data/information in order to draw a conclusion and possible action based on the analysis;

1.38. “To Adjourn” means to end a meeting;

1.39. “To Amend” means to alter a motion in a germane manner;

1.40. “To Call the Vote” means to stop debate and immediately proceed to vote on the motion;

1.41. “To Defer” means to postpone all discussion on a matter until a future date or time, one which is established as part of the motion;

1.42. “To Receive” means to acknowledge the receipt of a matter before Council or a Standing Committee, with no expectation of any future action being taken;

1.43. “To Recess” means to suspend a Meeting for a specified length of time;

1.44. “To Refer” means to direct a matter under discussion by Council or a Standing Committee to Staff or another Committee for further consideration or review;

1.45. “To Table” means to postpone a matter without setting a definite date for future discussion of a matter;

1.46. “Town” or “Municipality” means The Corporation of the Town of Ajax;

1.47. “Two Thirds of the Members Present” means two-thirds of the Members in attendance at a Meeting, and not disqualified from voting on a particular matter. Calculation of two thirds is accomplished by dividing the number of Members present by three and multiplying by two. Two thirds…

in respect of seven Members shall be five;
in respect of six Members shall be four;
in respect of five Members shall be four; and
in respect of four Members shall be three.

1.48. “Upper Tier Council” means the Council of the Regional Municipality of Durham.

1.49. “Veto” means the use of powers granted to the head of Council under Section 284.11 or 284.16 of the Act.

1.50. **“Veto Override” means a vote of two-thirds of the members of Council conducted in accordance with Section 284.11 paragraph (g) or Section 284.16 paragraph (5) of the Act**, requiring a total of 5 votes cast in favour**.**

2. Application / Suspending the Rules

2.1. The Rules of Procedure contained in this by-law shall be observed in all proceedings of Council and Standing Committees, and shall be the rules and regulations for the order and dispatch of business.

2.2. The rules and regulations herein may be suspended by a two-thirds majority vote of the Members present unless otherwise provided for in any Act, and with the following exceptions:

2.2.1. Provisions for quorum;
2.2.2. Provisions for unanimous consent from Members in order to add an unscheduled item to a Special meeting agenda, and restriction from adding items to an Emergency Meeting agenda; and
2.2.3. Provisions for Open Meetings.

2.3. In any case for which provision is not made herein, the procedure to be followed shall be determined by the Chair of the meeting.

3. Principles of the Procedure By-law

3.1. The principles of openness, transparency, and accountability to the public guide the Town’s decision making process. In the context of Council and other Committee proceedings, this is accomplished by:

3.1.1. Ensuring the decision-making process is understood by the public and other stakeholders;
3.1.2. Providing access to information and opportunities for input by the public and other stakeholders consistent with the requirements of this by-law and other statutory requirements; and
3.1.3. Exercising and respecting individual and collective roles and responsibilities provided for in this Procedure By-law and other statutory requirements.

3.2. The following principles govern Council and Committee meetings:

3.2.1. The majority of Members have the right to decide;
3.2.2. The minority of Members have the right to be heard;
3.2.3. All Members have the right to information to help make decisions, unless otherwise prevented by law;
3.2.4. All Members have a right to an efficient meeting;
3.2.5. All Members have the right to be treated with respect and courtesy, and;
3.2.6. All Members have equal rights, privileges and obligations.

4. Duties

Council

4.1. The primary objective of Council shall be to practice and demonstrate excellence in local governance. All business addressed at Council shall be acted upon by the Members as to how that business addresses or corresponds to the public interest.

4.2. Members shall come prepared to every Meeting by having read all the material supplied, including agendas and Staff reports, to facilitate discussion and determination of any necessary actions.

4.3. Members shall:

4.3.1. Vote on all motions put to a vote;
4.3.2. Respect the Rules of Procedure in this by-law and comply with the Chair's rulings;
4.3.3. Comply with the Ajax Council Code of Conduct; and
4.3.4. Respect the confidentiality of matters discussed in Closed Session meetings and not disclose the subject or substance of these discussions unless authorized to do so.

Mayor/Standing Committee Chair

4.4. The Mayor/Chair shall serve as the presiding officer for the Meeting, call the meeting to order, address the business before Council/Committee, and rule on procedural matters.

4.5. If the Mayor/Chair does not attend a meeting within five minutes of the scheduled starting time of the meeting, the Deputy Mayor/Vice-Chair shall call the meeting to order and preside over the meeting until the arrival of the Mayor/Chair.

4.6. The Mayor/Chair or Deputy Mayor/Vice-Chair may, during a meeting, appoint another Member to preside over a meeting if required. While presiding over a meeting, the Member has and may exercise all the rights, powers, and authority of the Mayor/Chair under this by-law.

4.7. The Mayor/Chair shall recognize Members who wish to speak, and determine the order in which they are allowed to speak.

4.8. The Mayor/Chair shall receive and submit, in the proper manner, all motions presented by the Members and to put to a vote all questions, which are duly moved, and to announce the results of all such votes.

4.9. The Mayor/Chair may permit questions to be asked through the Mayor/Chair of any staff members, delegates or presenters at a Meeting, in order to provide Members with information to assist in any deliberations, and may afford delegates and presenters the opportunity to respond to answers provided by staff, provided that doing so does not interfere with the conduct of the meeting and delegates do not enter into debate with staff or Members of Council.

4.10. The Chair may, with the general consent of Members present, perform any of the following actions with respect to a meeting:

4.10.1. Recess a Meeting for a period of time defined by the Chair;
4.10.2. Advance or delay an item in the order of business on any Council or Standing Committee agenda;

4.11. The Mayor/Chair may speak and/or vote on any question;~~**, but if they wish to move a motion, they shall first leave the Chair by designating another Member to act in their stead until they resume the Chair**~~.

4.12. The Mayor/Chair shall enforce, as necessary, the observance of order and decorum among Members, delegates, and visitors, and shall have the right to expel any person for improper conduct or disruption of the Meeting.

Clerk

4.13. The Clerk shall attend or cause a designate to attend all Meetings of Council and Standing Committees to take minutes and/or keep a record of all proceedings.

4.14. The Clerk shall ensure that Standing Committee Reports are put forward in such a way that the decisions contained therein can be considered by Council.

4.15. The Clerk shall be responsible for the management and coordination of Meeting agendas and related resolutions, by-laws, correspondence and records, and allow for public access to the same in accordance with the *Act*, the *Municipal Freedom of Information and Protection of Privacy Act R.S.O. 1990 c. M. 56*, and other pertinent legislation.

4.16. The Clerk, when requested, shall provide advice on matters of procedure.

4.17. **Subject to the rights afforded to others under this by-law or any statute, the Clerk shall be responsible for assembling meeting agendas, providing advice internally to ensure that recommendations made to Council or Standing Committee are within Council's jurisdiction to enact and that statutory and procedural requirements have been met prior to the addition of an item to an agenda.**

Chief Administrative Officer (CAO)

4.18. The CAO shall assist Council in discharging its responsibilities and, in an objective manner, aid Members in such a way that they are able to carry out their duties.

4.19. The CAO shall review, or cause to be reviewed, all Substantive Reports and recommendations prior to their submission to Council or Standing Committee, to ensure that they accurately reflect the goals and objectives of the Town.

4.20. The CAO shall attend all Council Meetings, and when invited or when deemed necessary to do so, shall attend or cause a designate to attend Standing Committee Meetings **and shall be responsible for recommending reports for submission to Council or Standing Committees**.

Department Heads

4.21. Department Heads shall assist the CAO in the discharge of their duties and in the development of strategies for the implementation of the policies of Council.

4.22. Department Heads shall review all reports and recommendations originating from their departments to ensure accuracy and propriety.

4.23. Department Heads shall attend or cause a designate to attend all Council Meetings, and when invited or when deemed necessary to do so, shall attend or cause a designate to attend Standing Committee Meetings.

4.24. Department Heads shall be encouraged to provide Council/Standing Committee their professional opinion with respect to the effectiveness of particular Council policies or programs and to identify any possible improvements thereto, but shall avoid becoming involved in Council's policymaking role.

Meeting Attendees

4.25. No persons, other than Council Members and Town Staff, are permitted to approach the area where Council and Staff are seated unless invited by the Mayor/Chair to do so.

4.26. Attendees shall submit all materials for Council or Standing Committees through the Clerk.

4.27. Attendees shall maintain order and not heckle or engage in conversations, display placards or props, or engage in any behavior that may be considered disruptive.

4.28. Attendees shall ensure that all personal digital devices are turned off or set to a silent mode during a Meeting.

4.29. Attendees participating remotely shall not be permitted to activate their camera or microphone unless invited by the Mayor/Chair to do so.

5. General Rules

Appointment of Deputy Mayor

5.1. Council shall, by way of by-law or resolution, appoint a Member of the Council to act from time to time in the place of the Mayor when the Mayor is absent from the municipality or absent through illness, and while so acting, such Member has and may exercise all the rights, powers, and authority of the Mayor. **For greater certainty, the rights, powers and authority provided to the Deputy Mayor in the absence of the Mayor do not include powers assigned to the head of Council pursuant to Part VI.1 of the Act.**

5.2. Council may, by way of resolution or by-law and with the consent of the Mayor, appoint a Member to act in the place of the Mayor on any board, commission, or other body of which the Mayor is a member by virtue of office.

5.3. Notwithstanding Sections 5.1 and 5.2, Council may delegate to the Mayor the authority to appoint another Member as Deputy Mayor.

Quorum

5.4. A quorum of Council or a Standing Committee shall be more than 50% of the Members of Council/the Committee.

5.5. If a quorum is not present within fifteen minutes after the time appointed for a Meeting, the Clerk or designate shall record the names of the Members present and the Meeting shall stand adjourned until the date of the next regular Meeting or other Meeting called in accordance with the provisions of this by-law.

5.6. Where there is an insufficient number of voting Members to constitute a quorum due to a provision of the *Municipal Conflict of Interest Act*, the remaining Members of Council constitute quorum provided that such number is not less than two (2).

5.7. Members are encouraged to notify the Clerk in advance of the Meeting when the Member is aware that he/she will be absent from any Meeting of Council or a Standing Committee.

Remote Participation at Meetings

5.8. Council Members, staff, and members of the public are permitted to participate in meetings remotely via electronic means (e.g. video or audio teleconference).

5.9. Council Members participating remotely shall have all the same rights and responsibilities as if they were in physical attendance. A Council Member who is remotely participating in a meeting shall be counted in determining whether or not a quorum of members is present at any point in time, and may participate electronically in any portion of a meeting that is closed to the public. Where **a** Member of Council encounters technical difficulties or is otherwise unable to participate remotely in a meeting, such circumstances shall not affect the validity of the meeting or any action taken at the meeting, provided that quorum is not lost during the meeting.

5.10. Where a member of the public requests to participate remotely in a meeting, the Clerk ~~**or their designate**~~ shall take such steps as are necessary to enable the

individual to participate remotely in the meeting. Where a member of the public encounters technical difficulties or is otherwise unable to participate remotely in a meeting, such circumstances shall not affect the validity of the meeting, or any action taken at the meeting. **For greater clarity, remote participation is a convenience offered to the public and statutory rights under applicable legislation are best preserved by participating in meetings in person.**

5.11. Members of the public participating remotely are expected to follow all rules of decorum as described Section 5.49 in these procedures.

5.12. A meeting of Council or any of its Standing Committees may be held in a fully electronic/remote format if deemed necessary by the Mayor in consultation with the Clerk. Where a decision to hold a meeting in a fully electronic/remote format is made, the Clerk or their designate shall notify all participants and the public as soon as possible in advance of the meeting.

5.13. **Members of the public wishing to participate remotely shall register with the Clerk as follows:**

5.13.1. **For meetings scheduled to start at 7:00 p.m. or later, registration requests shall be received on or before 12:00 p.m. on the day of the meeting;**
5.13.2. **For all other meetings, registration requests shall be received at least 24 hours prior to the scheduled start of the meeting; and,**
5.13.3. **The date and timestamp of the email as displayed by the Town's email system shall determine whether these requirements have been met.**

Recording and Broadcasting Meetings

5.14. All meetings of Council and its Standing Committees may be audio and/or video recorded and may be broadcast publicly by the Town. Closed Session portions of all meetings shall not be recorded or broadcast.

5.15. Where the Town records and/or broadcasts all or a portion of a meeting of Council or its Standing Committees, the recording and/or broadcast of the meeting shall be considered a record created for the purposes of being available to the general public.

5.16. Members of the public in attendance at a meeting may record or broadcast meetings from their personal devices, provided that doing so is not disruptive to the Meeting or to other attendees. Attendees invited to participate in a Closed Session portion of a meeting shall not record or broadcast any portion of a meeting held in Closed Session.

5.17. **Where a meeting is broadcast publicly by the Town, failure of the broadcast for any reason shall not invalidate the meeting, or any action taken at the meeting.**

Appointment of Alternate Member to Upper Tier Council

5.18. Council may appoint one of its Members as an Alternate Member of the Upper Tier Council to act in place of any Regional Councillor when they are unable to attend a meeting of the Upper Tier Council for any reason, subject to the following limitations:

5.18.1. No more than one Alternate Member may be appointed during the term of Council;
5.18.2. Notwithstanding Section 5.18.1, if the seat of the appointed Alternate Member becomes vacant, Council may appoint another of its members as an Alternate Member for the remainder of the term of Council;
5.18.3. Council may not appoint an alternate for the Alternate Member; and
5.18.4. When acting in their capacity as an Alternate Member on the Upper Tier Council, the Alternate Member shall adhere to all policies, procedures, practices, and codes of conduct established by the Upper Tier Council.

Closed Session Meetings / Openness and Transparency

5.19. All proceedings of Council and Standing Committees shall be open to the public, except where a matter meets one or more of the criteria listed in Section 239(2) and 239(3.1) of the *Act*. In such a case, Council or the Standing Committee may choose to consider the matter in a Closed Session meeting, but is not required to do so.

5.20. A Meeting shall be closed if the subject matter being considered is a request under the *Municipal Freedom of Information and Protection of Privacy Act* if Council is the head of the institution for the purposes of that Act, or if the Meeting is regarding an ongoing Ombudsman investigation respecting the municipality, a local board or a municipally-controlled corporation.

5.21. Before holding a Meeting or part of a Meeting that is to be closed to the public, Council or the Standing Committee must state by resolution the fact of the holding of a Closed Session, the general nature of the matter to be considered at the Closed Session, and the Municipal Act provision that permits the item to be considered in Closed Session.

5.22. The Clerk shall advise the Chair if, in their opinion, the issue (or portion thereof) being discussed at a Closed Session is not appropriate in accordance with the terms of the Act and in accordance with the provisions of this by-law.

5.23. Voting shall not be permitted in a Closed Session except when the vote is for a procedural matter or for giving directions or instructions to officers, employees or agents of the municipality or persons retained under contract with the municipality.

5.24. Where appropriate and where it does not conflict with the best interests of the municipality, Council/Committee shall rise and report any decisions made in a Closed Session under Section 5.23, immediately upon reconvening in Open Session.

5.25. When appropriate, Staff shall be encouraged to prepare an “open” report to supplement the Closed Session report, which shall contain non-confidential information on the matter that is to be discussed in the Closed Session.

Disclosures of Pecuniary Interest

5.26. All Members shall govern themselves at any Meeting in accordance with the *MCIA* respecting any disclosure of pecuniary interest. It is the responsibility of the Member to identify and disclose any pecuniary interest.

5.27. Prior to any consideration of a matter in which a member has a pecuniary interest, the Member shall disclose the pecuniary interest including the general nature thereof, and shall not take part in the discussion of or vote on any question in respect to the matter, and shall not attempt in any way, whether before, during or after the Meeting, to influence the voting on any such question.

5.28. Where the Meeting is not open to the public, in addition to declaring the conflict, the Member shall immediately leave the Meeting or the part of the Meeting during which the matter is under consideration.

5.29. Where a Member is absent from a Meeting which includes a matter on which they have a pecuniary interest, the Member shall disclose this interest at the next Meeting they attend.

5.30. The disclosure of pecuniary interest shall be recorded in the minutes of the Meeting, and where the Meeting was open to the public, the general nature of such disclosure.

5.31. At a meeting at which a member discloses a pecuniary interest or as soon as possible afterwards, the Member shall file a written statement of the interest and its general nature with the Town Clerk.

5.32. The Town Clerk shall establish and maintain a registry in which shall be kept a copy of each statement of pecuniary interest filed and a copy of each declaration recorded in the minutes of a meeting, and the registry shall be made available for public inspection.

5.33. **Should the Mayor encounter a direct, or indirect, pecuniary interest in any matter associated with the exercise of any power under Part VI.1 of the Act, they shall:**

5.33.1. **Disclose the interest and its general nature in writing with the Town Clerk;**
5.33.2. **Refrain from exercising any power or duty with respect to the matter; and,**
5.33.3. **Shall not influence any decision or recommendation of the municipality that results from consideration of the matter.**

5.34. **Should the Mayor encounter a direct, or indirect, pecuniary interest in any budgetary matter under Subsection 284.16(2) of the Act:**

5.34.1. **Council may pass a resolution to amend the proposed budget with respect to the matter; and,**
5.34.2. **The Mayor may not Veto the resolution.**

Minutes

5.35. The Clerk shall cause minutes to be taken of all meetings of Council and its Standing Committees, which shall include:

5.35.1. The place, date and time of the meeting;
5.35.2. The names of the presiding officer or officers and the record of attendance of the Members; should a Member enter after the commencement of a Meeting or leave prior to adjournment, the time shall be noted; and
5.35.3. All other proceedings without note or comment.

Delegations at Council & Standing Committees

5.36. Persons desiring to verbally present information on matters of fact or to make a request to Council shall give notice, including the subject of their address, to the Clerk no later than noon ten days prior to the Meeting.

5.37. The Clerk may decline to grant a request for delegation if the subject matter pertains to personnel matters, labour relations, ongoing legal proceedings, solicitation of business, political parties, or if it is otherwise apparent that the subject matter of the delegation is not suitable for discussion at a meeting of Council. Individuals wishing to appear as a delegation may be encouraged by a Member or a Staff person to consider resolving an issue or concern with Staff in lieu of, or prior to, submitting a request for delegation.

5.38. Notwithstanding Section 5.36, a person wishing to make a delegation in-person with respect to a matter before the Community Affairs and Planning Committee for which the public has been invited to make comment, or has been given notice of the Meeting under the *Planning Act* R.S.O. 1990 c. P. 13 (the “Planning Act”) or any other legislation or regulation, as required, is not required to give written notice nor be listed on the agenda.

5.38.1. Notwithstanding Section 5.38, a person wishing to make a delegation remotely via electronic means with respect to a matter before the Community Affairs and Planning Committee for which the public has been invited to make comment, or has been given notice of the Meeting under the *Planning Act* R.S.O. 1990 c. P. 13 (the “Planning Act”) or any other legislation or regulation, as required, is required to give written notice to the Clerk ~~**as soon as possible prior to the meeting in order to enable their participation remotely**~~ **as described in Section 5.13**.

5.39. Notwithstanding Section 5.36, no person shall be permitted to speak to Council requesting consideration of a matter that is before the Community Affairs and Planning Committee for a zoning by-law amendment, official plan amendment or any other matter requiring a public meeting under the *Planning Act*, or any other legislation or regulation prior to the date of the scheduled statutory public meeting. Also, no person shall be permitted to speak to Council on a matter that has been the subject of a public meeting at a Standing Committee and where Council has not yet decided the matter.

5.40. Notwithstanding Section 5.36, delegations shall not be permitted at General Government Committee and requesters shall be directed to the appropriate meeting of Council to make their delegation. Persons wishing to speak to a matter that is scheduled for consideration at GGC may request that the rules of procedure be suspended to hear an unscheduled delegation, in accordance with Section 2.2 of these procedures. Delegates at GGC are expected to follow all rules of conduct for delegates specified in Sections 5.49 to 5.51 of these procedures.

5.41. Delegations shall be permitted to speak on a matter only once and be limited to speak for no more than five minutes for individual delegations, or ten minutes for group delegations. Where there are numerous delegates taking the same position on a matter, they are encouraged to select a spokesperson to present their views. Delegations are encouraged not to repeat information presented by an earlier delegation.

5.42. Members shall be permitted to ask questions of delegates but shall not enter into debate with such persons.

5.43. Delegations will typically be heard prior to presentations.

5.44. **Notwithstanding Section 5.36, delegations respecting a matter appearing on a regular Council agenda shall be permitted to register following agenda publication, provided the request is received by the Clerk no later than noon on the Friday prior to the meeting.**

Presentations

5.45. From time to time, Town Staff and certain persons from partner organizations, other government bodies, and dignitaries, may be granted presentation status from the Clerk in order to inform Members of matters of considerable significance to the Town.

5.46. Persons must request and be granted presentation status from the Clerk by noon ten days prior to the Council or Committee Meeting.

5.47. Presenters will typically be granted ten minutes for their presentation, and may be granted additional time at the discretion of Council or the Committee.

5.48. Where possible, presentations from outside individuals or groups will be heard prior to presentations from Town Staff.

Conduct of Delegates & Presenters

5.49. Persons delegating or presenting to Council or a Standing Committee shall not:

5.49.1. Speak disrespectfully of any person;
5.49.2. Use offensive words;
5.49.3. Speak on any subject other than the subject for which they have received approval to address Council/Committee;
5.49.4. Disobey the decision of the Mayor/Chair or Council/Committee;
5.49.5. Enter into cross-debate with other delegates/presenters, Town Staff, Members, or the Chair.

5.50. The Mayor/Chair, with the assistance of the Clerk, shall determine a logical and fair speaking order for the presenter(s). The decision of the Mayor/Chair under this section is final.

5.51. Delegates/presenters will not be permitted to assume any unused time allocated to another delegation or presentation.

Petitions

5.52. Petitions submitted to Council must contain a concise, clearly worded and respectful request that Council take, or refrain from taking, some action in response to an alleged grievance, issue, or matter of Town policy. Petitions without such a request (i.e. documents consisting solely of statements of opinion or statements of grievance) cannot be accepted as petitions. The action sought must

fall within Council's jurisdiction and cannot pertain to the jurisdiction of the Upper Tier Council or the provincial or federal government.

5.53. All petitions shall include at minimum the full name and physical address of all signatories. When a petition consists of more than one page, each succeeding page is to contain a statement of the subject matter of the petition to ensure that signatories are fully aware of the nature of the petition.

5.54. The Clerk shall determine whether a petition submitted to Council is valid. A petition shall be deemed to be valid if it substantially complies with Sections 5.52 and 5.53 of this by-law, and if in the opinion of the Clerk any deficiencies noted do not substantially detract from the integrity of the petition. A petition not deemed valid by the Clerk shall be referred back to the submitter with an explanation as to why the petition is not valid. Petitioners may re-submit petitions in a valid form if they so choose.

5.55. When a submitted petition is deemed valid, the Town Clerk shall circulate the petition in its entirety to Council, the Chief Administrative Officer, and relevant Department Head(s). As soon as practicable, valid petitions shall be included on the Council Agenda as an item of Correspondence with a recommendation either to receive for information or a referral back to staff for further review and recommendations. The Clerk shall notify the petitioner(s) when the petition will be included on a Council Meeting agenda. Staff may submit accompanying correspondence to Council regarding the petition and the recommendation as needed.

Administrative Corrections to Official Records

5.56. The Clerk is authorized to make administrative corrections to official records of Council business, including agendas, minutes, and by-laws, and in such cases the Clerk shall document any corrections made to ensure their conformity with the direction provided by Council and any relevant governing legislation, as the case may be.

Location of Meetings

5.57. Regular Meetings of Council and its Standing Committees shall be held at the location specified in this procedure by-law. Special and Emergency Meetings may be held at an alternate location within the municipality or in an adjacent municipality as determined by the Mayor in consultation with the Clerk when appropriate.

6. Council

Inaugural Meeting of Council

6.1. Following a regular municipal election, the Inaugural Meeting shall be held no later than 31 days after the new term of office commences, on such a date, at such time and place as coordinated by the Clerk.

Regular Schedule of Meetings

6.2. All regular Meetings of Council shall be held at Town Hall, 65 Harwood Avenue S, in the Council Chambers, on the third Monday of each month, starting at 7:00 p.m. in the evening unless such a day is a public or civic holiday in which case the Council shall meet at the same hour on the following day. No regular meetings of Council will be scheduled for the months of July and August.

Order of Business at Regular Meetings

6.3. The Clerk shall prepare and cause to be circulated for the use of Members at Meetings of Council, an agenda listing the Order of Business, which shall contain the following general headings:

Call to Order & Acknowledgement of Traditional Treaty Lands
Disclosure of Pecuniary Interest
Adoption of Minutes
Question Period

Delegations, Presentations, and Public Meetings
Correspondence
Reports
Regional Councillors' Reports
Business Arising from Notice of Motion
By-laws
Notice of Motion
New Business/Announcements
Confirming Bylaw
Adjournment

6.4. All business shall be taken up in the order in which it appears on the agenda unless otherwise decided by the Mayor/Chair, with the general consent of the Members present.

Call to Order & Acknowledgement of Traditional Treaty Lands

6.5. As soon after the hour fixed for holding the Meeting of the Council as a quorum is present, the Mayor shall take the Chair, call the Members to order, and read the acknowledgement of traditional treaty lands.

Disclosure of Pecuniary Interest

6.6. Members shall disclose any pecuniary interests with respect to matters on the meeting's agenda in accordance with Sections 5.26 to 5.34 of these procedures.

Adoption of Minutes

6.7. Draft minutes of the last regular Meeting of Council and of Special Council Meetings held subsequent to the last regular Meeting shall be included in the agenda where such minutes are ready for adoption and may be adopted by Council without having been read aloud at the Meeting at which the question of their adoption is considered.

Question Period

6.8. An opportunity will be provided for any member of the public to ask the Mayor a question pertaining to any matter appearing on the Council agenda. All questions will be answered by the Mayor, unless in the Mayor's opinion the answer could be better provided by another Member of Council or a member of Town staff. In the interest of expediency, the Mayor/Chair may impose time limitations on the questions asked by members of Council and the public.

Delegations, Presentations, and Public Meetings

6.9. Persons desiring to verbally present information or make a request to Council may do so as per Sections 5.36 to 5.44 of this by-law.

Correspondence

6.10. Every written communication intended for presentation to Council must be legibly written, typed, or printed, and delivered to the Clerk not later than noon ten days prior to the regular Meeting of Council.

6.11. Items of correspondence included in the agenda may include recommendations from Staff related to the matter.

6.12. Certain items of correspondence not requesting or requiring any action by Council may be circulated by the Clerk to Members of Council, the CAO, and applicable Staff for their information, and will form a part of the Clerk's records.

6.13. If in the opinion of the Clerk, the correspondence contains obscene or improper content or language, is anonymous, addresses a matter that has already been decided by Council, is related to personnel matters, labour relations, ongoing legal proceedings, political parties, or solicitation of business, or does not bear sufficient relevance to local governance or matters affecting or of interest to the Town, the Clerk may exclude the item from the agenda.

6.14. A Motion with respect to any item of correspondence shall be in order provided it is moved and seconded, with the exception that a Motion to endorse an item of correspondence shall be out of order if the correspondence was sent by a Member to an external party.

Reports

6.15. The following reports to Council will be listed on the agenda:

6.15.1. Community Affairs and Planning Committee
6.15.2. General Government Committee
6.15.3. Summary of Advisory Committee Activities
6.15.4. Departmental Reports

6.16. Committee Reports may be dealt with by a single resolution for each report listed in the agenda; or, any Member may request that one or more recommendations contained in the report be separated and dealt with individually.

6.17. The Chairs of CAP and GGC Meetings for which reports are being presented may deliver a brief verbal report to Council and the public on the respective Meeting that took place that month, and any notable recommendations contained within the report being put forward to Council for approval.

6.18. The 'Departmental Reports' portion of the agenda shall include any Staff report that due to timing, urgency, expediency, or public importance, must be considered by Council without first being presented to one of the Standing Committees. From time to time, it may also include a report from the Ajax Library. Department Reports may be dealt with by a single resolution to adopt the recommendations within all reports.

Regional Councillors' Reports

6.19. The Regional Councillors may report to Council, either in writing or verbally, on any business at Regional Council or its committees. These reports, if in writing and received by the Clerk in time for publication, shall be circulated with the agenda.

Business Arising from Notice of Motion

6.20. A Notice of Motion properly presented as per Sections 6.26 to 6.29, shall be listed and circulated in the agenda, and shall be dealt with at this time.

By-laws

6.21. By-laws shall be introduced upon motion by a Member, and any number of by-laws may be introduced together in one motion. Council shall, at the request of a Member, deal separately with any by-law.

6.22. By-laws which have been passed by the Council shall be numbered, dated and sealed with the seal of the Town and signed by the Mayor and Clerk or their designates, and shall be retained under the control of the Clerk.

6.23. **By-laws imposed by order of the Ontario Land Tribunal, the Minister of Municipal Affairs and Housing, or any other applicable person or body having jurisdiction, shall be numbered, added to an agenda for transparency and recordkeeping purposes, and shall be retained under the control of the Clerk.**

6.24. **By-laws shall come into force and effect on the later of:**

6.24.1. **The date on which it was adopted by Council;**
6.24.2. **The date on which the Mayor gives approval of the by-law;**
6.24.3. **The date on which the notice period established by Subsection 284.11(3) of the Act expires; or,**
6.24.4. **The date on which Council passes a Veto Override.**

6.25. **The Clerk is authorized to amend by-laws to identify the date on which by-laws come into effect, as described in Section 6.24 above.**

Notice of Motion

6.26. Motions introducing new matters, except for motions listed under Sections 12.8, **12.9 and 12.10**, shall be given in writing by the mover:

6.26.1. at a Meeting of Council, but shall not be debated until the next regular Meeting of Council; or

6.26.2. delivered to the Clerk and distributed to Council not later than noon ten days prior to the date of the Meeting at which time the motion is to be introduced and debated.

6.27. Where notice of motion has been given, the motion shall be printed in the agenda, under "Business Arising from Notice of Motion" for the next regular Meeting of Council and for each succeeding Meeting until the motion is considered or otherwise disposed of.

6.28. When a Member's notice of motion has been called from the Chair at two successive Meetings and not proceeded with, it shall be removed from the agenda unless Council decides otherwise.

6.29. Notwithstanding anything contained in this section, a motion introducing new matters may be introduced without notice by suspension of the rules.

New Business/Announcements

6.30. A period will be allowed for Members to bring matters of public interest before Council for information. Each member shall be limited to five minutes, and statements shall not be intentionally controversial in nature.

Confirming By-law

6.31. A by-law to confirm the proceedings and resolutions of Council at the meeting shall be included for adoption at the meeting.

Adjournment

6.32. If all matters in the order of business have concluded on the meeting's agenda, the Mayor/Chair may adjourn the meeting.

6.33. Notwithstanding Section 6.32 members may vote to adjourn a meeting at any time**, except when considering a by-law described in Section 13**.

7. Standing Committees

7.1. There shall be two Standing Committees of Council, being the Community Affairs and Planning Committee and the General Government Committee.

7.2. All members of Council shall be appointed to all Standing Committees.

7.3. Standing Committees shall report to Council on all matters connected with their mandate or referred to them by Council, and shall recommend to Council such actions as they deem necessary.

7.4. The record of the proceedings of the Standing Committees, as presented to Council, shall be in the form of a report to Council which shall contain:

7.4.1. The commencement time of the Meeting;
7.4.2. The names of the Members present; should a Member enter after the commencement of a Meeting or leave prior to adjournment, the time shall be noted;
7.4.3. Any disclosure of pecuniary interest by any Member;
7.4.4. A record of each item before the Committee for consideration; and
7.4.5. All substantive resolutions recommended to Council based on the items before the Committee for consideration.

8. Community Affairs and Planning Committee (CAP)

Mandate

8.1. The Community Affairs and Planning Committee is mandated with holding statutory public meetings required under the *Planning Act* or other legislation or regulations, any other matter deemed to require public consultation, and such other matters as may be referred to the Committee.

Chair

8.2. CAP shall be chaired by both Local and Regional Councillors on a rotating basis, in order of ascending ward number. The Vice-Chair shall be the Local or Regional Councillor representing the same ward as the Chair, and shall also be listed on each agenda to act in the absence of the Chair. Local and Regional Councillors shall alternate roles between Chair and Vice-Chair every three months. The rotation of Chairs shall be established annually during the approval of the schedule of meetings for the subsequent year. In the absence of both the designated Chair and Vice-Chair, the Members present shall appoint a Member who shall preside over the Meeting, or until the arrival of the Chair or Vice-Chair.

Regular Schedule of Meetings

8.3. CAP shall meet in the Council Chambers on the first Monday of each month starting at 7:00 p.m. unless such a day is a public or civic holiday in which case the Committee shall meet at the same hour on the next following day which is not a holiday. No regular Meetings will be scheduled for the months of July or August.

Order of Business at Regular Meetings

8.4. The Clerk or their designate shall be the secretary of the Committee, and shall prepare and circulate an agenda for each Meeting listing the Order of Business, which shall contain the following matters:

Call to Order & Acknowledgement of Traditional Treaty Lands
Disclosure of Pecuniary Interest
Adoption of Minutes
Public Meetings
Presentations/Reports
Adjournment

8.5. All business shall be taken up in the order in which it appears on the agenda unless otherwise decided by the Chair, with the general consent of the Members present.

Call to Order & Acknowledgement of Traditional Treaty Lands

8.6. As soon after the hour fixed for holding the CAP meeting as a quorum is present, the Chair shall call the Members to order and read the acknowledgement of traditional treaty lands.

Disclosure of Pecuniary Interest

8.7. Members shall disclose any pecuniary interests with respect to matters on the meeting's agenda in accordance with Sections 5.26 to 5.34 of these procedures.

Adoption of Minutes

8.8. Minutes of the last regular CAP meeting and of all Special CAP meetings held subsequent to the last regular meeting shall be included in the agenda and may be adopted by the Committee without having been read aloud at the meeting at which the question of their adoption is considered.

Public Meetings

8.9. Public Meetings required under the *Planning Act* or any other legislation or regulation shall be held to obtain public comment on an application or other matter during this portion of the meeting. Other matters for which Council, the Standing

Committee or Staff have deemed it expedient to invite public comment may also be addressed at this time.

8.10. Delegations received during a Public Meeting shall be heard first from any member of the public attending the meeting in-person, followed by any members of the public registered to participate remotely via electronic means. The Chair, in consultation with the Clerk, may accommodate a different order of speakers where deemed possible and appropriate.

Presentations/Reports

8.11. Other presentations and reports pertaining to the mandate of the Community Affairs and Planning Committee which do not require a public meeting may be considered during this portion of the meeting.

Adjournment

8.12. If all matters in the order of business have concluded on the meeting's agenda, the Chair may adjourn the meeting.

8.13. Notwithstanding Section 8.12, members may vote to adjourn a meeting at any time.

9. General Government Committee (GGC)

Mandate

9.1. The General Government Committee makes recommendations to Council on levels of service, corporate and operational policies, personnel matters, budgetary matters, and such other matters that may be referred to the Committee.

Chair

9.2. GGC shall be chaired by both Local and Regional Councillors on a rotating basis, in order of ascending ward number. The Vice-Chair shall be the Local or Regional Councillor representing the same ward as the Chair, and shall also be listed on each agenda to act in the absence of the Chair. Local and Regional Councillors shall alternate roles between Chair and Vice-Chair every three months. The rotation of Chairs shall be established annually during the approval of the schedule of meetings for the subsequent year. In the absence of both the designated Chair and Vice-Chair, the Members present shall appoint a Member who shall preside over the Meeting, or until the arrival of the Chair or Vice-Chair.

Regular Schedule of Meetings

9.3. The GGC shall regularly meet in the Council Chambers in Town Hall on the second Monday of each month starting at 1:00 p.m. unless such a day is a public or civic holiday in which case the Committee shall meet at the same hour on the next following day, which is not a holiday. A scheduled Closed Session of the GGC may follow after the open meeting.

Order of Business at Regular Meetings

9.4. The Clerk or an employee of the Town designated by the Clerk shall be secretary of the GGC and they shall prepare and cause to be circulated for the use of the Members at the regular Meetings of the GGC, an agenda listing the Order of Business, which shall contain the following matters:

Call to Order & Acknowledgement of Traditional Treaty Lands
Disclosure of Pecuniary Interest
Adoption of Minutes
Consent Agenda
Discussion & Presentations
Closed Session
Adjournment

9.5. All business shall be taken up in the order in which it appears on the agenda unless otherwise decided by the Chair, with the general consent of the Members present.

Call to Order & Acknowledgement of Traditional Treaty Lands

9.6. As soon after the hour fixed for holding the GGC meeting as a quorum is present, the Chair shall call the Members to order and read the acknowledgement of traditional treaty lands.

Disclosure of Pecuniary Interest

9.7. Members shall disclose any pecuniary interests with respect to matters on the meeting's agenda in accordance with Sections 5.26 to 5.34 of these procedures.

Adoption of Minutes

9.8. Minutes of the last regular GGC meeting and of all Special GGC meetings held subsequent to the last regular meeting shall be included in the agenda and may be adopted by the Committee without having been read aloud at the meeting at which the question of their adoption is considered.

Consent Agenda

9.9. Consent Agenda items are considered to be routine, and all items on the Consent Agenda may be approved by one motion. Any item on the Consent Agenda may be separated upon request of any Member and addressed by the Committee. Members are encouraged to provide notice to the Clerk or their designate of items intended to be separated for discussion by 10:00 a.m. on the day of the meeting, such that the necessary staff can be made available.

Discussion & Presentations

9.10. Discussion & Presentation items include all matters that, in the opinion of staff, require a formal presentation or discussion of a matter in detail. Discussion & Presentation items may include a formal report and recommendations from staff, or may be verbal only.

Closed Session

9.11. If necessary, a Closed Session of GGC may be scheduled to be held following the conclusion of all other matters on the meeting agenda, and shall be conducted in accordance with Sections 5.19 to 5.25 of these procedures.

9.12. Notwithstanding Section 9.11, the Committee may convene into a Closed Session at any time in accordance with Sections 5.19 to 5.25 of these procedures.

Adjournment

9.13. If all matters in the order of business have concluded on the meeting's agenda, the Chair may adjourn the meeting.

9.14. Notwithstanding Section 9.13, members may vote to adjourn a meeting at any time.

Budget Meetings

9.15. All meetings pertaining to the consideration of annual capital and operating budgets shall be conducted as General Government Committee meetings.

9.16. Notwithstanding Section 9.2 of these procedures, GGC budget meetings shall be chaired by the Mayor.

9.17. The Order of Business for GGC budget meetings may be determined by the Clerk in consultation with the Director of Finance / Treasurer.

10. Scheduling and Notice of Meetings

Agendas

10.1. Meeting agendas shall be published on the Town website a minimum of six days in advance of the Meeting.

10.2. Late/separate circulations and addendum/revised agendas are to be avoided wherever possible. However, where necessary, addendum or revised agenda items will be circulated to Members electronically and posted on the Town website as soon as possible.

10.3. Lack of sufficient notice or late agenda distribution shall not affect the validity of holding a Meeting or any action taken thereat.

Statutory Notice Requirements

10.4. Notice of Public Meetings shall be provided in accordance with the Town's Public Notice Policy and the requirements of the Act, or any other statute that establishes requirements to provide public notice of a meeting or an item to be considered.

Notice - Regular Meetings

10.5. The Clerk shall give notice of a Regular Meeting of Council or a Standing Committee by:

10.5.1. Publishing an agenda on the Town website six days in advance of the scheduled Meeting;
10.5.2. If required, sending a Closed Session agenda to Members six days in advance of the scheduled Meeting;
10.5.3. When possible, including a list of upcoming Council & Standing Committee Meetings in a local newspaper.

Special Meetings

10.6. In addition to regular meetings, the Mayor may at any time call a special Meeting of Council or one of its Standing Committees by giving direction to the Clerk stating the date, time, and purpose of the special meeting.

10.7. Upon receipt of the petition of two thirds of the Members, the Clerk shall summon a special meeting of Council or one of its Standing Committees for the purpose and at the date and time identified in the petition.

10.8. Notice of special meetings shall be given in accordance with Section 10 of this by-law.

10.9. No business other than that indicated on the written notice shall be considered at the special meeting except with the unanimous consent of all Members present and voting at such Meeting.

10.10. Special meetings of Council or its Standing Committees are not required to follow the Order of Business for such meetings described in these procedures, and the business of a special meeting may be organized in a manner deemed appropriate by the Clerk.

10.11. The Clerk shall give notice of a special Meeting of Council or a Standing Committee as follows:

10.11.1. The Clerk shall give all Members notice of a special Meeting of Council/Committee at least twenty-four hours before the time appointed for such Meeting, by electronic mail, and publish an agenda as soon as possible.
10.11.2. Notice of the Meeting shall be provided to the public on the Town website as soon as practicable, and may be posted at the main entrance of Town Hall.
10.11.3. All special Meeting notices shall indicate the nature of the business to be considered at the special Meeting, and the date, time, and place of the Meeting.

Emergency Meetings

10.12. Notwithstanding any other provision of this by-law, the Mayor may at any time call an emergency Meeting of Council, without written notice, to deal with an emergency or extraordinary situation, provided that an attempt has been made by the Clerk or designate to notify the Members about the Meeting as soon as possible and in the most expedient manner available.

10.13. No business except business dealing directly with the emergency or extraordinary situation shall be transacted at the emergency Meeting.

10.14. In the event of an emergency Council Meeting, notice is not required; however, the Clerk will attempt to notify Members and the public about the Meeting and publish the agenda as soon as possible and in the most expedient manner available.

Rescheduling of Meetings

10.15. Where the Mayor considers it necessary to change the date and/or time of a regularly scheduled Meeting of Council or Standing Committee, the Mayor shall direct the Clerk to ascertain the views of the Members concerning the proposed change.

10.16. Where the Clerk ascertains that a majority of the Members have no objection to the proposed change, the Clerk shall confirm the scheduling change and give notice on the Town's website, and may give notice through the Town's local newspaper where practicable. Notice of the scheduling change may also be posted at Town Hall.

Cancellation of Meetings

10.17. A regular, special, or emergency Meeting of Council or a Standing Committee may be cancelled in any of the following circumstances:

10.17.1. If the Clerk determines in advance that quorum will not be achieved;
10.17.2. If the Meeting is cancelled by Council or Committee resolution;
10.17.3. Where the Meeting is not required as determined by the Mayor or Clerk.

10.18. The Clerk shall give notice of any Meeting cancellation on the Town website, and may give notice through the Town's local newspaper where practicable. Notice of cancellation may also be posted at Town Hall.

11. Rules of Debate

General Rules of Debate

11.1. The Mayor/Chair shall preserve order and decorum and decide questions of order.

11.2. When two or more Members desire to speak, the Mayor/Chair shall designate the Member who has the floor.

11.3. No Member shall be deemed to have precedence or seniority over any other Member.

11.4. Before speaking to a question or motion, a Member shall be acknowledged by the Mayor/Chair.

11.5. When a Member is speaking, no other Member shall interrupt that Member except to raise a point of order.

11.6. No Member shall speak more than twice to the same question, but a reply may be made by the Member who has presented the motion.

11.7. No Member shall speak to the same question for longer than five minutes.

11.8. A Member may ask a question for the purpose of obtaining information related to the matter under discussion.

Points of Order

11.9. A Member may call attention to a violation of the Rules of Procedure by stating the point of order to the Mayor/Chair succinctly, and the Mayor/Chair shall then decide upon the point of order and advise the Members of the decision.

11.10. A Member may immediately appeal the Mayor/Chair's decision to the Council/Committee. The Council/Committee shall hear the reason for the appeal from the appellant and the reason for the decision from the Mayor/Chair, and shall decide the question without debate. The decision of the Council/Committee is final.

Points of Privilege

11.11. Where the Member considers that their integrity, or the integrity of Council as a whole, has been impugned, he or she may draw attention to the matter.

11.12. A point of privilege shall take precedence over other matters, but the Members shall not be permitted to enter into any argument or introduce any motion related to the point of privilege.

11.13. When the Mayor/Chair considers that the integrity of the CAO or a member of Town Staff has been impugned or questioned, the Mayor/Chair may permit the CAO to make a statement to Council or the Committee.

11.14. A Member may immediately appeal the Mayor/Chair's decision on a point of privilege to the Council/Committee. The Council/Committee shall hear the reason for the appeal from the appellant and the reason for the decision from the Mayor/Chair, and shall decide the question without debate. The decision of the Council/Committee is final.

12. Motions

12.1. Except as otherwise provided in this by-law, all motions must be duly moved and seconded before the Mayor/Chair can put the question or motion on the floor for consideration, and should be in writing to ensure that all Members are fully aware of the motion to be voted on.

12.2. Notwithstanding Section 12.1, a motion presented in General Government Committee need not be in writing nor require a seconder.

12.3. When a motion is presented orally, it shall be stated by the Mayor/Chair before debate.

12.4. A motion which is printed in the agenda as either a separate item or as part of a report, need not be read in its entirety unless requested to do so by a Member but shall be deemed as read for the purposes of introducing the motion.

12.5. After a motion is read or stated by the Mayor/Chair it shall be deemed to be in possession of Council/Committee, but may be withdrawn by the mover at any time before decision or amendment.

12.6. A motion in respect of a matter which is beyond the jurisdiction of Council shall not be in order.

12.7. A motion properly before Council/Committee for decision must receive disposition before any other substantive motion can be received.

Motions without Notice

12.8. The following matters and motions may be introduced orally without written notice and are to be decided without debate:

12.8.1. a point of order;
12.8.2. a point of privilege;
12.8.3. a motion to adjourn;
12.8.4. a motion to refer without direction or instructions;

12.8.5. a motion to defer;
12.8.6. a motion to suspend the Rules of Procedure;
12.8.7. a motion to table the question without direction or instructions;
12.8.8. a motion to call the vote on a question; and
12.8.9. a motion to recess.

12.9. The following motions may be introduced without notice, but shall be put forward in writing, unless otherwise stated in this by-law, and may be debated by Members before being decided:

12.9.1. a motion to amend; and
12.9.2. a motion to refer with direction or instructions.

12.10. **Notwithstanding the requirements of this by-law, a motion introduced by the Mayor, pursuant to Section 284.10 of the Act which, in the opinion of the Mayor, may advance a Provincial Priority, shall be permitted at any time and shall be considered by Council. To assist Council in the decision-making process, it is recommended, but not required, that the motion be submitted in writing.**

Motions to Amend

12.11. Only one motion to amend the main motion shall be allowed at one time.

12.11.1. Only one motion to amend a motion to amend the main motion shall be allowed at one time.

12.11.2. The amendment to the amendment, if any, shall be voted on first, then if no other amendment is presented, the amendment shall be voted on next, then if no other amendment is introduced, the main motion, or if any amendment has carried, the main motion as amended, shall be put to a vote.

Motions to Reconsider

12.12. A motion to reconsider may be considered in respect of a resolution that was adopted at Council or at a Standing Committee during the current term of office for Council.

12.13. A motion to reconsider shall require a two-thirds majority vote to be adopted.

12.14. The Chair may require a motion to reconsider if, in the opinion of the Chair in consultation with the Clerk, a resolution moved by a Member is substantially the same as a resolution that has already been adopted during the current term of Council, or contradicts, alters, or overrides a resolution previously adopted during the current term of Council.

12.15. A motion to reconsider is debatable, and debate on a motion to reconsider shall be confined to reasons for or against the motion to reconsider. Debate on the resolution that is the subject of the motion to reconsider shall be out of order unless and until the motion to reconsider is adopted.

12.16. If a motion to reconsider is decided in the affirmative at a Meeting, then consideration of the original resolution shall become the next order of business.

12.17. If a motion to reconsider is decided in the affirmative at a Meeting, the previously adopted resolution of Council remains in force unless and until Council adopts a new resolution.

12.18. Motions to reconsider shall only be in order if they pertain to a final resolution adopted by Council. Secondary Motions and amendments cannot be the subject of a motion to reconsider, and any motion so put shall be out of order.

Single Motion

12.19. One or more items on an agenda may be adopted in a single motion.

13. Voting

13.1. Every Member present at a Meeting, when a question is put, shall vote thereon unless disqualified to vote on the question. ~~**All votes shall be by show of hands except where a recorded vote is requested by any Member.**~~

13.2. If a Member does not vote when a question is put, he or she shall be deemed to have voted in the negative, except where the Member is disqualified from voting.

13.3. A Member not in their seat when the question is called by the Mayor/Chair is not entitled to vote on that question.

13.4. Immediately preceding the taking of the vote, the Mayor/Chair shall state the question in the form introduced.

13.5. The Mayor/Chair shall announce the result of every vote.

13.6. If a Member disagrees with the announcement of the Mayor/Chair that a motion is carried or lost, he/she may immediately after the declaration by the Mayor/Chair, state their objection to the declaration and request that a recorded vote be taken on the question.

13.7. **Every vote shall be conducted using the electronic voting system. Should Council meet in a location where there is no electronic voting system, or should the electronic voting system be inoperable, the vote may be conducted by show of hands.**

Recorded Vote

13.8. Recorded votes shall be permitted at any Meeting of Council or Standing Committee of Council.

13.9. When a recorded vote is requested by a Member or is otherwise required, the Clerk shall record the name and vote of every Member on the question.

13.10. The Clerk shall conduct the recorded vote **using the electronic voting system** by enabling a 30-second time period for all Members to cast their vote on the question. At the conclusion of the allotted time period or once all Members have voted, the Clerk shall cause the result of the vote to be displayed and the manner in which each Member voted to all participants at the meeting, and the Mayor/Chair shall declare the result of the vote.

13.11. Where a meeting space does not support the technical ability to hold a recorded vote in accordance with the requirements of Section 13.10 of these procedures, the Clerk shall conduct the recorded vote by roll call of all Members present, commencing with the Member who made the request and then all other Members, alphabetically, until all Members have voted. The Mayor/Chair shall vote last, even if they are the requester of the recorded vote. Once all Members have voted, the Mayor/Chair shall declare the result of the vote.

Tied Vote

13.12. Any question on which there is an equality of votes shall be deemed to have been decided in the negative.

Dividing a Question

13.13. A Member may request that any substantive motion containing multiple proposals be divided, such that one or more proposals within the motion are voted on separately. Where such a request from a Member is received at a meeting, all proposals within the motion shall be voted on in accordance with the request to divide the question, and the Mayor/Chair shall conduct the votes accordingly.

One Third Vote

13.14. **Notwithstanding the requirements of this by-law, in accordance with Subsection 284.11.1 of the Act, where, in the opinion of the Mayor, a by-law will advance a Provincial Priority, the Mayor may submit and require Council to consider and vote on the by-law, which may be subject to a One Third Vote.**

13.15. **Where a by-law is required to be considered and voted on by Council, the following motions are not permitted:**

13.15.1. **A motion to adjourn;**
13.15.2. **A motion to refer without direction or instructions;**
13.15.3. **A motion to defer;**
13.15.4. **A motion to suspend the Rules of Procedure;**
13.15.5. **A motion to table the question without direction or instructions; and,**
13.15.6. **A motion to amend.**

14. Vetoes

14.1. **Notwithstanding the requirements of this by-law, the Mayor may Veto a by-law in accordance with Subsection 284.11 of the Act.**

14.2. **If the Mayor believes that a by-law may potentially interfere with a Provincial Priority, he may consider Vetoing the by-law by providing notice to Council of his intent to Veto the by-law within two days of Council voting in favour of the by-law, or the expiry of any prescribed deadline.**

14.3. **After giving notice of his decision to consider Vetoing a by-law, the Mayor shall deliver to the Clerk, within 14 days of Council voting in favour of the by-law, written notice of the Veto and the reasons.**

14.4. **Within one business day of receiving written notice of the Veto, the Clerk shall forward the notice and reasons to all members of Council and make a copy of the Veto and reasons available to the public.**

14.5. **Within 21 days of receiving notice of the Veto, or any other prescribed period, Council may override (Veto Override) the Veto if two-thirds of the members of Council vote to override the Veto.**

14.6. **The Mayor shall not Veto any by-law where previous written approval of the by-law has been given, or after any prescribed period established by the Act.**

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER XX-2023

A By-law to establish the duties of the Deputy Mayor for the Town of Ajax

WHEREAS Section 226 the Municipal Act, 2001, S.O. 2001, c. 25, as amended ("the Act", establishes that a municipality may, with the consent of the head of council, appoint a member of council to act in the place of the head of council on any body;

AND WHEREAS Section 242 of the Act provides that a municipality may, by by-law or resolution, appoint a member of the council to act in the place of the head of council or other member of council designated to preside at meetings in the municipality's procedure by-law when the head of council or designated member is absent or refuses to act or the office is vacant, and while so acting such member has all the powers and duties of the head of council or designated member, as the case may be, with respect to the role of presiding at meetings;

AND WHEREAS it is acknowledged that the role and duties of the Deputy Mayor in Ajax, and the time requirement to fulfill them, have expanded over the course of time and are not defined in specific terms within the Act, nor the Town of Ajax Procedure By-law;

AND WHEREAS in May 2023, Ajax Council directed that the Clerk take the necessary steps to ensure that the Deputy Mayor role in Ajax is properly defined within the relevant Town by-laws and/or policies, and report back to Council for related approvals as necessary.

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. The role and duties of the Deputy Mayor of Ajax are as follows:

    a. Presiding over meetings of Council and any other body, as permitted and/or required, in the absence of the Mayor;
    b. Representing the Town at events, speaking engagements, intergovernmental functions, and any other meetings as the role requires (can include bringing remarks or greetings, presenting certificates on behalf of Mayor/Council, etc.)
    c. Acting as a signing officer for the Town for by-laws, legal agreements, cheques, and any other documents as may be required;
    d. Advocating for corporate positions through intergovernmental affairs (can include authoring letters of support, official statements, and formal delegations to MPs, MPPs and other government officials).

2. Where the Deputy Mayor is not available to perform the above duties on behalf of the Mayor, they may, with the permission of the Mayor, request that another Regional Councillor perform the duties.

3. Nothing in this by-law authorizes a Deputy Mayor, while acting in place of the Mayor, to exercise any of the powers outlined in Part VI.1 of the Act (the "Strong Mayor Powers").

4. Remuneration for the Deputy Mayor role shall be set in accordance with the Town's Council Remuneration By-law.

READ a first and second time this
XXth day of XX, 2023

READ a third time and passed this
XXth day of XX, 2023.

_____
Mayor

_____
D- Clerk

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Derek Hannan Manager of By-law Services
Report #:	LIS-2023-12
Subject:	**Proposed Administrative Monetary Penalties System (AMPS)**
Ward(s):	All
Date of Meeting:	September 11, 2023
Reference:	N/A

Recommendations:

1. **That staff be directed to establish an Administrative Monetary Penalties System (AMPS) for parking enforcement with an implementation date of January 15, 2024.**

2. **That staff be directed to bring forward the required by-laws, including an AMPS By-law and amendments to the Town's Traffic By-law and Fees & Charges By-law to facilitate recommendation #1.**

3. **That staff be directed and authorized to establish or modify existing policies to comply with the AMPS requirements within The Municipal Act., including, but not limited to,**
   - **AMPS Conflict of Interest Policy**
   - **AMPS Public Complaints Policy**
   - **AMPS Prevention of Political Interference Policy**
   - **AMPS Financial Management & Reporting Policy**

4. **That Council provide pre-budget approval and direct staff to include the AMPS in the proposed 2024 operating budget, as described in the Financial Implications section.**

5. **That Council approve funding of $50,000.00 to be allocated to Unbudgeted Capital Account AMPS parking management software upgrade and a mail folder/inserter machine from the Capital Contingency Reserve.**

Background:

Municipalities have two legislated options for a system to enforce regulatory By-laws; a fine based system established under the framework of the Provincial Offences Act (POA) or a monetary penalty system established under the framework of the Municipal Act (MA).

Since 2007 municipalities have had the option of establishing an Administrative Monetary Penalty System (AMPS). Since this time AMPS has become an increasingly common method, with larger municipalities, such as Oshawa, Richmond Hill, Newmarket, and Markham establishing AMPS for parking offences. Several municipalities have expanded the system to include offences beyond parking, such as licensing, property maintenance By-laws, and Automated Speed Enforcement. These Municipalities' AMPS processes and penalty fees have been reviewed during this project. The proposed Ajax AMPS has been modeled similarly to that of the Richmond Hill and Oshawa systems.

Although any By-law passed under the authority of the MA can be administered using AMPS it is recommended the initial implementation of AMPS is applied to the offences within the Traffic By-law, as a number of other Municipalities have transitioned to AMPS by utilizing the same model. Once this system is established it is anticipated that the use of AMPS will be expanded to include other straightforward enforcement infractions such as Automated Speed Enforcement tickets, some licensing matters, animal enforcement, property maintenance, and waterfront offences, etc. Once initialized in 2024 staff would begin work to bring new matters forward under the AMP System within this term of Council.

Discussion:

Currently, the enforcement of offences established in the Town's Traffic By-law occurs via Part II of the Provincial Offences Act. The Traffic By-law sets out the specific parking regulations and the POA provides for the issuance of Parking Infraction Notices (PIN) to vehicles that have stopped or parked in contravention of these laws. The POA sets out the timeline for the life and aging of a ticket. An undisputed ticket will progress through this process in 75 days and will complete its cycle with the Provincial Offences Court entering a conviction, sending a payment notice, and ultimately requesting a plate denial with the Ministry of Transportation for outstanding fine collection.

Current Parking Ticket Aging Process

The Town's current system for the life cycle of a PIN is that when a vehicle is found to be in contravention of the Town's Traffic regulations, a PIN is issued. If an accused chooses to pay the ticket within 7 days, they pay the early fine (33% savings). If payment is not made, after the 8th day, the fine moves up to the set fine. By day 15, if payment has not been made, the Town will search the M.T.O. for the registered owner and send a letter called a "Notice of Impending Conviction". At this time the fines remain at the set level. If the ticket is ignored, the Town will send a "Certificate Requesting Conviction" to the Courts to get an administrative conviction for all outstanding infractions between 65 and 74 days. At this point the Town has completed its life cycle for the ticket. When the ticket is with the Courts, a final notice letter will be sent to the accused advising a conviction has been entered and an additional penalty is also added at this time. If the accused is still in default of payment after the Court's final notice, the M.T.O. is contacted and a "plate denial" is registered against the license plate and the registered owner of the vehicle. This process too carries additional penalties. When the ticket is paid, the Town will receive the full set fine that is deposited into the Town's bank via electronic monthly deposit from the Court administration. The courts and the MTO retain the additional penalties that may have been applied.

While the ticket is in the carriage of the Town the ticket recipient can contest the ticket informally by requesting a Ticket Review and speaking with a By-law staff member or formally by requesting a trial. Once the ticket has been sent to the Courts for a Conviction or a trial has been requested the Town staff are no longer involved with the process. In the event a trial is requested the Courts will schedule the trial date and notify both the Town and the defendant of the time and date of the trial. The Town is represented by the Prosecutor on the Town's retainer and the trial is adjudicated

by a Justice of the Peace. The Municipal Law Enforcement Officer that issued the parking ticket will testify and offer evidence of the infraction and the defendant is provided with the opportunity to testify in their defense. The Justice of the Peace will render a verdict and if a fine is imposed the Courts will issue a payment notice and be responsible for the fine collection.

If a conviction is registered for a PIN, regardless of whether it is entered by a Justice of the Peace at the conclusion of a trial or it is uncontested and proceeds via the CRC process, it can be appealed or reopened by way of an application to the courts. When this occurs often the infraction is before the courts for many years and the aging process is prolonged. There is no statute of limitation for these matters and it becomes a cumbersome administration process for the Town.

In comparison, an Administrative Monetary Penalty System involves a similar aging process, but is completely administered within the Town and is not reliant on the courts for any part of the process.

Proposed AMPS Aging Process

The new proposed AMPS for the life cycle of Parking Penalty Notice (PPN) is that when a vehicle is found to be in contravention of the Town's Traffic regulations, a PPN is issued. If by day 15, payment has not been made, the Town will search the M.T.O. for the registered owner and send a letter called a "Late Notice 1". At this time the fine remains at the same level, however as the person who received the infraction has chosen not to take action on the matter an additional $15 penalty will be added to the total of the fine. If the ticket continues to be ignored for an additional 21 days, the Town will send a "Late Notice 2" advising a final due date of payment for the outstanding balance owing to the Town plus an additional $15 late penalty. This Late Notice 2 will also advise the accused that should they continue to be in default of payment that the next steps for the Town will be to contact the M.T.O. and register the infraction for "plate denial". This Plate Denial request will also include an additional $15 penalty and any other penalties as prescribed by the M.T.O. When the ticket is paid to the M.T.O. the Town will receive the full fine for the original PPN, and all administrative penalties added due to the accused being in default.

Similarly, to the POA process, the recipient of a PPN has the option to contest the monetary penalty. The first level of dispute resolution is conducted by a staff member, a "Screening Officer", with the recipient requesting an electronic review of the ticket. In certain circumstances, the Town may grant in-person meetings based on specific criteria to be defined as part of forthcoming policy development should Council approve the movement to an AMP system. If dissatisfied with the outcome of the screening, a Hearing can be requested. A Hearing will be a quasi-judicial meeting with both the issuing Officer and the defendant meeting with the adjudicator known as a "Hearing Officer" (an arms-length third party service to be retained by the Town) who will render a decision on the PPN. The decision of the Hearing Officer will be final and binding, with no option for an appeal. Unlike the POA process these matters will never be reopened. The Hearing Officer will be on retainer and will attend the Town weekly for pre-booked hearing meetings.

While considering converting from a POA system to an AMPS, it is prudent to consider both the benefits and drawbacks of both models.

Benefits of an AMP System

The most notable advantage of an AMP System is the elimination of the reliance on the Provincial Courts for both the administration of uncontested parking tickets and for the scheduling and managing of trials. In recent years the Courts have become increasingly strained in their ability to provide court services and trial time to the lower tiers in the municipalities. Due to the less serious nature of parking matters, in comparison to other charges before the courts, parking ticket trials have experienced lengthy delays with trial scheduling. Parking tickets are often withdrawn

due to time delays and insufficient trial time. While this issue isn't new, it was exacerbated by the COVID-19 pandemic and has not noticeably improved as the pandemic has lifted.

A system of AMPS includes cumulative administrative penalties that are added as the penalty progresses through its aging process. This system is a user-pay system; the recipient of the parking administrative penalty pays for the costs incurred by the Municipality for the aging and processing of the PPN. In a POA system the administrative costs that are incurred by the municipality are offset by the Town's parking ticket revenue. These costs include the mailing of notices, costs incurred for searching the MTO process, staff wages for conducting ticket reviews, prosecutor's wages, court administrative fees removed from the Town's shared POA agreements, etc.

Under an AMP System, dispute hearings can occur within weeks of the offence date, increasing the administration of justice and resulting in a more streamlined and efficient dispute resolution process for both the Town and ticket recipients.

Ajax will have greater control of the parking violation dispute process under the AMP System as the Town would have the ability to manage its screening and hearing schedule. This would allow the Town to schedule additional staff to assist with the screening reviews during peak periods and add additional hearing appeal days, should a backlog of hearing requests arise.

As discussed earlier, once an AMP System is established and all the groundwork has been completed to maintain the integrity of the process through policies and procedures, the system can be expanded to include other Town enforcement activities such as Automated Speed Enforcement and other less serious By-law offences.

Also, the Town would have the ability to issue a PPN in person or by mail. As already mentioned previously, the circumstances in which the municipality would consider issuance of a PPN by mail would be established in the policies and procedures that will be generated if the AMP System is endorsed by Council.

Further, the Ontario Government has signaled its desire for municipalities to implement AMPS in order to provide relief to the over-burdened court systems.

<u>Enhanced Customer Benefits</u>

The proposed AMP System would provide an increased level of customer service to the residents and visitors to the Town to deal with parking violations.

- The Hearings Officers will be located at Ajax Town Hall which provides residents with access to administrative penalty disputes within their own municipality rather than having to travel to a court;
- Screening review requests will be submitted via an online request form, further enhancing customer service, as the request can be submitted at any time, at the convenience of the accused.
- Residents / Visitors would be able to have their reviews scheduled within a few weeks compared to months or potentially years with disputes under POA.
- In addition, a Hearing review offers the public a resident-friendly dispute resolution process compared to the traditional process held in POA court which can be intimidating and confusing for many.

Concerns with an AMP System

A decision by the Town of Ajax to move to an AMP is final. Once the municipality adopts the AMP System, the Town cannot revert back to a traditional POA system. If endorsed, the AMP System will have to be reviewed regularly and potential adjustments made to ensure that it is meeting the needs the of Town.

There are some concerns that a Screening Officer and Hearing Officer may not be viewed as truly independent if they are paid by the Town. This issue is addressed in the Ontario Law Commission's work which underscores the Town's duty to ensure procedural fairness, by ensuring certain measures are in place:

- Notice that an individual's rights, privileges or interests may be affected with sufficient information so that the person may respond;
- An opportunity to be heard orally or in writing and to make representations to the decision-maker before a decision is made;
- An impartial decision maker with decisions that are made free from bias; and
- A right to know the decision, and in some cases, the reasons for the decision.

Next Steps

When establishing Administrative Penalties for parking matters, the Municipal Act requires that a municipality implement a series of policies and procedures to provide for proper and transparent oversight, and to ensure the independence of the Screening and Review Officers. The requisite policies and procedures should include:

- Guidelines for Conflict of Interest
- Financial Management and Reporting
- Public Complaints
- Extension of Time for Payment
- Extension of Time to Request a Review
- Prevention of Political Interference
- Relief from Undue Hardship

Staff would commence work on these policies and procedures should Council endorse the AMP System; a number of example policies have been sourced from municipalities with existing AMP systems to assist the Town in this work.

If endorsed by Council, staff will immediately begin work to ensure that the Jan 15th, 2024 "go live" date is a seamless transition.

Outside of the required By-laws, Policies, and Procedures documents changes, much of the required work does have a financial impact on the Town. These items have all been accounted for in the Financial Implications Section of this report, and include:

- Hiring a Parking AMPS Coordinator;
- Hiring a Screenings Officer;
- Contracting a Hearings Officer:
- Securing private security for the in-person Hearings;
- AMP System Software for Ticket Management System which includes the public screening inter-face;
- The creation of the new electronic and hand written Penalty Notices:
- Acquiring a mail folder/inserter machine.

Financial Implications:

This section details the costs and revenues anticipated for the AMP system:

AMPS 2024 Operating Budget Summary

Expenditures	Total
2 New Full Time Staff - Wages and Benefits	
Screening Officer	148,100
Parking AMPS Coordinator	91,200
Contract - Hearings Officer	58,200
MTO System Fee	96,500
Postage	10,000
Security Guard	9,900
Annual maintenance on new folding machine	1,000
Current prosecution services (savings)	(15,000)
Total Expenditures	399,900

AMPS Fees	Fee	2022 # Issued	Total
Late Notice (N1)	15	16,786	(251,790)
Final Notice (N2)	15	10,925	(163,875)
Plate Denial (PD)	15	5,000	(75,000)
Total Penalties			(490,665)
Net Revenue			(90,765)

Therefore, it is anticipated that the AMP system will generate $90,765 in new revenue upon rollout of the first phase (parking infractions). These revenue projections are considered to be conservative; Council should note that the addition of a dedicated Screening Officer will free up MLEO time by relieving them from most of their Ticket Review duties, allowing them to spend more time on the road for improved service and higher levels of enforcement and potentially greater revenue generation. Further financial analysis will be completed in the near future to estimate additional revenues for future phases (AMPs and minor Bylaw infractions).

Communication Issues:

Pending approval by Council, the Bylaw Division will work with Corporate Communications on an extensive public communications plan to ensure that the change from POA to an AMP system is understood by residents.

The Town Solicitor has reviewed the report and has commented that the methodology of staff as outlined in the report is consistent with the requirements set forward in Regulation 333/07 and is within the scope of sections 102.1(1) and 434.1 of the Municipal Act.

Relationship to the Strategic Plan:

The proposed AMP System connects to the Strategic Plan through the following focus areas:

- 4.1 Plan for and define critical corporate processes; and
- 4.2 Ensure an efficient and effective service delivery.

Conclusion:

The implementation of the Administrative Monetary Penalty System (AMPS) for the enforcement, processing, and resolution of parking by-law offences will provide a more cost-effective, streamlined, and customer-oriented service for the residents of the Town of Ajax.

Prepared by:

Derek Hannan, Manager of By-law Services

Approved by:

Nicole Cooper, Director of Legislative and Information Services

Submitted by:

Shane Baker – Chief Administrative Officer

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Robert Gruber Manager, Culture & Events
Report #:	RC-2023-04
Subject:	**2023 - 2033 Ajax Arts and Culture Plan**
Ward(s):	All
Date of Meeting:	September 11, 2023
Reference:	General Government Committee Report: “Integrated Community Arts and Cultural Plan”, July 10, 2006 General Government Committee Report: “Integrated Community Arts and Cultural Plan 5 Year Update”, March 22, 2012 General Government Committee Report: “Completed Integrated Community Arts and Cultural Plan (ICACP) Update – Year 10”, February 13, 2017

Recommendation:

1. That the 2023 - 2033 Ajax Arts and Culture Plan be endorsed by Council; and

2. That any projects identified therein for future years be brought forward to Council for consideration as part of the annual budget process.

Background:

It has been 7 years since the Town’s 10-year “Integrated Community Arts & Culture Plan” (ICACP) was completed. With the Town’s desire to focus on and increase tourism-related programming and assets, in addition to a continued growth in population and diversity, and a resurgence of community interest in arts and cultural initiatives post pandemic, the desire to develop a new plan was timely.

In late 2022, staff received notice from the federal government that the Town was successful in its application for funding for a renewed Arts & Culture Plan, through the Tourism Relief Fund. Funding was received to engage a consultant who, through research and extensive community and stakeholder consultation, would work with staff to develop a fulsome arts and cultural plan. Staff engaged Nordicity, a leading global consulting firm specializing in policy, strategy, and economic analysis for the arts, culture, and digital media sectors, to work with staff in developing the plan. Nordicity was tasked with creating a plan that would address building, nurturing, and leveraging the Town’s cultural assets, including public art opportunities, as well as building the capacity of the Town’s arts and cultural sector from an economic development

and tourism perspective. Further, an updated plan would more fully integrate arts and culture into all facets of municipal planning and decision making, which ultimately, would enable greater long-term sustainability and growth for the sector.

Discussion:

Methodology

To create the 2023 – 2033 Ajax Arts and Culture Plan (AACP), Nordicity and the Town facilitated multiple stages of community engagement through strategic plan development. The planning process incorporated the following phases:

Phase 1: Project Inception (November 2022)

- Meetings with key Town staff.
- Workplan discussion.
- Review and confirmation of schedule/key dates and next steps.

Phase 2: Desk Research (December 2022 – January 2023)

- Research review to consider how the AACP will relate to, and complement, the wider strategic priorities of the Town, Durham Region, and comparator municipalities.
- Internal document review of relevant Town documents/policies, to identify the Town's current and long-term cultural service needs given changing demographics, trends, and population growth.
- External review of documents from other municipalities, including, but not limited to cultural and strategic plans from the Town of Whitby, City of Pickering, City of Oshawa, and the Region of Durham.
- Community profile development.

Phase 3: Stakeholder and Community Engagement (February – March 2023)

- Extensive stakeholder and community engagement to ensure the Ajax Arts & Culture Plan effectively reflects and supports Ajax's needs and gains broad support.
- Stakeholder and Community Engagement to include a community survey, key stakeholder interviews, targeted focus groups and a community consultation event.

Phase 4: Analysis (March – April 2023)

- Data collation from all sources
- Thematic analysis of qualitative data, identifying recurring themes, honing in on insights, and how findings relate to Town priority areas for the Arts and Culture Plan.
- Validation – "What We Heard" presentation to Ajax Council for input and feedback.

Phase 5: Plan Development and Reporting (May – June 2023)

- Development and prioritization of recommendations into short, medium, and long term recommendations, highlighting quantifiable and measurable key metrics.
- Draft Plan development summarizing findings across analytical streams.
- Presentation of Final Plan to Ajax Council for endorsement.

Community Consultations

The input and feedback received from the various forms of community consultations held for this project were paramount in creating a locally developed plan that is informed by and created by the community, for the community.

Staff developed 6 pillars, or areas of interest, to guide the discussions during the community consultations:

- St. Francis Centre for Community, Arts & Culture
- Festivals & Events
- Creative Placemaking and Public Art
- Tourism Opportunities
- Marketing/Promotions and Technology
- Arts and Culture Sector Capacity Building

These pillars were used to guide community consultations and aid in evaluating community and sector strengths, identifying weaknesses and gaps, recognizing threats, and identifying opportunities.

Participants were engaged in community consultations in the following ways:

- 16 Community Conversations
  - 4 Targeted Focus Group (Town Staff, Youth, 55+, Equity Priority Groups, and the local Arts and Culture Sector)
  - 11 Stakeholder Interviews
  - 1 Community Consultation Event
- 116 Surveys Completed

What We Heard – Identified Priority Needs

Through the community consultation phase, stakeholders identified a number of priority needs for the AACP. These included the following:

- Reflecting Ajax's diverse cultures, with more programs and events sharing different cultures and targeting various demographics
- Better availability of cultural spaces
- Addressing transportation issues to increase participation
- Growing engagement via increased promotion
- Strategic integration with Economic Development and Tourism
- Increasing municipal support
- Building relationships and addressing siloes in the sector

Vision

Through facilitated discussions during the various community consultation events, Nordicity was able to synthesize responses to create a vision for the AACP that aligns with other Town plans and strategies. The Vision for the Plan is:

> Ajax is **abundant** with **innovative**, **exciting**, and **accessible** arts and cultural experiences, representing the **diverse mix** of people and cultures that call the Town home. Whether for residents or visitors, **arts and culture make Ajax for all**.

Ajax Arts and Culture Plan

Based on the input and feedback from the community consultations, the AACP was developed. The Plan identifies 5 Strategic Goals, 12 Objectives, and 61 Actions, which will be implemented based on Council priorities, corporate initiatives, departmental work plans, identified capital plans, resources, and budget approvals by Council.

Goals and Key Themes

- **Celebrating Ajax's Difference and Diversity**
  - Celebrate Ajax's unique personality through diverse arts and cultural experiences
  - Make Ajax's diversity easily visible through arts and culture.
  - Build on Ajax's existing success in festivals, events, and programs to attract residents and visitors to participate in arts and culture.

- **Build Ajax's Reputation for Innovative and Exciting Arts and Culture**
  - Use arts and culture to celebrate Ajax's unique personality.
  - Leverage what makes Ajax different as a creative foundation for strategic community development.
  - Build Ajax's reputation for innovative and exciting arts and culture.
  - Grow engagement with arts and culture in Ajax, including initiatives led by grassroots organizations and those led by the Town of Ajax.

- **Make Space for Culture with Accessible Facilities**
  - Ensure that spaces for culture in Ajax meet the needs of the community and support the local arts, culture, and heritage sector.

- **Pursuing Creative Placemaking**
  - Integrate arts and culture more firmly into urban planning to beautify and build a sense of place in Ajax's public spaces.
  - Help support economic development and tourism by creating memorable places that people want to visit and spend time, growing a reputation for diverse creativity and innovation, encouraging more residents, visitors, and investment into the Town.

- **Bolster Municipal Support for Ajax's Arts and Culture Sector**
  - Strengthen Ajax's arts, culture, and heritage sector from within to build organizational capacity.
  - Build relationships within the sector to address siloes.

Financial Implications:

There are no financial implications related to the recommendations in this report. Once approved by Council, staff will bring forward projects identified in the Plan for consideration in future budgets.

Communication Issues:

Staff will work closely with Corporate Communications to develop a communications plan to share the findings and results of the AACP, using a variety of marketing and promotional tactics including, but not limited to:

- Use of TOA website and social media outlets
- Media relations
- TOA and community stakeholder newsletters
- Promotion through TOA festivals, events, and programs

Relationship to the Strategic Plan:

This report aligns with the following sections of the 2023-2026 Strategic Plan

Pillar: Connecting our Community

1. Increase and amplify creative and innovative opportunities
   1.1 Promote creativity, learning, and growth in arts and culture
2. Encourage community pride
   2.1 Acknowledge and celebrate our local history and culture
   2.3 Enhance community engagement opportunities

Pillar: Growing our Community

2. Advance innovation and investment
   2.3 Promote Ajax as a tourism destination

Conclusion:

The COVID-19 pandemic has proven that arts, culture, and heritage are foundational to the quality of life and mental well-being of Ajax residents, and as such, are vital aspects for economic and social growth in our communities, while contributing substantially to the overall vitality of a municipality, which is referred to as quality of place. The value of arts and culture focuses on better health and well-being for residents and visitors, improving their quality of place through enhanced community identity and social cohesion, community revitalization and redevelopment, and positive economic effects.

In his book “Cultural Planning for Creative Communities”, Gord Hume, recognized as one of Canada’s leading voices on municipal government, sustainable urban development, cultural planning, and creative cities, states that municipal cultural planning is about shaping, developing, and enhancing the economic future of the municipality, and changing how communities do business and make decisions. It is about finding new ways to establish cohesive and sustainable neighbourhoods, and is also about built and natural environments, and civic heritage. It is about place and placemaking, identifying and harnessing the cultural assets and resources in the community, and about strengthening and developing arts, artisans, and the cultural sector. It is about becoming a Creative Community.

The Ajax Arts and Culture Plan, its goals, objectives, and actions, will provide a roadmap to guide focus and investments in arts and culture for the next 10 years.

Attachments:

ATT-1: 2023-2033 Ajax Arts and Culture Plan

Prepared by:

Robert Gruber – Manager, Culture & Events

Submitted by:

Chris Vida – Director, Recreation & Culture

Approved by:

Shane Baker – Chief Administrative Officer

Ajax Arts and Culture Plan 2023 – 2033

Final Report

August 25th, 2023

Prepared for

Town of Ajax

Prepared by

Nordicity

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Summary

This Arts and Culture Plan creates a roadmap to guide focus and investments and support for arts and culture in Ajax for the next 10 years.

The Plan outlines a strategy to support artists, arts and culture organizations, and creatives in Ajax for the benefit of the community. It includes specific objectives and actions, informed by the community and extensive research, as well as consultation with Town of Ajax staff. This strategy was developed using a 5-phase process: project initiation; desk research, stakeholder and community engagement, analysis, and reporting.

Engagement activities at a glance:



116 survey respondents



11 interviews



4 targeted focus groups



1 community consultation event

Community-informed vision for arts and culture in Ajax:

*"Ajax is **abundant** with **innovative**, **exciting**, and **accessible** arts and culture experiences, representing the **diverse mix** of people and cultures that call the Town home. Whether for residents or visitors, **arts and culture make Ajax for all**."*

Identified priority needs for the Ajax Arts and Culture Plan:

	Reflecting Ajax's diverse cultures, with more programs and events sharing different cultures and targeting various demographics
	Better availability of cultural spaces
	Addressing transportation issues to increase participation
	Growing engagement via increased promotion
	Strategic integration with economic development and tourism
	Increasing municipal support
	Building relationships and addressing siloes in the sector

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Strategic Goals and Objectives

The Arts and Culture Plan is structured around **five strategic goals** to help arts and culture thrive in Ajax. Each strategic goal is supported by key objectives, as outlined below.

Each objective has specific actions, to guide the Town of Ajax in achieving the objectives. The actions are detailed in the full Arts and Culture Plan.

Goal 1: Celebrate Ajax's Difference and Diversity

Celebrate Ajax's unique personality through a diverse offering of arts and cultural experiences, and use arts and culture to make Ajax's diversity easily visible. Build on Ajax's existing successes in festivals, events, and programs to attract residents and visitors to participate in arts and culture. *Objectives:*

- **1.1** Diversify events and programming to reflect the community and attract new audiences, creating opportunities for diverse artists, groups, and cultural organizations.
- **1.2** Strengthen relationships with the Mississaugas of Scugog Island First Nation to integrate Indigenous arts and culture into Ajax life.

Goal 2: Build Ajax's Reputation for Innovative, Exciting Arts and Culture

Use arts and culture to celebrate Ajax's unique personality. Leverage what makes Ajax different as a creative foundation for strategic community development and build Ajax's reputation for innovative and exciting arts and culture. Grow engagement by making communications more compelling to different audiences. *Objectives:*

- **2.1** Create a unique selling point (USP) and cultural brand for the Town's arts and cultural program, and the sector itself, that represents Ajax's diversity, rich cultures, and creativity.
- **2.2** Create innovative and compelling communications.

Goal 3: Make Space for Culture with Accessible Facilities

Ensure that spaces for culture in Ajax meet the needs of the community, and support the local arts, culture, and heritage sector. *Objectives:*

- **3.1** Grow awareness of spaces that are already available for arts and culture, to increase access.
- **3.2** Create new spaces for arts, culture, and heritage in Ajax.
- **3.3** Address transportation and parking issues at cultural facilities.

Goal 4: Pursue Creative Placemaking

Integrate arts and culture more firmly into urban planning to beautify and build a sense of place in Ajax's public spaces. Create memorable places that people want to visit and spend time, growing a reputation for diverse creativity and innovation. Doing so will help to support economic development and tourism by encouraging more residents, visitors, and investment into the Town. *Objectives:*

- **4.1** Continue to implement Official Plan policies that incorporate a cultural lens by promoting placemaking, architectural excellence, public art, and sustainable mixed-use developments.
- **4.2** Enhance nightlife and cultural vibrancy by creating supportive policies.

Goal 5: Bolster Municipal Support for Ajax's Arts and Culture Sector

Strengthen Ajax's arts, culture, and heritage sector from within, building the organizational capacity of grassroots organizations. Build relationships within the sector to address siloes. *Objectives:*

- **5.1** Increase municipal capacity to support arts and culture.
- **5.2** Provide more opportunities for artists in Ajax.
- **5.3** Break down sector siloes and build collaboration in the sector.

Ajax Arts and Culture Plan

Vision

> *"Ajax is **abundant** with **innovative, exciting** and **accessible** arts and culture experiences, representing the **diverse mix** of people and cultures that call the Town home. Whether for residents or visitors, **arts and culture make Ajax for all**."*

Introduction

This Arts and Culture Plan reasserts the Town of Ajax's commitment to supporting arts and culture. The purpose of the Plan is to create a roadmap to guide focus and investments in arts and culture in Ajax for the next 10 years.

The Plan includes specific actions to support artists, arts and culture organizations and creatives in Ajax. Through these actions, the Plan seeks to ensure that arts and culture is integrated into the community, and representative of all residents.

Ajax is a dynamic place with a rich mix of cultures from all over the world, and it is growing fast. Ajax's multigenerational mix includes a large youth population as well as an expanding older cohort. While these groups often have different needs, Ajax is a place where people of all ages come together for community events and festivals – engaging both residents and visitors. This Plan presents ideas on how to build on these existing strengths, informed by the community.

By focusing on what is unique about Ajax, the Arts and Culture Plan hopes to achieve this vision: Creating an Ajax for all,[1] abundant with innovative, exciting, and accessible arts and culture experiences – representing the diverse mix of people and cultures that call the Town home.

What is Cultural Planning?

Cultural planning is a process of community consultation which aims to help towns and cities support arts and cultural development, to benefit the community. The planning process highlights a community's unique strengths, gaps, and needs in relation to arts and culture. The aim is to strategically integrate arts and culture with wider municipal planning and strategies. Essentially, it means asking, "where are we now? Where do we want to be?" – and considers strategies to get there.[2]

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[1] Inspired by the "Ajax for All" multicultural campaign created by the Town of Ajax in partnership with OCASI (Ontario Council of Agencies Serving Immigrants), as many participants who engaged with the Arts and Culture planning process mentioned it as a successful, well-loved way of celebrating the Town's diversity.

[2] Drawing from Cultural Planning, Government of Ontario, 2022

Defining Arts and Culture in Ajax – What's Included?

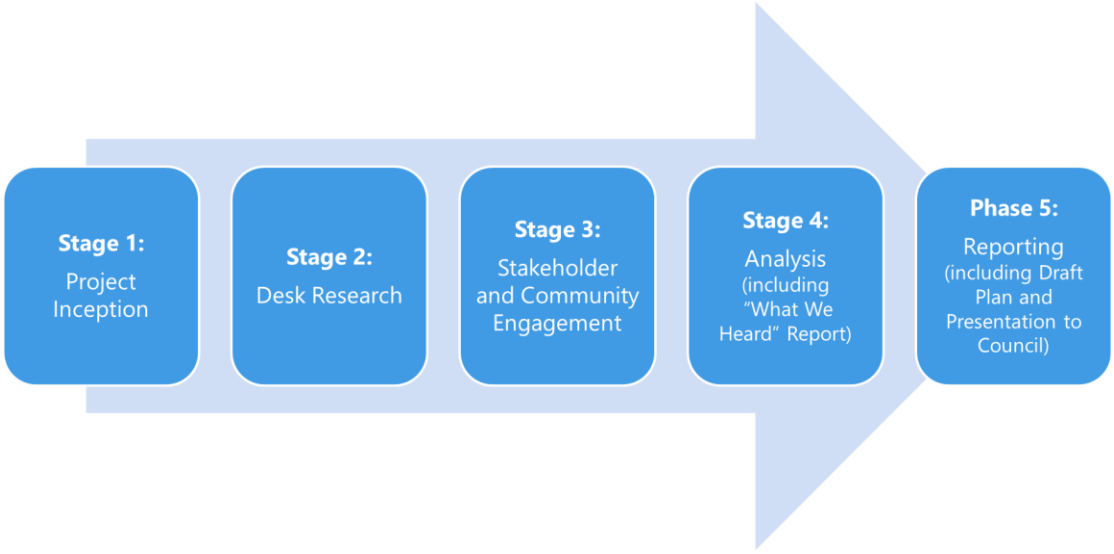
Arts and culture can be difficult to define because they mean many things to different people. This Plan defines arts and culture broadly – including tangible assets (like artworks and buildings), organized groups (such as performance and dance troupes), and intangible things (like stories and cultural traditions). The 'Cultural Resources Framework' below maps different types of arts and culture resources or assets.

Figure 1. Cultural Resources Framework



Source: Adapted from Municipal Cultural Planning Incorporated's Cultural Resources Mapping: Guide for Municipalities (2010), Statistics Canada Canadian Framework for Cultural Statistics (2011), and North Shore Culture Compass.

Planning Process



This strategy was developed using a **5-phase process**: project initiation; desk research, stakeholder and community engagement, analysis, and reporting.

Work was led by the Culture & Events section of the Town of Ajax's Recreation & Culture department, in collaboration with Nordicity, Town staff, arts and culture stakeholders, and the public. The Town of Ajax's Mayor and Council also shared their perspectives on priorities for the plan in **1:1 interviews**. To ensure the Plan was community informed, the Arts and Culture Plan team hosted a **community consultation event** in February 2023, and **targeted focus groups** with members of Ajax's arts and culture sector, equity priority groups (including members of ethnocultural community organizations and faith groups), youth and residents aged 55+, and Town of Ajax staff. There was also an **online community survey**, which was live from February to March 2023.

Engagement activities at a glance:



Project Context

Community Profile

Ajax is Growing Fast

Ajax is a dynamic, growing community. Ajax's population grew by 6% between 2016 to 2021, from around 120,000 residents to over 126,000. The population is expected to reach over 134,000 by 2026 – an increase of 12% in 10 years.

Relatively Young, but Older Segment Expanding Rapidly

Ajax has a relatively young population. In 2021, 45% of Ajax's population was aged under 35 years old, and the average resident age was 38.5 years. In comparison, the average age across the Durham Region was 40.2 years old, and 43% of the population was aged under 35. Despite Ajax's comparatively young population, the picture is nuanced when it comes to age. The age range that is growing fastest in Ajax is the older segment – residents aged 55+. The 55+ age group increased by 60% between 2011 to 2021.

Table 1. Ajax Age Distribution from 2011 to 2021

Age Range	Age Distribution 2011	Age Distribution 2016	Age Distribution 2021	% change between 2011 to 2021
0 to 14 years	22,635 (21%)	23,660 (19.8%)	23,805 (18.8%)	5.17%
15 to 34 years	30,290 (28%)	32,140 (26.8%)	33,290 (26.4%)	9.90%
35 to 54 years	35,585 (32%)	35,900 (30.1%)	35,585 (28.1%)	0%
55+	21,090 (19%)	27,985 (23.4%)	33,990 (26.9%)	61.17%

Source: Statistics Canada, 2021, 2016, 2011 Census

Diverse and Multicultural

Ajax is recognized as one of the most diverse communities in Canada. According to Census 2021 data, 65% of Ajax residents belong to a "visible minority".[3] In terms of ethnic origins, the largest demographic groups are White (35%), South Asian (26%), and Black (17%).[4]

Many Ajax residents are immigrants to Canada. According to Census 2021 data, 42% of Ajax residents are immigrants versus an average of 28% across the Durham Region. Besides English and French, the most common languages spoken most often at home in Ajax include Tamil, Urdu, Tagalog, Dari, and Mandarin. The vast majority of Ajax residents (92%) are citizens, meaning that most immigrant community members have been established in Canada for several years – at least three years, but typically longer.[5] Among recent immigrants living in Ajax (those established within the past five years as of 2021), nearly three quarters (74%) were from Asia, with 12% from the Americas, 9% from Africa, and 4% from Europe (see charts below).

[3] Statistics Canada definition: "Visible minority refers to whether a person belongs to a visible minority group as defined by the Employment Equity Act and, if so, the visible minority group to which the person belongs. The Employment Equity Act defines visible minorities as "persons, other than Aboriginal peoples, who are non-Caucasian in race or non-white in colour". https://www23.statcan.gc.ca/imdb/p3Var.pl?Function=DECI&Id=62026

[4] Statistics Canada Census 2021, Ajax Profile. https://www12.statcan.gc.ca/census-recensement/2021/dp-pd/prof/details/page.cfm?Lang=E&SearchText=Ajax&DGUIDlist=2013A000435001&GENDERlist=1,2,3&STATISTIClist=1&HEADERlist=0

[5] Estimation based on Statistics Canada data. Trends in the Citizenship Rate Among New Immigrants to Canada, Statistics Canada, 2019.

Figure 2. Citizenship status of Ajax residents (Census 2021 data)

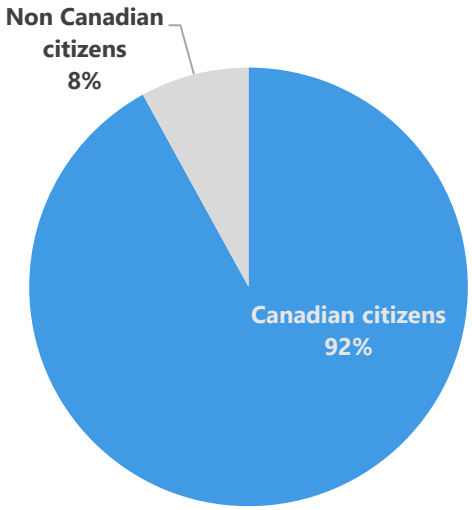
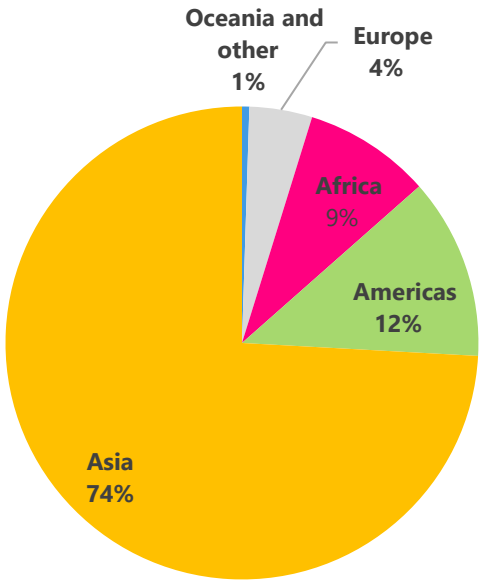


Figure 3. Place of birth of recent immigrant population in Ajax (Census 2021 data)



Town of Ajax Priorities

The Arts and Culture Plan can support a number of existing community priorities in Ajax. The following table outlines key priorities identified from a review of existing plans and strategies and indicates how the culture plan can support them.

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Table 2. Existing Community Priorities in Ajax

Priority	Relevance and Community Focus Area	Municipal Plans
Celebrate the community's diversity	Diversity is a hallmark of the Ajax community **Focus area that the Arts and Culture Plan can support:** ▪ Increase and enhance variety and diversity of creative cultural experiences and programs	▪ Town of Ajax Integrated Community Arts & Culture Plan – July 2006 ▪ Ajax Strategic Plan 2018-2022 ▪ Age-friendly Ajax Community Plan 2020 ▪ Diversity and Community Engagement Plan June 2010; Phase 2 2017 - 2022 ▪ Action 26: 2022-2026 Ajax Strategic Plan
Enhance tourism	There is a desire to grow tourism, and an opportunity for arts and culture to support tourism attraction and place branding. **Focus areas that the Arts and Culture Plan can support:** ▪ Enhance tourism efforts focusing on sports tourism, festival and events, and quality of place elements. ▪ Leverage existing assets like Ajax Downs (horse racetrack) and Ajax Casino	▪ Town of Ajax Economic Development Plan 2021-2025 ▪ Ajax Strategic Plan 2018-2022 ▪ Ajax 65 Community Tourism Plan 2022 ▪ Action 26: 2022-2026 Ajax Strategic Plan
Develop Downtown	Ajax has a vision to transform its downtown core into a mixed-use, pedestrian-friendly centre, as the central focus for commercial, cultural, community, administrative and residential activities in the Town. **Focus areas that the Arts and Culture Plan can support:** ▪ Utilize arts and culture as a tool for downtown revitalization; public art initiatives, people and businesses downtown, and promoting mixed development to live, work, and play	▪ Town of Ajax Economic Development Plan 2021-2025 ▪ Ajax 65 Community Tourism Plan 2022 ▪ Central Ajax Intensification, Servicing & Transportation (CAIST) Strategy (2022) ▪ Action 26: 2022-2026 Ajax Strategic Plan

Priority	Relevance and Community Focus Area	Municipal Plans
Integrate arts and culture within municipal framework	Synergies between arts and culture and other community priorities remain relevant. **Focus areas that the Arts and Culture Plan can support:** ▪ Prioritize culture in municipal strategies and integrate a cultural lens to enable long-term sustainable growth of the sector	▪ Ajax Strategic Plan 2018-2022 ▪ Action 26: 2022-2026 Ajax Strategic Plan
Make Ajax an arts and culture hub	There is a desire for a variety of arts and culture offerings in the community. **Focus areas that the Arts and Culture Plan can support:** ▪ Support a climate where the arts, culture and heritage community can flourish through economic investment and cultural renewal	▪ Town of Ajax Economic Development Plan 2021-2025 ▪ Recreation and Parks Master Plan 2021 ▪ Ajax Strategic Plan 2018-2022 ▪ Ajax 65 Community Tourism Plan 2022 ▪ Action 26: 2022-2026 Ajax Strategic Plan
Support attractive place development	There is a need for more cultural spaces in the community. **Focus areas that the Arts and Culture Plan can support:** ▪ Support creative placemaking initiatives that contributes to the vibrancy of arts and culture	▪ Town of Ajax Economic Development Plan 2021-2025 ▪ Ajax Strategic Plan 2018-2022 ▪ Recreation and Parks Master Plan 2021 ▪ Age-friendly Ajax Community Plan 2020 ▪ Ajax 65 Community Tourism Plan 2022
Create a sustainable, environmentally friendly community	Ajax has a vision to become a less car-dependent community and is moving towards promoting active transportation (cycling, walking). There is also a desire for the Town to lead environmental sustainability initiatives. **Focus areas that the Arts and Culture Plan can support:** ▪ Build pedestrian-friendly communities and advocate	▪ Town of Ajax Economic Development Plan 2021-2025 ▪ Age-friendly Ajax Community Plan 2020 ▪ Recreation and Parks Master Plan 2021 ▪ Ajax Strategic Plan 2018-2022 ▪ Action 26: 2022-2026 Ajax Strategic Plan

Priority	Relevance and Community Focus Area	Municipal Plans
	for increased transit connectivity to attract visitors and local businesses ▪ Become a leader in sustainable cultural experiences and prioritize sustainability, resilience and environmental stewardship when faced with climate change pressures	

What We Heard

Strengths

- Ajax has a diverse community with a wealth of cultures
- The Town has an interesting history – from Indigenous history to settler and World War II history
- St Francis Centre is a strength – the facility itself, and the programming it offers
- A wealth of public art and monuments are located across town, with supportive municipal policy for public art
- Pickering Village is a heritage asset with a rich history
- Ajax is home to popular Town and third party-run festivals and events, including Pickering Village JAM, Ajax Rotary Ribfest and Pumpkinville
- The Town offers a high quality of life, with direct access to nature – including six kilometres of park land along the stunning Ajax waterfront.

> ***"St. Francis Centre is a first-class performing arts venue with a rich history offering affordable entertainment"***
> - Survey participant

> ***"Pickering Village offers a sense of charm"***
> - Focus group participant

- The Town of Ajax has designated municipal roles for arts and culture, with a dedicated Culture & Events department.
- There is existing interest in arts and culture, with some well-established arts groups (non-profits and businesses) in the Town.

Weaknesses

- Ajax is not yet well known for arts and culture pursuits.
- There is generally low awareness of the variety of arts and culture offerings available in the Town, and a lack of engagement to seek out information

> *"Recognition of the historical and contemporary contributions and existence of **Indigenous people are pretty absent** in Ajax's art and culture scene"*
> - Interview participant

- There is a need for expanded representation and inclusiveness when it comes to arts and culture, to more wholly reflect the Town's diversity
- Ajax has few dedicated spaces for arts and culture
- There is less programming targeting young adults compared with other groups, such as families and seniors
- Ajax has limited nightlife, with few signature restaurants and nightclubs or commercial venues that host live bands
- Ajax's arts and culture sector has a lack of funding and staff and a need for more volunteers, limiting its capacity
- There are transportation challenges in the Town which can make it difficult for residents to participate in arts and culture activities. Key locations are far apart – such as the St Francis Centre and Ajax Community Centre – leading to a reliance on cars to get from place to place.

Threats

- Ajax could miss economic opportunities by overlooking art and culture's potential role in developing a creative hub and attracting residents and visitors
- Youth and creative talent may move away or not choose to move to Ajax if they are looking to live in more of a cultural hub

> *"I attend **arts programs in Pickering** because they are not available in Ajax"*
> - Survey participant

- There is a lack of understanding from some residents on the importance of arts and culture investment
- There is a risk that residents will choose to spend money on arts and culture in other nearby towns/cities instead of Ajax, missing opportunities to benefit the local economy
- As Ajax grows, there is a risk of unattractive urban development that lacks a sense of place
- Low engagement with Indigenous communities, particularly the Mississaugas of Scugog Island First Nation, may limit efforts towards reconciliation

Opportunities

> *"We need to create a place and a space and a **town that people want to come to**."*
> *- Arts sector participant*

- There is an opportunity to use arts and culture to highlight and celebrate what makes Ajax special
- Shared arts and culture experiences can enhance community cohesion and understanding through cultural exchange
- By developing more programs and grants to support the community, Ajax can celebrate local arts and artists, creating income and professional development opportunities
- There's an opportunity to leverage the success of Town-delivered events to offer a more varied and diverse range of arts and culture experiences
- The Town can grow the local arts and culture sector by supporting it through a variety of mechanisms (e.g., grants, networking opportunities), creating a stronger creative community that is a highly attractive place to live, work, and play
- By creating an arts and culture hub with dedicated spaces, Ajax can put the arts firmly on the map in the Town – supporting the local sector and community groups, and providing more opportunities for residents to participate
- There's an opportunity to use arts and culture to develop attractive spaces with a sense of place – beyond public art only. Doing so can help build the character of the Town, attracting more visitors, residents, and outside investment
- The Town can support wider community priorities by integrating arts and culture more deeply with other strategies (e.g., Economic Development, Tourism, and Parks and Recreation, and Planning)
- By upskilling the large youth population in creative skills, Ajax can equip the next generation for the future world of work, where original, innovative thinking will be highly prized

Identified Priority Needs for the Arts and Culture Plan



Reflecting Ajax's diverse cultures, with more programs and events sharing different cultures and targeting various demographics

Almost half (45%) of adult survey respondents (aged 19-65) selected "engaging the community in celebrating the cultural heritage of diverse groups" as their top priority for the cultural plan. While Ajax is demographically and culturally diverse, several engagement participants noted that arts and culture in Ajax is not yet representative of that diversity. For example, some participants noted that there is a focus on Ajax's military history, but less so on other aspects of Ajax's history including the Indigenous heritage of the area and stories relating to other groups with different cultural backgrounds that have contributed to building Ajax.

Some participants noted that arts and culture programs are not tailored enough to Ajax's diverse population. For example, the St Francis Centre is

perceived to offer more programming for seniors than other age groups, and Town-led events are considered by some not to adequately representative of the population. To broaden participation, there also appears to be a need for more evening programming so that those at work or school during the daytime can participate.



Better availability of cultural spaces

According to survey respondents, the two most critical needs relating to arts and culture in Ajax both relate to space – a need for more rehearsal or creation spaces (63%), and more performance or exhibition spaces (60%). While Ajax has some quality cultural spaces and facilities, participants from the cultural sector noted some specific gaps in the available cultural infrastructure – especially the need for larger, multi-purpose spaces. Specifically, arts and culture participants highlighted the need for well-equipped medium to large cultural performance spaces – e.g., a 200–500-seat theatre. These participants suggested that a new arts and culture centre could fulfil the need for such a performance space, while also offering rehearsal spaces, breakout rooms, makerspace and 'messy space' for activities such as painting or woodwork. Additionally, it could offer shared equipment and storage space for community arts and culture organizations.

Some participants said that they find it difficult to find affordable spaces to rent for arts and culture activities. However, it appears that there is a lack of awareness of some of the supports available, such as Town spaces being available for non-profits to rent at a discounted rate. An additional need highlighted by some participants is the need for access to a large space, such as a fairground, for major cultural events. Such a space would enable Ajax to host events for thousands of people, attracting more visitors.

Despite logistical challenges in hosting events and programming at the Waterfront, several community members said that they want cultural events to be hosted there. Additionally, it was reported that residents from outside of South Ajax can be discouraged from visiting due to limited parking and a lack of amenities (i.e., cafes, restaurants, etc.).



Addressing transportation issues to increase participation

Many key locations for arts and culture in Ajax – such as the St Francis Centre and Pat Bayly Square – are located far apart. As such, community members cannot walk between them. Many residents feel they do not have many options when it comes to transportation to events, given the limited public transit and rideshare opportunities in Ajax. Of the driving population, many described limited parking at venues as a concern, especially during large-scale events and festivals.



Growing engagement via increased promotion

Many participants described not knowing what is going on in relation to arts and culture in Ajax, or where to find information. There can be a perception that there is "no arts and culture" in Ajax, despite many established and burgeoning grassroots organizations and creatives, and a range of events and festivals on offer. This lack of awareness poses a major barrier to participation. Furthermore, different residents have very different needs and preferences when it comes to communications. Older residents reported preferring printed materials such as a "what's on" brochure, while young residents underscored the vital importance of social media and the need to engage them in a different way. In addition, information on programming is often not accessible in different languages, reflecting Ajax's diverse community and large number of newcomers. Within the arts and culture sector specifically, arts leaders are aware of the need to bolster their communications but are hindered by capacity challenges such as a lack of paid staff, volunteers, and funding.



Strategic integration with economic development and tourism

Arts, culture, and heritage are an economic catalyst, and a major driver of tourism in many communities worldwide. However, the research indicated that they are currently underutilized when it comes to tourism and other forms of economic development in Ajax. For example, placemaking is typically viewed in terms of sculptures and other public artworks rather than from a broader perspective, and there can be an assumption that as a "sports town", visitors to Ajax are not interested in culture. Currently, there is little promotion of the arts and culture offering in Ajax outside of the community.



Increasing municipal support

Although the Town of Ajax has a demonstrated commitment to arts and culture – including dedicated Culture & Events staff, operational funding for the St Francis Centre and active events programming – there are still some gaps. Needs highlighted by participants include more funding for community arts and culture organizations, and more information on existing funding opportunities available to them. Additionally, some participants noted that they would like to see more diversity among municipal staff.

Community arts and culture non-profit organizations often face capacity challenges in terms of funding and staff, and recruiting volunteers. As such, they underscored how transformational it would be if the Town could offer or facilitate shared services to support their work – such as a shared landline number to forward calls, a shared treasurer, shared marketing channels and email marketing lists, and grant-writing support.

Building relationships and addressing siloes

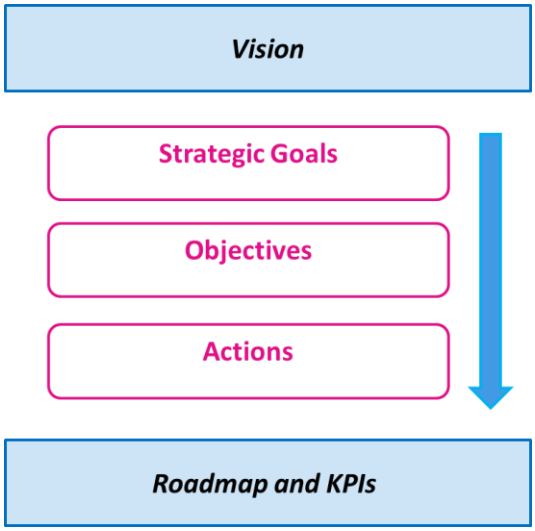
Another barrier expressed by participants relates to the limited opportunities for community partnerships and collaboration across the art and culture community. For example, there can be a lack of connection between cultural groups and these groups are often unsure on how and where to create those connections. Additionally, groups of people with different cultural backgrounds often do not overlap. As such, participants in the arts and culture sector described siloes in the sector, and a desire for increased connection and collaboration.

Strategic Goals

The Ajax Arts and Culture Plan has several components: a **vision** for arts and culture, informed by the community; **strategic goals**; **objectives** linked to each goal; and specific **actions** linked to each objective (Figure 4). The implementation plan – or 'roadmap' – will follow. The purpose of the roadmap is to outline which actions need to happen when, with key performance indicators so the Town can monitor progress towards the goals.

The strategic goals are at the heart of the Ajax Arts and Culture Plan. They are the key ingredients that will guide the Town on where to focus efforts to support arts and culture across the next 10 years. The goals below were directly informed by the community vision for arts and culture in Ajax, and engagement findings – particularly the priority needs. The goals were also supported by a detailed review of other municipal strategies for the Town of Ajax.

Figure 4. Components of a strategic arts and culture plan



At A Glance – Goals and Objectives

Goal 1: Celebrate Ajax's Difference and Diversity

Celebrate Ajax's unique personality through a diverse offering of arts and cultural experiences, and use arts and culture to make Ajax's diversity easily visible. Build on Ajax's existing successes in festivals, events, and programs to attract residents and visitors to participate in arts and culture.

Objectives:

- **1.1** Diversify events and initiatives to reflect the community and attract new audiences, creating opportunities for diverse artists, groups and cultural organizations.
- **1.2** Strengthen relationships with the Mississaugas of Scugog Island First Nation to integrate Indigenous arts and culture into Ajax life.

Goal 2: Build Ajax's Reputation for Innovative, Exciting Arts and Culture

Use arts and culture to celebrate Ajax's unique personality. Leverage what makes Ajax different as a creative foundation for strategic community development and build Ajax's reputation for innovative and exciting arts and culture. Grow engagement by making communications more compelling to different audiences.

Objectives:

- **2.1** Create a unique selling point (USP) and cultural brand for the Town's arts and culture sector that represents Ajax's diversity, rich cultures, and creativity.
- **2.2** Create innovative and compelling communications.

Goal 3: Make Space for Culture with Accessible Facilities

Ensure that spaces for culture in Ajax meet the needs of the community, and support the local arts, culture, and heritage sector.

Objectives:

- **3.1** Grow awareness of spaces that are already available for arts and culture, to increase access.
- **3.2** Create new spaces for arts, culture, and heritage in Ajax.
- **3.3** Address transportation and parking issues at cultural facilities.

Goal 4: Pursue Creative Placemaking

Integrate arts and culture more firmly into urban planning to beautify and build a sense of place in Ajax's public spaces. Create memorable places that people want to visit and spend time, growing a reputation for diverse creativity and innovation. Doing so will help to support economic development and tourism by encouraging more residents, visitors, and investment into the Town.

Objectives:

- **4.1** Continue to implement Official Plan policies that incorporate a cultural lens by promoting placemaking, architectural excellence, public art, and sustainable mixed-use developments.
- **4.2** Enhance nightlife and cultural vibrancy by creating supportive policies.

Goal 5: Bolster Municipal Support for Ajax's Arts and Culture Sector

Strengthen Ajax's arts, culture, and heritage sector from within, building the organizational capacity of grassroots organizations. Build relationships within the sector to address siloes.

Objectives:

- **5.1** Increase municipal capacity to support arts and culture.
- **5.2** Provide more opportunities for artists in Ajax.
- **5.3** Break down sector siloes and build collaboration in the sector.

Goal 1: Celebrate Ajax's Difference and Diversity

Purpose

- *Celebrate Ajax's unique personality through a diverse arts and culture offering.*
- *Make Ajax's diversity easily visible through arts and culture.*
- *Build on Ajax's existing successes in festivals, events, and programs to attract residents and visitors to participate in arts and culture.*

Objective 1.1: Diversify events and initiatives to reflect the community and attract new audiences, creating opportunities for diverse artists, groups, and cultural organizations.

Actions:

1.1.1. Audit participation at existing festivals, events, and programs (including gathering audience demographic data), to develop a benchmark for future analytics and reporting.

1.1.2 Build relationships with businesses, faith centres, and any other groups to encourage local opportunities for artists to showcase their artforms.

1.1.3 Create accessible materials on how to host events for community event organizers (i.e., a digital toolbox). This action will help build capacity for community-led, grassroots events.

1.1.4 Co-create festivals, events, and programs, partnering with community groups so the Town of Ajax can help create or support more programs or events to appeal to different community members. This approach will help to ensure that the range of activities on offer is representative of Ajax residents and responsive to their needs.

1.1.5 Support increased access to the Ajax Partnership Fund and in-kind offerings for local artists and non-profit culture organizations, for example via:

- Targeted outreach for initiatives focused on days/months of cultural significance (i.e., Black History Month, South Asian and Asian Heritage Month, Chinese New Year, Pride Month, etc.).
- Proactively supporting Indigenous arts and cultural partnerships through the Ajax Partnership Fund.

1.1.6 Review Street Naming Policy and/or Commemorative Naming Policy to ensure representation of diverse cultural communities.

1.1.7 Broaden the scope of the historical plaque program to commemorate important/influential people, rather than just buildings/sites.

1.1.8 Consider creating an arts-themed signature event for Ajax that is unique to Durham Region.

- Create a Working Group to research the best opportunity for a new signature event for Ajax, considering themes and trends while responding to market demand and gaps.

1.1.9 Consider a wider, more innovative range of corporate sponsorship for festivals, events, and cultural initiatives to mitigate increased events costs.

- Undertake a review of the Town of Ajax's current sponsorship policies and philosophies.

Objective 1.2: Strengthen relationships with the Mississaugas of Scugog Island First Nation to integrate Indigenous arts and culture into Ajax life.

Actions:

1.2.1 Investigate partnerships with Indigenous communities to discuss ways to integrate Indigenous arts, culture, and stories into the Town in a way that benefits Nation members.

1.2.2 Investigate partnerships for Indigenous consultation and representation in program development/delivery and policy development related to arts and culture.

- For example, this may include partnering on a comprehensive Indigenous history research project to seek more fulsome representation of human history in the municipality.

Goal 2: Build Ajax's Reputation for Innovative, Exciting Arts and Culture

Purpose

- *Use arts and culture to celebrate Ajax's unique personality.*
- *Leverage what makes Ajax different as a creative foundation for strategic community development.*
- *Grow engagement with arts and culture in Ajax – both initiatives led by grassroots organizations and those led by the Town of Ajax.*
- *Make communications more compelling to different audiences, to build Ajax's reputation for innovative and exciting arts and culture.*

Objective 2.1: Create a unique selling point (USP) and cultural brand for the Town's arts and culture sector that represents Ajax's diversity, rich cultures, and creativity.

Actions:

2.1.1 Convene a Staff Working Group to research and discuss the creation of a cultural brand, with diverse representation from across the Corporation. Evaluate internal capacity to create the brand and involve sector representation in choosing the brand.

2.1.2 Develop a variety of outreach methods and tangible promotions to disseminate the new cultural brand throughout the community, with focus on grassroots relationship building and community outreach.

2.1.3 Audit current engagement with arts and culture in Ajax – including the Town's communications.

2.1.4 Ensure Tourism and Economic Development Plan updates and implementation consider how arts and cultural elements can be leveraged in line with the cultural brand to help bolster and increase tourism interest and business attraction and retention in Ajax.

- Consider ways for arts and culture to enhance Ajax's sports tourism offer. For example, by promoting arts and culture activities and events to sports visitors, the Town could encourage them to extend their stays and spend more in the community.

Objective 2.2: Create innovative and compelling communications.

Actions:

2.2.1 Create an innovative new marketing and communications strategy in line with the new cultural brand. Promote the cultural brand and "what's on" within Ajax and surrounding communities to attract participants and visitors.

2.2.2 Develop tailored arts and culture marketing and communication strategies designed to engage Ajax's diverse audiences, (i.e., youth, residents aged 55+, residents with different ethnocultural backgrounds, visitors, etc.) to include a variety of communication methods including social media, web based, print, signage, etc.

- Survey these target audiences, enlisting support from the Youth Engagement Advisory Committee, Age-Friendly Committee, and other partners to gain insight into their needs and interests.
- Consider a targeted campaign to grow volunteering in Ajax's arts and culture sector, for example with local non-profit organizations.
- Consider providing communications in other languages spoken widely in Ajax.
- Reinstate the printed brochure program, to appeal to residents who prefer printed materials.

2.2.3 Update the "Ajax on the Map" cultural mapping resource tool to reveal and communicate arts, culture, and heritage assets throughout Ajax. If possible, engage the arts and culture sector and wider community in this process.

2.2.4 Incorporate a digital component to public art installations, memorials, and historical plaques to provide access to further information (e.g., QR codes).

2.2.5 Investigate opportunities for innovative street level, grassroots marketing. For example, this could include implementing atrium wraps at the St Francis Centre, using the Town's street banner program, and working with community groups to promote what is happening in relation to arts and culture throughout Ajax.

2.2.6 Develop an awareness campaign of arts and culture in Ajax, including maps and itineraries such as heritage walks, public art walks, and day or weekend tourism itineraries. Share these communications with tourism and community partners, and make the information easy to find online. Where possible, include transit information and details on where to park.

Goal 3: Make Space for Culture with Accessible Facilities

Purpose

- *Ensure that spaces for culture in Ajax meet the needs of the community and support the arts and culture sector.*

Objective 3.1: Grow awareness of spaces that are already available for arts and culture, to increase access.

Actions:

3.1.1 Make partnership funding and fee waiver information for Town rental spaces to non-profit groups clear, outlining the criteria and "how to" in an accessible way to ensure that the information is readily available to the community. Initiatives could potentially include offering community information sessions and 'how to' guides and providing print materials in multiple languages.

3.1.2 Develop a comprehensive list of built and natural locations in Ajax to be added to provincial databases for film and television productions. Update all databases to market the Town of Ajax's cultural assets for use and exposure through film.

3.1.3 Rebrand the St Francis Centre to raise awareness of the venue, grow engagement rates, and overcome the perception that it is still a working church. Possible efforts to rebrand and raise awareness of the Centre could involve renaming the facility, removing the cross from the steeple (to be saved in the Ajax Archives), reviewing the programming to have a stronger multicultural focus, more programs targeting youth, and improving signage to the venue.

3.1.4 Consider hosting size appropriate cultural programming in alternative spaces, such as public parks and squares. Potential locations could include the Greenwood Conservation Area, Rotary Park at the Waterfront, and building on programming at Pat Bayly Square (i.e., potentially year-round programming, including pop-up markets and live performances).

3.1.5 Consider ways to encourage businesses to rent commercial buildings to grassroots organizations, or to provide space for cultural purposes (i.e., offering artists/performers and non-profit culture organizations discounted rates to lease empty spaces on a temporary basis for pop-up or short-term art exhibitions, markets, and rehearsal spaces).

3.1.6 Maintain historic/creative space inventory and use existing inventory to highlight heritage properties.

Objective 3.2: Create new spaces for arts, culture, and heritage in Ajax.

Actions:

3.2.1 Ensure that one of the requirements of development RFPs is to take a creative approach to architectural and interior design, including opportunities for local artists and cultural organizations to participate in design charrette workshops.

3.2.2 Explore the feasibility of incorporating arts and cultural spaces and assets (such as the Ajax Wall of Fame) into the planned Pickering Village Community Hub, in line with the Official Community Plan (principle K), as well as in facility renovations such as the Ajax Community Centre and St. Andrews Community Centre.

- Consider the need for storage and rehearsal/preparation space as well as performance/exhibition space.

3.2.3 Consider future capital plans and how this will affect current arts and cultural groups and their regular usage, considering their unique needs and where they will be housed if displaced during construction/renovations.

3.2.4 Assess the feasibility of expanding the seating capacity at the St Francis Centre with the aim of creating a larger performing arts venue (200+ seat theatre).

3.2.5 Investigate ways to increase funding for arts, culture, and heritage spaces, including capital improvements and repairs, through sourcing and soliciting grants and sponsorship/naming rights.

3.2.6 Consider ways to provide space to make Ajax's archives and historical artifacts accessible to the community. Engage the Ajax Public Library in this process to tell Ajax's story in public spaces.

If there is opportunity to partner with Elders and Knowledge Keepers from the Mississaugas of Scugog Island First Nation (via paid opportunities) – and the Indigenous community feels it is beneficial and appropriate – incorporate Indigenous stories, culture, and heritage.

- Refresh heritage and archives displays/exhibits to capture a broader representation of Ajax's history, and include digital assets such as QR codes and interactive exhibits.

3.2.7 Consider the acquisition of heritage properties when cultural facilities are required, and it is economically feasible to do so.

3.2.8 Examine land use permissions and available municipal finance tools, such as tax incentives or community improvement plans, to encourage development or re-purposing of spaces focused on arts creation and programming, and to encourage the installation of art.

3.2.9 Consider how the development of a fairground in Ajax could support large-scale arts and culture events, particularly to attract visitors from outside of the region – exploring multiple potential sites.

Objective 3.3: Address transportation and parking issues at cultural facilities.

Actions:

3.3.1 Consult with Durham Region Transit to investigate the feasibility of linking up more arts and culture spaces on bus routes, including the St Francis Centre and community centres.

3.3.2 Conduct an internal transportation study for events and programming relating to arts and culture (i.e., car and bike usage, shuttle usage, walking and parking), to see how access can be further improved.

Goal 4: Pursue Creative Placemaking

Purpose

- *Integrate arts and culture more firmly into planning, to build a sense of place in Ajax's public spaces.*
- *Help support economic development and tourism by creating memorable places where people want to visit and spend time, helping to attract more residents, visitors, and investment into the Town.*

Objective 4.1: Continue to implement Official Plan policies that incorporate a cultural lens by promoting placemaking, architectural excellence, public art, and sustainable mixed-use developments.

Actions:

4.1.1 Explore opportunities to increase input into parks design to ensure elements of arts and culture are consistently included within park designs. This may include but is not limited to: functional art; interactive playground installations such as outdoor musical equipment for children; mazes and labyrinths; sound and video installations; cultural interpretation; and spaces for outdoor performances.

- Consider opportunities for such placemaking elements within planned and future projects, including Carruthers Trail, North Field Community Park, Fieldgate Linear Park, Sundial Downtown Park, and Frisco Road Nature Trail.

4.1.2 Develop a new Art in Public Spaces Plan through staff and community consultation, identifying locations throughout Ajax for public art, as well as the types of art appropriate for each location (e.g., sculpture, mural, functional art, fountain, earthwork, etc.).

- Potential aspects of a new public art plan could include prioritizing the works of local artists including Indigenous community members, creating a program of rotating, temporary or 'pop-up' artworks, and sharing artworks with other communities.

4.1.3 Explore ways to make public art at the Waterfront more visible and to encourage the public to spend more time there – for example by offering refreshments and more picnic spaces. This exploration could be part of the Waterfront Management

Plan Study planned for 2024 and tie in with the Rotary Park Pavilion Feasibility Study.

4.1.4 Prioritize heritage properties when engaging in placemaking initiatives.

4.1.5 Continue efforts to identify and protect heritage properties via designation (i.e., individual and heritage conservation district) under the Ontario Heritage Act.

4.1.6 Ensure that the Community Benefits Charge strategy includes and dedicates % funds for public art and placemaking (in line with the definition in 4.1.8 below) for new build developments. Consult the Arts and Culture Steering Committee (proposed in Goal 5) in the development of the strategy.

4.1.7 Continue to consider and promote public art and placemaking in new development and consult the Arts and Culture Steering Committee on proposed art installations.

4.1.8 As a component of the Secondary Plan process for various areas of interest in the Town, or as part of an Urban Design Brief for significant mixed-use developments, develop placemaking plans. Consider placemaking in its broadest sense, including artistic approaches to architecture and creative approaches to sidewalk features and amenities, as well as public art, live cultural programming, signage and interpretation, specific support of the arts and culture in that location, etc. Placemaking could also include looking for ways to incorporate social media-friendly photo opportunities ("Instagrammable moments") into public spaces. *This action also relates to objective 3.2 – create new spaces for arts, culture, and heritage in Ajax.*

Objective 4.2: Enhance nightlife and cultural vibrancy by creating supportive policies.

Actions:

4.2.1 Utilize programs within the Town's Community Improvement Plans to attract land uses that facilitate nightlife and cultural vibrancy (i.e., patio grants and programs that incentivize restaurant, art gallery, and museum uses).

4.2.2 Consider creating a Steering Committee to develop a sustainable vision and action plan for nightlife in Ajax, and to advocate for the nighttime economy.

4.2.3 Consider ways to develop municipal policies/incentives to encourage partnerships between businesses, and local artists, groups, and organizations. For example, this may include the Town creating a store front design program or introducing local businesses to musicians and performers so they can perform in commercial spaces.

4.2.4 Consider the development of an annual night market for Ajax to capitalize on the nighttime economy. Consider hosting the night market at the future Ajax fairground.

4.2.5 Explore approaches to attracting more signature restaurants to Ajax, especially in locations of strategic interest to the development of the Town. For example, consider ways to market Ajax as an attractive location for restaurant businesses,

and/or to make licensing and permit processes as accessible as possible. As part of this approach, consider ways to adjust zoning by-laws to make it easier for restaurants to incorporate patios and outdoor seating areas, to help animate the built environment.

4.2.6 Explore ways to encourage businesses such as bars, clubs, and restaurants to offer live entertainment such as DJs or live bands, to encourage community members to socialize in Ajax rather than neighbouring communities – especially youth. Potential methods include incentives such as lower commercial property taxes, tax rebates, or accommodating noise by-laws in specific zones.

Goal 5: Bolster Municipal Support for Ajax's Arts and Culture Sector

Purpose

- *Strengthen Ajax's arts, culture, and heritage sector to build capacity.*
- *Build relationships and address sector siloes.*

Objective 5.1: Increase municipal capacity to support arts and culture.

Actions:

5.1.1 Create an internal Arts and Culture Steering Committee with representation from each Town department to lead the implementation of the Arts and Culture Plan. *The Committee can play a key role in implementing Objective 4.1 – incorporating a cultural lens on planning and development.*

5.1.2 Investigate the feasibility of providing marketing support to non-profits via the Town of Ajax's community events calendar, e-news, and social media outlets.

5.1.3 Create new positions at the Town of Ajax to support arts and culture. Recommended positions:

- Cultural Coordinator (full time) to be the main sector liaison to provide artists, groups, and organizations with guidance, resources, and support.
- Diversity and Inclusion Coordinator (full time) to support the implementation of the diversity, equity, and inclusion work plan, working closely with the public and community partners to promote belonging and visibility in the Town while providing support and delivering programs internally and externally.
- Festivals and Events Coordinator (full time) to support new Town festivals and events.
- Cultural Programming Assistant (part time) to support the delivery of new arts and cultural initiatives.

5.1.4 Consider opportunities to increase support for designated heritage properties outside of the Community Improvement Plan areas.

Objective 5.2: Provide more opportunities for artists in Ajax.

Actions:

5.2.1 Create Artist in Residence and Poet Laureate in Residence programs for the Town of Ajax, which include an educational component (i.e., artists to offer workshops or talks).

- Consider utilizing the Community Art in Public Spaces Review Panel to judge submissions for these programs.

5.2.2 Investigate ways to increase opportunities for artists to exhibit, perform, and sell their work in Ajax's public spaces, making artists a more visible component of life in Ajax while providing them with new revenue generating opportunities. Opportunities could include arts markets, outdoor pop-up performances, fostering new business connections, etc.

Objective 5.3: Break down sector siloes and build collaboration in the sector.

5.3.1 Revitalize the former CultureLink program so the Town of Ajax can play a convening role, hosting regular sector networking sessions for those working or volunteering in the arts, culture, and heritage sector.

- The new Cultural Coordinator position could develop and deliver the revitalized CultureLink networking sessions. The sessions could encourage knowledge sharing, including a talk from a practitioner or organization followed by Q&A and a discussion of key issues, and share progress on the implementation of the Arts and Culture Plan.

5.3.2 Expand the Arts and Culture page on the municipal website to become more of a hub for the local sector, hosting relevant and useful information for the sector. This expansion could potentially be part of the Ajax.ca website redesign budgeted for 2025.

- Include an inventory of available support opportunities and programs available for the arts sector, and promote these to local artists for increased access to funding and other supports.

5.3.3 Consider how the Town of Ajax could provide shared services to core arts and culture organizations, potentially including support with grant applications and potentially access to shared equipment.

Implementation

The following table prioritizes Arts and Culture Plan actions. The actions are divided into short-term actions (i.e., to be undertaken within the next 1-3 years), medium-term (4-6 years) and long-term (7-10 years). Key performance indicators are suggested for each action.

Table 3. Prioritized Actions

Goal 1: Celebrate Ajax's Difference and Diversity		
1.1 Diversify events and initiatives to reflect the community and attract new audiences, creating opportunities for diverse artists, groups, and cultural organizations.		
Actions	***Key Performance Indicators (KPIs)***	***Implementation***
1.1.1 Audit participation at existing festivals, events, and programs (including gathering audience demographic data), to develop a benchmark for future analytics and reporting.	Baseline established for future reporting; monitor and grow engagement year on year; increased participation among equity priority communities.	**Short Term** 2023/2024
1.1.2 Build relationships with businesses, faith centres, and any other groups, to encourage local opportunities for artists to showcase their artforms.	Number of new opportunities for artists working with local partners such as businesses, faith centres, and other community groups; number of opportunities for artists from equity priority communities	**Short Term** 2023/2024
1.1.3 Create accessible materials on how to host events for community event organizers (i.e., a digital toolbox). This action will help build capacity for community-led, grassroots events.	Digital toolbox created and distributed to community event organizers; information readily available online; monitoring downloads over time; increased in number of community events planned	**Short Term** 2024
1.1.4 Co-create festivals, events, and programs, partnering with community groups so the Town of Ajax can help create or support more programs or events to appeal to different community members. This approach will help to ensure that the range of activities on offer is representative of Ajax residents and responsive to their needs.	Number of new festivals, events, and programs co-created with community groups; increased attendance rates in these initiatives, particularly among equity priority community members	**Short Term** and ongoing

▪ 1.1.5 Support increased access to the Ajax Partnership Fund and in-kind offerings for local artists and non-profit culture organizations, for example via:Targeted outreach for initiatives focused on days/months of cultural significance (i.e., Black History Month, South Asian and Asian Heritage Month, Chinese New Year, Pride Month, etc.). ▪ Proactively supporting Indigenous arts and cultural partnerships through the Ajax Partnership Fund.	Number of new applicants to the Ajax Partnership Fund from equity priority communities; number of funded initiatives led by equity priority groups; more diverse programming in Ajax	**Short Term**
1.1.6 Review Street Naming Policy and/or Commemorative Naming Policy to ensure representation of diverse cultural communities.	Number of newly named streets/commemorative places connected with equity priority communities	**Short Term**
1.1.7 Broaden the scope of the historical plaque program to commemorate important/influential people, rather than just buildings/sites.	Number of historical plaques named after important/influential Ajax residents, past or present	**Medium Term**
1.1.8 Consider creating an arts-themed signature event for Ajax that is unique to the Durham Region. ▪ Create a working group to research the best opportunity for a new signature event for Ajax, considering themes and trends while responding to market demand and gaps	First pilot event hosted, with representation of diverse artists and cultural groups; increasing participant rates year on year; number of attendees from outside the region (i.e., increased tourism to Ajax)	**Medium Term**
1.1.9 Consider a wider, more innovative range of corporate sponsorship for festivals, events, and cultural initiatives to mitigate increased event costs. ▪ Undertake a review of the Town of Ajax's current sponsorship policies and philosophies.	Increased number of corporate sponsorships secured for festivals, events, and cultural initiatives; increased capacity for those that receive sponsorship	**Medium Term**
1.2 Strengthen relationships with the Mississaugas of Scugog Island First Nation to integrate Indigenous arts and culture in Ajax life.		
Actions	***Key Performance Indicators (KPIs)***	***Implementation***
1.2.1 Investigate partnerships with Indigenous communities to discuss ways to integrate Indigenous arts, culture, and stories into the Town in a way that benefits Nation members.	Relationship established with the Mississaugas of Scugog Island First Nation in relation to arts and cultural collaboration with agreed protocols; increased communication with other regional Indigenous communities; number of new	**Short Term**

	initiatives developed in partnership with MSIFN and other Indigenous communities/groups	
1.2.2 Investigate partnerships for Indigenous consultation and representation in program development/delivery and policy development related to arts and culture. ▪ For example, this may include partnering on a comprehensive Indigenous history research project to seek more fulsome representation of human history in the municipality.	Improved representation of Indigenous artists/organizations in program development/delivery and policy development; number of initiatives developed with Indigenous partners	**Short Term and ongoing**

Goal 2: Build Ajax's Reputation for Innovative, Exciting Arts and Culture

2.1 Create a unique selling point (USP) and cultural brand for the Town's arts and culture sector that represents Ajax's diversity, rich cultures, and creativity.

Actions	***Key Performance Indicators (KPIs)***	***Implementation***
2.1.1 Convene a Staff Working Group to research and discuss the creation of a cultural brand, with diverse representation from across the corporation. Evaluate internal capacity to create the brand and involve sector representation in choosing the brand.	Staff working group created and meeting regularly; launch of a new cultural brand for Ajax	**Short Term** 2023/2024
2.1.2 Develop a variety of outreach methods and tangible promotions to disseminate the new cultural brand throughout the community, with focus on grassroots relationship building and community outreach.	Increased recognition of Ajax's new cultural brand within the town, region, and province; grassroots organizations and other partners sharing and promoting the new cultural brand	**Medium Term**
2.1.3 Audit current engagement with the arts and culture sector in Ajax – including the Town's communications.	Audit conducted; action items identified for growing engagement with arts and culture in Ajax	**Medium Term**
2.1.4 Ensure Tourism and Economic Development Plan updates and implementation consider how arts and cultural elements can be leveraged in line with the cultural brand to help bolster and increase tourism interest and business attraction and retention in Ajax.	Increased tourism interest and business attraction and retention that can be directly or partly attributed to arts and culture elements	**Medium Term**

▪ Consider ways for arts and culture to enhance Ajax's sports tourism offer. For example, by promoting arts and culture activities and events to sports visitors, the Town could encourage them to extend their stays and spend more in the community.		
2.2 Create innovative and compelling communications.		
2.2.1 Create an innovative new marketing and communications strategy in line with the new cultural brand. Promote the cultural brand and "what's on" within Ajax and surrounding communities to attract participants and visitors	Marketing and communications strategy developed in line with the new cultural brand; number of new campaigns created; level of engagement with online materials; increased visitors/tourist numbers; increased participation and volunteering rates at arts and culture events, festivals, and programs hosted within Ajax	**Medium Term**
2.2.2 Develop tailored arts and culture marketing and communication strategies designed to engage Ajax's diverse audiences, (i.e., youth, residents aged 55+, residents with different ethnocultural backgrounds, visitors, etc.) to include a variety of communication methods including social media, web based, print, signage, etc. ▪ Survey these target audiences, enlisting support from the Youth Engagement Advisory Committee, Age-Friendly Committee, and other partners to gain insight into their needs and interests. ▪ Consider a targeted campaign to grow volunteering in Ajax's arts and culture sector, for example with local non-profit organizations. ▪ Consider providing communications in other languages spoken widely in Ajax. ▪ Reinstate the printed brochure program, to appeal to residents who prefer printed materials.	Number of new campaigns created; impressions and engagement levels among target audiences with digital content; increased number of printed materials received by community members; increased number of participants and volunteers in Ajax's arts and culture sector from target audiences	**Short to Medium Term** 2024 2024 2024/2025 2024
2.2.3 Update the "Ajax on the Map" cultural mapping resource tool to reveal and communicate arts, culture, and heritage assets throughout Ajax. If possible, engage the arts and culture sector and wider community in this process.	"Ajax on the Map" online cultural mapping resource relaunched; number of assets contributed to the map by community members; number of visits to the webpage	**Short Term**

2.2.4 Incorporate a digital component to public art installations, memorials, and historical plaques to provide access to further information (e.g., QR codes).	Number of digital components added to places of interest in Ajax; level of engagement with those components (e.g., measured via number of visits to webpage/video linked to QR code)	**Short Term**
2.2.5 Investigate opportunities for innovative street-level, grassroots marketing. For example, this could include implementing atrium wraps at the St Francis Centre, using the Town's street banner program, and working with community groups to promote what is happening in relation to arts and culture throughout Ajax.	Number of new street-level marketing assets at key locations around town; increased promotion of arts and culture community groups' activities by the Town of Ajax	**Medium Term**
2.2.6 Develop an awareness campaign of arts and culture in Ajax, including maps and itineraries such as heritage walks, public art walks, and day or weekend tourism itineraries. Share these communications with tourism and community partners, and make the information easy to find online. Where possible, include transit information and details on where to park.	Awareness campaign developed and launched; number and length of visits to relevant webpages; increased awareness among target audiences	**Medium Term**

Goal 3: Make Space for Culture with Accessible Facilities

3.1 Grow awareness of spaces that are already available for arts and culture, to increase access.

Actions	***Key Performance Indicators (KPIs)***	***Implementation***
3.1.1 Make partnership funding and fee waiver information for Town rental spaces to non- profit groups clear, outlining the criteria and "how to" in an accessible way to ensure that the information is readily available to the community. Initiatives could potentially include offering community information sessions and 'how to' guides and providing print materials in multiple languages.	Funding and fee waiver materials created and published; number of website visits and downloads; reduction in questions directed to staff on partnership funding and fee waiver information; qualitative feedback/comments received from non-profits and partners that materials are helpful; more community organizations applying for partnership funding and using rental spaces	**Short Term**
3.1.2 Develop a comprehensive list of built and natural locations in Ajax to be added to provincial databases for film and television productions. Update	Locations added to provincial databases for film and television and maintained over	**Short Term** 2024

all databases to market the Town of Ajax's cultural assets for use and exposure through film.	time; increase in the number of productions being filmed in Ajax	
3.1.3 Rebrand the St Francis Centre to raise awareness of the venue, grow engagement rates, and overcome the perception that it is still a working church. Possible efforts to rebrand and raise awareness of the Centre could involve renaming the facility, removing the cross from the steeple (to be saved in the Ajax Archives), reviewing the programming to have a stronger multicultural focus, more programs targeting youth, and improving signage to the venue.	St Francis Centre rebranded; increased ticket sales and attendance rates for St Francis Centre shows – particularly among key target audiences; increase in number of multicultural and youth-focused programs	**Medium Term**
3.1.4 Consider hosting size-appropriate cultural programming in alternative spaces, such as public parks and squares. Potential locations could include the Greenwood Conservation Area, Rotary Park at the Waterfront, and building on programming at Pat Bayly Square (i.e., potentially year-round programming, including pop-up markets and live performances).	Number of cultural programs offered in alternative spaces in Ajax; increased participation in outdoor cultural programming	**Medium Term**
3.1.5 Consider ways to encourage businesses to rent commercial buildings to grassroots organizations, or to provide space for cultural purposes (i.e., offering artists/performers and non-profit culture organizations discounted rates to lease empty spaces on a temporary basis for pop-up or short-term art exhibitions, markets, and rehearsal spaces.)	Number of commercial building spaces rented to grassroots culture organizations on short-term or temporary basis; number of partnerships between businesses and grassroots arts and culture organizations;	**Medium Term**
3.1.6 Maintain historic/creative space inventory and use existing inventory to highlight heritage properties.	Level of engagement/usage of inventory (i.e., number of times historic/creative space inventory used in cultural planning exercises)	**Medium Term**
3.2 Create new spaces for arts, culture, and heritage in Ajax.		
Actions	***Key Performance Indicators (KPIs)***	***Implementation***
3.2.1 Ensure that one of the requirements of RFPs is to take a creative approach to the architectural and interior design, including opportunities for local artists and cultural organizations to participate in design charrette workshops.	Architectural RFPs include a requirement to take a creative approach to design; increase in creative design in new developments	**Short Term**

3.2.2 Explore the feasibility of incorporating arts and cultural spaces and assets (such as the Ajax Wall of Fame) into the planned Pickering Village Community Hub, in line with the Official Community Plan (principle K), as well as in facility renovations such as the Ajax Community Centre and St. Andrews Community Centre. ▪ Consider the need for storage and rehearsal/preparation space as well as performance/exhibition space.	Arts and culture spaces incorporated into the Pickering Village Community Hub; number of new arts and culture spaces and amenities at Ajax community centres.	**Medium Term**
3.2.3 Consider future capital plans and how this will affect current arts and cultural groups and their regular usage, considering their unique needs and where they will be housed if displaced during construction/renovations.	Involvement of affected arts and culture groups in focus groups and design charrettes relating to future capital plans; other options provided to groups displaced during construction/renovations	**Medium Term**
3.2.4 Assess the feasibility of expanding the seating capacity at the St Francis Centre with the aim of creating a larger performing arts venue (200+ seat theatre).	Feasibility study conducted	**Medium Term**
3.2.5 Investigate ways to increase funding for arts, culture, and heritage spaces, including capital improvements and repairs, through sourcing and soliciting grants and sponsorship/naming rights.	Creation and promotion of sponsorship/naming rights packages for cultural facilities; increase in revenue/funding for arts/culture spaces	**Medium Term**
3.2.6 Consider ways to provide space to make Ajax's archives and historical artifacts accessible to the community. Engage the Ajax Public Library in this process to tell Ajax's story in public spaces. If there is opportunity to partner with Elders and Knowledge Keepers from the Mississaugas of Scugog Island First Nation (via paid opportunities) – and the Indigenous community feels it is beneficial and appropriate – incorporate Indigenous stories, culture, and heritage. ▪ Refresh heritage and archives displays/exhibits to capture a broader representation of Ajax's history, and include digital assets such as QR codes and interactive exhibits.	Number of new exhibits, plaques and experiences in public spaces that tell Ajax's story; number of new initiatives that incorporate Indigenous stories, history and knowledge	**Medium to Long Term**
3.2.7 Consider the acquisition of heritage properties when cultural facilities are required, and it is economically feasible to do so.	Number of heritage properties acquired and repurposed as cultural facilities	**Long Term**

3.2.8 Examine land use permissions and available municipal finance tools, such as tax incentives or community improvement plans, to encourage development or re-purposing of spaces focused on arts creation and programming, and to encourage the installation of art.	Development of new regulatory measures for arts and culture spaces and municipal finance tools to fund cultural spaces	**Long Term**
3.2.9 Consider how the development of a fairground in Ajax could support large-scale arts and culture events, particularly to attract visitors from outside of the region – exploring multiple potential sites.	Study completed into options for large-scale arts and culture events that could take place at the fairground; number of new events at the fairground, including large-scale events from outside of Ajax; attendance numbers from within Ajax, the region, and beyond	**Long Term**
3.3 Address transportation and parking issues at cultural facilities.		
Actions	***Key Performance Indicators (KPIs)***	***Implementation***
3.3.1 Consult with Durham Region Transit to investigate the feasibility of linking up more arts and culture spaces on bus routes, including the St Francis Centre and community centres.	Transit study completed; more arts and culture spaces connected via regular transit routes	**Medium Term**
3.3.2 Conduct an internal transportation study for events and programming relating to arts and culture (i.e., car and bike usage, shuttle usage, walking and parking), to see how access can be further improved.	Internal transportation study completed with number of action items for improves transportation access; increased frequency of public transit journeys to arts and culture venues/activities; increased number of participants walking/cycling to venues/activities; fewer complaints about parking options at venues; increased attendance at venues/activities	**Medium Term**

Goal 4: Pursue Creative Placemaking

4.1 Continue to implement Official Plan policies that incorporate a cultural lens by promoting placemaking, architectural excellence, public art, and sustainable mixed-use developments.

Actions	*Key Performance Indicators (KPIs)*	*Implementation*
4.1.1 Explore opportunities to increase input into parks design to ensure elements of arts and culture are consistently included within park designs. This may include but is not limited to: functional art; interactive playground installations such as outdoor musical equipment for children; mazes and labyrinths; sound and video installations; cultural interpretation; and spaces for outdoor performances. ▪ Consider opportunities for such placemaking elements within planned and future projects, including Carruthers Trail, North Field Community Park, Fieldgate Linear Park, Sundial Downtown Park, and Frisco Road Nature Trail.	New guidelines created on how to incorporate arts and culture into Ajax's parks; cultural placemaking is further integrated into City planning projects and processes; more arts and culture activations in Ajax parks	**Short Term**
4.1.2 Develop a new Art in Public Spaces Plan through staff and community consultation, identifying locations throughout Ajax for public art, as well as the types of art appropriate for each location (e.g., sculpture, mural, functional art, fountain, earthwork, etc.). ▪ Potential aspects of a new public art plan could include prioritizing the works of local artists including Indigenous community members, creating a program of rotating, temporary or 'pop-up' artworks, and sharing artworks with other communities.	Art in Public Spaces Plan developed and launched; number of new public art pieces planned/installed in Ajax – particularly artworks by local and/or Indigenous artists	**Short Term**
4.1.3 Explore ways to make public art at the Waterfront more visible and to encourage the public to spend more time there – for example by offering refreshments and more picnic spaces. This exploration could be part of the Waterfront Management Plan Study planned for 2024 and tie in with the Rotary Park Pavilion Feasibility Study.	Completion of study of ways to make public art at the Waterfront more visible; improved visibility of public art at the Waterfront (public awareness measured by location-based polling), increased number of visitors to the Waterfront	**Short Term**
4.1.4 Prioritize heritage properties when engaging in placemaking initiatives.	Number of placemaking plans that feature heritage properties	**Short Term**
4.1.5 Continue efforts to identify and protect heritage properties via designation (i.e., individual and heritage conservation district) under the Ontario Heritage Act.	Number of heritage properties designated	**Short Term and Ongoing**
4.1.6 Ensure that the Community Benefits Charge strategy includes and dedicates funds for public art and placemaking (in line with the definition in	Percent of funds in the Community Benefits Charge strategy dedicated to public art and	**Short to Medium Term**

4.1.8 below) for new build developments. Consult the Arts and Culture Steering Committee (proposed in Goal 5) in the development of the strategy.	placemaking; amount of money available to fund public art projects	
4.1.7 Continue to consider and promote public art and placemaking in new developments and consult the Arts and Culture Steering Committee on proposed art installations.	Creative placemaking guidelines shared with developers; process established for the Arts and Culture Steering Committee to have a say in proposed art installations; number of placemaking projects/initiatives planned and implemented	**Short to Medium Term**
4.1.8 Develop placemaking plans as a component of the Secondary Plan process for various areas of interest in the Town, or as part of an Urban Design Brief for significant mixed-use developments. Consider placemaking in its broadest sense, including artistic approaches to architecture and creative approaches to sidewalk features and amenities, as well as public art, live cultural programming, signage and interpretation, specific support of the arts and culture in that location, etc. Placemaking could also include looking for ways to incorporate social media-friendly photo opportunities ("Instagrammable moments") into public spaces. *This action also relates to Objective 3.2 – create new spaces for arts, culture, and heritage in Ajax.*	Incorporation of placemaking plans into urban planning design processes; number of placemaking activations in each location; given number of social media posts tagged in that location by members of the public	**Medium Term**
4.2 Enhance nightlife and cultural vibrancy by creating supportive policies.		
Actions	***Key Performance Indicators (KPIs)***	***Implementation***
4.2.1 Utilize programs within the Town's Community Improvement Plans to attract land uses that facilitate nightlife and cultural vibrancy (i.e., patio grants and programs that incentivize restaurant, art gallery, and museum uses).	Number of new cultural and nightlife assets attracted to Ajax (e.g., commercial galleries, bars that offer live music, etc.)	**Short Term**
4.2.2 Consider creating a Steering Committee to develop a sustainable vision and action plan for nightlife in Ajax, and to advocate for the nighttime economy.	Development of a sustainable vision and action plan for nightlife in Ajax; more cultural nighttime entertainment options in Ajax	**Medium Term**

4.2.3 Consider ways to develop municipal policies/incentives to encourage partnerships between businesses, and local artists, groups, and organizations. For example, this may include the Town creating a store front design program or introducing local businesses to musicians and performers so they can perform in commercial spaces.	Number of collaborations and partnerships initiated and undertaken between businesses, and local artists, groups, and organizations	**Medium Term**
4.2.4 Consider the development of an annual night market for Ajax to capitalize on the nighttime economy. Consider hosting the night market at the future Ajax fairground.	Annual night market established; increase in number of vendors and attendance annually	**Medium Term**
4.2.5 Explore approaches to attracting more signature restaurants to Ajax, especially in locations of strategic interest to the development of the Town. For example, consider ways to market Ajax as an attractive location for restaurant businesses, and/or to make licensing and permit processes as accessible as possible. As part of this approach, consider ways to make it easier for restaurants to incorporate patios and outdoor seating areas, to help animate the built environment.	Strategy developed to attract more signature restaurants; adjusted zoning by-laws to accommodate patio/outdoor dining; number of signature restaurants attracted to Ajax	**Long Term**
4.2.6 Explore ways to encourage businesses such as bars, clubs, and restaurants to offer live entertainment such as DJs or live bands, to encourage community members to socialize in Ajax rather than neighbouring communities – especially youth. Potential methods include incentives such as lower commercial property taxes, tax rebates, or accommodating noise by-laws in specific zones.	Increased number of live entertainment shows hosted in Ajax; increased spending in Ajax bars and restaurants; more web traffic searching terms like 'live music Ajax' (measured using Google Trends)	**Long Term**

Goal 5: Bolster Municipal Support for Ajax's Arts and Culture Sector

5.1 Increase municipal capacity to support arts and culture.

Actions		***Implementation***
5.1.1 Create an internal Arts and Culture Steering Committee with representation from each Town department to lead the implementation of the Arts and Culture Plan. *The Committee can play a key role in implementing Objective 4.1 – Continue to implement Official Plan policies that incorporate a cultural lens by*	Arts and Culture Steering Committee established with a mandate to oversee the implementation of the Arts and Culture Plan; number of goals, objectives, and actions met; positive feedback from arts and culture	**Short Term**

promoting placemaking, architectural excellence, public art, and sustainable mixed-use developments.	sector and wider community (based on comments/enquiries received)	
5.1.2 Investigate the feasibility of providing marketing support to non-profits via the Town of Ajax's community events calendar, e-news, and social media outlets.	Internal investigation conducted into how the Town can provide marketing support and the additional resources required; If viable, plan developed with clear roles, responsibilities and timelines; number of community-led events and initiatives promoted via the Town of Ajax marketing channels annually	**Short Term**
5.1.3 Create new positions at the Town of Ajax to support arts and culture. Recommended positions: ▪ Cultural Coordinator (full time) to be the main sector liaison to provide artists, groups, and organizations with guidance, resources, and support. ▪ Diversity and Inclusion Coordinator (full time) to support the implementation of the diversity, equity, and inclusion work plan, working closely with the public and community partners to promote belonging and visibility in the Town while providing support and delivering programs internally and externally. ▪ Festivals and Events Coordinator (full time) to support new Town festivals and events. ▪ Cultural Programming Assistant (part time) to support the delivery of new arts and cultural initiatives.	Positions created and filled and staff retained over time	**Short to Medium Term** 2024 2025 2025/2026
5.1.4 Consider opportunities to increase support for designated heritage properties outside of the Community Improvement Plan areas.	New tools identified for the municipal support of designated heritage properties; number of heritage properties supported by those supports	**Long Term**
5.2 Provide more opportunities for artists in Ajax.		
Actions		***Implementation***

5.2.1 Create Artist in Residence and Poet Laureate in Residence programs for the Town of Ajax that include an educational component (i.e., artists to offer workshops or talks). ▪ Consider utilizing the Community Art in Public Spaces Review Panel to judge submissions for these programs	Artist in Residence program established; Poet Laureate in Residence program established; number of applications/nominations received year to year – especially from equity priority communities; number of successful residence placements; number of Artists and Poets in Residence-led workshops hosted each year	**Short Term** 2024
5.2.2 Investigate ways to increase opportunities for artists to exhibit, perform, and sell their work in Ajax's public spaces, making artists a more visible component of life in Ajax while providing them with new revenue generating opportunities. Opportunities could include arts markets, outdoor pop-up performances, fostering new business connections, etc.	Increased number of opportunities for artists to exhibit, perform and sell their work in Ajax's public spaces; increased visibility of Ajax artists according to qualitative feedback; increased artist revenue	**Medium Term**
5.3 Break down sector siloes and build collaboration in the sector.		
Actions	***Key Performance Indicators (KPIs)***	***Implementation***
5.3.1 Revitalize the former CultureLink program so the Town of Ajax can play a convening role, hosting regular sector networking sessions for those working or volunteering in the arts, culture, and heritage sector. ▪ The new Cultural Coordinator position could develop and deliver the revitalized CultureLink networking sessions. The sessions could encourage knowledge sharing, including a talk from a practitioner or organization followed by Q&A and a discussion of key issues, and share progress on the implementation of the Arts and Culture Plan.	CultureLink revitalized and regularly hosted by the Town; number of new connections forged within the sector; number of new collaborations/partnerships arising from those introductions	**Short Term** 2023/2024
5.3.2 Expand the Arts and Culture page on the municipal website to become more of a hub for the local sector, hosting relevant and useful information for the sector. This expansion could potentially be part of the Ajax.ca website redesign budgeted for 2025. Include an inventory of available support opportunities and programs available for the arts sector, and promote these to local artists for increased access to funding and other supports.	Audit of Arts and Culture page conducted; page(s) relaunched with additional information and updated quarterly; level of engagement with the page(s) measured in terms of webpage hits, time spent on page, and number of downloads (if applicable); positive qualitative feedback received	**Short Term**

5.3.3 Consider how the Town of Ajax could provide shared services to core arts and culture organizations, potentially including support with grant applications and potentially access to shared equipment.	Study conducted into the shared services most in demand and the feasibility of the Town providing them; launch of shared services; use of shared services by arts and culture organizations; impact of shared services on organizations (investigating both tangible and intangible impact – i.e., number of successful grant applications; perception of the value of those services)	**Medium Term**

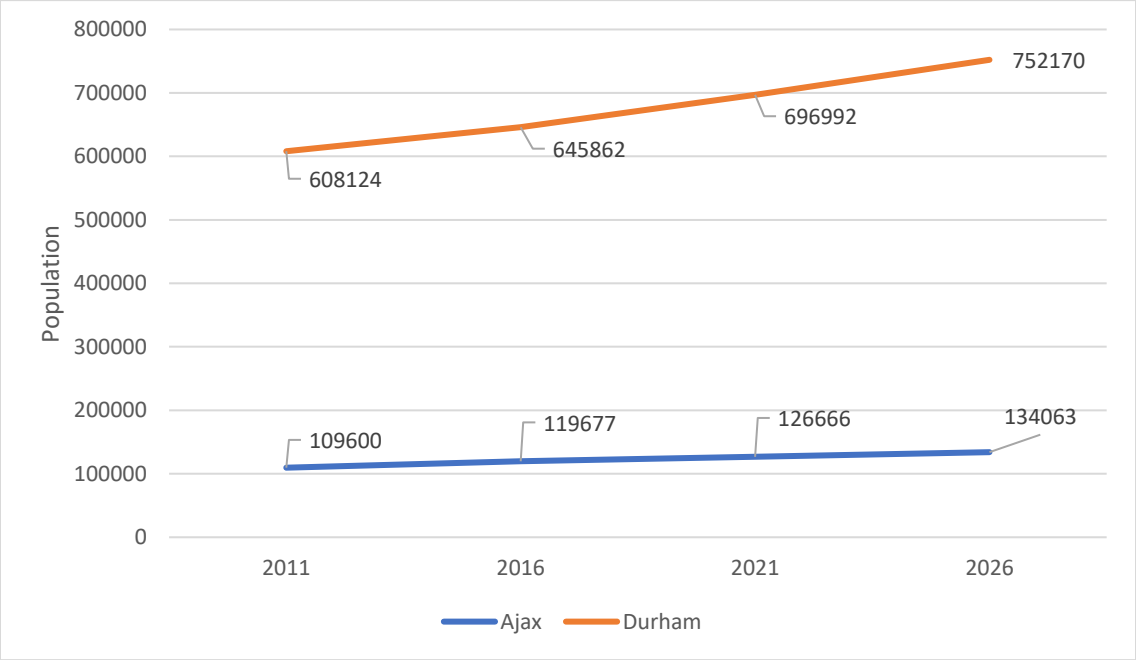
Appendix A. Community Profile

Nordicity conducted a community profile for Ajax and compared it with the greater Durham Region. The community profile is presented by an analysis of the key findings from Canada's Census with a focus on population, age distribution, language and immigration data with visual charts.

Ajax is growing fast

The population in Ajax is growing fast, with Statistics Canada reporting the population for Ajax in **2021** was **126,666**. Ajax has experienced a **5-year compound annual growth rate** of **1.14%** between 2016 to 2021. If the growth continues at a similar rate, Ajax's population is expected to grow **from 119,677 in 2016 to 134,063 by 2026**, which is an **increase of 12%** in 10 years. For the Durham Region, the **population** is expected to grow **from 645,862 in 2016 to 752,170 in 2026**, which is an increase of **about 16%**.

Figure 5. Population growth in Ajax and Durham Region (2011-2026)



Source: Statistics Canada, 2021, 2016, 2011 Census

Young population – but the older segment is growing fastest

Ajax has a young population overall, but its older population is growing at a rapid rate. The **largest age group** for Ajax from 2011 to 2021 is adults aged **35 to 54 years old**. **Children** (0-14 years of age) comprised **18.8% of the Ajax population** in 2021 – similar to the Durham Region average of 18%. In addition, there was an **increase in the proportion of residents 55+** between 2011 and 2021 in Ajax. The **older demographic (55+) grew by around 60%**, which is the **highest growth rate** in comparison to the other age groups (15 to 34 years at about 10%, 0

to 14 years at about 5%). Another age group range (35 to 54 years) did not see much growth change from 2011 to 2021.

Table 4. Ajax Age Distribution from 2011 to 2021

Age Range	Age Distribution 2011	Age Distribution 2016	Age Distribution 2021	% change between 2011 to 2021
0 to 14 years	22,635 (21%)	23,660 (19.8%)	23,805 (18.8%)	5.17%
15 to 34 years	30,290 (28%)	32,140 (26.8%)	33,290 (26.4%)	9.90%
35 to 54 years	35,585 (32%)	35,900 (30.1%)	35,585 (28.1%)	0%
55+	21,090 (19%)	27,985 (23.4%)	33,990 (26.9%)	61.17%

Source: Statistics Canada, 2021, 2016, 2011 Census

Table 5. Durham Region Age Distribution from 2011 to 2021

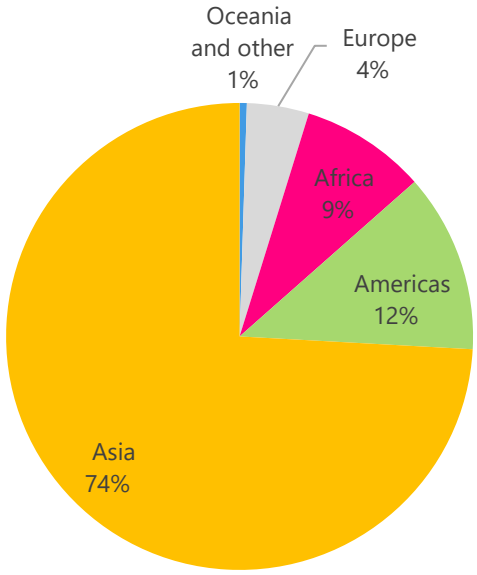
Age Range	Age Distribution 2011	Age Distribution 2016	Age Distribution 2021	% change between 2011 to 2021
0 to 14 years	113,030 (19%)	116,185 (18%)	125,505 (18%)	11%
15 to 34 years	157,440 (26%)	163,435 (25.3%)	174,495 (25.1%)	11%
35 to 54 years	191,105 (31%)	186,925 (28.9%)	188,115 (27%)	2%
55+	146,560 (24%)	179,325 (27.8%)	208,890 (29.9%)	43%

Source: Statistics Canada, 2021, 2016, 2011 Census

Diverse population

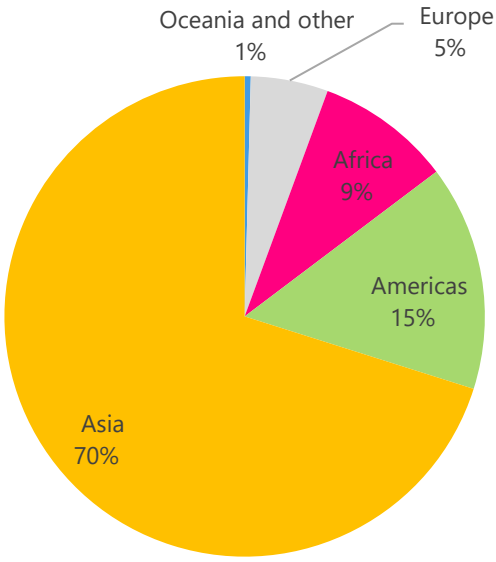
The population of Ajax is diverse and has a high proportion of immigrants. When observing the Statistics Canada Census for 2021, **Ajax** has seen the **largest percentage of recent immigrants** come **from Asia with 74%** while the Durham Region had witnessed a similar trend with 70% of recent immigrants from countries in Asia (see Figures 6 and 7).

Figure 6. Place of birth for the recent immigrant population in Ajax (2021)



Source: Statistics Canada, 2021 Census

Figure 7. Place of birth for the recent immigrant population in Durham Region (2021)



Source: Statistics Canada, 2021 Census

Furthermore, the languages spoken in Ajax also reflect this diversity. As seen in Table 6, The top languages spoken at home in Ajax aside from English and French include Tamil (4,635), Urdu (3,065), Tagalog (1,295), Dari (1,150), and Mandarin (1,020) – similar to the 'top five' in the

Durham Region.

Table 6. Language spoken most often at home in Ajax and Durham Region in 2021

Language Spoken Most Often at Home (Number of People)	Ajax	Durham Region
English	96,590	596,420
French	720	3,540
Arabic	785	2,535
Tagalog (Pilipino, Filipino)	1,295	3,550
Tamil	4,635	10,590
Bengali	715	2,070
Gujarati	970	2,760
Punjabi (Panjabi)	790	2,130
Urdu	3,065	8,730
Dari	1,150	2,955
Mandarin	1,020	4,440

Source: Statistics Canada, 2021 Census

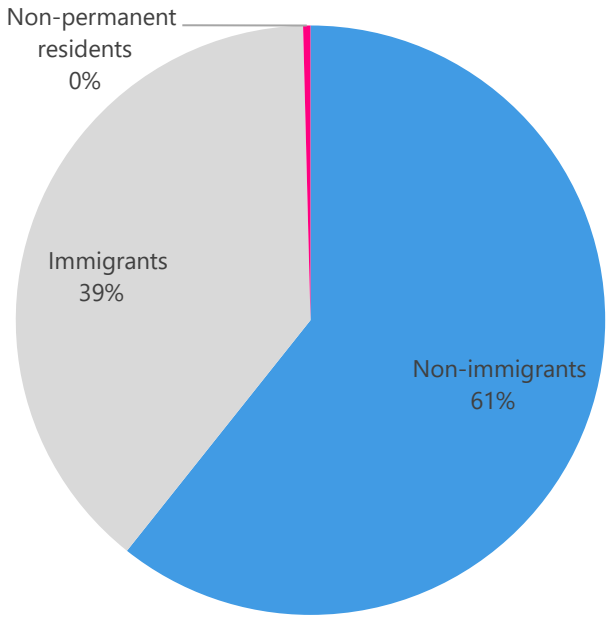
When comparing immigration data in Ajax between 2016 and 2021, one can notice a decrease of **non-immigrants**[6] to Ajax **from 61% in 2016** to **57% in 2021** (Figures 8 and 9). In addition, the percentage of **immigrants**[7] from 2016 to 2021 has **increase from 39% to 42%** as well as the population of [8]**non-permanent residents 0.4% in 2016 to 1% in 2021**.

[6] Statistics Canada defines non-immigrants as "persons who are Canadian citizens by birth".

[7] Statistics Canada defines immigrants as "persons who are or who have ever been landed immigrants or permanent residents. Such persons have been granted the right to live in Canada permanently by immigration authorities. Immigrants who have obtained Canadian citizenship by naturalization are included in this category".

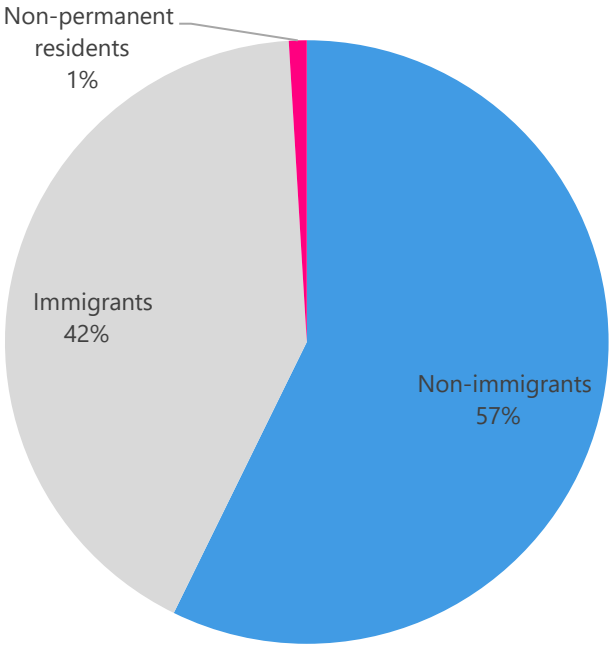
[8] Statistics Canada defines non-permanent residents as "persons from another country with a usual place of residence in Canada and who have a work or study permit or who have claimed refugee status (asylum claimants)".

Figure 8. Immigration data in Ajax in 2016



Source: Statistics Canada, 2016 Census

Figure 9. Immigration data in Ajax in 2021



Source: Statistics Canada, 2021 Census

Appendix B. How the Community Describe Arts and Culture in Ajax

1. How the community describes arts and culture in Ajax today

Figure 10. Compilation of all focus group participants' answers to the question, "In three words, how would you describe arts and culture in Ajax today?"



2. How the community would like to describe arts and culture in Ajax in 10 years

Figure 11. Compilation of all focus group participants' answers to the question, "In 10 years, how would like to describe arts and culture in Ajax?"



Appendix C. Municipal Arts and Culture Micro-Grant Case Studies

The City of Guelph in Ontario recently launched a Community Micro-Grant Program for individuals, artists, groups and not-for-profit organizations, who are eligible for up to a $1000 in support of an arts and cultural initiatives. The funds are given towards initiatives that focus on *'activating art'* in the community (i.e., projects representing all artistic forms and practices that are made publicly available) and *'activating neighborhood'* (i.e., initiatives that bring the community together and create connections). The program is open to all arts projects in the community; however, the program prioritizes initiatives that focus on **equity and reconciliation** in the community, including initiatives led by members of equity-deserving groups in the community. The micro-grant program is a unique partnership between the City of Guelph and the Guelph Arts Council (GAC). GAC is supported by the City through a community benefit agreement and is responsible for administering the micro-grant program. The granting procedure itself is different as the process is **artist-led**, representing a move away from grant processes led by municipalities and funders. The approach allows artists to receive funds based on their own determination of the project they would like to do. Phase 1 of the funds were administered in April 2023 with initiatives receiving between $500 to $1000. Information on application to the program can be found in the Activating Community Micro-Grant Guidelines. Arts and cultural organizations can also access funding from other Community Investment programs offered by the City.

The Regional Municipality of Wood Buffalo (RMWB) provides an **Arts, Culture and Heritage Pilot Grant** to provide micro-grant funding to individual artists and cultural groups. The grant stream supports arts, culture and heritage projects which contribute to realizing the priorities of the **Wood Buffalo Culture Plan**. This pilot funding initiative has a total value of $50,000 to respond to identified needs from the Wood Buffalo Culture Plan in order to support the Plan's vision of RMWB as a place of culturally diverse and socially inclusive municipality where arts, culture and heritage are essential parts of its social, economic and environmental well-being. Applicants are required to describe how their activities align with one or more priorities from the Wood Buffalo Culture Plan including: 1) fostering a healthy environment for arts and culture, 2) further developing cultural facilities and resources, 3) supporting collaboration and innovation, 4) encouraging diversity, inclusivity, and accessibility, and 5) improving awareness of the value of culture. Successful individuals or groups will receive a maximum of $5,000. Other funding streams available to non-profits (including arts and culture organizations) include Community Impact Grant, Community Capital Grant, and Games Legacy Grant.

Cowichan Valley Regional District (CVRD) on Vancouver Island plays a crucial role in enhancing the arts and culture scene of the Cowichan Region. The CVRD's Arts and Culture Division was established to provide annual funding for sub-regional arts councils, give opportunities to arts organizations through grants, and increase collaboration and partnerships between arts and cultural organizations on regional, provincial, and national initiatives. Aside from providing operational funding for the **Cowichan Performing Arts Centre** which is a function of the Arts & Culture Division of the Cowichan Valley Regional District's Recreation & Culture Department ($2,340,000 in 2022), the CVRD offers annual funding to five sub-regional

arts councils and grants in aid for non-profit arts and culture organizations at the value of $130,000 annually. The CVRD also provides regional **Arts and Culture Grants** for arts and culture organizations with the aim of assisting community groups within CVRD to provide artistic programs for residents, build community and organizational capacity to deliver artistic programs, and promote partnerships and sharing of financial costs in CVRD. Arts and culture organizations need to meet the criteria listed within the **Arts & Culture Disbursement Policy**. The grants provided can be used for annual operational funding or special one-time project funding for organizations. In 2022, the total value of the Arts & Culture Grants was approximately $39,000 and was awarded to a number of recipients including Chemainus Theatre Festival Society ($5,000), Cowichan Valley Public Art Gallery Society ($2,000), and Ladysmith Little Theatre Society ($4,200).